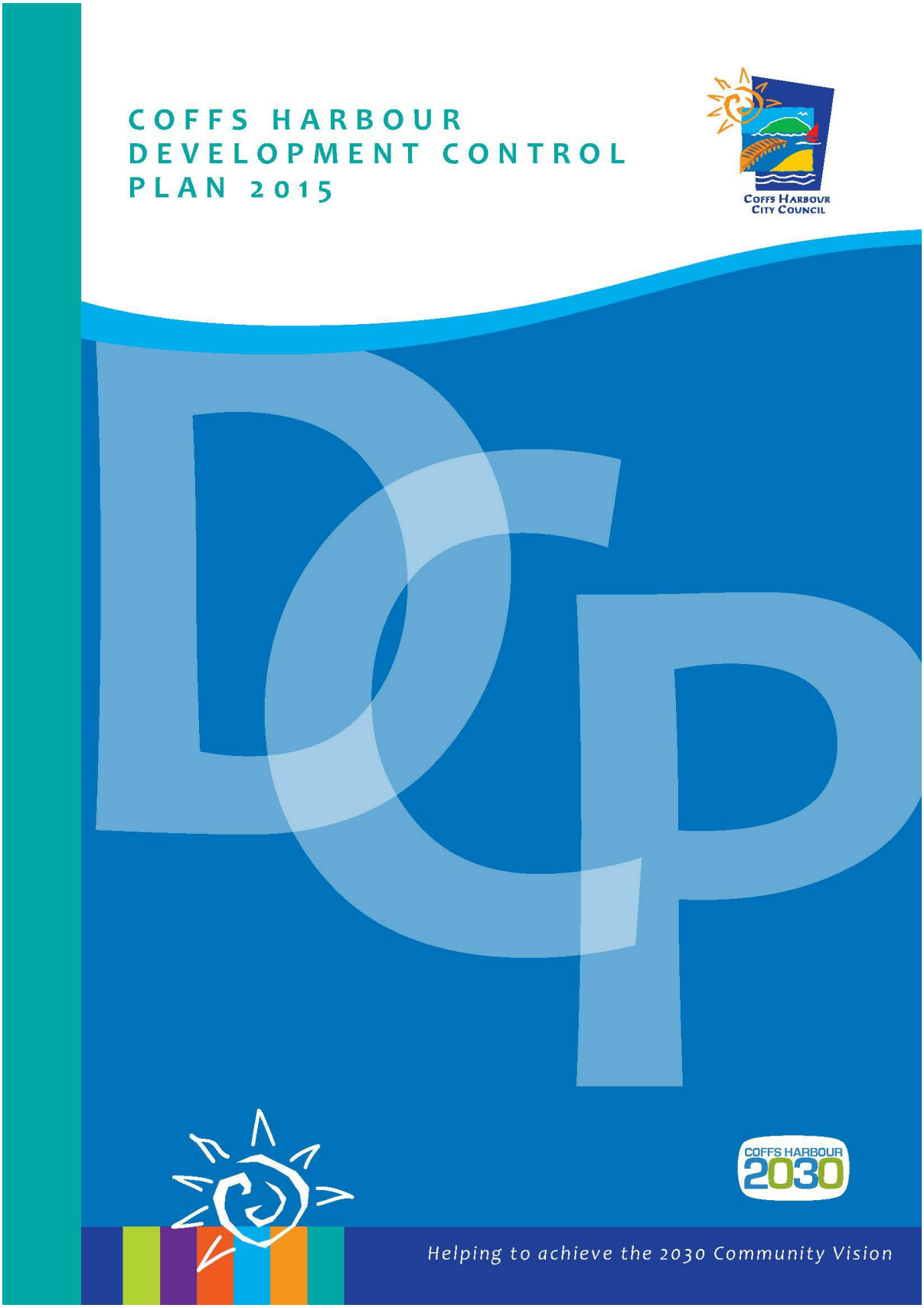
Coffs Harbour Development Control Plan 2015



Part A Introduction

A1 NAME OF PLAN

This Plan is called the Coffs Harbour Development Control Plan 2015.

A2 COMMENCEMENT

This Plan commences on the date that public notice, of its approval by the City of Coffs Harbour, is given in a local newspaper or on a later date specified in the notice.

A3 PURPOSE OF PLAN

The Coffs Harbour Development Control Plan (DCP) 2015 has been prepared in accordance with Part 3 Division 6 of the Environmental Planning and Assessment Act 1979 and in accordance with Part 3 of the Environmental Planning and Assessment Regulation 2000.

The purpose of this Plan is to give effect to the aims of the Coffs Harbour Local Environmental Plan (LEP) 2013, to facilitate development that is permissible under the Coffs Harbour LEP 2013 and achieve the objectives of land use zones under the Coffs Harbour LEP 2013.

In accordance with section 79C of the Environmental Planning and Assessment Act 1979, the consent authority is required to take into consideration the relevant provisions of this Plan in determining applications for development in the Coffs Harbour Local Government Area (LGA).

A4 LAND TO WHICH THIS PLAN APPLIES

This Plan applies to all land shown on the Coffs Harbour LEP 2013 Land Application Map.

A5 OBJECTIVES

Environmental Sustainability

- To ensure that development responds appropriately to the environmental characteristics of the land.
- To protect and conserve high conservation value land.
- To ensure that development incorporates best practice water sensitive urban design techniques.
- To minimise adverse impacts on the water quality of receiving waterways.
- To conserve the environmental heritage of Coffs Harbour in accordance with the principles of the Burra Charter.

Social Sustainability

- To provide safe and attractive neighbourhoods that meet the diverse needs of the community and offer a wide choice of housing, leisure opportunities and community facilities.
- To lessen the dependence on cars by improving the accessibility of public transport services and the provision of infrastructure to encourage walking and cycling.
- To ensure that adequate community facilities are provided in all new residential areas.

Civic Leadership

- To ensure that development is consistent with the principles of the MyCoffs Community Strategic Plan.
- To ensure that assessment of development proposals is transparent, consistent and accountable.

Economic Sustainability

- To ensure that the existing community is not burdened by the provision of public utilities and facilities required as a result of future development.
- To ensure that development contributes to the economic growth of Coffs Harbour and provides for local employment opportunities.
- To ensure that water and sewerage facilities are provided in a timely manner in accordance with the City of Coffs Harbour's Development Servicing Plans.
- To require developers to forward fund any works required ahead of the City of Coffs Harbour's Development Servicing Plans.
- To ensure that business development supports Coffs Harbour City Centre as the primary business district of Coffs Harbour.
- To ensure that business development is consistent with the Review of Coffs Harbour Business Centres Hierarchy (Strategy Hunter 2011).

A6 DEFINITIONS

Aboriginal object has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Aboriginal object means any deposit, object or other material evidence (not being a handicraft made for sale) relating to the Aboriginal habitation of an area of New South Wales, being habitation before or concurrent with (or both) the occupation of that area by persons of non-Aboriginal extraction, and includes Aboriginal remains.

Aboriginal place of heritage significance has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Aboriginal place of heritage significance means an area of land, the general location of which is identified in an Aboriginal heritage study adopted by the City of Coffs Harbour after public exhibition and that may be shown on the Heritage Map, that is:

- *the site of one or more Aboriginal objects or a place that has the physical remains of pre-European occupation by, or is of contemporary significance to, the Aboriginal people. It may (but need not) include items and remnants of the occupation of the land by Aboriginal people, such as burial places, engraving sites, rock art, midden deposits, scarred and sacred trees and sharpening grooves, or*
- *a natural Aboriginal sacred site or other sacred feature. It includes natural features such as creeks or mountains of long-standing cultural significance, as well as initiation, ceremonial or story places or areas of more contemporary cultural significance.*

Note. The term may include (but is not limited to) places that are declared under section 84 of the National Parks and Wildlife Act 1974 to be Aboriginal places for the purposes of that Act.

Access handle or laneway means the portion of a battle-axe lot primarily providing vehicular and services access to a road.

Accessway means a continuous accessible path of travel (as defined in Australian Standards (AS) 1428.1) to, into or within a building.

Acid Sulfate Soils Map means the Coffs Harbour LEP 2013 Acid Sulfate Soils Map.

Addition means building works outside the existing building footprint or works that increases the total floor space, for example new rooms being constructed to the side or above an existing dwelling.

Advertised development for the purposes of this Plan means development specified in B1.1 requirement (2) of this Plan.

Alteration means building works within the existing building footprint where, for example, internal walls may be removed and the building reconfigured for alternative or the same purpose, but which does not increase the total floor space. May include new or resized windows and doors or new roof design.

Ancillary development means any of the following that are not exempt development under State Environmental Planning Policy (Exempt and Complying Development Codes) 2008, or Coffs Harbour LEP 2013:

- access ramp;
- awning, blind or canopy;
- balcony, deck, patio, pergola, terrace or verandah that is attached to a dwelling house;
- carport that is attached to a dwelling house;
- detached studio;
- driveway, pathway or paving;
- fence or screen;
- garage that is attached to a dwelling house;
- outbuilding;
- rainwater tank that is attached to a dwelling house;
- retaining wall; and
- swimming pool or spa pool and child-resistant barrier.

Approval means development consent, or a tree permit, or other approval as specified.

Archaeolgical assessment has the same meaning as a Heritage Impact Statement as defined in Coffs Harbour LEP 2013, including a written report prepared in accordance with the Guide to Investigating, Assessing and Reporting on Aboriginal Cultural Heritage in NSW (Office of Environment and Heritage 2011).

Archaeological site has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Archaeological site means a place that contains one or more relics.

Areas of outstanding biodiversity value has the same meaning as in the Biodiversity Conservation Act 2016.

Articulation zone means a notional area projecting three metres forward of the front building line within which building elements such as:

- entry features or porticos;
- balconies, decks, patios, pergolas;
- terraces or verandahs;
- awnings or other features over a window; and

- sun shading features;

may be incorporated up to a maximum of 50% of the notional area, when viewed from above.

Australian standards are published documents setting out specifications and procedures designed to ensure products, services and systems are safe, reliable and consistently perform the way they were intended to. They establish a common language which defines quality and safety criteria.

Average Recurrence Interval means the long-term average number of years between the occurrence of a flood as big as, or larger than, the selected event. For example, floods with a discharge as great as, or greater than, the 20 year Average Recurrence Interval flood event will occur on average once every 20 years. Average Recurrence Interval is another way of expressing the likelihood of occurrence of a flood event.

Note:

- *The 100 Year Average Recurrence Interval flood level means a flood with a discharge as great as, or greater than, the 100 year Average Recurrence Interval flood event will occur on average once every 100 years. Average Recurrence Interval is another way of expressing the likelihood of occurrence of a flood event.*
- *The 500 Year Average Recurrence Interval flood level means a flood with a discharge as great as, or greater than, the 500 year Average Recurrence Interval flood event will occur on average once every 500 years. Average Recurrence Interval is another way of expressing the likelihood of occurrence of a flood event.*

Awning means a predominantly horizontal structure that projects over a footpath from the host building to provide weather protection for pedestrians.

BASIX Certificate has the same meaning as in the Environmental Planning and Assessment Regulation 2000.

Note. This term means:
BASIX certificate means a certificate issued by the Director-General under clause 164A [of the Environmental Planning and Assessment Regulation 2000].

Battle-axe lot
has the same meaning as in State Environmental Planning Policy (Exempt and Complying Development Codes) 2008.

Note. The term is defined as:
Battle-axe lot means a lot that has access to a road by an access laneway.

Biodiversity Assessment Report has the same meaning as in the Biodiversity Conservation Act 2016.

Note. This term means:
Biodiversity assessment report means a biodiversity stewardship site assessment report, a biodiversity development assessment report or a biodiversity certification assessment report prepared by an accredited person.

Biodiversity Offsets Scheme Threshold has the same meaning as in the Biodiversity Conservation Act 2016.

Biodiversity Values Land Map has the same meaning as in the Biodiversity Conservation Act 2016.

Building maintenance means the upgrade or replacement of like for like materials on an existing building, but not including any increase in total floor area, such as re-painting, replacement of roof sheeting, replacement of guttering etc., typically with like for like materials.

Business identification sign has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Business identification sign means a sign:

- *that indicates:*
  - *the name of the person or business, and*
  - *the nature of the business carried on by the person at the premises or place at which the sign is displayed, and*
- *that may include the address of the premises or place and a logo or other symbol that identifies the business,*

but that does not contain any advertising relating to a person who does not carry on business at the premises or place.
Note. Business identification signs are a type of signage—see the definition of that term in this Dictionary.

City of Coffs Harbour means the organisation responsible for the administration of the Coffs Harbour Local Government Area. The City of Coffs Harbour does not refer to the political body of Councillors known as Council.

Clearing permit application means an application for a clearing permit.

Clearing permit or permit for the removal of prescribed vegetation means a permit as described in the SEPP (Biodiversity and Conservation) 2021.

Coastal hazard means the following:

- beach erosion;
- shoreline recession;
- coastal lake or watercourse entrance instability;
- coastal inundation;
- coastal cliff or slope instability;
- tidal inundation, and
- erosion caused by tidal waters, including the interaction of those waters with catchment floodwaters.

Coastal Hazard Map means the Coffs Harbour Development Control Plan 2015 Coastal Hazard Map.

Coastal wetland means land to which the State Environmental Planning Policy (Resilience and Hazards) 2021 applies.

Coffs Harbour Fine Scale Vegetation Mapping means the fine scale vegetation mapping and associated documents adopted by the City of Coffs Harbour 13 December 2012.

Coffs Harbour Koala Plan of Management means the Coffs Harbour City Koala Plan of Management,

published in November 1999.

Compensatory planting means replacing the loss of biodiversity values associated with the removal (or other specified action) of high conservation value vegetation in accordance with E1.2 of this Plan.

Complying development has the same meaning as in the Environmental Planning and Assessment Act 1979.

Note. The term is defined as:
Complying development is development for which provision is made as referred to in section 76A (5) [of the Environmental Planning and Assessment Act 1979].

Consent authority has the same meaning as in the Environmental Planning and Assessment Act 1979.

Note. The term is defined as:
Consent authority means in relation to a development application or an application for a complying development certificate, means:

- *the council having the function to determine the application, or*
- *if a provision of this Act, the regulations or an environmental planning instrument specifies a Minister, the Planning Assessment Commission, a joint regional planning panel or public authority (other than a council) as having the function to determine the application—that Minister, Commission, panel or authority, as the case may be.*

Contaminated land means land in, on or under which any substance is present at a concentration above the naturally present in, on or under the land and that poses, or is likely to pose, an immediate or long term risk to human health or the environment.

Contaminated Land Policy means the Contaminated Land Policy adopted by the City Of Coffs Harbour.

Contributions plan has the same meaning as in the Environmental Planning and Assessment Regulation 2000.

Note. This term means:
Contributions plan means a contributions plan referred to in section 94EA [of the Environmental Planning and Assessment Act 1979].

Crime prevention through environmental design is a multi-disciplinary approach to deterring criminal behaviour through environmental design. Crime prevention through environmental design strategies rely upon the ability to influence offender decisions that precede criminal acts.

Cul-de-sac means a reasonably short street with a bulbous dead-end.

Dedication of Land Policy means the Coffs Harbour Dedication of Land Policy adopted by the City of Coffs Harbour.

Deep soils zones means areas of natural ground retained within a development, uninhibited by artificial structures and within relatively natural soil profiles.

Density Map means the Coffs Harbour Development Control Plan 2015 Density Map.

Designated development has the same meaning as in the Environmental Planning and Assessment Act 1979.

Note. This term means:
Designated development has the meaning given by section 77A [of the Environmental Planning and Assessment Act 1979].
Note. pursuant to section 77A designated development is development that is declared to be designated development by an environmental planning instrument or the regulations and does not include State significant development despite any such declaration.

Detailed site investigation means an investigation to define the extent and degree of contamination, to assess potential risk posed by contaminants to health and the environment, and to obtain sufficient information for the development of a remedial action plan if required.

Development application has the same meaning as in the Environmental Planning and Assessment Act 1979.

Note. This term means:
Development application means an application for consent under Part 4 [of the Environmental Planning and Assessment Act 1979] to carry out development but does not include an application for a complying development certificate.

Development consent has the same meaning as in the Environmental Planning and Assessment Act 1979.

Note. This term means:
Development consent means consent under Part 4 [of the Environmental Planning and Assessment Act 1979] to carry out development and includes, unless expressly excluded, a complying development certificate.

Development servicing plan means the Servicing Plan for either Wastewater or Water Supply adopted by the City of Coffs Harbour.

Development specifications mean the specifications adopted by the City of Coffs Harbour describing the planning, design and construction standards that apply to development and subdivision proposals.

Driveway means the constructed pavement for vehicular travel on private land.

Driveway crossover means the kerb and gutter or layback and constructed pavement for vehicular travel to a lot over public land.

Dual occupancy has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Dual occupancy means a dual occupancy (attached) or a dual occupancy (detached).
Note. Dual occupancies are a type of residential accommodation—see the definition of that term in the Coffs Harbour LEP 2013 Dictionary.

Dual occupancy (attached) has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:

Dual occupancy (attached) means two dwellings on one lot of land that are attached to each other, but does not include a secondary dwelling.
Note. Dual occupancies are a type of residential accommodation—see the definition of that term in the Coffs Harbour LEP 2013 Dictionary.

Dwelling house has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Dwelling house means a building containing only one dwelling.
Note. Dwelling houses are a type of residential accommodation—see the definition of that term in this Dictionary.

early education and care facility has the same meaning as in Coffs Harbour LEP 2013.

means a building or place used for the education and care of children, and includes any of the following—

- *a centre-based child care facility,*
- *home-based child care,*
- *school-based child care.*

Earthworks has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Earthworks means excavation or filling.

Educational establishment has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Educational establishment means a building or place used for education (including teaching), being:

- *a school, or*
- *a tertiary institution, including a university or a TAFE establishment, that provides formal education and is constituted by or under an Act.*

Emergency
has the same meaning as in the State Emergency and Rescue Management Act 1989.

Note. This term means:
Emergency means an emergency due to an actual or imminent occurrence (such as fire, flood, storm, earthquake, explosion, terrorist act, accident, epidemic or warlike action) which:

- *endangers, or threatens to endanger, the safety or health of persons or animals in the State, or*
- *destroys or damages, or threatens to destroy or damage, property in the State,*

being an emergency which requires a significant and co-ordinated response.

Employment zone means any of the following land zones found within the Coffs Harbour Local Government Area; Zone E1 Local Centre, E2 Commercial Centre, E3 Productivity Support, E4 General Industrial and E5 Heavy Industrial.

Endangered ecological community has the same meaning as in the Biodiversity Conservation Act 2016.

Environmental planning instrument has the same meaning as in the Environmental Planning and Assessment Act 1979.

Note: this term means:
Environmental planning instrument means an environmental planning instrument (including a SEPP or LEP but not including a DCP) made, or taken to have been made, under Part 3 [of the Environmental Planning and Assessment Act 1979] and in force.

Erosion escarpment means the vertical or near vertical drop in the profile of a beach caused by tidal or storm erosion.

Essential facility for the purposes of this Plan means a community facility which provides an important contribution to the notification and evacuation of the community during flood events; such as hospitals, SES, Ambulance, Police and Fire Stations and public utility undertaking (including generating works) which may cause unacceptable pollution of waterways during flooding and are essential to evacuation during period of flood or if affected during flood events would unreasonably affect the ability of the community to return to normal activities after flood events.

Exempt development has the same meaning as in the Environmental Planning and Assessment Act 1979.

Note. This term means:
Exempt development is development for which provision is made as referred to in section 76 (2) [of the Environmental Planning and Assessment Act 1979].

Fenestration means the arrangement and design of windows and openings within a building.

Fill means the importation of fill material onto a site or compensatory earthworks other than the raising of ground levels by less than 100mm over 50% of the site.

Flood planning level means the level of a 1:100 average recurrence interval flood event plus 0.5 metres freeboard.

Floodways mean those areas of the floodplain where a significant discharge of water occurs during floods. They are often aligned with naturally defined channels and are areas that, even if only partially blocked, would cause a significant redistribution of flood flow, or a significant increase in flood levels.

Freeboard is a factor of safety expressed as the height above the design flood level to compensate for uncertainties in the estimation of flood levels across the floodplain, such as wave action, localised hydraulic behaviour and impacts that are specific event related, including levee and embankment settlement, and other effects such as climate change.

Freshwater wetlands means a freshwater wetland as defined in Volume 2: Vegetation Community Profiles of the Coffs Harbour Local Government Area (Office of Environment and Heritage 2012).

Front Setbacks Map means the Coffs Harbour Development Control Plan 2015 Front Setbacks Map.

Geotechnical report means a report detailing the results of below ground investigations undertaken to establish compressibility, strength and other characteristics of the land likely to influence a development

proposal.

Grasslands means a grassland community as defined in Volume 2: Vegetation Community Profiles of the Coffs Harbour Local Government Area (Office of Environment and Heritage 2012).

Greenfield means land that has not been previously developed.

Gross floor area has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Gross floor area means the sum of the floor area of each floor of a building measured from the internal face of external walls, or from the internal face of walls separating the building from any other building, measured at a height of 1.4 metres above the floor, and includes:

- *the area of a mezzanine, and*
- *habitable rooms in a basement or an attic, and*
- *any shop, auditorium, cinema, and the like, in a basement or attic,*

but excludes:

- *any area for common vertical circulation, such as lifts and stairs, and*
- *any basement:*
  - *storage, and*
  - *vehicular access, loading areas, garbage and services, and*
- *plant rooms, lift towers and other areas used exclusively for mechanical services or ducting, and*
- *car parking to meet any requirements of the consent authority (including access to that car parking), and*
- *any space used for the loading or unloading of goods (including access to it), and*
- *terraces and balconies with outer walls less than 1.4 metres high, and*
- *voids above a floor at the level of a storey or storey above.*

Gross leasable floor area means the sum of the area of each floor of a building where the area of each floor is taken to be the area within the internal faces of the walls, excluding stairs, amenities, lifts, corridors and other public areas but including stock storage area.

Habitable room has the same meaning as the Building Code of Australia.

Note: this term means:
Habitable room means any room or area used for normal domestic activities, including living, dining, family, lounge, bedrooms, study, kitchen, sun room and play room.

Hard landscaping means structures of physically hard materials to make architectural features in a garden design (or other landscaped area) such as paths, walls, fences, pergolas, patios, decking and water features.

Hazard line means any of the Immediate, 2050 or 2100 Hazard Lines.

Hazard zone means any of the Immediate, 2050 or 2100 Hazard Zones.

Note:

- *Immediate Hazard Line means a line defined by the adopted Coffs Harbour Coastal Processes and Hazards Definition Study, and as shown on the Coastal Hazard Map.*

- *Immediate Hazard Zone means land seaward from the Immediate Hazard Line as shown on the Coastal Hazard Map.*
- *2050 Hazard Line means a line defined by the adopted Coffs Harbour Coastal Processes and Hazards Definition Study, and as shown on the Coastal Hazard Map.*
- *2050 Hazard Zone means land seaward from the 2050 Hazard Line and landward of the Immediate Hazard Line as shown on the Coastal Hazard Map.*
- *2100 Hazard Line means a line defined by the adopted Coffs Harbour Coastal Processes and Hazards Definition Study, and as shown on the Coastal Hazard Map.*
- *2100 Hazard Zone means land seaward from the 2100 Hazard Line and landward of the 2050 Hazard Line as shown on the Coastal Hazard Map.*

Heathlands means a heathland as defined in Volume 2: Vegetation Community Profiles of the Coffs Harbour Local Government Area (Office of Environment and Heritage 2012).

Heritage conservation area has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Heritage conservation area means an area of land of heritage significance:
- *shown on the Heritage Map as a heritage conservation area, and*
- *the location and nature of which is described in Schedule 5,*

and includes any heritage items situated on or within that area.

Heritage conservation management plan has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Heritage conservation management plan means a document prepared in accordance with guidelines prepared by the Division of the Government Service responsible to the Minister administering the Heritage Act 1977 that documents the heritage significance of an item, place or heritage conservation area and identifies conservation policies and management mechanisms that are appropriate to enable that significance to be retained.

Heritage impact statement has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Heritage impact statement means a document consisting of:
- *a statement demonstrating the heritage significance of a heritage item or heritage conservation area, and*
- *an assessment of the impact that proposed development will have on that significance, and*
- *proposals for measures to minimise that impact.*

Heritage item has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Heritage item means a building, work, place, relic, tree, object or archaeological site the location and nature of which is described in Schedule 5.
Note. An inventory of heritage items is also available at the office of the City of Coffs Harbour.

Heritage management document has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Heritage management document means:

- *a heritage conservation management plan, or*
- *a heritage impact statement, or*
- *any other document that provides guidelines for the ongoing management and conservation of a heritage item, Aboriginal object, Aboriginal place of heritage significance or heritage conservation area.*

Heritage Map has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Heritage map means the Coffs Harbour LEP 2013 Heritage Map.

High conservation value land means land containing any of the following:

- high conservation value vegetation;
- riparian zone;
- coastal wetland as defined under State Environmental Planning Policy (Resilience and Hazards) 2021;
- littoral rainforest as defined under State Environmental Planning Policy (Resilience and Hazards) 2021;
- Habitat Links mapped under the Coffs Harbour City Koala Plan of Management 1999; land zoned C1 National Parks and Nature Reserves, C2 Environmental Conservation, W1 Natural Waterways, and W2 Recreational Waterways under Coffs Harbour LEP 2013; and
- Marine Park declared under Division 1 of Part 5 of the Marine Estate Management Act 2014.

High conservation value vegetation means any of the following:

- any primary or secondary koala habitat defined under the Coffs Harbour City Koala Plan of Management 1999;
- any endangered ecological community, or their habitat listed under the Biodiversity Conservation Act 2016;
- over-cleared vegetation types of the Coffs Harbour Local Government Area adopted by the City of Coffs Harbour 28 November 2013;
- high value arboreal habitats of the Coffs Harbour Local Government Area adopted by the City of Coffs Harbour 8 May 2014;
- any heathlands, freshwater wetlands, grasslands, saline wetlands, or sedgelands;
- any native old growth or hollow-bearing tree;
- any tree listed on the City of Coffs Harbour Significant Tree Register.

High hazard flood area means an area:

- which presents possible danger to personal safety; or
- in which evacuation by trucks is difficult; or
- in which able-bodied adults would have difficulty wading to safety; or
- in which there is potential for significant structural damage.

High Value Arboreal Habitats of the Coffs Harbour Local Government Area means the study adopted by the City of Coffs Harbour 8 May 2014.

Hollow bearing tree means any native vegetation possessing a hollow greater than 30mm.

Home occupation (sex services) has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Home occupation (sex services) means the provision of sex services in a dwelling that is a brothel, or in a building that is a brothel and is ancillary to such a dwelling, by no more than two permanent residents of the dwelling and that does not involve:

- *the employment of persons other than those residents; or*
- *interference with the amenity of the neighbourhood by reason of the emission of noise, traffic generation or otherwise; or*
- *the exhibition of any signage; or*
- *the sale of items (whether goods or materials), or the exposure or offer for sale of items, by retail;*

but does not include a home business or sex services premises.

Human scale is where existing buildings, particularly when observed at street level, are of a bulk, scale and mass that humans can relate to; in most areas there is a comfortable relationship between the buildings and the average height of a human. The streetscapes generally provide for a two storey building height and deliver a reasonably intimate relationship with pedestrians; buildings do not tower above the pedestrian areas or intimidate pedestrians. A human scale can be provided for buildings taller than two storeys by detailed design at the street frontage and stepping back the taller parts of the building.

Illuminated signage means a sign which is internally or externally lit by artificial lighting whether that lighting is integral to or separate from the sign, include signs that have flashing or sequenced lighting, spotlighting, directional, and projected or laser lighting.

Infill subdivision means the subdivision of land within an existing developed area.

Infill development means the development of land within an existing developed area.

Infrastructure development for the purposes of this Plan means infrastructure that is required to provide public utilities to the community such as roads, water, sewer, gas, electricity and telecommunication services.

Initial evaluation means the City of Coffs Harbour's assessment of readily available factual information to determine whether contamination is a relevant site constraint requiring further investigation prior to the determination of a development application.

Integrated development has the same meaning as in the Environmental Planning and Assessment Act 1979.

Note. This term means:
Integrated development has the meaning given by section 91 [of the Environmental Planning and Assessment Act 1979].

Intensive livestock agriculture has the same meaning as in Coffs Harbour LEP 2013.

Note: This term means:
Intensive livestock agriculture means the keeping or breeding, for commercial purposes, of cattle, poultry, pigs, goats, horses or other livestock that are fed wholly or substantially on externally sourced feed, and includes any of the following:

- *dairies (restricted),*
- *feedlots,*
- *piggeries,*
- *poultry farms,*

but does not include extensive agriculture, aquaculture or the operation of facilities for drought or similar emergency relief.
Note: Intensive livestock agriculture is a type of agriculture.

Intensive plant agriculture has the same meaning as in Coffs Harbour LEP 2013.

Note: This term means:
Intensive plant agriculture means any of the following:

- *the cultivation of irrigated crops for commercial purposes (other than irrigated pasture or fodder crops),*
- *horticulture,*
- *turf farming,*
- *viticulture.*

Note: Intensive plant agriculture is a type of agriculture.

Koala habitat means habitat mapped and described in the Coffs Harbour City Koala Plan of Management 1999.

Land Application Map has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Land application map means the Coffs Harbour LEP 2013 Land Application Map.

Maritime grasslands means a maritime grassland community as defined in Volume 2: Vegetation Community Profiles of the Coffs Harbour Local Government Area (Office of Environment and Heritage 2012).

Mixed use development has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Mixed use development means a building or place comprising two or more different land uses.

Multi dwelling housing has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Multi dwelling housing means three or more dwellings (whether attached or detached) on one lot of land, each with access at ground level, but does not include a residential flat building.
Note. Multi dwelling housing is a type of residential accommodation—see the definition of that term in the Coffs Harbour LEP 2013 Dictionary.

Native old growth means native vegetation possessing a diameter greater than 100 centimetres (or a girth greater than 3.14m).

Native vegetation means any of the following types of indigenous vegetation:

- trees (including any sapling or shrub, or any scrub),
- understorey plants,
- groundcover (being any type of herbaceous vegetation),
- plants occurring in a wetland.

Vegetation is indigenous if it is of a species of vegetation, or if it comprises species of vegetation, that existed in the North Coast before European settlement.

Native vegetation does not include any mangroves, seagrasses or any other type of marine vegetation to which section 205 of the Fisheries Management Act 1994 applies.

Note
NSW Flora Online can assist proponents in determining Native Vegetation of the NSW North Coast.

Nominated integrated development has the same meaning as in the Environmental Planning and Assessment Regulation 2000.

Note. This term means:
Integrated development means development of the kind referred to in clause 5 (1) (b) [of the Environmental Planning and Assessment Regulation 2000].

Non-habitable room has the same meaning as the Building Code of Australia.

Note: This term means:
Non-habitable room means spaces of a specialised nature not occupied frequently or for extended periods, including bathrooms, toilets, pantries, walk-in wardrobes, corridors, lobbies, photographic darkrooms and clothes drying rooms.

Non-urban development for the purposes of this Plan means development for the purposes of: agriculture; animal boarding or training establishment; aquaculture; environmental facility; extractive industry; forestry; helipad, marina; mine; recreation area, plant nurseries; stock and sale yard; transport depot; turf farming; and wharf or boating facility.

Notified development for the purposes of this Plan means development specified in B1.1 requirement (4) of this Plan.

Occupation certificate has the same meaning as in the *Environmental Planning and Assessment Regulation 2000*.

Note. This term means:
Occupation certificate means a certificate referred to in section 109C (1) (c) [of the Environmental Planning and Assessment Act 1979].

On site renewable energy generation systems means renewable energy sources that are on, or impact upon,

the same allotment as the building.

Note. renewable energy means as energy that is derived from sources that are regenerated, replenished, or for all practical purposes cannot be depleted and the energy sources include, but are not limited to, solar, wind, hydroelectric, wave action and geothermal.

On Site Sewerage Management Strategy means the On Site Sewerage Management Strategy adopted by the City of Coffs Harbour.

Other advertised development has the same meaning as in the Environmental Planning and Assessment Regulation 2000.

Note. This term means:
Other advertised development means development of the kind referred to in clause 5 (2) [of the Environmental Planning and Assessment Regulation 2000].

Outbuilding means any of the following class 10a buildings under the Building Code of Australia:

- balcony, deck, patio, pergola, terrace or verandah that is detached from a dwelling house,
- cabana, cubby house, fernery, garden shed, gazebo or greenhouse,
- carport that is detached from a dwelling house,
- farm building,
- garage that is detached from a dwelling house,
- rainwater tank (above ground) that is detached from a dwelling house,
- shade structure that is detached from a dwelling house,
- shed.

Over-Cleared Vegetation Types of the Coffs Harbour Local Government Area means the study adopted by the City of Coffs Harbour 28 November 2013.

Porte cochere means a porch, often used in hotel development, large enough for vehicles such as tourist coaches to pass through.

Potentially contaminated land means land in, on or under which any substance is likely to be present due to previous land uses at a concentration above the naturally present in, on or under the land and that poses, or is likely to pose, an immediate or long term risk to human health or the environment.

Precautionary principle is described as follows: *"if there are threats of serious or irreversible environmental damage, lack of full scientific certainty should not be used as a reason for postponing measures to prevent environmental degradation."*

Preliminary site investigation means an investigation to identify any past or present potentially contaminating activities and to provide a preliminary assessment of site contamination, and if required, provide a basis for a detailed investigation.

Prescribed vegetation means:

- all native vegetation shown on the preservation of vegetation map; and
- any native tree with either a height greater than five metres or any part of a trunk has a diameter

greater than 15 centimetres (or a girth greater than 47cm); and
- any hollow-bearing tree or significant tree.

Preservation of Vegetation Map refers to the City of Coffs Harbour's online mapping system and comprises Freshwater Wetlands, Heathlands, Grasslands, Saline Wetlands, Endangered Ecological Communities, Over-Cleared Vegetation Types, High Value Arboreal Habitats and any Primary or Secondary Koala Habitat defined under the Coffs Harbour City Koala Plan of Management 1999 and 20m either side of land shown as a watercourse on the NSW 'Water Feature Corridor' Dataset that is maintained by the City of Coffs Harbour as part of the cadastral fabric.

Primary road has the same meaning as in State Environmental Planning Policy (Exempt and Complying Development Codes) 2008.

Note. This term means:
Primary road means the road to which the front of a dwelling house, or a main building, on a lot faces or is proposed to face.

Private open space has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Private open space means an area external to a building (including an area of land, terrace, balcony or deck) that is used for private outdoor purposes ancillary to the use of the building.

Probable maximum flood is the largest flood that could conceivably occur at a particular location, usually estimated from probable maximum precipitation coupled with the worst flood producing catchment conditions.

Probable maximum precipitation is the greatest depth of precipitation for a given duration meteorologically possible over a given size storm area at a particular location at a particular time of the year, with no allowance made for long-term climatic trends.

Professional engineer means a person:
- who is a registered professional engineer in the relevant discipline (coastal and/or structural) who has appropriate experience and competence in the relevant field; and
- who is:
  - a Corporate Member of the Institute of Engineers, Australia; or
  - eligible to become a Corporate Member of the Institute of Engineers, Australia.

Relic has the same meaning as in the Heritage Act 1977.

Note. This term is defined as follows:
Relic means any deposit, artefact, object or material evidence that:
- *relates to the settlement of the area that comprises New South Wales, not being Aboriginal settlement, and*
- *is of State or local heritage significance.*

Remedial action plan means a plan which sets out remediation goals and documents the process by which it is proposed to remediate a site.

Residential accommodation has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Residential accommodation means a building or place used predominantly as a place of residence, and includes any of the following:

- *attached dwellings;*
- *boarding houses;*
- *dual occupancies;*
- *dwelling houses;*
- *group homes;*
- *hostels;*
- *multi dwelling housing;*
- *residential flat buildings;*
- *rural workers' dwellings;*
- *secondary dwellings;*
- *semi-detached dwellings;*
- *seniors housing; and/or*
- *shop top housing;*

but does not include tourist and visitor accommodation or caravan parks.

Residential flat building has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Residential flat building means a building containing three or more dwellings, but does not include an attached dwelling or multi dwelling housing.
Note. Residential flat buildings are a type of residential accommodation—see the definition of that term in the Coffs Harbour LEP 2013 Dictionary.

Resulting lot means a lot created from the subdivision of land.

Riparian corridor means a transition zone between the land and a watercourse or aquatic environment, comprising a channel (bed and banks of the watercourse to the highest bank) and riparian zone.

Riparian Lands and Watercourses Map has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Riparian Lands and Watercourses Map means the Coffs Harbour LEP 2013 Riparian Lands and Watercourses Map.

Riparian zones means the terrestrial environment adjoining the channel within a riparian corridor.

Saline wetlands means a saline wetland as defined in Volume 2: Vegetation Community Profiles of the Coffs Harbour Local Government Area (Office of Environment and Heritage 2012).

Secondary road has the same meaning as in State Environmental Planning Policy (Exempt and Complying Development Codes) 2008.

Note. This term means:
Secondary road means, in the case of a corner lot that has boundaries with adjacent roads, the road that is not the primary road.

Secondary dwelling has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Secondary dwelling means a self-contained dwelling that:

- *is established in conjunction with another dwelling (the principal dwelling); and*
- *is on the same lot of land as the principal dwelling; and*
- *is located within, or is attached to, or is separate from, the principal dwelling.*

Note. See clause 5.4 for controls relating to the total floor area of secondary dwellings. Secondary dwellings are a type of residential accommodation—see the definition of that term in the Coffs Harbour LEP 2013 Dictionary.

Sea level rise means a change in mean ocean level with time.

Note: The adopted sea level rise benchmark for the Coffs Harbour Local Government Area is a 91 centimetre increase by 2100 (above 1990 mean sea levels).

Sedgelands means a sedgeland as defined in Volume 2: Vegetation Community Profiles of the Coffs Harbour Local Government Area (Office of Environment and Heritage 2012).

Semi-detached dwelling has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Semi-detached dwelling means a dwelling that is on its own lot of land and is attached to only one other dwelling.
Note. Semi-detached dwellings are a type of residential accommodation—see the definition of that term in the Coffs Harbour LEP 2013 Dictionary.

Sensitive facility for the purposes of this Plan means any: telecommunications facility; hazardous industry, hazardous storage establishment; offensive industry, offensive storage establishment; liquid fuel depot; educational establishment, early education and care facility, seniors housing; and transitional group home.

Sensitive land uses means land uses or facilities where the community associated with the use or occupation of those sites may be sensitive to the placement or development of telecommunications infrastructure in proximity to those sites. Sensitive land uses are considered to include; schools, child care facilities, residential land use zones, aged care facilities and hospitals.

Sensitive land uses means land uses or facilities where the community associated with the use or occupation of those sites may be sensitive to the placement or development of telecommunications infrastructure in proximity to those sites. Sensitive land uses are considered to include; schools, child care facilities, residential land use zones, aged care facilities and hospitals.

Sex services premises has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:

Sex services premises means a brothel, but does not include home occupation (sex services).

Setback means the horizontal distance between the relevant boundary of the lot and the building line.

Setback area means the area between the building line and the relevant boundary of the lot.

Shadow diagrams illustrate the amount of shadow cast by a development.

Shop top housing has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Shop top housing means one or more dwellings located above ground floor retail premises or business premises.
Note. Shop top housing is a type of residential accommodation – refer to the definition of that term in the Coffs Harbour LEP 2013 dictionary.

Side and Rear Setbacks Map means the Coffs Harbour Development Control Plan 2015 Side and Rear Setbacks Map.

Signage has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Signage means any sign, notice, device, representation or advertisement that advertises or promotes any goods, services or events and any structure or vessel that is principally designed for, or that is used for, the display of signage, and includes any of the following:

- *an advertising structure;*
- *a building identification sign; and/or*
- *a business identification sign;*

but does not include a traffic sign or traffic control facilities

Significant Tree means any tree listed on the City of Coffs Harbour Significant Tree Register.

Site audit means an independent review of any or all of the stages of the site investigation process conducted in accordance with the Contaminated Land Management Act 1997 and Contaminated Sites: Guidelines for the NSW Site Auditor Scheme (2nd Edition) (EPA 2006).

Soft landscaping means the soil and diverse plants used to help create a garden design including lawns, beds, borders, screens and trees.

Special areas means land identified as Special Areas shown on the Coffs Harbour Development Control Plan 2015 Coastal Hazard Map.

Specified action means any of the following actions: ringbark, cut down, top, lop, remove, injure or wilfully destroy.

State significant development has the same meaning as in the Environmental Planning and Assessment Act 1979.

Note. This term means:
State significant development has the meaning given by Division 4.1 of Part 4 [of the Environmental Planning and Assessment Act 1979].

Steep land means land shown on the Coffs Harbour Development Control Plan 2015 Steep and Highly Erodible Land Map.

Steep and Highly Erodible Land Map means the Coffs Harbour Development Control Plan 2015 Steep and Highly Erodible Land Map.

Street
has the same meaning as a public road under the Roads Act 1993.

Note: This term means:

- *Any road that is opened or dedicated as a public road, whether under this or any other Act or law, and*
- *Any road that is declared to be a public road for the purposes of this Act.*

Subdivision of land has the same meaning as in the Environmental Planning and Assessment Act 1979.

Note. This term means:
Subdivision of land has the meaning given by section 4B [of the Environmental Planning and Assessment Act 1979].

Subdivision certificate has the same meaning as in the Environmental Planning and Assessment Act 1979.

Note. This term means:
Subdivision certificate means a certificate referred to in section 109C (1) (d) [of the Environmental Planning and Assessment Act 1979].

Telecommunications facility has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Telecommunications facility *means -*

(a) *any part of the infrastructure of a telecommunications network, or*

(b) *any line, cable, optical fibre, fibre access node, interconnect point equipment, apparatus, tower, mast, antenna, dish, tunnel, duct, hole, pit, pole or other structure in connection with a telecommunications network, or*

(c) *any other thing used in or in connection with a telecommunications network.*

Telecommunications facility has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Telecommunications facility *means -*

(a) *any part of the infrastructure of a telecommunications network, or*

(b) *any line, cable, optical fibre, fibre access node, interconnect point equipment, apparatus, tower, mast,*

antenna, dish, tunnel, duct, hole, pit, pole or other structure in connection with a telecommunications network, or

(c) *any other thing used in or in connection with a telecommunications network.*

Tourist and visitor accommodation has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Tourist and visitor accommodation means a building or place that provides temporary or short-term accommodation on a commercial basis, and includes any of the following:

- *backpackers' accommodation;*
- *bed and breakfast accommodation;*
- *farm stay accommodation;*
- *hotel or motel accommodation; and/or*
- *serviced apartments,*

but does not include:

- *camping grounds; or*
- *caravan parks; or*
- *eco-tourist facilities.*

Tree permit means a permit in accordance with SEPP (Biodiversity and Conservation) 2021.

Tree permit application means an application for a tree permit.

Watercourse has the same meaning as in Coffs Harbour LEP 2013.

Note. This term means:
Watercourse means any river, creek, stream or chain of ponds, whether artificially modified or not, in which water usually flows, either continuously or intermittently, in a defined bed or channel, but does not include a waterbody (artificial).

Water Sensitive Urban Design Guideline means the Coffs Harbour Water Sensitive Urban Design Guideline adopted by the City of Coffs Harbour.

Wilderness area means lands (including subterranean lands) declared to be a wilderness area under this Act or the National Parks and Wildlife Act 1974.

A7 ABBREVIATIONS

ABN – Australian Business Number

AHD - Australian Height Datum

AS - Australian Standards

BASIX – Building Sustainability Index

BCA – Building Code of Australia

CIV - Capital Investment Value

DA – Development Application

DCP - Development Control Plan

DDA - Disability Discrimination Act 1992

DP – Deposited Plan

DPE – Department of Planning and Environment

EEC – Endangered Ecological Community

EIS – Environmental Impact Statement

EP&A Act - Environmental Planning and Assessment Act 1979

EP&A Regulation - Environmental Planning and Assessment Regulation 2000

ESD – Ecologically Sustainable Development

FLL – Floodway Limit Line

FPL – Flood Planning Level

GFA – Gross Floor Area

GLFA - Gross Leasable Floor Area

JRPP – Joint Regional Planning Panel

LEP - Local Environmental Plan

LGA – Local Government Area

LUCRA – Land Use Conflict Risk Assessment

MGB - Mobile Garbage Bins

PMF – Probable Maximum Flood

SEE – Statement of Environmental Effects

SEPP – State Environmental Planning Policy

SES – State Emergency Service

SSD – State Significant Development

VMP - Vegetation Management Plan

A8 RELATIONSHIP OF DCP WITH LEP

Pursuant to section 74C(5) of the Environmental Planning and Assessment Act 1979 a provision of this Plan has no effect to the extent that it is the same or substantially the same as a provision of Coffs Harbour LEP 2013, or it is inconsistent or incompatible with a provision of Coffs Harbour LEP 2013.

A9 APPLICATION AND STRUCTURE OF THE DCP

Prior to granting development consent for development, the City of Coffs Harbour must be satisfied that the proposed development satisfies the relevant provisions of the Environmental Planning and Assessment Act 1979, Environmental Planning and Assessment Regulation 2000, any relevant environmental planning instrument including Coffs Harbour LEP 2013 and relevant provisions of this Plan.

Development proposals are required to meet the objectives and requirements of relevant DCP controls that may be contained within more than one part of this Plan, unless alternative solutions are proposed that will provide a better response to meeting the objectives of this Plan.

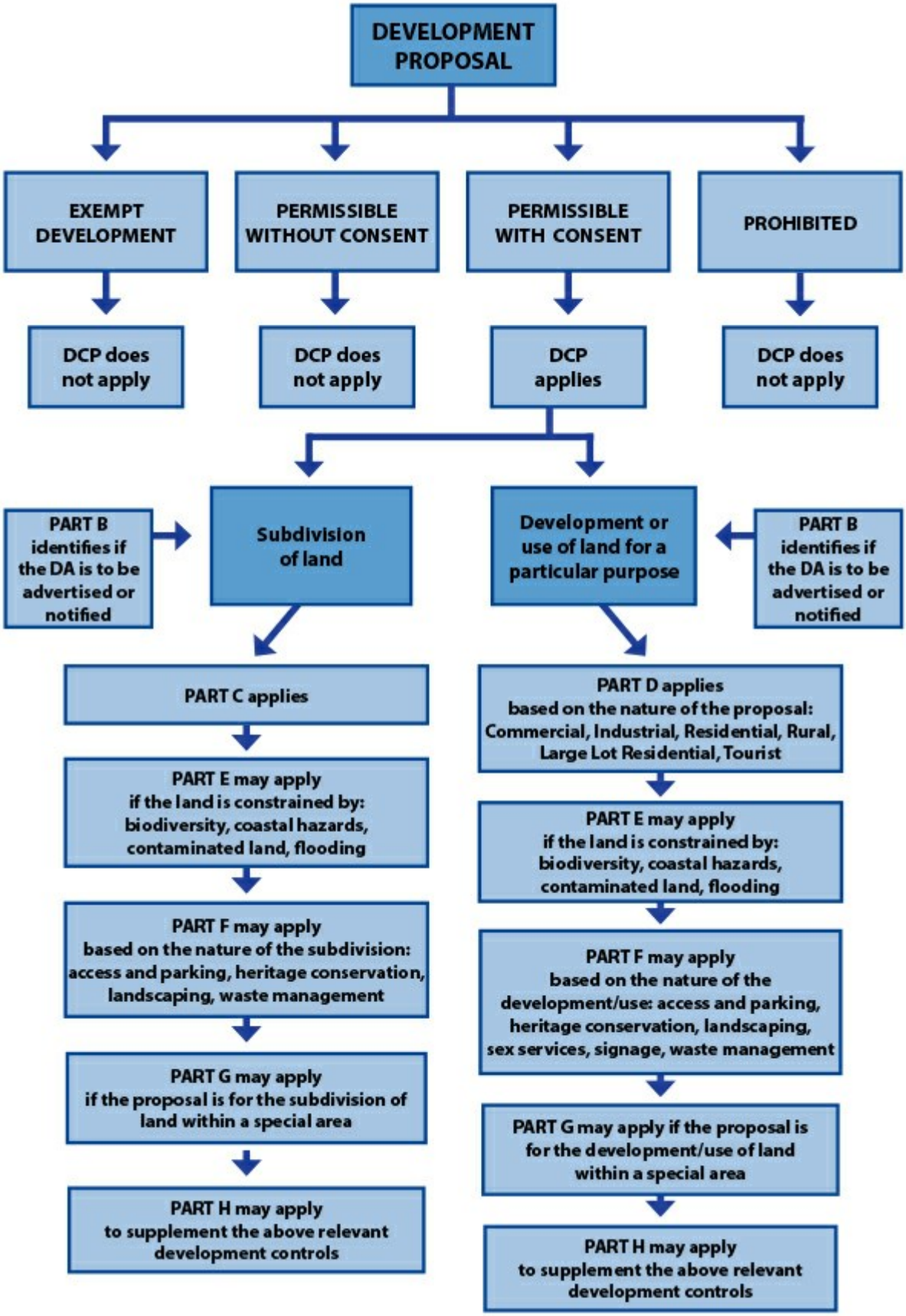
It is the responsibility of applicants to determine the relevant chapters and DCP controls applicable to the proposed development.

Where there is an inconsistency between any Chapters within this Plan, then the City of Coffs Harbour may use its discretion to ascertain which Chapter will prevail.

Compliance with the provisions of this Plan does not guarantee that development consent will be granted. City of Coffs Harbour must, in relation to development applications, also take into consideration all other relevant matters listed under section 79C of the Environmental Planning and Assessment Act 1979.

This Plan is divided into nine parts:

- **Part A** of this Plan provides general matters relating to the commencement, purpose and objectives of this plan, as well as the land to which this plan applies, definitions, structure of Plan, abbreviations and the Plans relationship with Coffs Harbour LEP 2013;
- **Part B** of this Plan identifies where and how a development application is to be publicly notified;
- **Part C** of this Plan contains DCP controls specific to the subdivision of land;
- **Part D** of this Plan contains built form controls for development on land zoned for employment, residential and rural/large lot residential under Coffs Harbour LEP 2013;
- **Part E** of this Plan contains environmental controls for development on land containing high conservation values or development on environmentally constrained land in relation to coastal hazards, contaminated land and flood hazard;
- **Part F** of this Plan contains general DCP controls pertaining to access and parking, heritage conservation, landscaping, sex services, signage and waste management;
- **Part G** of this Plan contains DCP controls specific to special localities and/or urban release areas;
- **Part H** of this Plan contains appendices that complement various DCP controls throughout the Plan; and
- **Part I** of this Plan contains a schedule of any amendments made to the Plan.


DEVELOPMENT PROPOSAL
EXEMPT DEVELOPMENT
PERMISSIBLE WITHOUT CONSENT
PERMISSIBLE WITH CONSENT
PROHIBITED
DCP does not apply
DCP does not apply
DCP applies
DCP does not apply
PART B identifies if the DA is to be advertised or notified
Subdivision of land
Development or use of land for a particular purpose
PART B identifies if the DA is to be advertised or notified
PART C applies
PART E may apply if the land is constrained by: biodiversity, coastal hazards, contaminated land, flooding
PART F may apply based on the nature of the subdivision: access and parking, heritage conservation, landscaping, waste management
PART G may apply if the proposal is for the subdivision of land within a special area
PART H may apply to supplement the above relevant development controls
PART D applies based on the nature of the proposal: Commercial, Industrial, Residential, Rural, Large Lot Residential, Tourist
PART E may apply if the land is constrained by: biodiversity, coastal hazards, contaminated land, flooding
PART F may apply based on the nature of the development/use: access and parking, heritage conservation, landscaping, sex services, signage, waste management
PART G may apply if the proposal is for the development/use of land within a special area
PART H may apply to supplement the above relevant development controls

Part B Public Consultation

B1 PUBLIC CONSULTATION

B1.1 PUBLIC NOTIFICATION

This control has been repealed. Please refer to the City of Coffs Harbour's Community Participation and Engagement Plan.

Part C Subdivision Controls

C1 SUBDIVISION OF LAND

C1.1 SUBDIVISION - GENERAL DESIGN REQUIREMENTS

Applies to Land

This control applies to the subdivision of land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure that resulting lots have a practical and efficient layout to meet their intended use.
- To ensure that subdivision proposals provide appropriate connectivity for servicing vehicular, walking and cycling networks.
- To encourage lot configurations that maximise solar access and respond to the natural and built environment.

Requirements

(1) Lots are to be of regular shape and comprise a suitable frontage to depth ratio to enable future development that is responsive to the lands characteristics.

(2) Subdivisions are not to comprise an access handle where more than two access handles will directly adjoin. Two access handles are only permitted to adjoin where they are in reciprocal right of carriageway arrangement.

(3) Road networks, subject to topographic constraints, are to be based on a grid pattern to encourage pedestrian connectivity.

(4) Road hierarchy, layout and construction shall be designed in accordance with the City of Coffs Harbour's Development Specifications.

(5) Intersections off collector, or higher order roads are to be rationalised where practical.

(6) Pathways are to be provided as an accessible integrated network of walking and cycling routes for safe and convenient travel.

(7) Subdivisions comprising steep land shown on the Steep and Highly Erodible Land Map are to be designed so that smaller lots are located on north facing slopes and larger lots are located on south facing slopes.

(8) Subdivisions are to be designed to integrate with existing or proposed development on adjacent sites.

(9) Threshold and pavement treatments are to be designed to create an attractive streetscape.

(10) The use of cul-de-sacs in the design of subdivisions should be minimised.

Exceptions

- The use of cul-de-sacs in the design of subdivisions may be supported where they:
  - are short in length;

- are not the dominant element of the subdivision road pattern;
- are located off a road network that has a high degree of connectivity; and
- are appropriate for the characteristics of the land.

- Road hierarchy, layout and construction within the Korora large lot residential urban release area is to accord with requirement G7 Korora Large Lot Residential of this Plan.

C1.2 SUBDIVISION - DESIGN REQUIREMENTS FOR CERTAIN RESIDENTIAL ZONES

Applies to Land

This control applies to the subdivision of land zoned R1 General Residential, R2 Low Density Residential, R3 Medium Density Residential and R4 High Density Residential under Coffs Harbour LEP 2013.

Objectives

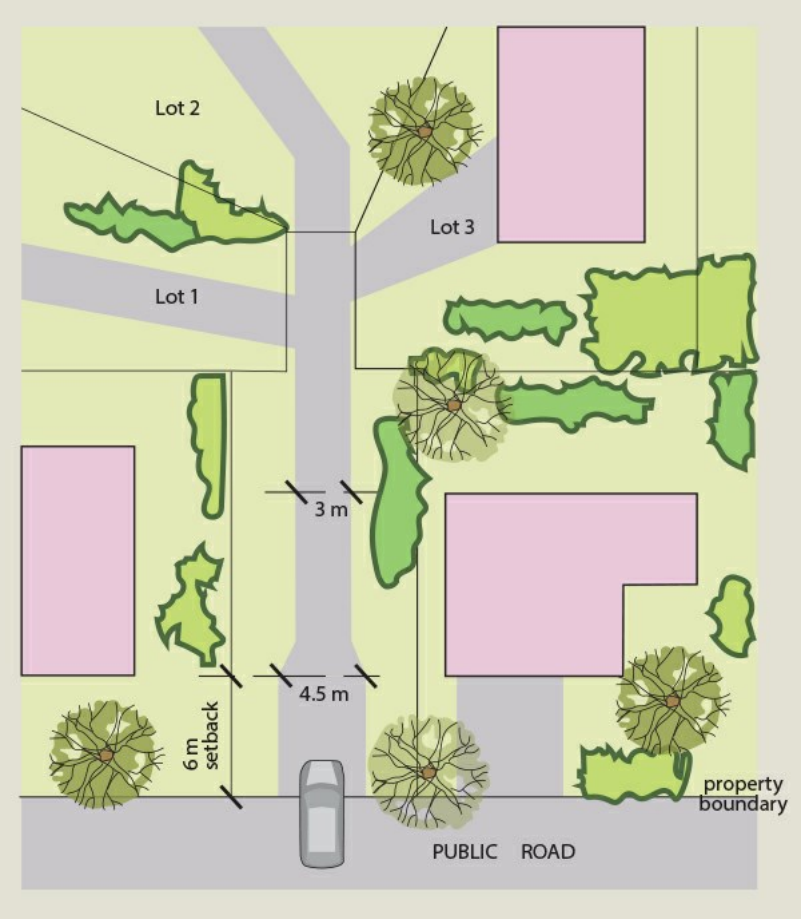
- To ensure that residential lots have a practical and efficient layout to meet their intended use.
- To ensure that subdivision proposals are responsive to constraints of the land and maintain streetscape integrity.

Requirements

(1) Subdivision proposals are to demonstrate that development can be accommodated on the resulting lot(s) in accordance with the Density Map and relevant built form controls contained within this Plan.

(2) Where a common driveway serves more than two resulting lots, the driveway is to be sealed with a minimum width of 4.5 metres at the street frontage, continuing at this width to a depth of six metres, and thereafter at a minimum width of three metres. The driveway is to be constructed prior to the issue of Subdivision Certificate.

Common Driveway Example



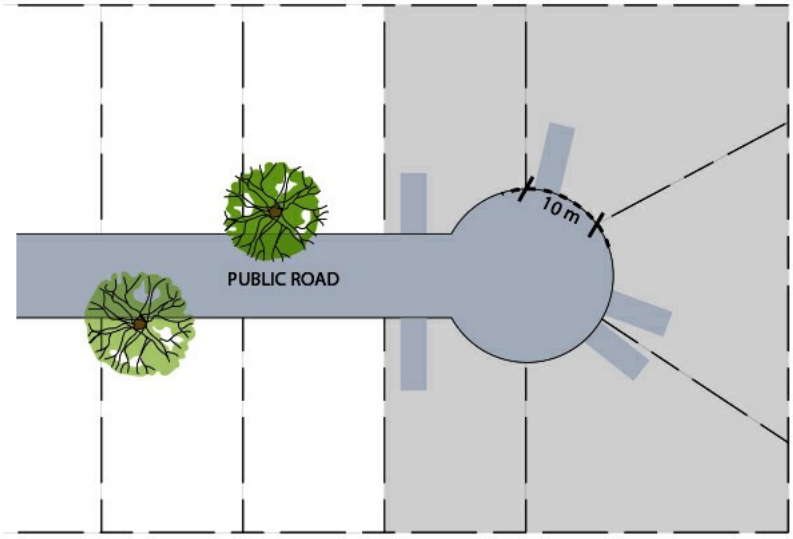
(3) Where a common driveway serves more than two resulting lots, an adequate area is to be provided at the public road frontage within common property for required services (postal, metering, etc.).

(4) The width of any access handle for a battle-axe lot is not to be less than four metres, containing a minimum 3 metre wide sealed driveway, for the entire length of the access handle.

(5) The public road frontage of any resulting lot is not to be less than four metres, except for where requirement (6) of this control applies.

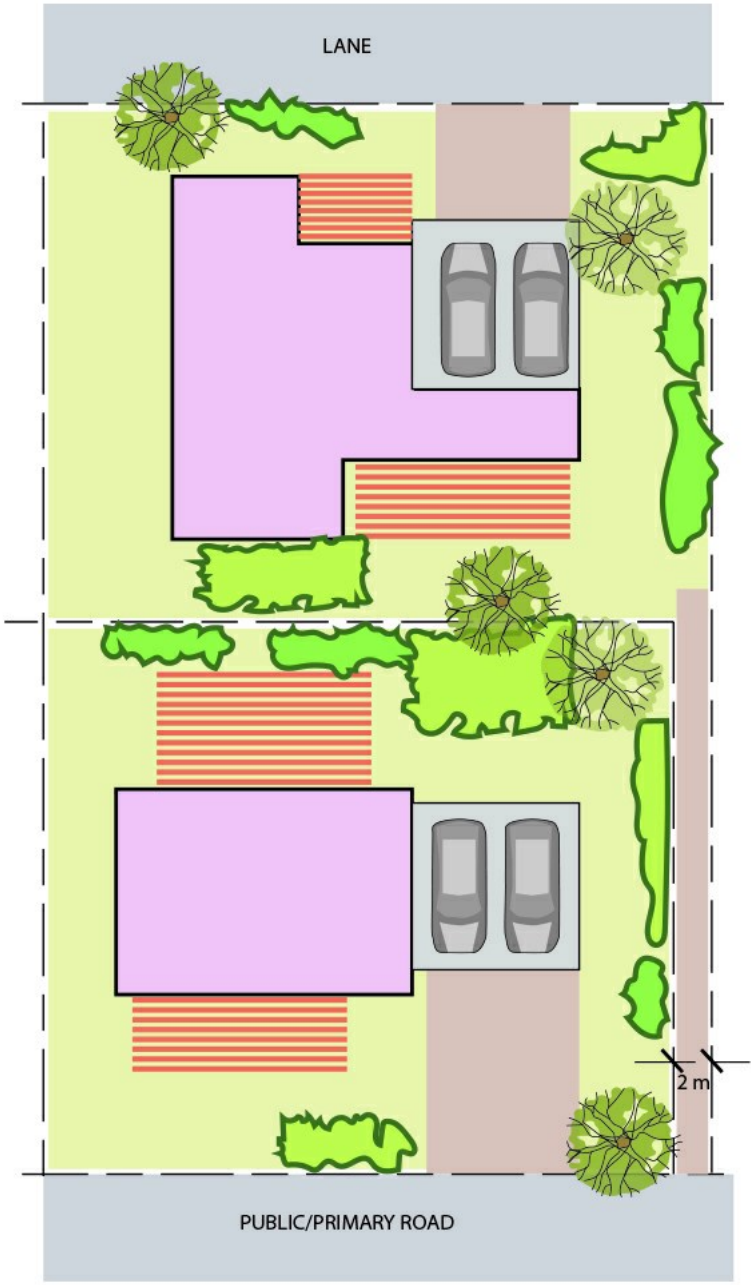
(6) The public road frontage of any lot fronting a cul-de-sac is not to be less than 10 metres, with a driveway being located to one side of the road frontage to provide for visitor car parking and to maintain streetscape integrity.

Example Layout within Cul-de-Sac

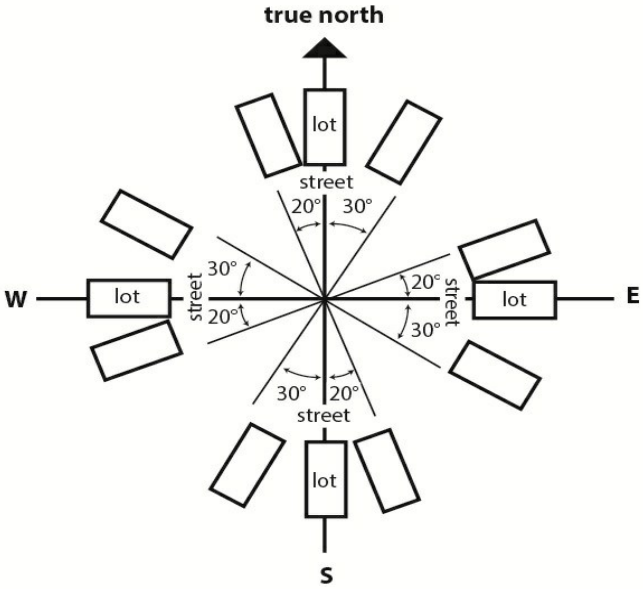


(7) Resulting lots with a public road frontage to a lane are to incorporate a minimum two metre wide fenced and paved frontage to a primary road to provide access to visitor parking, postal services and utility services, unless the exception provided below is satisfied.

Example Lot Fronting a Lane



(8) Unless site conditions dictate, streets should run in a north/south and east/west pattern with lots orientated to provide the long axis within the range N20°W to N30°E or E20°N to E30°S.



(9) Subdivisions are to be designed to maximise solar access and minimise overshadowing from future development. Roads are to be designed so that the majority of their length is within the range N20°W to N30°E or E20°N to E30°S.

Notes:

- ***A sealed driveway incorporates concrete, bitumen/asphalt, paving (including permeable paving), or other suitable materials or treatments on merit to the satisfaction of the City of Coffs Harbour.***
- ***A Common Driveway, as depicted by the figure 'Common Driveway example' applies to Community Title and/or Strata Title only.***

Exceptions

- Public road frontage for no more than two torrens title lots may comprise a shared access handle in a reciprocal right of carriageway. The combined width of the access handle is to be a minimum of four metres containing a minimum 3m wide sealed driveway constructed prior to the issue of Subdivision Certificate. Adequate area is to be provided at the road frontage for required services (postal, metering, etc.) outside of the driveway area.
- Public road frontage for strata and community title schemes may be satisfied by common or community property.
- Resulting lots with a public road frontage to a lane are not required to incorporate a minimum two metre wide fenced and paved frontage to a primary road where it can be demonstrated that adequate visitor parking, postal services and utility services are available to the lot from the lane.

C1.3 SUBDIVISION - DESIGN REQUIREMENTS FOR EMPLOYMENT ZONES

Applies to Land

This control applies to the subdivision of land within an employment zone under Coffs Harbour LEP 2013.

Objectives

- To ensure that business and industrial lots have a practical and efficient layout to meet their intended use.

- To ensure that subdivision proposals respond to constraints of the land and maintain streetscape integrity.

Requirements

(1) Resulting lots are to contain sufficient area to provide for the intended use of the land, including: safe ingress and egress, vehicular movement within the lot and its curtilage, parking, loading and unloading activities, waste management and landscaping.

(2) Resulting lots on land in Zone E4 General Industrial or E5 Heavy Industrial are to comprise a frontage of no less than 20 metres and an average lot size of 1,000m^2.

(3) Resulting lots on land in Zone E1 Local Centre, E2 Commercial Centre, E3 Productivity Support or MU1 Mixed Use are to respond to predominant street block and lot patterns and consider future development uses and envelopes.

(4) Roads in employment zones are to be designed to:

(a) provide functional road and pedestrian links; and

(b) facilitate the use of public transport; and

(c) achieve safe levels of vehicle speed and adequate sight distances; and

(d) provide efficient access for service vehicles (including fire fighting, delivery and waste collection vehicles).

C1.4 SUBDIVISION - DESIGN REQUIREMENTS FOR CERTAIN SPLIT ZONES

Applies to Land

This control applies to the subdivision of a lot (an original lot) that contains both:

- land in either an employment, recreational, residential, rural, or special purpose zone; and
- land in zone C2 Environmental Conservation under Coffs Harbour LEP 2013.

Objectives

- To ensure that resulting split zone lots have a practical and efficient layout to meet their intended use.
- To ensure that subdivisions occur in a manner that provides for the continued protection and long-term maintenance of land zoned C2 Environmental Conservation under Coffs Harbour LEP 2013.

Requirements

(1) The number of resulting lots containing split zones is to be minimised.

(2) Development applications are to be accompanied by sufficient information to demonstrate that the subdivision will not compromise the continued protection and long term maintenance of land zoned C2 Environmental Conservation under Coffs Harbour LEP 2013.

(3) Where subdivision proposals are likely to result in adverse impacts on high conservation value land that cannot be avoided, development applications are to be accompanied by an ecological assessment report prepared in accordance with E1.5 of this Plan.

(4) Ecological assessment reports are to identify actions to avoid, mitigate or offset projected impacts

from the proposed development.

Notes:

- ***Pursuant to Clause 4.1A of Coffs Harbour LEP 2013, in the case of a resulting lot that contains land in a residential or rural zone and land in zone C2 Environmental Conservation, the land that is in a residential or rural zone in the resulting lot is to be not less than the minimum area shown on the lot size map in relation to the land parcel.***
- ***Pursuant to Clause 4.1A of Coffs Harbour LEP 2013, in the case of a resulting lot that contains land in an employment, recreational or special purpose zone and land in zone C2 Environmental Conservation, the area of the resulting lot (excluding any land zoned C2 Environmental Conservation) is to contain sufficient area suitable for a use permitted in the relevant zone.***

C1.5 SUBDIVISION - DESIGN REQUIREMENTS FOR RURAL AND LARGE LOT RESIDENTIAL ZONES

Applies to Land

This control applies to the subdivision of land zoned RU2 Rural Landscape and R5 Large Lot Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure that resulting lots have a practical, safe and efficient layout to meet their intended use.
- To ensure that subdivisions are responsive to the environmental context of the land.
- To minimise impacts from rural subdivisions on primary industry production and development opportunities.

Requirements

(1) Subdivisions comprising escarpments, ridges and other visually prominent topographical features are to be designed to minimise visual impacts from future development by the appropriate siting of building envelopes within resulting lots.

(2) Subdivisions are to incorporate adequate buffers between dwelling envelopes and adjoining agricultural land to ensure that the agricultural potential of those lands will not be diminished (refer to the Land Use Conflict Risk Assessment Guide prepared by the NSW Department of Primary Industries).

(3) Subdivision proposals for land zoned RU2 Rural Landscape under Coffs Harbour LEP 2013 are to be designed to minimise impacts on primary industry production and development opportunities with reference to the Farm Subdivision Assessment Guideline (NSW Department of Industry and Investment 2009).

(4) Subdivision proposals are to incorporate adequate separation between building envelopes and existing dwellings to maintain privacy and rural amenity values.

(5) Access is to be limited to one point from public road frontage (secondary roads where available) and is to conform to the City of Coffs Harbour's Development Specifications.

(6) Stopping distance, minimum sight distances and intersections are to conform to the City of Coffs Harbour's Development Specifications.

Notes:

- ***Subdivision proposals may impact on the harvestable rights provisions of Water Management Act 2000 and it is***

recommended proponents liaise with the relevant state authority.

- ***Where access is proposed to a road with a posted speed limit that exceeds 60km/h, the access location is to be designed in accordance with sight distance requirements of AS2890, Austroads Guide to Traffic Management; Guide to Road Design and relevant authorities (such as Transport for NSW).***

Notes:

- ***Subdivision proposals may impact on the harvestable rights provisions of*** *Water Management Act 2000* ***and it is recommended proponents liaise with the relevant state authority.***
- ***Where access is proposed to a road with a posted speed limit that exceeds 60km/h, the access location is to be designed in accordance with sight distance requirements of AS2890, Austroads Guide to Traffic Management; Guide to Road Design and relevant authorities (such as Transport for NSW).***

C1.6 SUBDIVISION - DESIGN REQUIREMENTS FOR COMMUNITY TITLE SCHEMES

Applies to Land

This control applies to the subdivision of land shown on the Coffs Harbour LEP 2013 Land Application Map, for Community title schemes under the Community Land Development Act 1989.

Objectives

- To ensure that subdivision design responds to the intended use of resulting lots.
- To ensure that appropriate access, infrastructure, services, amenity and siting is provided to resulting lots.
- To ensure that adequate private and communal open space is provided as part of subdivision proposals.

Requirements

(1) Resulting lots are to be designed and located to minimise impacts on high conservation value land.

(2) Access and parking areas are to be designed to provide acceptable levels of safety, amenity and convenience for users.

(3) Access is to be designed in accordance with the City of Coffs Harbour's Development Specifications and the road design requirements for Community Title Schemes specified in the following table:

Internal access requirements for Community Title Schemes

	Type 1	Type 2	Type 3
	Minor loop road not exceeding 200m in length	Minor loop road for vehicular and pedestrian use not exceeding 100m in length	Road for vehicular and pedestrian use not exceeding 50m in length
Maximum design speed	40km/h	30km/h	20km/h
Minimum carriage width	6m	5.5m low speed entrance treatment	5m
Minimum total access way reserve	10m	8m	8m

Minimum shoulder width	1.5m	1m	1m
Nature strip width	1.5m	N/A	N/A
Cul-de-sac design for service vehicles	3 point turn	3 point turn	3 point turn
Kerb and gutter	Business and Residential zones	Business and Residential zones	All zones

(4) Communal areas are to be distinguished from private open space for each resulting lot.

(5) Development applications for Community Title Schemes are to be accompanied by details of proposed private and/or City of Coffs Harbour infrastructure and services that are to be provided to the subdivision and a draft community management statement.

(6) Reticulated water and sewerage services are to be provided in accordance with the City of Coffs Harbour's Development Servicing Plans and Development Specifications.

Exceptions

- Private roads exceeding Type 1 requirements are to be designed in accordance with the City of Coffs Harbour's Development Specifications and the Road Design Requirements specified in F1 Access and Parking of this Plan.

C1.7 INFRASTRUCTURE REQUIREMENTS FOR CERTAIN SUBDIVISIONS

Applies to Land

This control applies to the subdivision of land in a residential, employment, special purpose and recreation zone under Coffs Harbour LEP 2013.

Objectives

- To ensure that appropriate infrastructure and utility services are provided to all lots resulting from a subdivision of land to which this control applies.

Requirements

(1) The following infrastructure is to be provided as part of subdivision proposals in accordance with the City of Coffs Harbour's Development Specifications:

(a) roads and intersections;

(b) bus bays;

(c) cycleways;

(d) footpaths;

(e) kerb and gutter;

(f) drainage; and

(g) street lighting.

(2) The following additional infrastructure is required to be provided in accordance with the City of Coffs Harbour's Development Specifications as part of subdivision proposals comprising lane access:

(a) Full width lane construction extending from the nearest cross street or from an existing constructed section of the lane, including kerb guttering and drainage.

(3) The following services are to be extended to all resulting lots in accordance with the City of Coffs Harbour's Development Specifications:

(a) City of Coffs Harbour's water main;

(b) City of Coffs Harbour's sewer main;

(c) Telecommunications;

(d) Electricity;

(e) National Broadband Network (where available).

(4) Separate water meters are to be provided to all resulting lots subdivided under community and strata title schemes in accordance with the City of Coffs Harbour's Development Specifications, including lots comprising existing development.

(5) Underground reticulated services are to be provided to:

(a) greenfield subdivisions; and

(b) infill subdivisions with existing underground services in accordance with the City of Coffs Harbour's Development Specifications.

(6) Subdivision proposals are to be designed so that the minimum target lot yield specified in any relevant Developer Contributions Plan is achieved for the land.

(7) Subdivision proposals incorporating water sensitive urban design to be dedicated to the City of Coffs Harbour must be designed to enable access for future management and maintenance to the City of Coffs Harbour's satisfaction.

Exceptions

- This control does not apply to land zoned R5 Large Lot Residential under Coffs Harbour LEP 2013 (see C1.8 of this Plan).
- Utility services are not required to be extended to any community property or common lot within a community or strata title scheme, unless the common lot requires connection.
- Where the land is not identified in the City of Coffs Harbour's relevant Development Servicing Plan as a service area, such services are not required to be provided as part of the subdivision.
- Where reticulated services are not available to the land, the subdivision of such land will only be supported where it can be demonstrated that:
    - resulting lots have sufficient area and layout to meet their intended use; and
    - resulting lots can be adequately serviced with regard to site constraints; and
    - effluent is able to be contained, treated and disposed of within each resulting lot in accordance with the City of Coffs Harbour's On Site Sewage Management Strategy; and
    - potable water is able to be accommodated on each resulting lot.
- For subdivisions utilising existing roads, half-road construction is required including any road widening required by the City of Coffs Harbour. Evidence may be provided demonstrating the existing road pavement along the public frontage is in good condition and in accordance with the City of Coffs Harbour's Development Specifications.

C1.8 INFRASTRUCTURE REQUIREMENTS FOR RURAL AND LARGE LOT RESIDENTIAL SUBDIVISIONS

Applies to Land

This control applies to the subdivision of land zoned RU2 Rural Landscape and R5 Large Lot Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure that appropriate infrastructure and utility services are provided to land to which this control applies.
- To ensure that rural and large lot residential subdivisions have a practical, safe and efficient layout to meet the intended use.

Requirements

(1) The following infrastructure is to be provided as part of subdivision proposals in accordance with the City of Coffs Harbour's Development Specifications:

(a) roads;

(b) drainage;

(c) sealed driveways where servicing two or more resulting lots;

(d) underground reticulated telecommunications;

(e) underground reticulated electricity; and

(f) National Broadband Network (where available).

(2) Subdivision of land in a zone to which this control applies may comprise access via a right of carriageway only where the access services no more than three resulting lots.

(3) Where access is provided to service more than three resulting lots, the access is to be dedicated as a public road and constructed in accordance with the City of Coffs Harbour's Development Specifications.

(4) Development applications are to be accompanied by an onsite effluent disposal report prepared in accordance with the City of Coffs Harbour's On-Site Sewage Management Strategy.

(5) Subdivision proposals are to be designed so that the minimum target lot yield specified in any relevant Developer Contributions Plan is achieved for the land.

Exceptions

- The submission of an onsite effluent disposal report may be satisfied by a condition of development consent where the land has adequate area for the management of onsite effluent and where the land does not comprise significant site constraints which would preclude the disposal of effluent on the land.
- The use of pump-out systems for the disposal of effluent is not supported by the City of Coffs Harbour.
- Aboveground telecommunication and electricity services may be provided for the subdivision of land zoned RU2 Rural Landscape under Coffs Harbour LEP 2013.

- Onsite renewable energy generation systems may be used as the sole electricity supply for resulting lots where adjoining land is not disadvantaged, i.e. where the land is at the end of the line of grid electricity; or where the land is unlikely to adjoin future development, including properties at the end of a road or adjoining public land.
- Concept details of onsite renewable energy generation systems are to accompany development applications where such systems are proposed as the sole electricity supply for resulting lots.

C1.9 WATER MANAGEMENT REQUIREMENTS

Applies to Land

This control applies to the subdivision of land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To implement 'best practice' stormwater management techniques.
- To incorporate the use of water sensitive urban design techniques to reduce negative impacts on the natural water cycle and aquatic ecosystems.
- To manage water as a valuable and finite regional resource on a total water cycle basis.

Requirements

(1) Stormwater drainage is to be provided in accordance with the City of Coffs Harbour's Development Specifications.

(2) Development applications for subdivision proposals are to be supported by concept stormwater drainage designs.

(3) Stormwater is to be gravity drained to the City of Coffs Harbour's drainage system or a designated watercourse as shown on the NSW Hydro Line Dataset.

(4) Where a subdivision proposal requires drainage works over adjoining properties, the respective development application is to be supported by land owners consent from the affected properties to the lodgement of the development application, including written agreement to the creation of easements on title for interallotment drainage purposes.

(5) Stormwater drainage design is to generally reflect the pre-existing flow characteristics of the site, and may require on-site stormwater detention.

(6) Water sensitive urban design is to be incorporated into the design of the development in accordance with the City of Coffs Harbour's Water Sensitive Urban Design Guidelines.

(7) Where Estuary Management Plans, Coastal Zone Management Plans or Coastal Management Programs (approved by the City of Coffs Harbour) outline specific water quality targets that are to be met, subdivision proposals within the catchment area (to the extent that they could have a significant impact on the water quality of a waterbody) of those Management Plans / Programs must demonstrate that they can achieve the specified water quality targets. Appropriate modelling is to be used to demonstrate compliance with this requirement.

C1.10 EROSION AND SEDIMENT CONTROL REQUIREMENTS

Applies to Land

This control applies to the subdivision of land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure that earthworks will not have a detrimental impact on environmental functions and processes, neighbouring uses or features of the surrounding land.

Requirements

(1) Erosion and sediment control measures are to be provided in accordance with the document Managing Urban Stormwater – Soils & Construction Volume 1 (Landcom 2004) for subdivision proposals comprising earthworks.

(2) Development applications for the subdivision of land comprising earthworks are to be accompanied by supplementary information in accordance with the following table:

Area of earthworks (m^2)	Supplementary Information
< 800m^2 of disturbed area	Basic Erosion and Sediment Control Plan
800m^2 to 2,500m^2 of disturbed area	Erosion and Sediment Control Plan
>2,500m^2 of disturbed area	Soil and Water Management Plan

(3) Basic Erosion and Sediment Control Plans are to be prepared in accordance with the principles of Best Practice Management for Small Areas of Disturbance.

(4) Erosion and Sediment Control Plans are to be prepared in accordance with the document Managing Urban Stormwater – Soils & Construction Volume 1 (Landcom 2004)).

(5) Soil and Water Management Plans are to be of a scale 1:500 or larger and are to be prepared in accordance with the document Managing Urban Stormwater – Soils & Construction Volume 1 (Landcom 2004).

Notes:

The Coffs Harbour LGA comprises very steep land and highly erodible soils which may require specific erosion and sediment control measures to perform adequately.

C1.11 ENVIRONMENTAL REQUIREMENTS

Applies to Land

This control applies to the subdivision of land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure that subdivisions are responsive to the environmental context of the site.
- To ensure that subdivisions occur in a manner that provides for the continued protection of high conservation value land.

Requirements

(1) Development applications for subdivision proposals comprising land with a final slope >20% shall provide for the following:

(a) building envelopes of functional proportions, not less than 250m² in size; and

(b) building envelopes that do not exceed a maximum grade of 20%; and

(c) a concrete access driveway for each resulting lot at a grade ≤ 20%.

(2) Subdivision proposals are to comply with the relevant controls of E1 Biodiversity of this Plan.

(3) Subdivision proposals on land comprising a riparian zone are to be designed to:

(a) ensure that the slope and orientation of resulting lots provide for the long term conservation of the riparian zone; and

(b) enable access for future management of the riparian zone; and

(c) avoid impacts on the riparian zone; and

(d) enable opportunities for future solar access; and

(e) enable adequate drainage and urban filtration through water sensitive urban design techniques; and

(f) ensure that associated infrastructure and services are located outside of the riparian zone.

Notes:

- ***Clause 7.1 Acid Sulfate Soils of** Coffs Harbour LEP 2013 **requires development consent and the preparation of an Acid Sulfate Soils Management Plan for the carrying out of certain works on land shown on the** Coffs Harbour LEP 2013 Acid Sulfate Soils Map**. It is the responsibility of the proponent to determine if the land upon which the development is proposed, is identified on the** Acid Sulfate Soils Map **and thus if the provisions of Clause 7.1 of** Coffs Harbour LEP 2013 **apply to the proposed development.***
- ***Development applications for subdivision proposals comprising steep land shown on the** Steep and Highly Erodible Land Map **may be required to be accompanied by a geotechnical report.***
- ***Clause 56 of the** Marine Estate Management Act 2014 **is a relevant consideration for development in the area of a Marine Park. If the Consent Authority is of the opinion that the development is likely to have an effect on the plants and animals within the Marine Park or their habitat, the Consent Authority must consult with the relevant Ministers prior to determining the application.***

C1.12 FLOOD REQUIREMENTS

Applies to Land

This control applies to the subdivision of land shown on the Coffs Harbour LEP 2013 Land Application Map that is at or below the flood planning level.

Objectives

- To ensure that impacts from flood hazard are minimised.

Requirements

(1) Subdivisions are to comply with the relevant controls of E4 Flooding of this Plan.

C1.13 COASTAL HAZARD REQUIREMENTS

Applies to Land

This control applies to the subdivision of land shown on the Coffs Harbour LEP 2013 Coastal Hazard Map.

Objectives

- To ensure that impacts from coastal hazard are minimised.

Requirements

(1) Subdivisions are to comply with the relevant controls of E2 Coastal Hazards of this Plan.

C1.14 LAND DEDICATION

Applies to Land

This control applies to the subdivision of land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To enable the dedication of suitable land of significant environmental value or public benefit.

Requirements

(1) Land that is unable to be developed due to significant environmental constraints or that is of public benefit may be dedicated to the City of Coffs Harbour via a voluntary planning agreement or other suitable arrangement in accordance with the City of Coffs Harbour's Dedication of Land Policy.

Notes:

Additional mechanisms exist for the in-perpetuity management of high conservation value land, such as the Biodiversity Offsets Scheme administered by the NSW** Department of Planning and Environment **under the** Biodiversity Conservation Act 2016**.

C1.15 STREET TREE PLANTING

Applies to Land

This control applies to the subdivision of land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To provide street tree planting which complements the streetscape.

Requirements

(1) Development applications for subdivisions on greenfield sites comprising the provision of a public road (or certain community title schemes) are to be accompanied by a street tree masterplan in accordance with the City of Coffs Harbour's requirements.

(2) Subdivisions are to comply with the relevant controls of F3 Landscaping of this Plan.

C1.16 AMENITY REQUIREMENTS

Applies to Land

This control applies to the subdivision of land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure that the impact of road/rail noise or vibration is considered in the assessment of subdivision proposals near the Pacific Highway and/or rail corridors.

Requirements

(1) Development applications comprising the subdivision of land in or adjacent to the Pacific Highway (including the proposed Pacific Highway bypass) and/or in or adjacent to a rail corridor are to be accompanied by sufficient information to demonstrate that resulting lots proposed for future residential uses can equitably satisfy the following criteria:

(a) in any bedroom in the building - 35 dB(A) at any time between 10.00pm and 7.00am; and

(b) anywhere else in the building (other than a garage, kitchen, bathroom or hallway) - 40 dB(A) at any time.

Exceptions

- This control does not apply to land zoned RU3 Forestry, E5 Heavy Industrial, SP2 Infrastructure, SP3 Tourist, RE1 Public Recreation, W1 Natural Waterways, W2 Recreational Waterways, W3 Working Waterways, and W4 Working Waterfront under Coffs Harbour LEP 2013.
- This control does not apply to infill subdivision.

Notes:

- ***An acoustic report may be required to be undertaken by an appropriately qualified person to demonstrate that future residential uses can reasonably satisfy the above criteria.***

C1.17 HERITAGE REQUIREMENTS

Applies to Land

This control applies to the subdivision of land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To preserve the heritage significance of heritage items and heritage conservation areas within Coffs Harbour.
- To conserve archaeological sites, Aboriginal objects and Aboriginal places of heritage significance within Coffs Harbour.

Requirements

(1) Subdivision proposals are to accord with the relevant controls of F2 Heritage Conservation of this Plan.

Part D Built Form Controls

D1 COMMERCIAL DEVELOPMENT

D1.1 SETBACK REQUIREMENTS

Applies to Land

This control applies to land zoned E1 Local Centre, E2 Commercial Centre, E3 Productivity Support and MU1 Mixed Use under Coffs Harbour LEP 2013.

Objectives

- To ensure that building frontages have consistent alignment and visual appearance.
- To achieve active street frontages within major commercial areas.
- To achieve human scale at the street frontage.
- To ensure an appropriate level of amenity for building occupants in terms of daylight, outlook, view sharing, ventilation and privacy.
- To maintain winter sun access to the public domain.

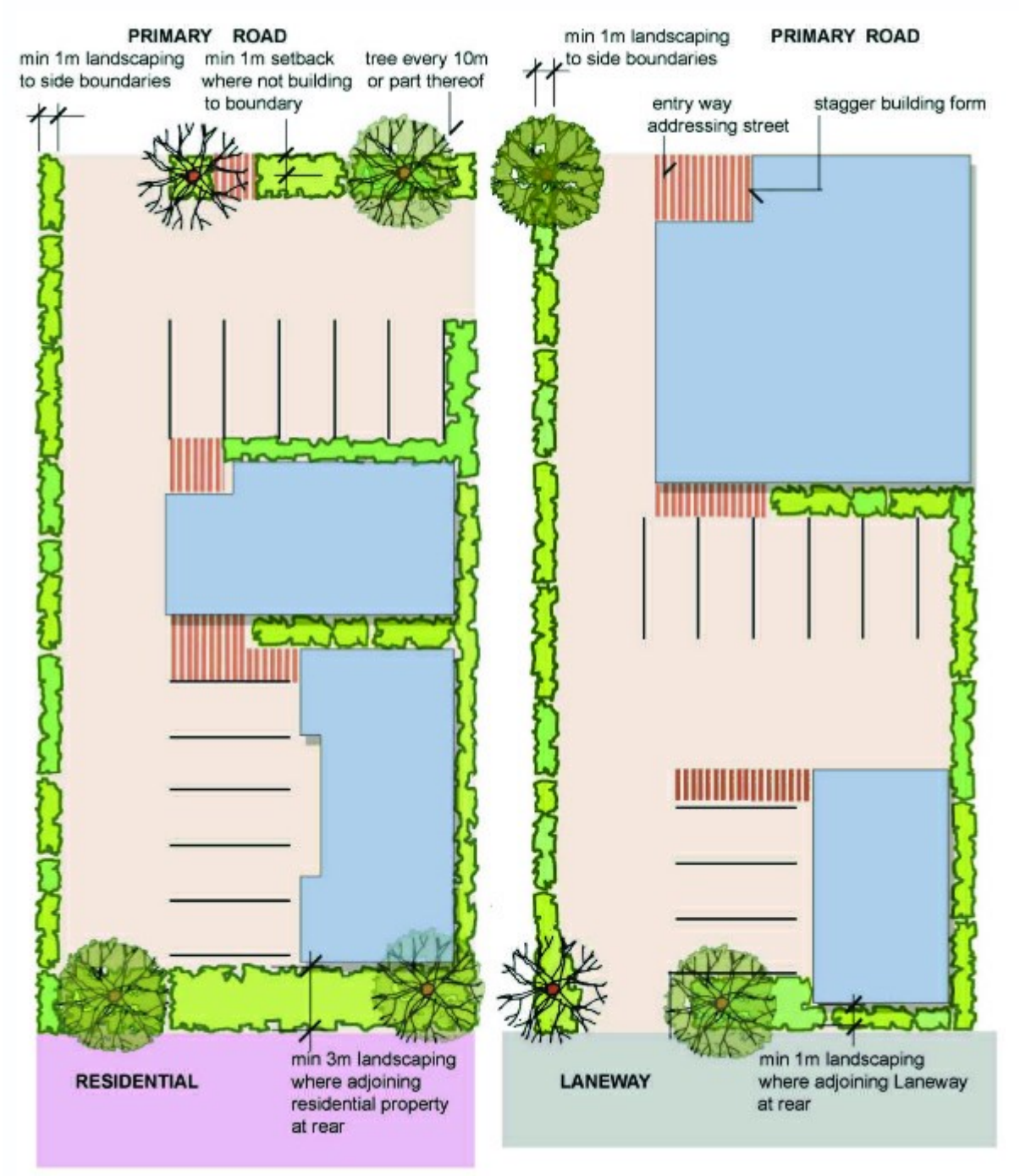
Requirements

(1) Excluding land identified in requirements (2) to (4) of this control, setbacks to development on land zoned for business purposes are to be assessed on merit, with regard to the objectives of this control.

(2) Where a front setback requirement is shown on the Front Setbacks Map for land zoned E2 Commercial Centre, buildings are to be setback in accordance with G3.2 Coffs Harbour City Core Precinct of this Plan.

(3) Development on land zoned E3 Productivity Support south of the Coffs Harbour City Centre as shown on the Front Setbacks Map is to provide a minimum 20 metre setback to the Pacific Highway.

(4) Development on land zoned E3 Productivity Support in Woolgoolga and north of the Coffs Harbour City Centre as shown on the Front Setbacks Map is to provide front, side and rear setbacks in accordance with the following diagrams:



Exceptions

- Front, side and rear setbacks to residential components of mixed use development and shop top housing may be consistent with the setbacks for the commercial components of the development where:
    - acceptable design treatments minimise impacts in relation to overshadowing, privacy and view loss, or where setbacks are similar to those provided in adjacent development; and
    - adequate natural lighting and ventilation is provided; and
    - adequate private open space is provided.
- Regardless of requirement (2) of this control, new buildings (or substantial redevelopment of existing buildings) are not to encroach on existing winter solar access within the city square in

accordance with G3.4 Coffs Harbour City Core Precinct of this Plan.

- Regardless of requirement (2) of this control, new buildings (or substantial redevelopment of existing buildings) on number 66-90 Harbour Drive are to be setback in accordance with G3.4 Coffs Harbour City Core Precinct of this Plan.

Notes:

Where a merit assessment applies, consideration is to be given to the existing streetscape, the amenity of adjoining / neighbouring land, and existing setbacks for neighbouring development.

D1.2 DESIGN REQUIREMENTS - GENERAL

Applies to Land

This control applies to land zoned E1 Local Centre, E2 Commercial Centre, E3 Productivity Support and MU1 Mixed Use under Coffs Harbour LEP 2013.

Objectives

- To ensure that development exhibits design excellence that contributes to and complements the natural, cultural, visual and built character of the streetscape and public domain.
- To provide richness of detail and architectural interest especially at visually prominent parts of buildings such as lower levels and roof tops of buildings.
- To reduce the apparent bulk and scale of buildings by breaking up expanses of building walls with modulation of form and articulation of facades.
- To provide design responses for the North Coast climate.
- To achieve continuous awnings within certain commercial areas.

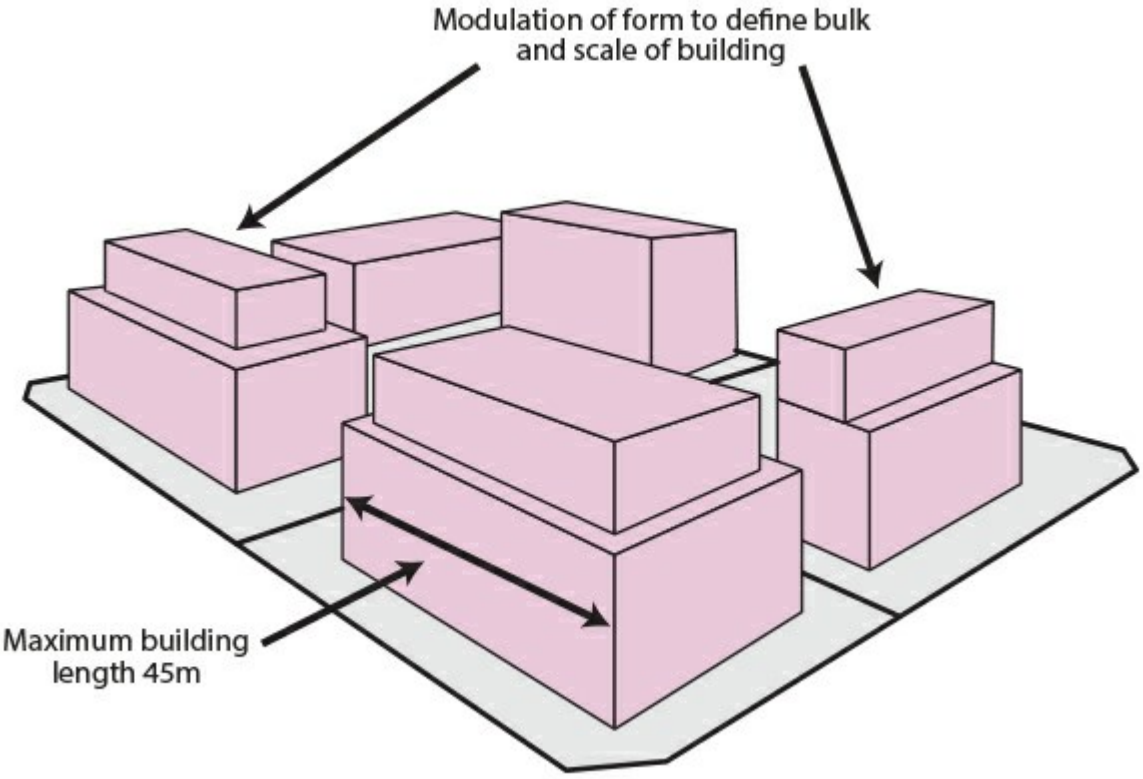
Requirements

(1) Development is to be designed:

(a) so that buildings do not exceed a total length of 45 metres; and

(b) to address the street, with front entryways to be generally parallel with the street; and

(c) to incorporate modulation of form, articulation of building facades, window arrangements and architectural enhancements to add visual interest and to reduce the apparent bulk and scale of buildings as demonstrated below; and



(d) to contribute to a visually interesting skyline and to differentiate between the base, middle and top in design, where buildings are over 13 metres high; and

(e) so that large unrelieved expanses of wall or building mass do not face a public road or adjoin residential areas; and

(f) so that no blank or opaque side walls are provided on any street elevation; and

(g) so that building design, materials, construction and finishes achieve microclimate responsive solutions such as louvres, shading, verandahs and indoor/outdoor spaces; and

(h) so that colours and textures of all external finishes are of a high quality and are suitable for the locality and the context of the site; and

(i) to maximise glazing whilst avoiding large unrelieved expanses of glass; and

(j) to avoid the use of building materials that are highly reflective or less durable; and

(k) to integrate roof plant rooms and lift overruns into the overall architecture of the development; and

(l) so that any outdoor dining is provided at street level; and

(m) to include light wells and courtyards to improve internal building amenity and achieve ventilation.

(2) Development on corner sites and on sites where vistas are terminated are to be designed to incorporate special architectural emphasis acknowledging the corner or vista and a design that addresses both street frontages.

(3) Development applications for development with a construction value over $1 million are to be accompanied by a materials and colour sample board, and schedule.

(4) Development with a zero front setback is to incorporate:

(a) continuous awnings for primary road frontages; and

(b) continuous awnings for a minimum of six metres for secondary road frontages, and

(c) continuous awnings where the development addresses public footpaths, car parks and internal pedestrian court yards.

(5) Awnings are to:

(a) integrate with the design of the development and adjoining buildings; and

(b) be a minimum of:

(i) 2.8 metres deep where street trees are not required; or

(ii) 2.4 metres deep where street trees are required; and

(c) have a minimum height of 3.2 metres and a maximum height of four metres above pedestrian level; and

(d) have a low profile, with slim vertical fascias or eaves (generally not exceeding 300mm in height); and

(e) be setback 600mm from the kerb; and

(f) include under awning lighting (recessed or wall mounted).

(6) Development is to provide a clearly articulated pedestrian entry and all weather protection at the main entrance to each building.

Exceptions

- Development comprising areas set aside for civic spaces is not required to address the street with parallel front entryways.

Notes:

Pursuant to subclause 7.14(3) of Coffs Harbour LEP 2013, the total gross floor area of the part of any development comprising a business or office premises on land zoned E3 Productivity Support is not to exceed 600m² on each lot that existed as at 16 December 2010 on which the development is to be located.

D1.3 DESIGN REQUIREMENTS - MIXED USE DEVELOPMENT

Applies to Land

This control applies to mixed use development on land zoned E1 Local Centre, E2 Commercial Centre, E3 Productivity Support and MU1 Mixed Use under Coffs Harbour LEP 2013.

Objectives

- To ensure that the design of mixed use development compliments and integrates commercial and residential uses; and minimises conflicts between these uses.
- To ensure that the design of mixed use buildings addresses residential amenity.
- To ensure that mixed use buildings address the public domain and the street.

Requirements

(1) Mixed use development is to be designed:

(a) so that entries to residential components of the development are clearly identified and accessed from primary road frontages; and

(b) to provide flexible building layouts which allow variable tenancies or uses on the first two floors of a building above the ground floor; and

(c) so that separate entries are provided to non-residential components of the development; and

(d) to incorporate security access controls for all private entries, including parking areas and internal courtyards.

Conceptual Mixed Use Development



(2) Non-residential service requirements such as loading docks and waste storage areas are to be designed and located so as not to unreasonably interfere with any residential component of the development, including primary outlooks and amenity for residential buildings.

Notes:

- ***Pursuant to subclause 7.14(2) of Coffs Harbour LEP 2013, the gross floor area of development for the purposes of business, office or retail premises on land zoned MU1 Mixed Use is not to exceed 750m² per premise.***
- *State Environmental Planning Policy No 65 – Design Quality of Residential Flat Development* ***may apply to mixed use development.***
- ***Development applications for residential accommodation and some types of tourist and visitor accommodation may be required to be accompanied by a BASIX Certificate in accordance with*** *State Environmental Planning Policy (Building Sustainability Index: BASIX) 2004****.***
- ***Design requirements for mixed use development may be specified within an environmental planning instrument for certain types of residential accommodation. In this regard, the provisions of an environmental planning instrument prevail.***

D1.4 INFRASTRUCTURE AND SITE FACILITY REQUIREMENTS

Applies to Land

This control applies to land zoned E1 Local Centre, E2 Commercial Centre, E3 Productivity Support and MU1 Mixed Use under Coffs Harbour LEP 2013.

Objectives

- To ensure that adequate infrastructure, utility services and site facilities are provided to land zoned for business purposes.

Requirements

(1) Development is to provide the following infrastructure in accordance with the City of Coffs Harbour's Development Specifications:

- (a) road construction;
- (b) concrete kerb and gutter;
- (c) concrete footpath to the nearest cross street; and
- (d) piped stormwater drainage.

(2) Development comprising lane access is to provide the following additional infrastructure in accordance with the City of Coffs Harbour's Development Specifications:

- (a) lane construction to full width from at least one street;
- (b) kerb and gutter on one side of the lane; and
- (c) stormwater drainage.

(3) Development is to provide the following utility services in accordance with the City of Coffs Harbour's Development Specifications:

- (a) water;
- (b) sewer;
- (c) telecommunications (including National Broadband Network where available);
- (d) electricity; and
- (e) trade waste facilities (if applicable).

(4) Development is to provide the following site facilities:

(a) waste facilities in accordance with the relevant controls of F6 Waste Management of this Plan; and

(b) mailboxes in one accessible location adjacent to the main entrance to the development.

(5) Site facilities such as communication structures, air conditioning units, ventilation stacks and any ancillary structures are to be:

(a) located away from the street frontage;

(b) integrated into the roofscape design and not a dominant skyline feature, and

(c) adequately setback from the perimeter wall or roof edge of buildings.

Notes:

Development in the vicinity of sewerage mains is subject to the provisions of the City of Coffs Harbour's Sewer Mains – Building in the Vicinity of Policy.

D1.5 ACCESS AND PARKING REQUIREMENTS

Applies to Land

This control applies to land zoned E1 Local Centre, E2 Commercial Centre, E3 Productivity Support and MU1 Mixed Use under Coffs Harbour LEP 2013.

Objectives

- To ensure that appropriate access, vehicular manoeuvring area and on site car parking is provided for development.

Requirements

(1) Development is to comply with the relevant controls of F1 Access and Parking of this Plan.

Notes:

Car parking** Contributions Plans **apply to the Coffs Harbour City Centre, Jetty Area, Park Beach and Woolgoolga.

D1.6 LANEWAY REQUIREMENTS

Applies to Land

This control applies to land zoned E1 Local Centre, E2 Commercial Centre, E3 Productivity Support and MU1 Mixed Use under Coffs Harbour LEP 2013.

Objectives

- To reduce vehicular and pedestrian conflict and provide greater amenity to the public street.
- To provide for missing pedestrian links within the city core.
- To ensure laneways and pedestrian linkages are safe and secure for pedestrians.

Requirements

(1) Where access is available off existing or proposed laneways, vehicular access must be provided from the laneway for any new development or substantial redevelopment.

D1.7 LANDSCAPING REQUIREMENTS

Applies to Land

This control applies to land zoned E1 Local Centre, E2 Commercial Centre, E3 Productivity Support and MU1 Mixed Use under Coffs Harbour LEP 2013.

Objectives

- To contribute to streetscape character and the amenity of the public domain.
- To ensure landscaping is integrated into the design of development.
- To encourage plant selection that is sensitive to local climate, topography and natural features.

Requirements

(1) Development is to incorporate landscaping in accordance with the relevant controls of F3 Landscaping of this Plan.

D1.8 ACCESSIBILITY REQUIREMENTS

Applies to Land

This control applies to land zoned E1 Local Centre, E2 Commercial Centre, E3 Productivity Support and MU1 Mixed Use under Coffs Harbour LEP 2013.

Objectives

- To ensure that dignified, equitable, cost-effective and reasonably achievable access to buildings, and facilities and services within buildings, is provided for all people.
- To ensure that access to development contributes positively to the public realm.

Requirements

(1) Where the provisions of the Disability (Access to Premises – Building Standards) 2010 apply for alterations and additions to an existing building, an accessible accessway is to be provided in accordance with the relevant Australian Standards from the site boundary to the principal pedestrian entrance.

(2) Public footpaths, recreation areas and other public spaces associated with development on commercial land are to be designed as barrier-free environments for all people in accordance with the Disability Discrimination Act 1992.

(3) Access (including accessible accessways) associated with development is not to be provided on public land and is to be designed so that it contributes positively to the public realm.

Notes:

- ***All applicants are reminded of their responsibilities under the** Disability Discrimination Act 1992 **and associated** Disability (Access to Premises – Building Standards) 2010**.***
- ***Certification from an accredited access consultant may be required to demonstrate compliance with the** Disability (Access to Premises – Building Standards) 2010 **at the discretion of the City of Coffs Harbour.***

D1.9 SAFER BY DESIGN REQUIREMENTS

Applies to Land

This control applies to land zoned E1 Local Centre, E2 Commercial Centre, E3 Productivity Support and MU1 Mixed Use under Coffs Harbour LEP 2013.

Objectives

- To ensure that Crime Prevention Through Environmental Design principles are considered in the design of development.

Requirements

(1) Crime Prevention Through Environmental Design principles are to be considered in the design of development in accordance with the NSW Police Safer by Design: Crime Prevention Through Environmental Design guidelines.

(2) Development applications for large scale commercial development with a GFA of over 5,000m^2, financial institutions, mixed use development with 20 or more dwellings and large community/recreational facilities may be referred to the NSW Police Service for a 'safer by design' assessment depending on the likely impacts from the development on the safety of the community.

D1.10 CONSOLIDATION REQUIREMENTS

Applies to Land

This control applies to land zoned E1 Local Centre, E2 Commercial Centre, E3 Productivity Support and MU1 Mixed Use under Coffs Harbour LEP 2013.

Objectives

- To ensure that development is sited on the land in a practical and functional arrangement.

Requirements

(1) Where development is situated over the boundary of two or more lots, the subject lots are to be consolidated into one allotment.

D1.11 LAND DEDICATION

Applies to Land

This control applies to land zoned E1 Local Centre, E2 Commercial Centre, E3 Productivity Support and MU1

Mixed Use under Coffs Harbour LEP 2013.

Objectives

- To enable the dedication of suitable land of significant environmental value or public benefit.

Requirements

(1) Land that is unable to be developed due to significant environmental constraints or that is of public benefit may be dedicated to the City of Coffs Harbour via a voluntary planning agreement or other suitable arrangement in accordance with the City of Coffs Harbour's Dedication of Land Policy.

Notes:

Additional mechanisms exist for the in-perpetuity management of high conservation value land, such as the Biodiversity Offsets Scheme administered by the NSW** Department of Planning and Environment **under the** Biodiversity Conservation Act 2016**.

D1.12 SIGNAGE REQUIREMENTS

Applies to Land

This control applies to land zoned E1 Local Centre, E2 Commercial Centre, E3 Productivity Support and MU1 Mixed Use under Coffs Harbour LEP 2013.

Objectives

- To ensure that all advertising is of a high quality and is integrated into the architectural design of buildings and the character of the streetscape.
- To ensure that advertising is designed with consideration to the amenity of commercial areas and the visual quality of the public domain.

Requirements

(1) Development comprising signage is to accord with the relevant controls of F5 Signage of this Plan.

D1.13 WATER MANAGEMENT REQUIREMENTS

Applies to Land

This control applies to land zoned E1 Local Centre, E2 Commercial Centre, E3 Productivity Support and MU1 Mixed Use under Coffs Harbour LEP 2013.

Objectives

- To implement best practice stormwater management techniques.
- To incorporate the use of water sensitive urban design measures to protect the natural water cycle and aquatic ecosystems.
- To manage water as a valuable and finite regional resource on a total water cycle basis.

Requirements

(1) Stormwater drainage is to be provided in accordance with the City of Coffs Harbour's Development Specifications.

(2) Development applications are to be supported by concept stormwater drainage designs.

(3) Stormwater is to be gravity drained to the City of Coffs Harbour's drainage system, or a designated watercourse as shown on the NSW Hydro Line Dataset.

(4) Where development requires drainage works over adjoining properties, the development application is to be supported by land owners consent from the affected properties to the lodgement of the development application, including written agreement to the creation of easements for interallotment drainage.

(5) Stormwater drainage design is to generally reflect the pre-existing flow characteristics of the site, and may require on-site stormwater detention.

(6) Water sensitive urban design is to be incorporated into the design of the development in accordance with the City of Coffs Harbour's Water Sensitive Urban Design Guidelines.

(7) Where Estuary Management Plans, Coastal Zone Management Plans or Coastal Management Programs (approved by the City of Coffs Harbour) outline specific water quality targets that are to be met, development within the catchment area (to the extent that they could have a significant impact on the water quality of a waterbody) of those Management Plans / Programs must demonstrate that they can achieve the specified water quality targets. Appropriate modelling is to be used to demonstrate compliance with this requirement.

D1.14 EROSION AND SEDIMENT CONTROL REQUIREMENTS

Applies to Land

This control applies to land zoned E1 Local Centre, E2 Commercial Centre, E3 Productivity Support and MU1 Mixed Use under Coffs Harbour LEP 2013.

Objectives

- To ensure that earthworks will not have a detrimental impact on environmental functions and processes, neighbouring uses items or features of the surrounding land.

Requirements

(1) Erosion and sediment control measures are to be provided in accordance with the document Managing Urban Stormwater – Soils & Construction Volume 1 (Landcom 2004) for development comprising earthworks.

(2) Development applications for development comprising earthworks are to be accompanied by supplementary information in accordance with the following table:

Area of earthworks (m^2)	Supplementary Information
< 800m^2 of disturbed area	Basic Erosion and Sediment Control Plan
800m^2 to 2,500m^2 of disturbed area	Erosion and Sediment Control Plan
>2,500m^2 of disturbed area	Soil and Water Management Plan

(3) Basic Erosion and Sediment Control Plans are to be prepared in accordance with the principles of Best Practice Management for Small Areas of Disturbance.

(4) Erosion and Sediment Control Plans are to be prepared in accordance with the document Managing Urban Stormwater – Soils & Construction Volume 1 (Landcom 2004).

(5) Soil and Water Management Plans are to be of a scale 1:500 or larger and are to be prepared in accordance with the document Managing Urban Stormwater – Soils & Construction Volume 1 (Landcom 2004).

Notes:

The Coffs Harbour LGA comprises very steep land and highly erodible soils which may require specific erosion and sediment control measures to perform adequately.

D1.15 ENVIRONMENTAL REQUIREMENTS

Applies to Land

This control applies to land zoned E1 Local Centre, E2 Commercial Centre, E3 Productivity Support and MU1 Mixed Use under Coffs Harbour LEP 2013.

Objectives

- To ensure that business development is responsive to any environmental constraints of the land.
- To ensure that development occurs in a manner that provides for the continued protection of high conservation value land.

Requirements

(1) Development is to accord with the relevant controls of E1 Biodiversity of this Plan.

Notes:

- ***Clause 7.1 Acid Sulfate Soils of** Coffs Harbour LEP 2013 **requires development consent and the preparation of an Acid Sulfate Soils Management Plan for the carrying out of certain works on land shown on the** Coffs Harbour LEP 2013 Acid Sulfate Soils Map**. It is the responsibility of the proponent to determine if the land upon which the development is proposed, is identified on the** Acid Sulfate Soils Map **and thus if the provisions of Clause 7.1 of** Coffs Harbour LEP 2013 **apply to the proposed development.***
- ***Development applications for development on land comprising steep land shown on the** Steep and Highly Erodible Land Map **may be required to be accompanied by a geotechnical report.***

D1.16 FLOOD REQUIREMENTS

Applies to Land

This control applies to land zoned E1 Local Centre, E2 Commercial Centre, E3 Productivity Support and MU1 Mixed Use under Coffs Harbour LEP 2013 that is at or below the flood planning level.

Objectives

- To ensure that impacts from flood hazard are minimised.

Requirements

(1) Development is to comply with the relevant controls of E4 Flooding of this Plan.

D1.17 COASTAL HAZARD REQUIREMENTS

Applies to Land

This control applies to land zoned E1 Local Centre, E2 Commercial Centre, E3 Productivity Support and MU1 Mixed Use under Coffs Harbour LEP 2013 shown on the Coastal Hazard Map.

Objectives

- To ensure that impacts from coastal hazard are minimised.

Requirements

(1) Development is to comply with the relevant controls of E2 Coastal Hazards of this Plan.

D1.18 CONTAMINATED LAND REQUIREMENTS

Applies to Land

This control applies to land zoned E1 Local Centre, E2 Commercial Centre, E3 Productivity Support and MU1 Mixed Use under Coffs Harbour LEP 2013.

Objectives

- To ensure that development is responsive to any environmental constraints of the land.

Requirements

(1) Development on land comprising contaminated land or potentially contaminated land is to accord with the relevant controls of E3 Contaminated Land of this Plan.

D1.19 HERITAGE REQUIREMENTS

Applies to Land

This control applies to land zoned E1 Local Centre, E2 Commercial Centre, E3 Productivity Support and MU1 Mixed Use under Coffs Harbour LEP 2013.

Objectives

- To preserve the heritage significance of heritage items and heritage conservation areas within

Coffs Harbour.

- To conserve archaeological sites, Aboriginal objects and Aboriginal places of heritage significance within Coffs Harbour.

Requirements

(1) Development is to accord with the relevant controls of F2 Heritage Conservation of this Plan.

D1.20 AMENITY REQUIREMENTS

Applies to Land

This control applies to land zoned E1 Local Centre, E2 Commercial Centre, E3 Productivity Support and MU1 Mixed Use under Coffs Harbour LEP 2013.

Objectives

- To ensure that business development does not result in unacceptable amenity impacts on adjoining residential land.
- To ensure that the impact of road/rail noise or vibration is considered in the assessment of development proposals near the Pacific Highway and/or rail corridors.

Requirements

(1) Development is to be designed to incorporate methods to reduce visual and acoustic impacts on adjoining residential zoned land, including the following:

(a) landscaping,

(b) screening,

(c) unobtrusive lighting,

(d) the location of delivery areas and loading docks, and

(e) appropriate delivery hours and limited after hours deliveries.

(2) All noise generating equipment including the following:

(a) mechanical plant or equipment,

(b) air conditioning units,

(c) fixed vacuum systems,

(d) mechanical ventilation associated with car parks,

(e) driveway entry shutters,

(f) waste storage facilities, and

(g) delivery areas

are to be acoustically screened and designed to minimise acoustic impacts on adjoining residential zoned land.

(3) Development applications comprising development to which Clause 2.100 or Clause 2.120 of State Environmental Planning Policy (Transport and Infrastructure) 2021 applies are to be accompanied by

sufficient information demonstrating that the relevant provisions of the policy and the guideline can be satisfied.

(4) Landscaped buffers (utilising native vegetation where practicable) are to be provided between residential uses and road and/or rail corridors.

(5) Development applications comprising noise generating development adjacent to or within line of sight from established noise-sensitive developments such as schools, hospitals or residential accommodation are to have regard to the Noise Policy for Industry (Environment Protection Authority 2017).

Notes:

- ***Development consent cannot be granted to development for the purposes of a building for residential use on land in or adjacent to the Pacific Highway or on land in or adjacent to a rail corridor unless it can be demonstrated that noise levels as prescribed by Clause 2.100(3) and/or Clause 2.120(3) of*** *State Environmental Planning Policy (Transport and Infrastructure) 2021* ***are not exceeded.***
- ***An acoustic report may be required to be undertaken by an appropriately qualified person to demonstrate that the requirements specified in the above policy and the following guidelines can be reasonably met:***
  - *Development Near Rail Corridors and Busy Roads – Interim Guideline****; and***
  - ***Any other associated guidelines issued by the Director-General for the purposes of*** *State Environmental Planning Policy (Transport and Infrastructure) 2021****.***
- ***Noise levels at the boundary of the site subject to the development are to accord with the requirements of the*** *Protection of the Environment Operations Act 1997* ***and the*** *Noise Policy for Industry (2017)* ***published by the Environment Protection Authority.***

D2 INDUSTRIAL DEVELOPMENT

D2.1 SETBACK REQUIREMENTS

Applies to Land

This control applies to land zoned E4 General Industrial, E5 Heavy Industrial and W4 Working Waterfront under Coffs Harbour LEP 2013.

Objectives

- To ensure that building frontages have consistent alignment and visual appearance.
- To ensure that industrial development does not detrimentally impact on residential and environmentally sensitive areas.

Requirements

(1) Development is to maintain the following minimum setback requirements as shown on the Front Setbacks Map and Side and Rear Setbacks Map:

  (a) Front: six metres

  (b) Side and Rear: merit

(2) Where a merit assessment applies for side and rear setbacks, the development is to achieve the objectives of this control.

Exceptions

- Where development adjoins sensitive areas (residential or community land uses or environmentally constrained land), side and rear setbacks are to be a minimum of three metres from such areas.
- Setbacks to sensitive areas are to be suitably landscaped with native vegetation (where practicable) in accordance with F3 Landscaping of this Plan.
- On corner lots, development may be setback three metres from the secondary road boundary.

Setbacks for Corner Lots



Notes:

Where a merit assessment applies, consideration is to be given to the existing streetscape, the amenity of adjoining / neighbouring land, and existing setbacks for neighbouring development.

D2.2 DESIGN REQUIREMENTS– GENERAL

Applies to Land

This control applies to land zoned E4 General Industrial, E5 Heavy Industrial and W4 Working Waterfront under Coffs Harbour LEP 2013.

Objectives

- To minimise the visual impact of industrial development.

Requirements

(1) Development is to be designed:

(a) to incorporate variations in fascia treatment, rooflines and a selection of materials; and

(b) so that elevations of buildings visible from public roads or adjoining residential land are constructed using brick, masonry, pre-coloured metal cladding, tilt-slab construction or a combination of these materials; and

(c) so that large unrelieved expanses of wall or building mass visible from public roads or adjoining residential land are broken up by suitable building articulation, fenestration or architectural enhancements; and

(d) so that showroom display areas, ancillary offices, staff amenities and other low scale elements are (where practicable) located at the front of the premises and constructed in appropriate materials to enhance the appearance of the development; and

(e) so that roofing consists of non-reflective materials; and

(f) so that open work or storage areas are located at the rear of the site and adequately screened from view by landscaping or screen fencing; and

(g) so that security fencing is visually unobtrusive (i.e. no chain wire mesh fencing) and softened with planting in accordance with controls of F3 Landscaping of this Plan.

(2) Development on significant corner sites and are to be designed to incorporate special architectural emphasis acknowledging the corner or vista.

D2.3 DEVELOPMENT APPLICATION REQUIREMENTS

Applies to Land

This control applies to land zoned E4 General Industrial, E5 Heavy Industrial and W4 Working Waterfront under Coffs Harbour LEP 2013.

Objectives

- To ensure that industrial development does not detrimentally impact on residential areas.

Requirements

(1) Development applications are to be accompanied by:

(a) details of the hours of operation; and

(b) details of any likely impacts from noise and other emissions; and

(c) details of any open storage areas outside buildings, including full details of those parts of the site to be used and the materials to be stored.

D2.4 INFRASTRUCTURE AND SITE FACILITY REQUIREMENTS

Applies to Land

This control applies to land zoned E4 General Industrial, E5 Heavy Industrial and W4 Working Waterfront under Coffs Harbour LEP 2013.

Objectives

- To ensure that adequate infrastructure, utility services and site facilities are provided to land zoned for industrial purposes.

Requirements

(1) Development is to provide the following infrastructure in accordance with the City of Coffs Harbour's Development Specifications:
   (a) road construction;
   (b) concrete kerb and gutter;
   (c) concrete footpath to the nearest cross street; and
   (d) piped stormwater drainage.

(2) Development comprising lane access is to provide the following additional infrastructure in accordance with the City of Coffs Harbour's Development Specifications:
   (a) lane construction to full width from at least one street;
   (b) kerb and gutter on one side of the lane; and
   (c) stormwater drainage.

(3) Development is to provide the following utility services in accordance with the City of Coffs Harbour's Development Specifications:
   (a) water;
   (b) sewer;
   (c) telecommunications (including National Broadband Network where available);
   (d) electricity; and
   (e) trade waste facilities (if applicable).

(4) Development is to provide the following site facilities:
   (a) waste storage in accordance with the relevant controls of F6 Waste Management of this Plan; and
   (b) mailboxes in one accessible location adjacent to the main entrance to the development.

(5) Site facilities such as communication structures, air conditioning units, ventilation stacks and any ancillary structures are to be:
   (a) located away from the street frontage; and
   (b) integrated into the roofscape design and not a dominant skyline feature, and
   (c) adequately setback from the perimeter wall or roof edge of buildings.

Notes:

Development in the vicinity of sewerage mains is subject to the provisions of the City of Coffs Harbour's *Sewer Mains – Building in the Vicinity of Policy*.

D2.5 ACCESS AND PARKING REQUIREMENTS

Applies to Land

This control applies to land zoned E4 General Industrial, E5 Heavy Industrial and W4 Working Waterfront

under Coffs Harbour LEP 2013.

Objectives

- To ensure that appropriate access, vehicular manoeuvring area and on site car parking is provided for development.

Requirements

(1) Development is to comply with the relevant controls of F1 Access and Parking of this Plan.

D2.6 LANDSCAPING REQUIREMENTS

Applies to Land

This control applies to land zoned E4 General Industrial, E5 Heavy Industrial and W4 Working Waterfront under Coffs Harbour LEP 2013.

Objectives

- To contribute to streetscape character and the amenity of the public domain.
- To ensure landscaping is integrated into the design of development.
- To encourage plant selection that is sensitive to local climate, topography and natural features.

Requirements

(1) Development is to incorporate landscaping in accordance with the relevant controls of F3 Landscaping of this Plan.

D2.7 ACCESSIBILITY REQUIREMENTS

Applies to Land

This control applies to land zoned E4 General Industrial, E5 Heavy Industrial and W4 Working Waterfront under Coffs Harbour LEP 2013.

Objectives

- To ensure that dignified, equitable, cost-effective and reasonably achievable access to buildings, and facilities and services within buildings, is provided for all people.

Requirements

(1) Where the provisions of the Disability (Access to Premises – Building Standards) 2010 apply for alterations and additions to an existing building, an accessible accessway is to be provided in accordance with the relevant Australian Standards from the site boundary to the principle pedestrian entry.

(2) Public footpaths, recreation areas, outdoor dining areas and other public spaces associated with the development are to be designed as barrier-free environments for all people in accordance with the Disability Discrimination Act 1992.

Notes:

- ***All applicants are reminded of their responsibilities under the** Disability Discrimination Act 1992 **and associated** Disability (Access to Premises – Building Standards) 2010**.***
- ***Certification from an accredited access consultant may be required to demonstrate compliance with the** Disability (Access to Premises – Building Standards) 2010 **at the discretion of the City of Coffs Harbour.***

D2.8 SAFER BY DESIGN REQUIREMENTS

Applies to Land

This control applies to land zoned E4 General Industrial, E5 Heavy Industrial and W4 Working Waterfront under Coffs Harbour LEP 2013.

Objectives

- To ensure that Crime Prevention Through Environmental Design principles are considered in the design of development.

Requirements

(1) Crime Prevention Through Environmental Design principles are to be considered in the design of development in accordance with the NSW Police Safer by Design: Crime Prevention Through Environmental Design guidelines.

(2) Development applications for large scale industrial development with a GFA of over 5,000m^2 or large community/recreational facilities may be referred to the NSW Police Service for a 'safer by design' assessment depending on the likely impacts from the development on the safety of the community.

D2.9 CONSOLIDATION REQUIREMENTS

Applies to Land

This control applies to land zoned E4 General Industrial, E5 Heavy Industrial and W4 Working Waterfront under Coffs Harbour LEP 2013.

Objectives

- To ensure that development is sited on the land in a practical and functional arrangement.

Requirements

(1) Where development is situated over the boundary of two or more lots, the subject lots are to be consolidated into one allotment.

D2.10 LAND DEDICATION

Applies to Land

This control applies to land zoned E4 General Industrial, E5 Heavy Industrial and W4 Working Waterfront under Coffs Harbour LEP 2013.

Objectives

- To enable the dedication of suitable land of significant environmental value or public benefit.

Requirements

(1) Land that is unable to be developed due to significant environmental constraints or that is of public benefit may be dedicated to the City of Coffs Harbour via a voluntary planning agreement or other suitable arrangement in accordance with the City of Coffs Harbour's Dedication of Land Policy.

Notes:

Additional mechanisms exist for the in-perpetuity management of high conservation value land, such as the Biodiversity Offsets Scheme administered by the NSW** Department of Planning and Environment **under the** Biodiversity Conservation Act 2016**.

D2.11 SIGNAGE REQUIREMENTS

Applies to Land

This control applies to land zoned E4 General Industrial, E5 Heavy Industrial and W4 Working Waterfront under Coffs Harbour LEP 2013.

Objectives

- To ensure that all advertising is of a high quality and is integrated into the architectural design of buildings and the character of the streetscape.
- To ensure that advertising is designed with consideration to the amenity of industrial areas and the visual quality of the public domain.

Requirements

(1) Development comprising signage is to accord with the relevant controls of F5 Signage of this Plan.

D2.12 WATER MANAGEMENT REQUIREMENTS

Applies to Land

This control applies to land zoned E4 General Industrial, E5 Heavy Industrial and W4 Working Waterfront under Coffs Harbour LEP 2013.

Objectives

- To implement best practice stormwater management techniques.
- To incorporate the use of water sensitive urban design measures to protect the natural water cycle and aquatic ecosystems.
- To manage water as a valuable and finite regional resource on a total water cycle basis.

Requirements

(1) Stormwater drainage is to be provided in accordance with the City of Coffs Harbour's Development Specifications.

(2) Development applications are to be supported by concept stormwater drainage designs.

(3) Stormwater is to be gravity drained to the City of Coffs Harbour's drainage system, or a designated watercourse as shown on the NSW Hydro Line Dataset.

(4) Where development requires drainage works over adjoining properties, the development application is to be supported by land owners consent from the affected properties to the lodgement of the development application, including written agreement to the creation of easements for interallotment drainage.

(5) Stormwater drainage design is to generally reflect the pre-existing flow characteristics of the site, and may require on-site stormwater detention.

(6) Water sensitive urban design is to be incorporated into the design of the development in accordance with the City of Coffs Harbour's Water Sensitive Urban Design Guidelines.

(7) Where Estuary Management Plans, Coastal Zone Management Plans or Coastal Management Programs (approved by the City of Coffs Harbour) outline specific water quality targets that are to be met, development within the catchment area (to the extent that they could have a significant impact on the water quality of a waterbody) of those Management Plans / Programs must demonstrate that they can achieve the specified water quality targets. Appropriate modelling is to be used to demonstrate compliance with this requirement.

Notes:

Development applications for residential accommodation and some types of tourist and visitor accommodation may be required to be accompanied by a BASIX Certificate in accordance with *State Environmental Planning Policy (Building Sustainability Index: BASIX) 2004*.

D2.13 EROSION AND SEDIMENT CONTROL REQUIREMENTS

Applies to Land

This control applies to land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure that earthworks will not have a detrimental impact on environmental functions and processes, neighbouring uses or features of the surrounding land.

Requirements

(1) Erosion and sediment control measures are to be provided in accordance with the document

Managing Urban Stormwater – Soils & Construction Volume 1 (Landcom 2004) for development comprising earthworks.

(2) Development applications for development comprising earthworks are to be accompanied by supplementary information in accordance with the following table:

Area of earthworks (m^2)	Supplementary Information
< 800m^2 of disturbed area	Basic Erosion and Sediment Control Plan
800m^2 to 2,500m^2 of disturbed area	Erosion and Sediment Control Plan
>2,500m^2 of disturbed area	Soil and Water Management Plan

(3) Basic Erosion and Sediment Control Plans are to be prepared in accordance with the principles of Best Practice Management for Small Areas of Disturbance.

(4) Erosion and Sediment Control Plans are to be prepared in accordance with the document Managing Urban Stormwater – Soils & Construction Volume 1 (Landcom 2004).

(5) Soil and Water Management Plans are to be of a scale 1:500 or larger and are to be prepared in accordance with the document Managing Urban Stormwater – Soils & Construction Volume 1 (Landcom 2004).

Notes:

The Coffs Harbour LGA comprises very steep land and highly erodible soils which may require specific erosion and sediment control measures to perform adequately.

D2.14 ENVIRONMENTAL REQUIREMENTS

Applies to Land

This control applies to land zoned E4 General Industrial, E5 Heavy Industrial and W4 Working Waterfront under Coffs Harbour LEP 2013.

Objectives

- To ensure that industrial development is responsive to any environmental constraints of the land.
- To ensure that development occurs in a manner that provides for the continued protection of high conservation value land.

Requirements

(1) Development is to comply with the relevant controls of E1 Biodiversity of this Plan.

Notes:

- ***Clause 7.1 Acid Sulfate Soils of** Coffs Harbour LEP 2013 **requires development consent and the preparation of an Acid Sulfate Soils Management Plan for the carrying out of certain works on land shown on the** Coffs Harbour LEP 2013 Acid Sulfate Soils Map**. It is the responsibility of the proponent to determine if the land upon which the development is proposed, is identified on the** Acid Sulfate Soils Map **and thus if the provisions of Clause 7.1 of** Coffs Harbour LEP 2013 **apply to the proposed development.***
- ***Development applications for development on land comprising steep land shown on the** Steep and Highly Erodible Land Map **may be required to be accompanied by a geotechnical report.***

D2.15 FLOOD REQUIREMENTS

Applies to Land

This control applies to development on land zoned E4 General Industrial, E5 Heavy Industrial and W4 Working Waterfront under Coffs Harbour LEP 2013 that is at or below the flood planning level.

Objectives

- To ensure that impacts from flood hazard are minimised.

Requirements

(1) Development is to comply with the relevant controls of E4 Flooding of this Plan.

D2.16 COASTAL HAZARD REQUIREMENTS

Applies to Land

This control applies to land zoned E4 General Industrial, E5 Heavy Industrial and W4 Working Waterfront under Coffs Harbour LEP 2013 shown on the Coastal Hazard Map.

Objectives

- To ensure that impacts from coastal hazard are minimised.

Requirements

(1) Development is to comply with the relevant controls of E2 Coastal Hazards of this Plan.

D2.17 CONTAMINATED LAND REQUIREMENTS

Applies to Land

This control applies to land zoned E4 General Industrial, E5 Heavy Industrial and W4 Working Waterfront under Coffs Harbour LEP 2013.

Objectives

- To ensure that development is responsive to any environmental constraints of the land.

Requirements

(1) Development on land comprising contaminated land or potentially contaminated land is to accord with the relevant controls of E3 Contaminated Land of this Plan.

D2.18 HERITAGE REQUIREMENTS

Applies to Land

This control applies to land zoned E4 General Industrial, E5 Heavy Industrial and W4 Working Waterfront under Coffs Harbour LEP 2013.

Objectives

- To preserve the heritage significance of heritage items and heritage conservation areas within Coffs Harbour.
- To conserve archaeological sites, Aboriginal objects and Aboriginal places of heritage significance within Coffs Harbour.

Requirements

(1) Development is to accord with the relevant controls of F2 Heritage Conservation of this Plan.

D2.19 AMENITY REQUIREMENTS

Applies to Land

This control applies to land zoned E4 General Industrial, E5 Heavy Industrial and W4 Working Waterfront under Coffs Harbour LEP 2013.

Objectives

- To ensure that industrial development does not result in unacceptable amenity impacts on adjoining residential land.

Requirements

(1) Development is to be designed to incorporate methods to reduce visual and acoustic impacts on adjoining residential zoned land, including:
  (a) landscaping; and
  (b) screening; and
  (c) unobtrusive lighting; and
  (d) the location of delivery areas and loading docks; and
  (e) appropriate delivery hours and limited after hours deliveries.

(2) All noise generating equipment including:
  (a) mechanical plant or equipment; and
  (b) air conditioning units; and
  (c) fixed vacuum systems; and
  (d) mechanical ventilation associated with car parks; and
  (e) driveway entry shutters; and

(f) waste storage facilities; and

(g) delivery areas

are to be acoustically screened and designed to minimise acoustic impacts on adjoining residential zoned land.

(3) Development applications comprising development to which Clause 2.100 or Clause 2.120 of State Environmental Planning Policy (Transport and Infrastructure) 2021 applies are to be accompanied by sufficient information demonstrating that the relevant provisions of the policy and the guideline can be satisfied.

(4) Landscaped buffers (utilising native vegetation where practicable) are to be provided between residential uses and road and/or rail corridor.

(5) Development applications comprising noise generating development adjacent to or within line of sight from established noise-sensitive developments such as schools, hospitals or residential accommodation are to have regard to the Noise Policy for Industry (Environment Protection Authority 2017).

Notes:

- ***Development consent cannot be granted to development for the purposes of a building for residential use on land in or adjacent to the Pacific Highway or on land in or adjacent to a rail corridor unless it can be demonstrated that noise levels as prescribed by Clause 2.100(3) and/or Clause 2.120(3) of*** *State Environmental Planning Policy (Transport and Infrastructure) 2021* ***are not exceeded.***
- ***An acoustic report may be required to be undertaken by an appropriately qualified person to demonstrate that the requirements specified in the policy and the following guidelines can be reasonably met:***
  - *Development Near Rail Corridors and Busy Roads – Interim Guideline****; and***
  - ***Any other associated guidelines issued by the Director-General for the purposes of*** *State Environmental Planning Policy (Transport and Infrastructure) 2021****.***
- ***Noise levels at the boundary of the site subject to the development are to accord with the requirements of the*** *Protection of the Environment Operations Act 1997* ***and the*** *Noise Policy for Industry (2017)* ***published by the Environment Protection Authority.***

D3 RESIDENTIAL DEVELOPMENT

D3.1 DENSITY REQUIREMENTS

Applies to Land

This control applies to development for the purpose of residential accommodation on land zoned R2 Low Density Residential, R3 Medium Density Residential, and R4 High Density Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure that the density of residential development is appropriate to the scale and character of each location.
- To ensure that a variety and choice of housing is available within the Coffs Harbour Local Government Area.

Requirements

(1) Development is to meet the following density controls as shown on the Density Map:

Land Use Zone / Locality	Density Requirement
Land zoned R2 Low Density Residential in the following localities: • Red Rock • Nana Glen • Coramba • Lowanna • Ulong	1 dwelling per 1300m2
All other land zoned R2 Low Density Residential	1 dwelling per 400m2
Land zoned R3 Medium Density Residential	1 dwelling per 200m2 for buildings ≤ 8.5m in height 1 dwelling per 100m2 for buildings >8.5m in height
Land zoned R4 High Density Residential	1 dwelling per 50m2

Exceptions

- The area of any access handle is not to be included in calculating the density of development.
- A higher density may be supported on land zoned R3 Medium Density Residential and R4 High Density Residential under *Coffs Harbour LEP 2013* where the development satisfies the front, side and rear setback controls specified in *D3.2* and *D3.3* of this Plan and any other relevant built form control within this Plan.

Notes:

- ***Certain types of residential accommodation are not permissible within the R2 Low Density Residential, R3 Medium Density Residential, and R4 High Density Residential land use zones under** Coffs Harbour LEP 2013**. Please check the land use table within** Coffs Harbour LEP 2013 **for each relevant zone to ascertain permissibility of the proposed development.***
- ***Density controls may be specified within an environmental planning instrument for certain types of residential accommodation. In this regard, the provisions of an environmental planning instrument prevail.***

D3.2 FRONT SETBACK REQUIREMENTS

Applies to Land

This control applies to land zoned R2 Low Density Residential, R3 Medium Density Residential, and R4 High Density Residential under Coffs Harbour LEP 2013.

Objectives

- To provide space between buildings and streets to maintain streetscape character and provide for air flow, sunlight, landscaping and general amenity.

Requirements

(1) Development is to maintain the following minimum setback requirements as shown on the Front Setbacks Map:

Land Use Zone	Front Setback Requirement

Land zoned R2 Low Density Residential	6m
Land zoned R3 Medium Density Residential and R4 High Density Residential	6m for buildings ≤ 8.5m in height 9m for buildings >8.5m in height

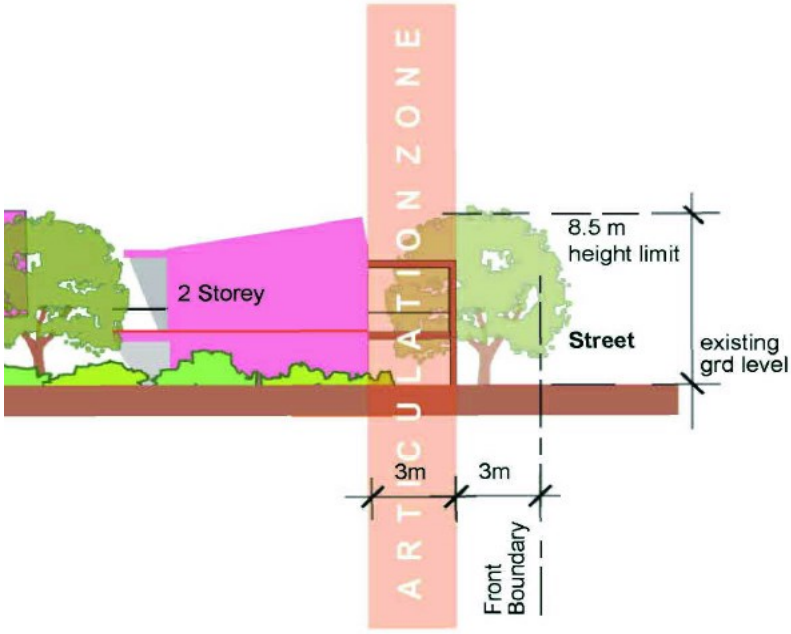
Exceptions

- Departures to the setback requirements may be supported where it can be adequately demonstrated that:
  - the setback requirements cannot be achieved on the site due to site constraints; and
  - the development satisfies the objectives of this control.
- Development on land zoned R2 Low Density Residential and R3 Medium Density Residential under Coffs Harbour LEP 2013 may incorporate an articulation zone within the front the setback area to a primary road as demonstrated in the following diagrams.
- An articulation zone is not permissible where the front setback area to the primary road is less than 4.5 metres.

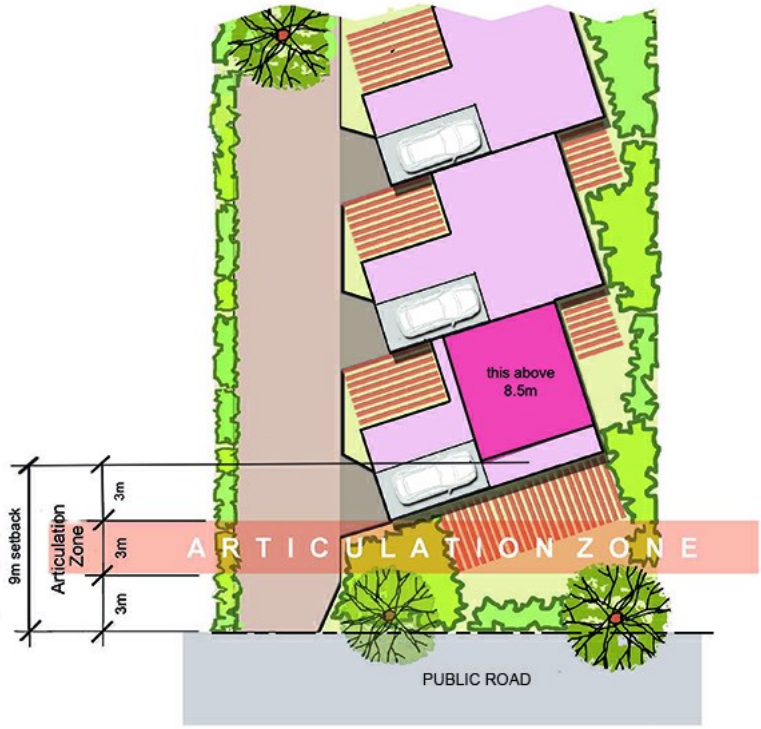
Articulation Zone – Buildings ≤ 8.5m in Height



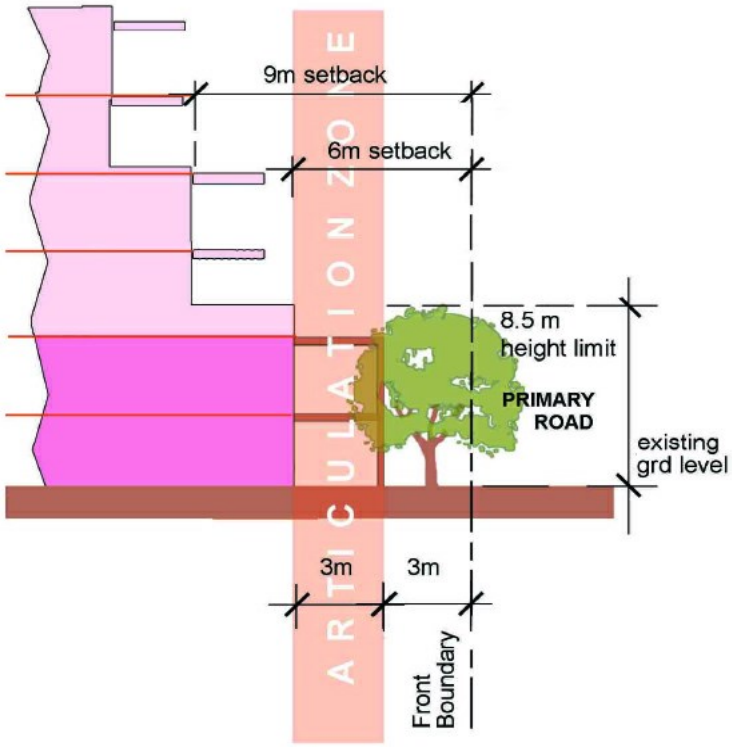
Articulation Zone – Buildings ≤ 8.5m in Height



Articulation Zone – Buildings > 8.5m in Height



Articulation Zone – Buildings > 8.5m in Height



- Awnings (or other features over a window) and sun shading devices are not to be included when calculating the maximum area of an articulation zone.
- Dwellings fronting a lane are to be setback three metres with garages and carports being setback 4.5 metres.

Rear Lane Setback Requirements



- On corner lots buildings can be set back three metres from the secondary road boundary as demonstrated in the following diagram:

Setbacks for Corner Lots



Notes:

Setback requirements may be specified within an environmental planning instrument for certain types of residential accommodation. In this regard, the provisions of an environmental planning instrument prevail.

D3.3 SIDE AND REAR SETBACK REQUIREMENTS

Applies to Land

This control applies to land zoned R2 Low Density Residential, R3 Medium Density Residential, and R4 High Density Residential under Coffs Harbour LEP 2013.

Objectives

- To provide space between buildings and streets to maintain streetscape character and provide for air flow, sunlight, landscaping and general amenity.
- To activate lanes to maintain safety and improve liveability.

Requirements

(1) Development is to meet the following minimum setback requirements as shown on the Side and Rear Setbacks Map:

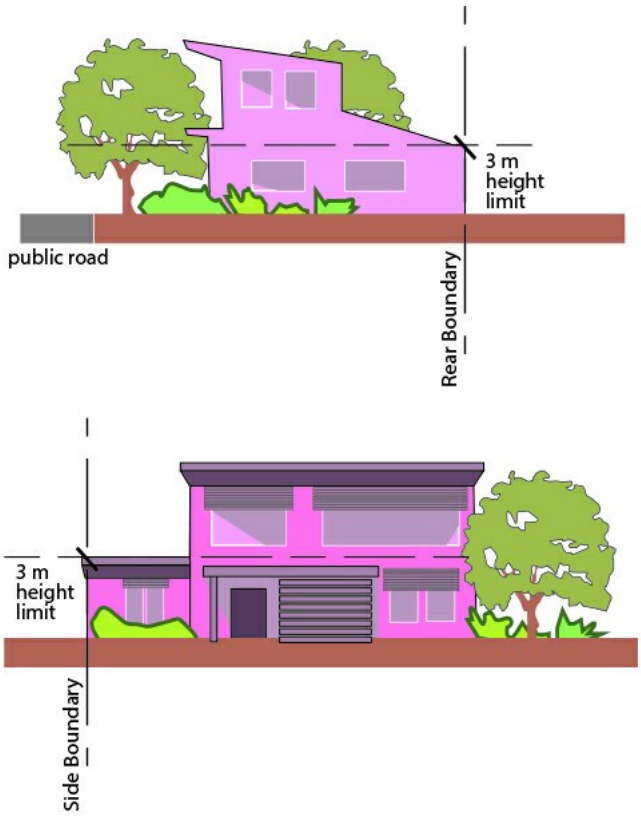
Land Use Zone	Side and Rear Setback Requirement
Land zoned R2 Low Density Residential	900mm (from walls) or 675mm (from outer edge of roof gutter and eaves)
Land zoned R3 Medium Density Residential	3m for buildings ≤ 8.5m in height 6m for buildings >8.5m in height 900mm (from walls) for single storey component of buildings ≤ 8.5m in height

Land zoned R4 High Density Residential	3m for buildings ≤ 8.5m in height 6m for buildings >8.5m in height

Exceptions

- Departures to setback requirements may be supported where it can be adequately demonstrated that:
  - the setback requirements cannot be achieved on the site due to site constraints; and
  - the development is in keeping with the existing streetscape and pattern of development; and
  - reasonable privacy, amenity, solar access and view sharing is maintained.
- Zero side and rear setbacks may be provided on land zoned R2 Low Density Residential and R3 Medium Density Residential under Coffs Harbour LEP 2013 where:
  - no part of the existing development exceeds two stories in height; and
  - the development has a maximum boundary wall height of three metres (unless matching an existing or simultaneously constructed wall); and
  - there is no adverse impact upon the amenity of adjoining properties; and
  - there is no interruption to overland drainage paths; and
  - there are no openings in the boundary wall; and
  - the wall is of masonry construction.

Zero Side and Rear Setbacks



Notes:

Setback requirements may be specified within an environmental planning instrument for certain types of residential accommodation. In this regard, the provisions of an environmental planning instrument prevail.

D3.4 FRONTAGE WIDTH REQUIREMENTS

Applies to Land

This control applies to development for the purposes of residential accommodation on land zoned R2 Low Density Residential, R3 Medium Density Residential, and R4 High Density Residential under Coffs Harbour LEP 2013.

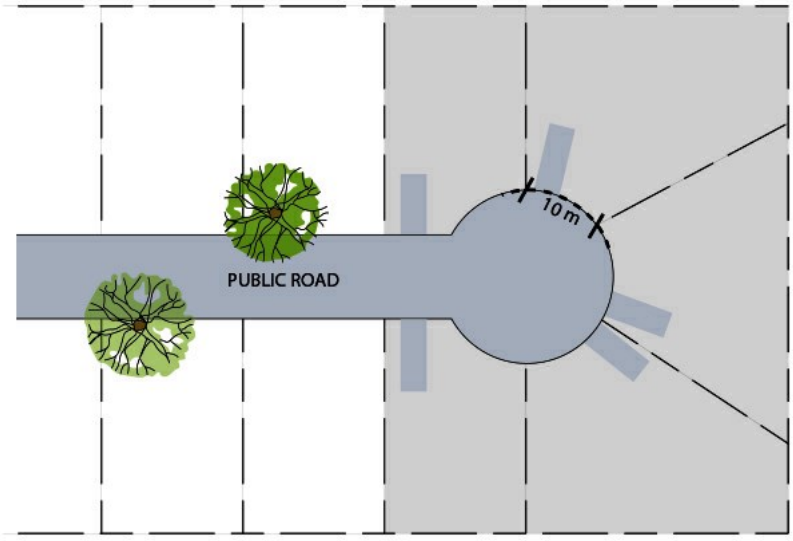
Objectives

- To minimise visual impacts on the streetscape.
- To ensure that a suitable entry is provided to residential development.
- To ensure there is adequate provision for the location of services within the frontage of the site.

Requirements

(1) A minimum frontage to a public road of 10 metres is required for each dwelling with access off a cul-de-sac, with a driveway being located to one side of the road frontage to provide for visitor car parking and to maintain streetscape integrity.

Example Layout within Cul-de-Sac



(2) A minimum frontage to a public road of 5.5 metres is required for multi dwelling housing development comprising three or more dwellings (excluding lots fronting a cul-de-sac – refer to requirement (1) above).

D3.5 PRIVATE OPEN SPACE REQUIREMENTS

Applies to Land

This control applies to development for the purposes of residential accommodation on land zoned R2 Low Density Residential, R3 Medium Density Residential, and R4 High Density Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure that functional private open space is provided as part of residential development to meet the occupant's requirements for privacy, safety, access, outdoor activities and landscaping.
- To ensure that private open space is integrated with, and directly accessible from, the living areas of dwellings.
- To define the edge between public and private land and to provide privacy and security.

Requirements

(1) Private open space is to be provided in accordance with the following criteria:

Development Type	Requirement
Dwelling Houses, Dual Occupancies and Semi-detached dwellings	185m^2 of which 90m^2 is to comprise functional private open space with a minimum dimension of 4m in width (preferably in one area) and a ground slope less than 1 in 8
Attached dwellings, Multi Dwelling Housing	35m^2 with a minimum dimension of 3m in width and a ground slope less than 1 in 8
Residential Flat Buildings, Serviced Apartments, Shop Top Housing	15m^2 with a minimum dimension of 2m in width

(2) Private open space is to be:

(a) provided with direct connection to indoor living areas (e.g. sliding glass doors) and oriented to maximise use; and

(b) designed so that it does not unreasonably compromise the amenity and privacy of existing private open space on adjoining and nearby land.

(3) Private open space provided at ground level (including swimming pools) is not to be located within the front setback area adjoining a primary road, unless satisfactory fencing and screening is provided for privacy and safety for occupant's and to minimise adverse impacts on the streetscape.

Exceptions

- Balconies and terraces may be incorporated into private open space.
- Private open space provided at ground level for dwelling houses, dual occupancies and semi-detached dwellings may be divided into two or more areas, provided that the smallest portion is no less than 40m^2.
- Where private open space provided at ground level cannot be achieved on land with a slope greater than 1 in 8, open decks no less than 15m^2 may be provided as an alternative.

Notes:

- ***Certain types of residential accommodation are not permissible within the R2 Low Density Residential, R3 Medium Density Residential, and R4 High Density Residential land use zones under Coffs Harbour LEP 2013. Please check the land use table within Coffs Harbour LEP 2013 for each relevant zone to ascertain permissibility of the proposed development.***
- ***Private open space requirements may be specified within an environmental planning instrument for certain types of residential accommodation. In this regard, the provisions of an environmental planning instrument prevail.***

D3.6 DESIGN REQUIREMENTS - RESIDENTIAL ACCOMMODATION

Applies to Land

This control applies to development for the purpose of residential accommodation on land zoned R2 Low Density Residential, R3 Medium Density Residential, and R4 High Density Residential under Coffs Harbour LEP 2013.

Objectives

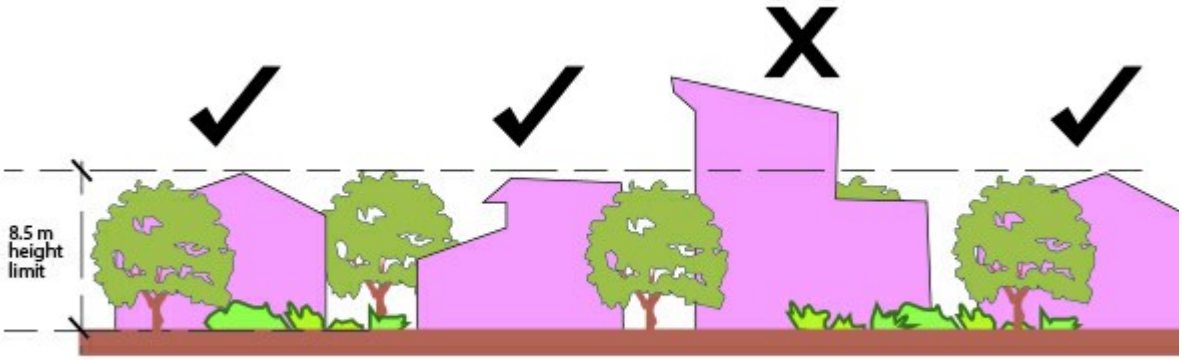
- To encourage innovative design which results in development that is pleasant to live in whilst being responsive to the site.
- To ensure that the design of residential buildings provides for acoustic and visual privacy of future residents.

Requirements

(1) Development for the purpose of residential accommodation is to be:

(a) of an appropriate scale to the existing streetscape as detailed in the following figure; and

Appropriate Scale of Streetscape



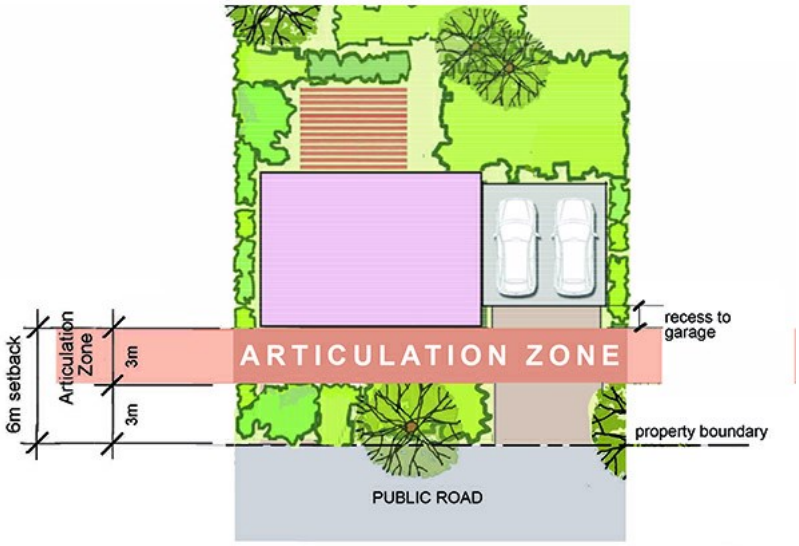
(b) designed to allow for some outlook to streets, lanes or other public space areas to increase passive surveillance; and

(c) designed to minimise direct overlooking of living areas and private open spaces of other dwellings; and

(d) designed to minimise impacts on existing views and view corridors; and

(e) designed so that garages and parking structures do not dominate the street frontage as demonstrated in the following;

Recessed Garage Example



(2) Development is to achieve variety in the built form by:

(a) incorporating some or all of the following elements:

(i) verandahs and balconies; and

(ii) decks and pergolas; and

(iii) eaves; and

(iv) hoods (window/door) and climate control windows; and

(v) a mix of light weight and compatible materials; and

(vi) the use of modulated design to break up the building form and eliminate blank featureless walls; and

(vii) differentiation of the top, middle and base of the building.

(3) Development on steep land is required to:

(a) minimise the height and bulk of buildings (particularly on the down slope); and

(b) minimise cut and fill by reducing the footprint of the development and allowing the building mass to step down the slope.

(4) Development comprising retaining walls must not:

(a) exceed a maximum of one metre cut or fill outside the building's external walls or,

(b) redirect the flow of any surface water or ground water or cause sediment to be transported onto an adjoining property.

(5) Development comprising retaining walls for excavation or filling are to be accompanied:

(a) by a plan clearly identifying the location of retaining walls; and

(b) by engineering drawings where constructed from timber materials.

(6) Buildings and ancillary development are not to be located on prominent ridgelines.

(7) The floor level of development for the purpose of residential accommodation is to be a minimum of 300mm above finished ground level with provision for the diversion of stormwater.

Notes:

- ***Balcony enclosures are only permitted where the overall design of the facade is not adversely affected.***
- ***City of Coffs Harbour is not bound to enforce positive covenants restricting the design of development unless the City of***

Coffs Harbour is party to the covenant.

- ***Development applications for residential accommodation and some types of tourist and visitor accommodation may be required to be accompanied by a BASIX Certificate in accordance with*** *State Environmental Planning Policy (Building Sustainability Index: BASIX) 2004****.***
- ***Design requirements may be specified within an environmental planning instrument for certain types of residential accommodation. In this regard, the provisions of an environmental planning instrument prevail.***

D3.7 DESIGN REQUIREMENTS- DUAL OCCUPANCIES

Applies to Land

This control applies to development for the purposes of a dual occupancy on land zoned R2 Low Density Residential and R3 High Density Residential under Coffs Harbour LEP 2013.

Objectives

- To encourage innovative design that contributes positively to the streetscape and relates to the low density character of the neighbourhood.

Requirements

(1) Development for the purpose of a dual occupancy where both dwellings front a primary road are to be designed so that the dwellings are not mirror reversed (see figure below).

Dual Occupancy Example



D3.8 DESIGN REQUIREMENTS – GENERAL

Applies to Land

This control applies to land zoned R3 Medium Density Residential, and R4 High Density Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure that development exhibits design excellence that contributes to and complements the natural, cultural, visual and built character of the streetscape and public domain in residential

zones.

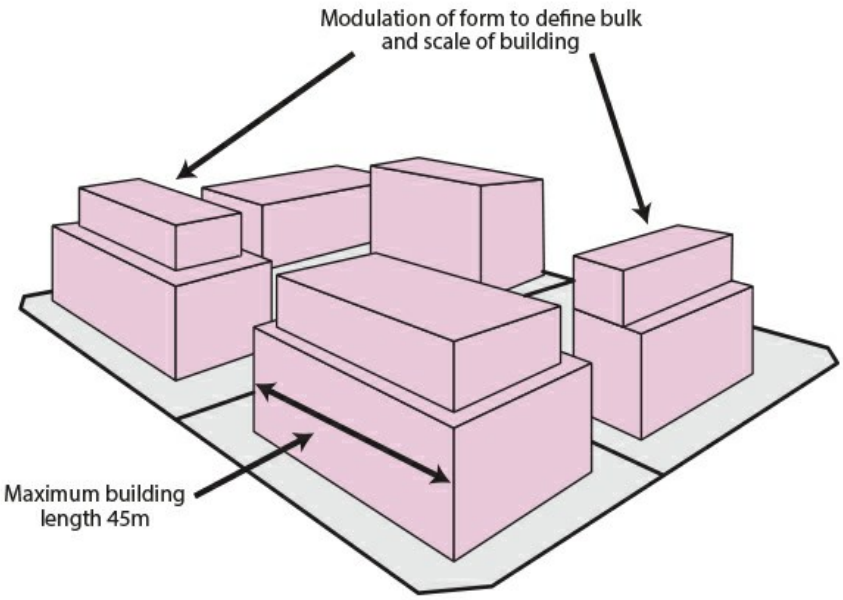
- To reduce the apparent bulk and scale of buildings by breaking up expanses of building walls with modulation of form and articulation of facades.
- To provide design responses for the North Coast climate.

Requirements

(1) Development is to be designed:

(a) so that buildings do not exceed a total length of 45 metres; and

(b) to incorporate modulation of form, articulation of building facades, window arrangements and architectural enhancements to add visual interest and to reduce the apparent bulk and scale of buildings as demonstrated below; and



(c) to contribute to a visually interesting skyline and to differentiate between the base, middle and top in design, where buildings are over two stories in height; and

(d) so that large unrelieved expanses of wall or building mass do not face a public road; and

(e) so that no blank or opaque side walls are provided on any street elevation; and

(f) so that building design, materials, construction and finishes achieve microclimate responsive solutions such as louvres, shading, verandahs and indoor/outdoor spaces; and

(g) so that colours and textures of all external finishes are of a high quality and are suitable for the locality and the context of the site; and

(h) to maximise glazing whilst avoiding large unrelieved expanses of glass; and

(i) to avoid the use of building materials that are highly reflective or less durable; and

(j) to integrate roof plant rooms and lift overruns into the overall architecture of the development; and

(k) to include light wells and courtyards to improve internal building amenity and achieve ventilation.

(2) Development on corner sites and on sites where vistas are terminated are to be designed to incorporate special architectural emphasis acknowledging the corner or vista and a design that

addresses both street frontages.

(3) Development applications for development with a construction value over $1 million are to be accompanied by a materials and colour sample board and schedule.

Exceptions

- The requirements of this control do not apply to development for the purposes of a dual occupancy, dwelling house, secondary dwelling or semi-detached dwelling.

Notes:

- *State Environmental Planning Policy No 65 – Design Quality of Residential Flat Development* ***may apply.***
- ***Design requirements may be specified within an environmental planning instrument for certain types of residential accommodation. In this regard, the provisions of an environmental planning instrument prevail.***

D3.9 SOLAR ACCESS REQUIREMENTS

Applies to Land

This control applies to land zoned R2 Low Density Residential, R3 Medium Density Residential, and R4 High Density Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure that reasonable access to sunlight is maintained.

Requirements

(1) Development is to be designed to allow for at least two hours of sunshine upon indoor living areas and private open space (both within the same site and on adjacent land) between 9.00am and 3:00pm on the 21 June of any given year.

(2) Development applications are to be accompanied by shadow diagrams illustrating the shadow cast by the proposed development at 9:00am; 12:00pm and 3:00pm on 21 June where development is likely to result in excessive overshadowing of adjacent and surrounding dwellings and private open space.

(3) Shadow diagrams are to:

(a) be prepared by suitably qualified persons; and

(b) be based on a survey of the subject site and adjoining land; and

(c) take into consideration existing vegetation.

Notes:

Solar access requirements may be specified within an environmental planning instrument for certain types of residential accommodation. In this regard, the provisions of an environmental planning instrument prevail.

D3.10 INFRASTRUCTURE REQUIREMENTS

Applies to Land

This control applies to land zoned R2 Low Density Residential, R3 Medium Density Residential, and R4 High

Density Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure that adequate infrastructure and utility services are provided to development on residential land.

Requirements

(1) Development for the purpose of a dual occupancy is to provide the following infrastructure in accordance with the City of Coffs Harbour's Development Specifications:
  (a) concrete kerb and gutter; and
  (b) vehicle crossing.

(2) Development for the purpose of multi dwelling housing is to provide the following infrastructure in accordance with the City of Coffs Harbour's Development Specifications:
  (a) sealed road pavement,
  (b) concrete kerb and gutter,
  (c) concrete footpath,
  (d) piped stormwater drainage, and
  (e) vehicle crossing.

(3) Development comprising lane access is to provide the following additional infrastructure in accordance with the City of Coffs Harbour's Development Specifications:
  (a) lane construction to full width from at least one street,
  (b) kerb and gutter on one side of the lane, and
  (c) stormwater drainage.

(4) Development is to provide the following utility services in accordance with the City of Coffs Harbour's Development Specifications:
  (a) water,
  (b) accessible separate water meters for each dwelling (if applicable),
  (c) sewer,
  (d) telecommunications (including National Broadband Network where available), and
  (e) electricity.

(5) Development is to provide the following site facilities:
  (a) waste storage in accordance with the relevant controls of *F6 Waste Management* of this Plan; and
  (b) mailboxes in one accessible location adjacent to the main entrance to the development.

(6) Site facilities such as communication structures, air conditioning units, ventilation stacks and any ancillary structures are to be:
  (a) located away from the street frontage; and
  (b) integrated into the roof design and not a dominant skyline feature; and
  (c) adequately setback from the perimeter wall or roof edge of buildings; and

(d) comprise one master antenna for residential apartment buildings.

Exceptions

- Requirement (3) of this control does not apply to development for the purpose of a dwelling house or a secondary dwelling.

Notes:

Development in the vicinity of sewerage mains is subject to the provisions of the City of Coffs Harbour's *Sewer Mains – Building in the Vicinity of Policy*.

D3.11 ACCESS AND PARKING REQUIREMENTS

Applies to Land

This control applies to land zoned R2 Low Density Residential, R3 Medium Density Residential, and R4 High Density Residential under Coffs Harbour LEP 2013.

Objectives

- To provide for the efficient and safe movement of vehicles.

Requirements

(1) Development is to comply with the relevant controls of *F1 Access and Parking* of this Plan.

Notes:

- ***Parking*** *Developer Contributions Plans* ***apply to the Coffs Harbour City Centre, Jetty Area, Park Beach and Woolgoolga.***
- ***Access and parking requirements may be specified within an environmental planning instrument for certain types of residential accommodation. In this regard, the provisions of an environmental planning instrument prevail.***

D3.12 LANDSCAPING REQUIREMENTS

Applies to Land

This control applies to land zoned R2 Low Density Residential, R3 Medium Density Residential, and R4 High Density Residential under Coffs Harbour LEP 2013.

Objectives

- To contribute to streetscape character and the amenity of the public domain.
- To ensure landscaping is integrated into the design of development.
- To encourage plant selection that is sensitive to local climate, topography and natural features.

Requirements

(1) Development is to incorporate landscaping in accordance with the relevant controls of *F3 Landscaping*

of this Plan.

Exceptions

- The requirements of this control do not apply to development for the purpose of a dual occupancy, dwelling house, secondary dwelling or semi-detached dwelling.

Notes:

Landscaping requirements may be specified within an environmental planning instrument for certain types of residential accommodation. In this regard, the provisions of an environmental planning instrument prevail.

D3.13 ANCILLARY DEVELOPMENT REQUIREMENTS

Applies to Land

This control applies to land zoned R2 Low Density Residential, R3 Medium Density Residential, and R4 High Density Residential under *Coffs Harbour LEP 2013*.

Objectives

- To ensure that the design and location of ancillary development on residential zoned land minimises impacts on the streetscape and adjoining land.

Requirements

General

(1) Ancillary development is to be:

(a) designed and constructed to minimise visual impacts on adjoining land and the amenity of the area; and

(b) sited to minimise impacts on private open space within the site and on adjoining land.

(2) Ancillary development comprising open walled structures may have a zero boundary setback provided that it has a maximum roof height of three metres and there are no adverse impacts on the amenity of the adjoining properties.

(3) Reduced street setbacks for carports and garages may be provided in the following circumstances:

(a) there is an existing pattern of similarly located carports/garages in the street; or

(b) the topography of the land is such that the carport/garage can form a part of an existing slope or retaining wall; or

(c) the topography of the land is such that the existing house is significantly below the street level; or

(d) the house is located on a corner lot; or

(e) the existing setback from the street is significantly greater than other setbacks in the streetscape; or

(f) the subject lot is irregular in shape and location.

(4) New carports/garages associated with existing development on the land are to be designed and

constructed in a manner that is integral to, and consistent with the style and standard of finishes of the existing development.

Outbuildings

(5) The maximum floor area of an outbuilding is not to have a floor area of more than:

(a) 45m², if the lot has an area of at least 450m² but less than 600m²; or

(b) 60m², if the lot has an area of at least 600m² but less than 900m²; or

(c) 100m², if the lot has an area of at least 900m².

Fencing

(6) Ancillary development comprising fencing is to be designed so that:

(a) views are not unreasonably obscured from a dwelling to the primary road frontage or vice versa; and

(b) side fences which project forward of the front building line step down to the height of the adjoining front fence; and

(c) it is compatible with existing fencing in the immediate locality; and

(d) it does not comprise sheet metal (including colour bond) as the dominant feature of a front fence; and

(e) it does not comprise expansive flat and blank surfaces along street frontages.

(7) Ancillary development comprising solid fencing:

(a) may be located along the boundary of, or within the setback area to, a primary road or secondary road provided that:

(i) it does not exceed 1.8 metres in height above ground level when measured from the road side of the fence; and

(ii) it is set back a minimum of 0.6 metres from the front boundary where it is between 1.2 metres and 1.5 metres in height above ground level (existing); or

(iii) it is set back a minimum of one metre from the front boundary where it is between 1.5 metres and 1.8 metres in height above ground level (existing); and

(iv) landscaping is provided for a minimum of 50% of the length of the fence; and

(v) it does not impact on traffic visibility; and

(vi) it incorporates setback splays or openings to maintain pedestrian visibility if adjacent to a driveway.

Swimming Pools

(8) Swimming pools located within the front setback area are to comply with the private open space requirements in D3.5 of this Plan.

(9) Cut and fill of the area surrounding the swimming pool is to be limited to a maximum of one metre.

(10) All mechanical pump and filter equipment associated with swimming pools are to be adequately soundproofed so as not to create a noise nuisance in terms of the *Protection of the Environment Operations Act 1997*.

(11) All waste water from swimming pools is to be connected to Council's sewer main via a suitable 100mm diameter gully trap. A minimum air gap of 100mm is to be provided between the discharge outlet and the gully grate.

(12) The water edge of swimming pools is to be a minimum of 0.9 metres from a side or rear boundary.

Exceptions

- In un-sewered areas, waste water from swimming pools is to be discharged to an absorption pit positioned within the property where it will not impact on an adjoining property or a nearby waterway.
- A reduced setback for swimming pools may be provided if it can be demonstrated that the pool will not result in any detrimental impact on adjoining properties.

Notes:

- ***State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 specifies some forms of ancillary development as exempt or complying development.***
- ***Swimming pool safety fencing is to be in accordance with the Swimming Pools Act 1992 and Regulations.***

D3.14 ACCESSIBILITY REQUIREMENTS

Applies to Land

This control applies to land zoned R2 Low Density Residential, R3 Medium Density Residential, and R4 High Density Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure that dignified, equitable, cost-effective and reasonably achievable access to buildings, and facilities and services within buildings, is provided for all people.

Requirements

(1) Where the provisions of the Disability (Access to Premises – Building Standards) 2010 apply for alterations and additions to an existing building on residential land, an accessible accessway is to be provided in accordance with the relevant Australian Standards from the site boundary to the principle pedestrian entry.

(2) Public footpaths, recreation areas and other public spaces associated with development on residential land are to be designed as barrier-free environments for all people in accordance with the Disability Discrimination Act 1992.

Notes:

- ***All applicants are reminded of their responsibilities under the Disability Discrimination Act 1992 and associated Disability (Access to Premises – Building Standards) 2010.***
- ***Certification from an accredited access consultant may be required to demonstrate compliance with the Disability (Access to Premises – Building Standards) 2010 at the discretion of the City of Coffs Harbour.***

D3.15 SAFER BY DESIGN REQUIREMENTS

Applies to Land

This control applies to land zoned R2 Low Density Residential, R3 Medium Density Residential, and R4 High Density Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure that Crime Prevention Through Environmental Design principles are considered in the design of residential development.

Requirements

(1) Crime Prevention Through Environmental Design principles are to be considered in the design of development in accordance with the NSW Police Safer by Design: Crime Prevention Through Environmental Design guidelines.

(2) Development applications for residential accommodation comprising 20 or more dwellings may be referred to the NSW Police Service for a 'safer by design' assessment depending on the likely impacts from the development on the safety of the community.

Exceptions

- The requirements of this control do not apply to development for the purpose of a dwelling house, dual occupancy, secondary dwelling and semi-detached dwelling.

D3.16 CONSOLIDATION REQUIREMENTS

Applies to Land

This control applies to land zoned R2 Low Density Residential, R3 Medium Density Residential, and R4 High Density Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure that development is sited on the land in a practical and functional arrangement.

Requirements

(1) Where the development is situated over the boundary of two or more lots, the subject lots are to be consolidated into one allotment.

D3.17 LAND DEDICATION

Applies to Land

This control applies to land zoned R2 Low Density Residential, R3 Medium Density Residential, and R4 High Density Residential under Coffs Harbour LEP 2013.

Objectives

- To enable the dedication of suitable land of significant environmental value or public benefit.

Requirements

(1) Land that is unable to be developed due to significant environmental constraints or that is of public benefit may be dedicated to the City of Coffs Harbour via a voluntary planning agreement or other suitable arrangement in accordance with the City of Coffs Harbour's Dedication of Land Policy.

Notes:

Additional mechanisms exist for the in-perpetuity management of high conservation value land, such as the Biodiversity Offsets Scheme administered by the NSW** Department of Planning and Environment **under the** Biodiversity Conservation Act 2016**.

D3.18 SIGNAGE REQUIREMENTS

Applies to Land

This control applies to land zoned R2 Low Density Residential, R3 Medium Density Residential, and R4 High Density Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure that all advertising is of a high quality and is integrated into the architectural design of buildings and the character of the streetscape.
- To ensure that advertising is designed with consideration to the amenity of residential areas and the visual quality of the public domain.

Requirements

(1) Development comprising signage is to accord with the relevant controls of *F5 Signage* of this Plan.

Notes:

Signage requirements may be specified within an environmental planning instrument for certain types of residential accommodation. In this regard, the provisions of an environmental planning instrument prevail.

D3.19 WATER MANAGEMENT REQUIREMENTS

Applies to Land

This control applies to land zoned R2 Low Density Residential, R3 Medium Density Residential, and R4 High Density Residential under Coffs Harbour LEP 2013.

Objectives

- To implement best practice stormwater management techniques.
- To incorporate the use of water sensitive urban design techniques to reduce negative impacts on the natural water cycle and aquatic ecosystems.
- To manage water as a valuable and finite regional resource on a total water cycle basis.

Requirements

(1) Stormwater drainage is to be provided in accordance with the City of Coffs Harbour's Development Specifications.

(2) Development applications are to be supported by concept stormwater drainage designs.

(3) Stormwater is to be gravity drained to the City of Coffs Harbour's drainage system or a designated watercourse as shown on the NSW Hydro Line Dataset.

(4) Where development requires drainage works over adjoining properties, the respective development application is to be supported by land owners consent from the affected properties to the lodgement of the development application, including written agreement to the creation of easements on title for interallotment drainage.

(5) Stormwater drainage design is to generally reflect the pre-existing flow characteristics of the site, and may require on-site stormwater detention.

(6) Water sensitive urban design is to be incorporated into the design of the development in accordance with the City of Coffs Harbour's Water Sensitive Urban Design Guidelines.

(7) Where Estuary Management Plans, Coastal Zone Management Plans or Coastal Management Programs (approved by the City of Coffs Harbour) outline specific water quality targets that are to be met, development within the catchment area (to the extent that they could have a significant impact on the water quality of a waterbody) of those Management Plans / Programs must demonstrate that they can achieve the specified water quality targets. Appropriate modelling is to be used to demonstrate compliance with this requirement.

Exceptions

- Requirement No. 6 does not apply to the subdivision of land with two or less resulting lots or development for the purposes of a dual occupancy, dwelling house, secondary dwelling or semi-detached dwelling.

Notes:

Water management requirements may be specified within an environmental planning instrument for certain types of residential accommodation. In this regard, the provisions of an environmental planning instrument prevail.

D3.20 EROSION AND SEDIMENT CONTROL REQUIREMENTS

Applies to Land

This control applies to land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure that earthworks will not have a detrimental impact on environmental functions and processes, neighbouring uses or features of the surrounding land.

Requirements

(1) Erosion and sediment control measures are to be provided in accordance with the document Managing Urban Stormwater – Soils & Construction Volume 1 (Landcom 2004) for development comprising earthworks.

(2) Development applications for development comprising earthworks are to be accompanied by supplementary information in accordance with the following table:

Area of earthworks (m^2)	Supplementary Information
< 800m^2 of disturbed area	Basic Erosion and Sediment Control Plan
800m^2 to 2,500m^2 of disturbed area	Erosion and Sediment Control Plan
>2,500m^2 of disturbed area	Soil and Water Management Plan

(3) Basic Erosion and Sediment Control Plans are to be prepared in accordance with the principles of Best Practice Management for Small Areas of Disturbance.

(4) Erosion and Sediment Control Plans are to be prepared in accordance with the document Managing Urban Stormwater – Soils & Construction Volume 1 (Landcom 2004).

(5) Soil and Water Management Plans are to be of a scale 1:500 or larger and are to be prepared in accordance with the document Managing Urban Stormwater – Soils & Construction Volume 1 (Landcom 2004).

Notes:

The Coffs Harbour LGA comprises very steep land and highly erodible soils which may require specific erosion and sediment control measures to perform adequately.

D3.21 ENVIRONMENTAL REQUIREMENTS

Applies to Land

This control applies to land zoned R2 Low Density Residential, R3 Medium Density Residential, and R4 High Density Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure that development is responsive to any environmental constraints of the land.
- To ensure that development occurs in a manner that provides for the continued protection of high conservation value land.

Requirements

(1) Development to comply with the relevant controls of *E1 Biodiversity* of this Plan.

Notes:

- ***Clause 7.1 Acid Sulfate Soils of** Coffs Harbour LEP 2013 **requires development consent and the preparation of an Acid Sulfate Soils Management Plan for the carrying out of certain works on land shown on the** Coffs Harbour LEP 2013 Acid Sulfate Soils Map**. It is the responsibility of the proponent to determine if the land upon which the development is proposed, is identified on the** Acid Sulfate Soils Map **and thus if the provisions of Clause 7.1 of** Coffs Harbour LEP 2013 **apply to the proposed development.***
- ***Development applications for development on land comprising steep land shown on the** Steep and Highly Erodible Land Map **may be required to be accompanied by a geotechnical report.***

D3.22 FLOOD REQUIREMENTS

Applies to Land

This control applies to land zoned R2 Low Density Residential, R3 Medium Density Residential, and R4 High Density Residential under Coffs Harbour LEP 2013 that is at or below the flood planning level.

Objectives

- To ensure that impacts from flood hazard are minimised.

Requirements

(1) Development is to comply with the relevant controls of *E4 Flooding* of this Plan.

D3.23 COASTAL HAZARD REQUIREMENTS

Applies to Land

This control applies to land zoned R2 Low Density Residential, R3 Medium Density Residential, and R4 High Density Residential under Coffs Harbour LEP 2013 shown on the Coastal Hazard Map.

Objectives

- To ensure that impacts from coastal hazard are minimised.

Requirements

(1) Development is to comply with the relevant controls of *E2 Coastal Hazards* of this Plan.

D3.24 CONTAMINATED LAND REQUIREMENTS

Applies to Land

This control applies to land zoned R2 Low Density Residential, R3 Medium Density Residential, and R4 High Density Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure that development is responsive to any environmental constraints of the land.

Requirements

(1) Development on land comprising contaminated land or potentially contaminated land is to accord with the relevant controls of *E3 Contaminated Land* of this Plan.

D3.25 HERITAGE REQUIREMENTS

Applies to Land

This control applies to land zoned R2 Low Density Residential, R3 Medium Density Residential, and R4 High Density Residential under Coffs Harbour LEP 2013.

Objectives

- To preserve the heritage significance of heritage items and heritage conservation areas within Coffs Harbour.
- To conserve archaeological sites, Aboriginal objects and Aboriginal places of heritage significance within Coffs Harbour.

Requirements

(1) Development is to accord with the relevant controls of *F2 Heritage Conservation* of this Plan.

D3.26 AMENITY REQUIREMENTS

Applies to Land

This control applies to land zoned R2 Low Density Residential, R3 Medium Density Residential, and R4 High Density Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure that the impact of road/rail noise or vibration is considered in the assessment of development proposals near the Pacific Highway and/or rail corridors.

Requirements

(1) Development applications comprising development to which Clause 2.100 or Clause 2.120 of State Environmental Planning Policy (Transport and Infrastructure) 2021 applies are to be accompanied by sufficient information demonstrating that the relevant provisions of the policy and the guideline can be satisfied.

(2) Development applications comprising noise generating development adjacent to or within line of sight from established noise-sensitive developments such as schools, hospitals or residential accommodation are to have regard to the Noise Policy for Industry (Environment Protection Authority 2017).

(3) Development applications comprising development in or adjacent to the proposed Pacific Highway bypass corridor are to be accompanied by sufficient information to demonstrate that future residential development can equitably satisfy the following criteria:

(a) in any bedroom in the building - 35 dB(A) at any time between 10.00pm and 7.00am; and

(b) anywhere else in the building (other than a garage, kitchen, bathroom or hallway) - 40 dB(A) at any time.

Notes:

- ***Development consent cannot be granted to development for the purposes of a building for residential use on land in or***

adjacent to the Pacific Highway or on land in or adjacent to a rail corridor unless it can be demonstrated that noise levels as prescribed by Clause 2.100(3) and/or Clause 2.120(3) of** State Environmental Planning Policy (Transport and Infrastructure) 2021 **are not exceeded.

- ***An acoustic report may be required to be undertaken by an appropriately qualified person to demonstrate that the requirements specified in the above policy and the following guidelines can be reasonably met:***
  - *Development Near Rail Corridors and Busy Roads – Interim Guideline**; and***
  - ***Any other associated guidelines issued by the Director-General for the purposes of** State Environmental Planning Policy (Transport and Infrastructure) 2021**.***
- ***Noise levels at the boundary of the site subject to the development are to accord with the requirements of the** Protection of the Environment Operations Act 1997**.***
- ***Acoustic and amenity requirements may be specified within an environmental planning instrument for certain types of residential accommodation. In this regard, the provisions of an environmental planning instrument prevail.***

D4 RURAL AND LARGE LOT RESIDENTIAL DEVELOPMENT

D4.1 SETBACK REQUIREMENTS

Applies to Land

This control applies to land zoned RU2 Rural Landscape and R5 Large Lot Residential under Coffs Harbour LEP 2013.

Objectives

- To maintain rural and large lot residential character, provide space between buildings and streets to maintain streetscape character and provide for air flow, sunlight, landscaping and general amenity.
- To reduce rural and large lot residential land use conflicts.

Requirements

(1) Development is to maintain the following minimum setback requirements as shown on the Front Setbacks Map and Side and Rear Setbacks Map:

Land Use Zone	Setback Requirements
Land zoned R5 Large Lot Residential	Front: 10m Side and Rear: 5m
Land zoned RU2 Rural Landscape	Front: 20m Side and Rear: 10m

Exceptions

- Departures to the setback requirements may be supported where it can be adequately demonstrated that:
  - the setback requirements cannot be achieved on the site due to site constraints; and
  - the development satisfies the objectives of this control.
- Departures to side and rear boundary setbacks may be supported for ancillary development where it can be adequately demonstrated that:

- adequate separation is provided between the proposed development and any existing dwelling(s) on adjoining land; or
- adequate screening (landscaping or fencing) is provided between the proposed development and any existing dwelling(s) on adjoining land.

D4.2 DESIGN REQUIREMENTS– GENERAL

Applies to Land

This control applies to land zoned RU2 Rural Landscape and R5 Large Lot Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure that development is in keeping with a rural and large lot residential character.
- To ensure that the design of buildings provides for acoustic and visual privacy of future residents.

Requirements

(1) Development is to be:
  (a) compatible with the rural or large lot residential character of the locality; and
  (b) designed to minimise direct overlooking of living areas and private open spaces of other dwellings; and
  (c) designed to minimise impacts on existing views and view corridors.

(2) Development is to achieve variety in the built form by:
  (a) incorporating some or all of the following elements:
    (i) traditional materials (i.e. timber, corrugated iron or similar);
    (ii) natural colours (greys, greens, browns);
    (iii) verandahs and balconies;
    (iv) decks and pergolas;
    (v) eaves; and
    (vi) hoods (window/door) and climate control windows.

(3) Development on steep land is required to:
  (a) minimise the height and bulk of buildings (particularly on the down slope); and/or
  (b) minimise cut and fill by reducing the footprint of the development and allowing the building mass to step down the slope;

(4) Development comprising retaining walls must not:
  (a) exceed a maximum of one metre cut or fill outside the building's external walls; and
  (b) redirect the flow of any surface water or ground water or cause sediment to be transported onto an adjoining property.

(5) Development comprising retaining walls for excavation or filling are to be accompanied:
  (a) by a plan clearly identifying the location of retaining walls; and

(b) by engineering drawings where constructed from timber materials.

(6) Buildings and ancillary development are not to be located on prominent ridgelines.

Notes:

- ***Development applications for residential accommodation and some types of tourist and visitor accommodation may be required to be accompanied by a BASIX Certificate in accordance with*** *State Environmental Planning Policy (Building and Sustainability Index: BASIX) 2004****.***
- ***Development consent may be required under*** *Coffs Harbour LEP 2013****; and/or a licence and approval may be required from the*** *NSW Office of Water* ***for the construction of a farm dam.***

D4.3.1 DESIGN REQUIREMENTS- DUAL OCCUPANCIES (ATTACHED)

Applies to Land

This control applies to development for the purposes of a dual occupancy (attached) on land zoned RU2 Rural Landscape and R5 Large Lot Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure that development for the purposes of of a dual occupancy (attached) contributes positively to the streetscape and relates to the rural or large lot residential character of the neighbourhood.

Requirements

(1) Development for the purposes of a dual occupancy (attached) is to be designed so that it appears as a single cohesive development with a common driveway; and is designed so that both dwellings;

(a) are attached by a garage, carport or common roof (excluding walkways); and

(b) have similar roof form, profile, slope and height; and

(c) have similar design elements.

D4.3.2 DESIGN REQUIREMENTS DUAL OCCUPANCIES (DETACHED)

Applies to Land

This control applies to development for the purposes of a dual occupancy (detached) on land zoned RU2 Rural Landscape under Coffs Harbour LEP 2013.

Objectives

- To ensure that development for the purposes of dual occupancy (detached) is of a scale and nature that is compatible with the primary production potential, rural character and environmental capabilities of the land,
- To maintain the rural character and scenic amenity of rural land,
- To reduce rural land use conflicts with adjacent land uses (particularly horticulture)

Requirements

(1) Dual occupancy (detached) in rural areas must be located and retained on the same legal title as the principal dwelling house on the property. A dual occupancy (detached) dwelling can only be erected on a lot where a dwelling is permissible pursuant to the provisions of Coffs Harbour LEP 2013.

(2) Dual occupancy (detached) in rural areas must be located so that it does not create potential for conflict with adjoining land uses (land use conflict) and does not reduce the existing or future productivity of the same or neighbouring land. Determination of location and siting of the dwellings will depend on assessment of potential conflicts and buffer requirements.

(3) Dual occupancy (detached) in rural areas must use the same vehicular access to a public road to avoid the proliferation of private access points which potentially create traffic conflict.

(4) Dual occupancy (detached) dwellings in rural areas must be located within 50 metres of the principal dwelling to reduce pressure for subdivision, increase the potential for shared infrastructure such as power and telephone services, reduce the need for bushfire clearing, and maximize the opportunity for the balance of the subject land to remain productive.

(5) Dual occupancy (detached) must be designed and sited in a way that:

(a) supports retention and supplementary planting of setback buffer areas;

(b) minimises native vegetation removal (including for bushfire protection);

(c) is responsive to the topography and other land-based constraints;

(d) does not create adverse drainage impacts; and

(e) does not result in visual and privacy impacts.

(6) Dual occupancy (detached) dwellings in rural areas must comply with the relevant controls of Part D4 Rural and Large Lot Development.

(7) A development application must be accompanied by information that demonstrates (provides or addresses):

(a) property details, including legal description, area, zoning, and existing use of all parts of the site;

(b) a property plan showing existing and proposed infrastructure (including buildings, sheds, services, onsite wastewater disposal, etc) and land use;

(c) potential conflicts, including the distance from the proposed dual occupancy (detached) to adjoining land holdings and potentially conflicting land uses (e.g. horticulture, extensive agriculture, intensive livestock agriculture, rural industry and the like). A Land Use Conflict Risk Assessment (LUCRA) consistent with NSW DPI (Agriculture) guidelines should be prepared;

(d) access and site details, including a plan showing the location of all structures including the principal dwelling and the proposed dual occupancy (detached), and the proposed internal access arrangements from the public road to the principal dwelling on the site and the proposed dual occupancy (detached).

(e) the extent and type of any native vegetation to be removed or impacted (inclusive of clearing for bushfire protection, infrastructure or onsite wastewater disposal) with particular reference to koala habitat.

Notes:

- ***There should be no expectation that the dual occupancy (detached) dwellings can be excised by subdivision other than in accordance with the minimum lot size provisions of*** *Coffs Harbour LEP 2013****.***
- ***Additional information relating to preferred buffer distances can be found in*** *Living and Working in Rural Areas, 2007* ***(****NSW DPI****).***

- ***Additional information relating to preparing a LUCRA can be found in** Land Use Conflict Risk Assessment Guide, 2011 (NSW DPI).*
- ***Additional information relating to preparing an application for detached rural dual occupancy can be found in Detached Dual Occupancy and Secondary Dwellings in Rural Zones Guideline, 2018 (NSW DPI).***

D4.4 INFRASTRUCTURE REQUIREMENTS

Applies to Land

This control applies to land zoned RU2 Rural Landscape and R5 Large Lot Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure that adequate infrastructure and utility services are provided to development on rural and large lot residential land.

Requirements

(1) Development for the purposes of residential accommodation is to provide the following utility services in accordance with the City of Coffs Harbour's Development Specifications:
  (a) telecommunications (including National Broadband Network where available); and
  (b) electricity.

(2) Development for the purposes of residential accommodation is to provide:
  (a) effluent disposal in accordance with the City of Coffs Harbour's On Site Sewage Management Strategy; and
  (b) a minimum domestic water storage capacity of 45,000 litres (in addition to any water storage required for bushfire purposes); and
  (c) waste facilities in accordance with the relevant controls of F6 Waste Management of this Plan; and
  (d) a mailbox in an accessible location adjacent to the main entrance to the development.

Exceptions

- Where reticulated water services are available to the land and are identified in the City of Coffs Harbour's Development Servicing Plans, development may provide for a reticulated supply.

D4.5 ACCESS AND PARKING REQUIREMENTS

Applies to Land

This control applies to land zoned RU2 Rural Landscape and R5 Large Lot Residential under Coffs Harbour LEP 2013.

Objectives

- To provide for the efficient and safe movement of vehicles.

Requirements

(1) Development is to comply with the relevant controls of F1 Access and Parking of this Plan.

D4.6 LANDSCAPING REQUIREMENTS

Applies to Land

This control applies to land zoned RU2 Rural Landscape and R5 Large Lot Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure landscaping is integrated into the design of development.
- To encourage plant selection that is sensitive to local climate, topography and natural features.

Requirements

(1) Development is to incorporate landscaping in accordance with the relevant controls of F3 Landscaping of this Plan.

Exceptions

- The requirements of this control do not apply to development for the purpose of a dwelling house, a dual occupancy (attached), or a secondary dwelling.

D4.7 ANCILLARY DEVELOPMENT REQUIREMENTS

Applies to Land

This control applies to land zoned RU2 Rural Landscape and R5 Large Lot Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure that the design and location of ancillary development on rural and large lot residential land minimises impacts on the streetscape and adjoining land.

Requirements

General

(1) Ancillary development is to be designed and constructed to minimise visual impacts on the streetscape, adjoining land and the amenity of the area.

Fencing

(2) Ancillary development comprising fencing is to utilise traditional materials and designs.

Other Structures

(3) Ancillary development comprising large sheds, greenhouses, solar panels and associated solar tracking devices and other structures are to be designed, located and landscaped to reduce amenity impacts on adjoining land.

Swimming Pools

(4) Cut and fill of the area surrounding swimming pools is to be limited to a maximum of one metre.

(5) All mechanical pump and filter equipment associated with swimming pools are to be adequately soundproofed so as not to create a noise nuisance in terms of the Protection of the Environment Operations Act 1997.

(6) All waste water from swimming pools is to be discharged to an absorption pit positioned within the property where it will not impact on an adjoining property or a nearby waterway.

(7) The water edge of swimming pools is to be a minimum of 0.9 metres from a side or rear boundary.

Exceptions

- A reduced setback for swimming pools may be provided if it can be demonstrated that the pool will not result in any detrimental impact on adjoining properties.

Notes:

- *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* ***specifies some forms of ancillary development as exempt or complying development.***
- ***Swimming pool safety fencing is to be in accordance with the*** *Swimming Pools Act 1992* ***and*** *Regulations****.***

D4.8 ACCESSIBILITY REQUIREMENTS

Applies to Land

This control applies to land zoned Ru2 Rural Landscape and R5 Large Lot Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure that dignified, equitable, cost-effective and reasonably achievable access to buildings, and facilities and services within buildings, is provided for all people.

Requirements

(1) Where the provisions of the Disability (Access to Premises – Building Standards) 2010 apply for alterations and additions to an existing building, an accessible accessway is to be provided in accordance with the relevant Australian Standards from the site boundary to the principle pedestrian entry.

(2) Public footpaths, recreation areas and other public spaces associated with development on rural land are to be designed as barrier-free environments for all people in accordance with the Disability Discrimination Act 1992.

Notes:

- ***All applicants are reminded of their responsibilities under the** Disability Discrimination Act 1992 **and associated** Disability (Access to Premises – Building Standards) 2010**.***
- ***Certification from an accredited access consultant may be required to demonstrate compliance with the** Disability (Access to Premises – Building Standards) 2010 **at the discretion of the City of Coffs Harbour.***

D4.9 SAFER BY DESIGN REQUIREMENTS

Applies to Land

This control applies to land zoned Ru2 Rural Landscape and R5 Large Lot Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure that Crime Prevention Through Environmental Design principles are considered in the design of rural development.

Requirements

(1) Crime Prevention Through Environmental Design principles are to be considered in the design of development in accordance with the NSW Police Safer by Design: Crime Prevention Through Environmental Design guidelines.

Exceptions

- The requirements of this control do not apply to development for the purpose of a dwelling house, a dual occupancy (attached), or a secondary dwelling.

D4.10 CONSOLIDATION REQUIREMENTS

Applies to Land

This control applies to land zoned Ru2 Rural Landscape and R5 Large Lot Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure that development is sited on the land in a practical and functional arrangement.

Requirements

(1) Where the development is situated over the boundary of two or more lots, the subject lots are to be consolidated into one allotment.

D4.11 LAND DEDICATION

Applies to Land

This control applies to land zoned RU2 Rural Landscape and R5 Large Lot Residential under Coffs Harbour LEP 2013.

Objectives

- To enable the dedication of suitable land of significant environmental value or public benefit.

Requirements

(1) Land that is unable to be developed due to significant environmental constraints or that is of public benefit may be dedicated to the City of Coffs Harbour via a voluntary planning agreement or other suitable arrangement in accordance with the City of Coffs Harbour's Dedication of Land Policy.

Notes:
Additional mechanisms exist for the in-perpetuity management of high conservation value land, such as the Biodiversity Offsets Scheme administered by the NSW** Department of Planning and Environment **under the** Biodiversity Conservation Act 2016**.

D4.12 SIGNAGE REQUIREMENTS

Applies to Land

This control applies to development for the purposes of signage on land zoned Ru2 Rural Landscape and R5 Large Lot Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure that signage is designed with consideration to the amenity of rural and large lot residential areas and the visual quality of the public domain.

Requirements

(1) Development comprising signage is to accord with the relevant controls of F5 Signage of this Plan.

D4.13 WATER MANAGEMENT REQUIREMENTS

Applies to Land

This control applies to land zoned Ru2 Rural Landscape and R5 Large Lot Residential under Coffs Harbour LEP 2013.

Objectives

- To implement best practice stormwater management techniques.

- To incorporate the use of water sensitive urban design techniques to reduce negative impacts on the natural water cycle and aquatic ecosystems.
- To manage water as a valuable and finite regional resource on a total water cycle basis.

Requirements

(1) Stormwater drainage is to be provided in accordance with the City of Coffs Harbour's Development Specifications.

(2) Development applications are to be supported by concept stormwater drainage designs.

(3) Stormwater is to be gravity drained to the City of Coffs Harbour's drainage system or designated watercourse as shown on the NSW Hydro Line Dataset or alternatively is not to cause nuisance to neighbouring properties or impact on waterfront land.

(4) Where development requires drainage works over adjoining properties, the respective development application is to be supported by land owners consent to the lodgement of the development application from the affected properties, including written agreement to the creation of easements on title for interallotment drainage.

(5) Stormwater drainage design is to generally reflect the pre-existing flow characteristics of the site, and may require on-site stormwater detention.

(6) Water sensitive urban design is to be incorporated into the design of the development in accordance with the City of Coffs Harbour's Water Sensitive Urban Design Guidelines.

(7) Where Estuary Management Plans, Coastal Zone Management Plans or Coastal Management Programs (approved by the City of Coffs Harbour) outline specific water quality targets that are to be met, development within the catchment area (to the extent that they could have a significant impact on the water quality of a waterbody) of those Management Plans / Programs must demonstrate that they can achieve the specified water quality targets. Appropriate modelling is to be used to demonstrate compliance with this requirement.

Exceptions

- Requirement No. 2 of this control does not apply to development for the purposes of a dual occupancy (attached), dwelling house or secondary dwelling.

Notes:

Development consent may be required under** Coffs Harbour LEP 2013**; and/or a licence and approval may be required from the** NSW Office of Water **for the construction of a farm dam.

D4.14 EROSION AND SEDIMENT CONTROL REQUIREMENTS

Applies to Land

This control applies to land zoned RU2 Rural Landscape and R5 Large Lot Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure that earthworks will not have a detrimental impact on environmental functions and processes, neighbouring uses or features of the surrounding land.

Requirements

(1) Erosion and sediment control measures are to be provided in accordance with the document Managing Urban Stormwater – Soils & Construction Volume 1 (Landcom 2004) for development comprising earthworks.

(2) Development applications for development comprising earthworks are to be accompanied by supplementary information in accordance with the following table:

Area of earthworks (m^2)	Supplementary Information
< 800m^2 of disturbed area	Basic Erosion and Sediment Control Plan
800m^2 to 2,500m^2 of disturbed area	Erosion and Sediment Control Plan
>2,500m^2 of disturbed area	Soil and Water Management Plan

(3) Basic Erosion and Sediment Control Plans are to be prepared in accordance with the principles of Best Practice Management for Small Areas of Disturbance.

(4) Erosion and Sediment Control Plans are to be prepared in accordance with the document Managing Urban Stormwater – Soils & Construction Volume 1 (Landcom 2004).

(5) Soil and Water Management Plans are to be of a scale 1:500 or larger and are to be prepared in accordance with the document Managing Urban Stormwater – Soils & Construction Volume 1 (Landcom 2004).

Notes:

The Coffs Harbour LGA comprises very steep land and highly erodible soils which may require specific erosion and sediment control measures to perform adequately.

D4.15 ENVIRONMENTAL REQUIREMENTS

Applies to Land

This control applies to land zoned Ru2 Rural Landscape and R5 Large Lot Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure that development is responsive to any environmental constraints of the land.
- To ensure that development occurs in a manner that provides for the continued protection of high conservation value land.

Requirements

(1) Development is to comply with the relevant controls of E1 Biodiversity of this Plan.

Notes:

- ***Clause 7.1 Acid Sulfate Soils of** Coffs Harbour LEP 2013 **requires development consent and the preparation of an Acid Sulfate Soils Management Plan for the carrying out of certain works on land shown on the** Coffs Harbour LEP 2013 Acid Sulfate Soils*

Map. ***It is the responsibility of the proponent to determine if the land upon which the development is proposed, is identified on the*** *Acid Sulfate Soils Map* ***and thus if the provisions of Clause 7.1 of*** *Coffs Harbour LEP 2013* ***apply to the proposed development.***

- ***Development applications for development on land comprising steep land shown on the*** *Steep and Highly Erodible Land Map* ***may be required to be accompanied by a geotechnical report.***

D4.16 FLOOD REQUIREMENTS

Applies to Land

This control applies to land zoned Ru2 Rural Landscape and R5 Large Lot Residential under Coffs Harbour LEP 2013 that is at or below the flood planning level.

Objectives

- To ensure that impacts from flood hazard are minimised.

Requirements

(1) Development is to comply with the relevant controls of E4 Flooding of this Plan.

D4.17 COASTAL HAZARD REQUIREMENTS

Applies to Land

This control applies to land zoned Ru2 Rural Landscape and R5 Large Lot Residential under Coffs Harbour LEP 2013 shown on the Coastal Hazard Map.

Objectives

- To ensure that impacts from coastal hazard are minimised.

Requirements

(1) Development is to comply with the relevant controls of E2 Coastal Hazards of this Plan.

D4.18 CONTAMINATED LAND REQUIREMENTS

Applies to Land

This control applies to land zoned RU2 Rural Landscape and R5 Large Lot Residential under Coffs Harbour LEP 2013 comprising contaminated land or potentially contaminated land.

Objectives

- To ensure that development is responsive to any environmental constraints of the land.

Requirements

(1) Development on land comprising contaminated land or potentially contaminated land is to accord with the relevant controls of E3 Contaminated Land of this Plan.

D4.19 HERITAGE REQUIREMENTS

Applies to Land

This control applies to land zoned RU2 Rural Landscape and R5 Large Lot Residential under Coffs Harbour LEP 2013.

Objectives

- To preserve the heritage significance of heritage items and heritage conservation areas within Coffs Harbour.
- To conserve archaeological sites, Aboriginal objects and Aboriginal places of heritage significance within Coffs Harbour.

Requirements

(1) Development is to accord with the relevant controls of F2 Heritage Conservation of this Plan.

D4.20 AMENITY REQUIREMENTS

Applies to Land

This control applies to land zoned RU2 Rural Landscape and R5 Large Lot Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure that the impact of road/rail noise or vibration is considered in the assessment of development proposals near the Pacific Highway and/or rail corridors.

Requirements

(1) Development applications comprising development to which Clause 2.100 or Clause 2.120 of State Environmental Planning Policy (Transport and Infrastructure) 2021 applies are to be accompanied by sufficient information demonstrating that the relevant provisions of the policy and the guideline can be satisfied.

(2) Landscaped buffers (utilising native vegetation where practicable) are to be provided between residential uses and road and/or rail corridor.

(3) Development applications comprising noise generating development adjacent to or within line of sight from established noise-sensitive developments such as schools, hospitals or residential

accommodation are to have regard to the Noise Policy for Industry (Environment Protection Authority 2017).

Notes:

- ***Development consent cannot be granted to development for the purposes of a building for residential use on land in or adjacent to the Pacific Highway or on land in or adjacent to a rail corridor unless it can be demonstrated that noise levels as prescribed by Clause 2.100(3) and/or Clause 2.120(3) of*** *State Environmental Planning Policy (Transport and Infrastructure) 2021* ***are not exceeded.***
- ***An acoustic report may be required to be undertaken by an appropriately qualified person to demonstrate that the requirements specified in the policy and the following guidelines can be reasonably met:***
  - *Development Near Rail Corridors and Busy Roads – Interim Guideline****; and***
  - ***Any other associated guidelines issued by the Director-General for the purposes of*** *State Environmental Planning Policy (Transport and Infrastructure) 2007****.***
- ***Noise levels at the boundary of the site subject to the development are to accord with the requirements of the*** *Protection of the Environment Operations Act 1997****.***

D4.21 RURAL LAND USE CONFLICT

Applies to Land

This control applies to land zoned RU2 Rural Landscape and R5 Large Lot Residential under Coffs Harbour LEP 2013.

Objectives

- To minimise land use interface issues and risks between rural land uses.

Requirements

(1) Development applications for development likely to comprise significant rural land use conflicts are to be accompanied by a land use risk assessment prepared in accordance with the Land Use Conflict Risk Assessment Guide (NSW Department of Primary Industries 2011).

Notes:

Land uses such as Intensive plant agriculture and intensive livestock agriculture have the potential to result in significant land use conflicts and/or environmental impacts if not managed appropriately. A number of guidelines on various agricultural land use topics have been prepared by the *Department of Primary Industries (Agriculture)* ***that may assist in the design of development to minimise impacts associated with these development types.***

D5 TOURIST AND GENERAL RESIDENTIAL DEVELOPMENT

D5.1 DENSITY REQUIREMENTS

Applies to Land

This control applies to development for the purpose of residential accommodation and tourist and visitor accommodation on land zoned R1 General Residential and SP3 Tourist under Coffs Harbour LEP 2013.

Objectives

- To ensure that the density of residential and tourist residential development is appropriate to the scale and character of each location.
- To ensure that a variety and choice of housing is available within the Coffs Harbour Local Government Area.

Requirements

(1) Development for the purpose of residential accommodation and tourist and visitor accommodation is to meet the density controls shown on the Density Map.

Exceptions

- The area of any access handle is not to be included in calculating the density of development.
- The density of development on land zoned R1 General Residential may exceed those shown on the Density Map where the development satisfies the front, side and rear setback controls specified in D5.2 and D5.3 of this Plan and any other relevant built form controls within this Plan.

Notes:

- ***Certain types of residential accommodation are not permissible within the R1 General Residential land use zones under Coffs Harbour LEP 2013. Please check the land use table within Coffs Harbour LEP 2013 to ascertain permissibility of the proposed development.***
- ***Density controls may be specified within an environmental planning instrument for certain types of residential accommodation. In this regard, the provisions of an environmental planning instrument prevail.***

D5.2 FRONT SETBACK REQUIREMENTS

Applies to Land

This control applies to land zoned R1 General Residential and SP3 Tourist under Coffs Harbour LEP 2013.

Objectives

- To provide space between buildings and streets to maintain streetscape character and provide for air flow, sunlight, landscaping and general amenity.

Requirements

(1) Development is to maintain the minimum setback requirements shown on the Front Setbacks Map.

Exceptions

- For Lot 32 DP 1237515 the following setback requirements apply:
  - 3m front setback.
- Departures to the setback requirements may be supported where it can be adequately demonstrated that:
  - the setback requirements cannot be achieved on the site due to site constraints; and

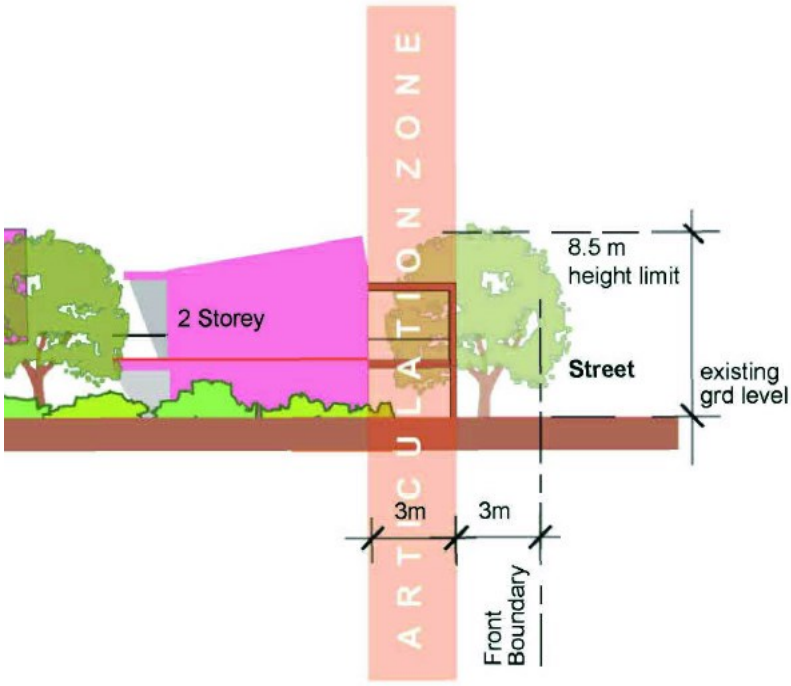
- the development is in keeping with the existing streetscape and pattern of development; and
- the development satisfies the objectives of this control.

- Development on land zoned R1 General Residential under Coffs Harbour LEP 2013 may incorporate an articulation zone within the front the setback area to a primary road as demonstrated in the following diagrams.
- An articulation zone is not permissible where the front setback area to the primary road is less than 4.5 metres.

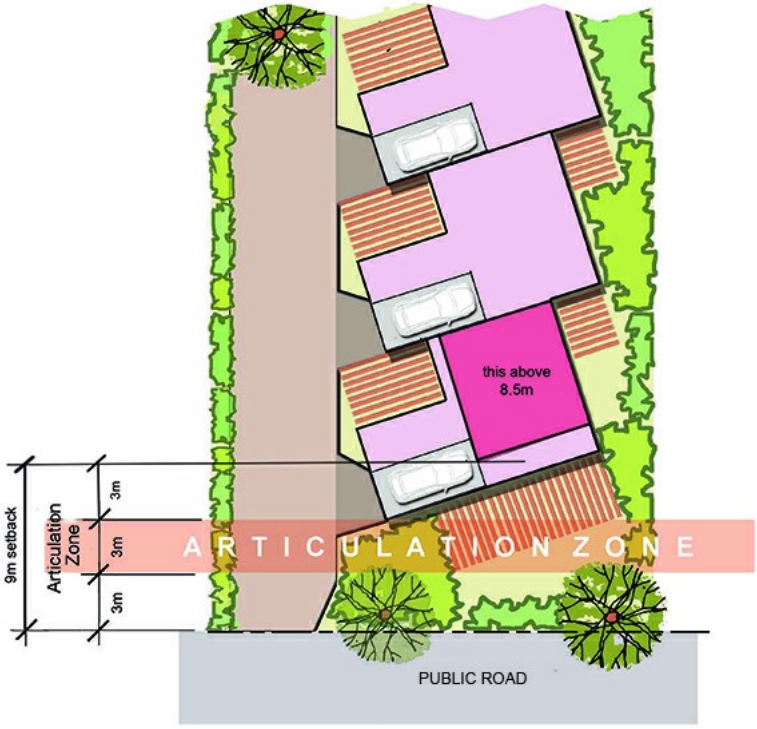
Articulation Zone – Buildings ≤ 8.5m in Height



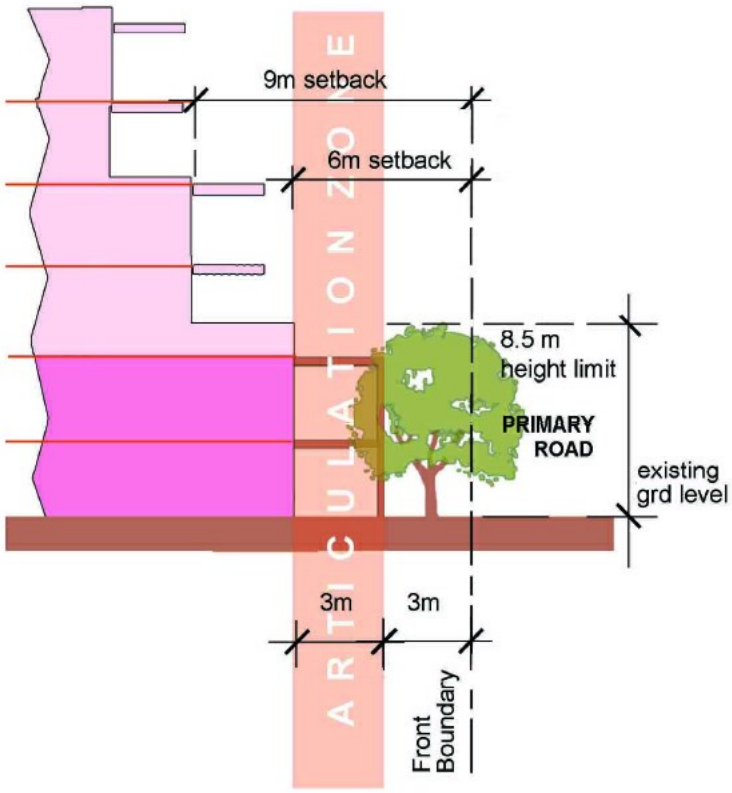
Articulation Zone – Buildings ≤ 8.5m in Height



Articulation Zone – Buildings > 8.5m in Height



Articulation Zone – Buildings > 8.5m in Height



- Awnings (or other features over a window) and sun shading devices are not to be included when calculating the maximum area of an articulation zone.
- Buildings fronting a lane are to be setback three metres with garages and carports being setback 4.5 metres.

Rear Lane Setback Requirements



Setbacks for Corner Lots



Notes:

Setback requirements may be specified within an environmental planning instrument for certain types of residential accommodation. In this regard, the provisions of an environmental planning instrument prevail.

D5.3 SIDE AND REAR SETBACK REQUIREMENTS

Applies to Land

This control applies to land zoned R1 General Residential and SP3 Tourist under Coffs Harbour LEP 2013.

Objectives

- To provide space between buildings and streets to maintain streetscape character and provide for air flow, sunlight, landscaping and general amenity.
- To activate lanes to maintain safety and improve liveability.

Requirements

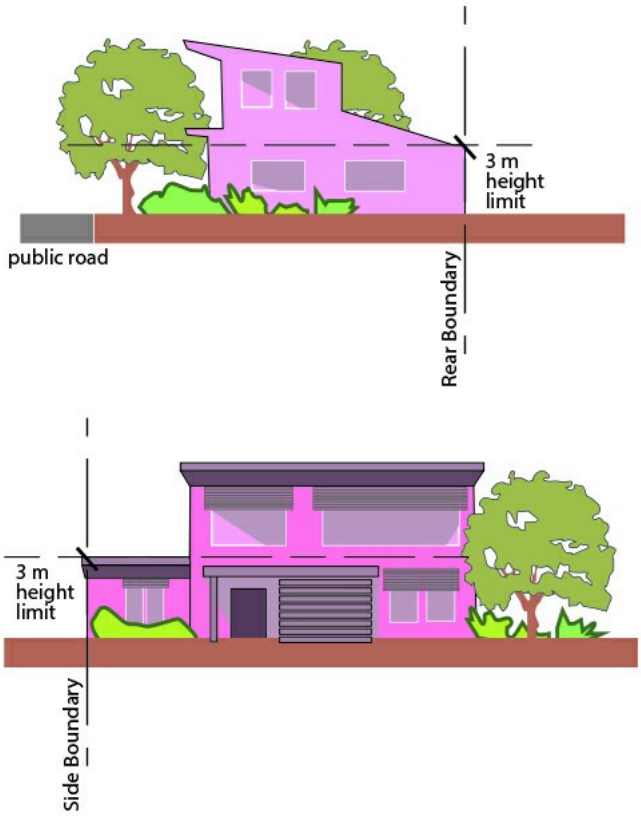
(1) Development is to meet the minimum setback requirements shown on the Side and Rear Setbacks Map.

Exceptions

- For Lot 32 DP 1237515 the following setback requirements apply:
  - 5m side (east) setback; and
  - 5m rear (south) setback; and

- All other side setbacks are as follows:
  - 3m - Buildings > one storey
  - 900mm (walls) or 675mm (roof, gutter, eaves) Buildings up to one storey
- For Lots 33-35 DP 1237515 the following setback requirements apply:
  - 5m rear setback.
  - All other side setbacks are as follows:
    - 3m - Buildings > one storey
    - 900mm (walls) or 675mm (roof, gutter, eaves) Buildings up to one storey
- Departures to setback requirements may be supported where it can be adequately demonstrated that:
  - the setback requirements cannot be achieved on the site due to site constraints; and
  - reasonable privacy, amenity, solar access and view sharing is maintained.
- Zero side and rear setbacks may be provided on land zoned R1 General Residential under Coffs Harbour LEP 2013 where:
  - no part of the existing development exceeds two stories in height, and
  - the development has a maximum boundary wall height of three metres (unless matching an existing or simultaneously constructed wall), and
  - there is no adverse impact upon the amenity of adjoining properties, and
  - there is no interruption to overland drainage paths, and
  - there are no openings in the boundary wall (see figure below), and
  - the wall is of masonry construction.

Zero Side and Rear Setback Examples



Notes:

Setback requirements may be specified within an environmental planning instrument for certain types of residential accommodation. In this regard, the provisions of an environmental planning instrument prevail.

D5.4 FRONTAGE WIDTH REQUIREMENTS

Applies to Land

This control applies to land zoned R1 General Residential under Coffs Harbour LEP 2013.

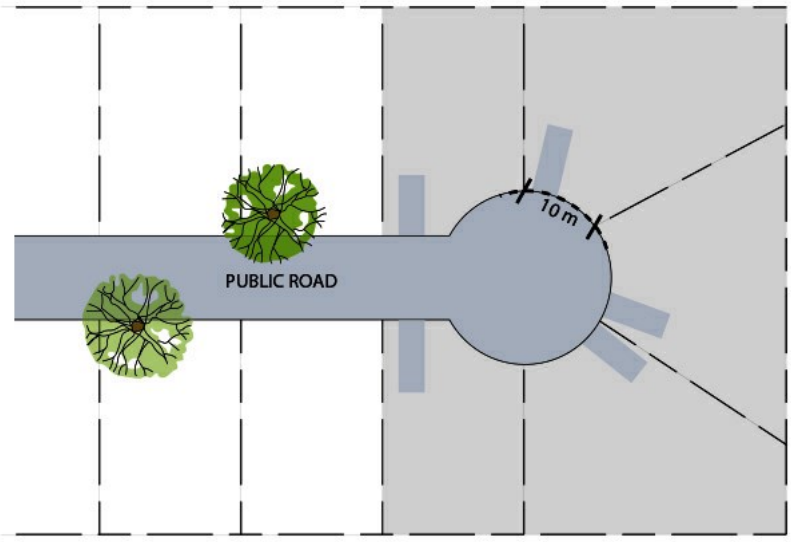
Objectives

- To minimise visual impacts on the streetscape.
- To ensure that a suitable entry is provided to residential and tourist residential development.
- To ensure there is adequate provision for the location of services within the frontage of the site.

Requirements

(1) A minimum frontage to a public road of 10 metres is required for each dwelling or tourist accommodation building with access off a cul-de-sac, with a driveway being located to one side of the road frontage to provide for visitor car parking and to maintain streetscape integrity.

Example Layout within Cul-de-Sac



(2) A minimum frontage to a primary road of 5.5 metres is required for multi dwelling housing or tourist and visitor accommodation development comprising three or more dwellings or three or more accommodation buildings (excluding lots fronting a cul-de-sac – refer to requirement (1) above).

D5.5 PRIVATE OPEN SPACE REQUIREMENTS

Applies to Land

This control applies to land zoned R1 General Residential under Coffs Harbour LEP 2013.

Objectives

- To ensure that functional private open space is provided as part of residential and tourist residential development to meet the occupant's requirements for privacy, safety, access, outdoor activities

and landscaping.

- To ensure that private open space is integrated with, and directly accessible from, the living areas of dwellings.
- To define the edge between public and private land and to provide privacy and security.

Requirements

(1) Private open space is to be provided in accordance with the following criteria:

Development Type	Requirement
Dwelling Houses, Dual Occupancies and Semi-detached dwellings	185m^2 of which 90m^2 is to comprise functional private open space with a minimum dimension of 4m in width (preferably in one area) and a ground slope less than 1 in 8
Attached dwellings, Multi Dwelling Housing	35m^2 with a minimum dimension of 3m in width and a ground slope less than 1 in 8
Residential Flat Buildings, Serviced Apartments, Shop Top Housing	15m^2 with a minimum dimension of 2m in width

(2) Private open space is to be:

(a) provided with direct connection to indoor living areas (e.g. sliding glass doors) and oriented to maximise use; and

(b) designed so that it does not unreasonably compromise the amenity and privacy of existing private open space on adjoining and nearby land.

(3) Private open space provided at ground level (including swimming pools) is not to be located within the front setback area adjoining a primary road, unless satisfactory fencing and screening is provided for privacy and safety for occupant's and to minimise adverse impacts on the streetscape.

(4) Private open space for tourist and visitor accommodation development is subject to merit assessment and is to satisfy the objectives of this control.

Exceptions

- Balconies and terraces may be incorporated into private open space.
- Private open space provided at ground level for dwelling houses, dual occupancies and semi-detached dwellings may be divided into two or more areas, provided that the smallest portion is no less than 40m^2.
- Where private open space provided at ground level cannot be achieved on land with a slope greater than 1 in 8, open decks no less than 15m^2 may be provided as an alternative

Notes:

Private open space requirements may be specified within an environmental planning instrument for certain types of residential accommodation. In this regard, the provisions of an environmental planning instrument prevail.

D5.6 DESIGN REQUIREMENTS– GENERAL

Applies to Land

This control applies to land zoned R1 General Residential and SP3 Tourist under Coffs Harbour LEP 2013.

Objectives

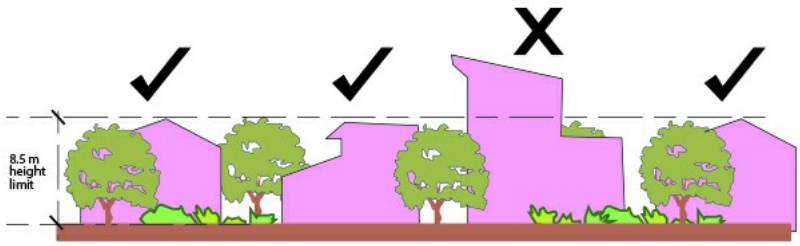
- To ensure that the design of residential and tourist residential buildings provides for acoustic and visual privacy of future residents and occupants.
- To ensure that development exhibits design excellence that contributes to and complements the natural, cultural, visual and built character of the streetscape and public domain in residential zones.
- To reduce the apparent bulk and scale of buildings by breaking up expanses of building walls with modulation of form and articulation of facades.
- To provide design responses for the North Coast climate.

Requirements

(1) Development for the purpose of residential accommodation and tourist and visitor accommodation is to be:

(a) of an appropriate scale to the existing streetscape as detailed in the following; and

Example of Appropriate Scale



(b) designed to allow for some outlook to streets, lanes or other public space areas to increase passive surveillance; and

(c) designed to minimise direct overlooking of living areas and private open spaces of other dwellings and tourist and visitor accommodation buildings; and

(d) designed to minimise impacts on existing views and view corridors; and

(e) designed with consideration to corner allotments in relation to the following:

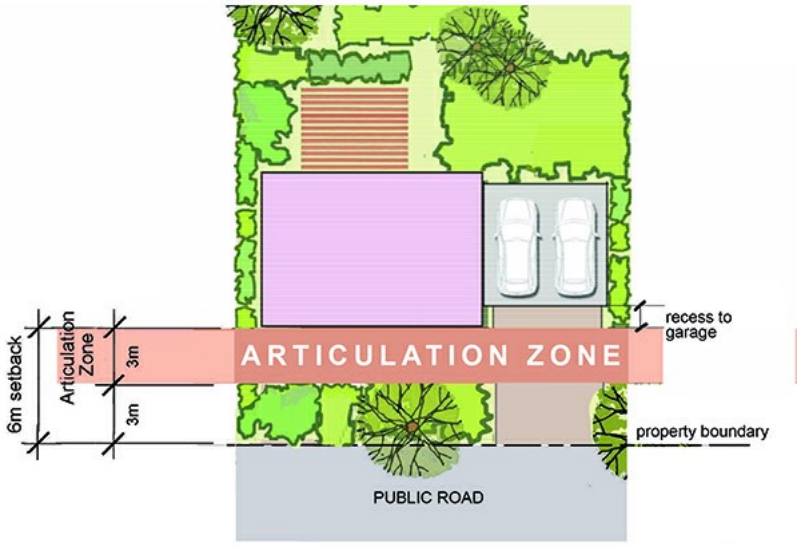
(i) adjoining buildings, open space and dual frontage; and

(ii) building forms which emphasise the corner site; and

(iii) modulated designs to break up the building form.

(f) designed so that garages and parking structures do not dominate the street frontage as demonstrated in the following figure:

Recessed Garage Example



(2) Development for the purposes of residential accommodation and tourist and visitor accommodation is to achieve variety in the built form by:

(a) incorporating some or all of the following elements:

(i) verandahs and balconies;

(ii) decks and pergolas;

(iii) eaves;

(iv) hoods (window/door) and climate control windows;

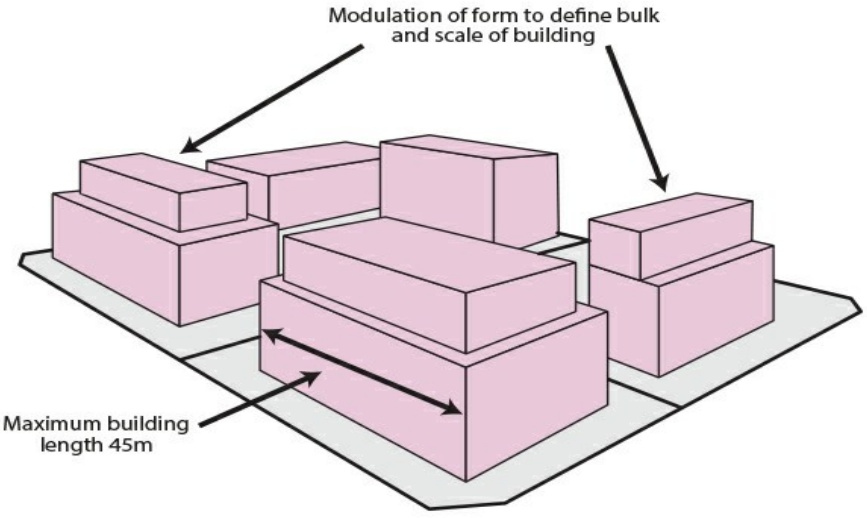
(v) a mix of light weight and compatible materials; and

(vi) differentiation of the top, middle and base of the building.

(3) Development is to be designed:

(a) so that buildings do not exceed a total length of 45 metres; and

(b) to incorporate modulation of form, articulation of building facades, window arrangements and architectural enhancements to add visual interest and to reduce the apparent bulk and scale of buildings as demonstrated below:



(4) Development on steep land is required to:

(a) minimise the height and bulk of buildings (particularly on the down slope); and

(b) minimise cut and fill by reducing the footprint of the development and allowing the building mass to step down the slope.

(5) Development comprising retaining walls must not:

(a) exceed a maximum of one metre cut or fill outside the building's external walls; or

(b) redirect the flow of any surface water or ground water or cause sediment to be transported onto an adjoining property.

(6) Development comprising retaining walls for excavation or filling are to be accompanied:

(a) by a plan clearly identifying the location of retaining walls; and

(b) by engineering drawings where constructed from timber materials.

Notes:

- ***Balcony enclosures are only permitted where the overall design of the facade is not adversely affected.***
- ***The City of Coffs Harbour is not bound to enforce positive covenants restricting the design of development unless the City of Coffs Harbour is party to the covenant.***
- ***Development applications for residential accommodation and some types of tourist and visitor accommodation may be required to be accompanied by a BASIX Certificate in accordance with** State Environmental Planning Policy (Building Sustainability Index: BASIX) 2004**.***
- ***Design requirements may be specified within an environmental planning instrument for certain types of residential accommodation. In this regard, the provisions of an environmental planning instrument prevail.***

D5.7 DESIGN REQUIREMENTS- DUAL OCCUPANCIES

Applies to Land

This control applies to development for the purposes of a dual occupancy on land zoned R1 General Residential under Coffs Harbour LEP 2013.

Objectives

- To encourage innovative design that contributes positively to the streetscape and relates to the low density character of the neighbourhood.

Requirements

(1) Development for the purpose of a dual occupancy where both dwellings front a primary road are to be designed so that the dwellings are not mirror reversed (see figure below).

Dual Occupancy Example



D5.8 SOLAR ACCESS REQUIREMENTS

Applies to Land

This control applies to land zoned R1 General Residential and SP3 Tourist under Coffs Harbour LEP 2013.

Objectives

- To ensure that reasonable access to sunlight is maintained.

Requirements

(1) Development is to be designed to allow for at least two hours of sunshine upon indoor living areas and private open space (both within the same site and on adjacent land) between 9.00am and 3:00pm on the 21 June of any given year.

(2) Development applications are to be accompanied by shadow diagrams illustrating the shadow cast by the proposed development at 9:00am; 12:00pm and 3:00pm on 21 June where development is likely to result in excessive overshadowing of adjacent and surrounding dwellings and private open space.

(3) Shadow diagrams are to:

(a) be prepared by suitably qualified persons; and

(b) be based on a survey of the subject site and adjoining land; and

(c) take into consideration existing vegetation.

Notes:

Solar access requirements may be specified within an environmental planning instrument for certain types of residential accommodation. In this regard, the provisions of an environmental planning instrument prevail.

D5.9 INFRASTRUCTURE REQUIREMENTS

Applies to Land

This control applies to land zoned R1 General Residential and SP3 Tourist under Coffs Harbour LEP 2013.

Objectives

- To ensure that adequate infrastructure and utility services are provided to development on

residential and tourist residential zoned land.

Requirements

(1) Development for the purpose of a dual occupancy is to provide the following infrastructure in accordance with the City of Coffs Harbour's Development Specifications:

(a) concrete kerb and gutter, and

(b) vehicle crossing.

(2) Development for the purpose of multi dwelling housing and tourist and visitor accommodation is to provide the following infrastructure in accordance with the City of Coffs Harbour's Development Specifications:

(a) sealed road pavement,

(b) concrete kerb and gutter,

(c) concrete footpath,

(d) piped stormwater drainage, and

(e) vehicle crossing.

(3) Development comprising lane access is to provide the following additional infrastructure in accordance with the City of Coffs Harbour's Development Specifications:

(a) lane construction to full width from at least one street,

(b) kerb and gutter on one side of the lane, and

(c) stormwater drainage.

(4) Development is to provide the following utility services in accordance with the City of Coffs Harbour's Development Specifications:

(a) water,

(b) accessible separate water meters for each dwelling,

(c) sewer,

(d) telecommunications (including National Broadband Network where available), and

(e) electricity.

(5) Development is to provide the following site facilities:

(a) waste storage in accordance with the relevant controls of F6 Waste Management of this Plan; and

(b) mailboxes in one accessible location adjacent to the main entrance to the development.

(6) Site facilities such as communication structures, air conditioning units, ventilation stacks and any ancillary structures are to be:

(a) located away from the street frontage; and

(b) integrated into the roof design and not a dominant skyline feature; and

(c) adequately setback from the perimeter wall or roof edge of buildings; and

(d) comprise one master antenna for residential apartment buildings.

Exceptions

- Requirement (3) of this control does not apply to development for the purpose of a dual occupancy, dwelling house, secondary dwelling or semi-detached dwelling.

Notes:

Development in the vicinity of sewerage mains is subject to the provisions of the City of Coffs Harbour's *Sewer Mains – Building in the vicinity of Policy*.

D5.10 ACCESS AND PARKING REQUIREMENTS

Applies to Land

This control applies to land zoned R1 General Residential and SP3 Tourist under Coffs Harbour LEP 2013.

Objectives

- To provide for the efficient and safe movement of vehicles.

Requirements

(1) Development is to comply with the relevant controls of F1 Access and Parking of this Plan.

Notes:

Access and parking requirements may be specified within an environmental planning instrument for certain types of residential accommodation. In this regard, the provisions of an environmental planning instrument prevail.

D5.11 LANDSCAPING REQUIREMENTS

Applies to Land

This control applies to land zoned R1 General Residential and SP3 Tourist under Coffs Harbour LEP 2013.

Objectives

- To ensure landscaping is integrated into the design of development.
- To encourage plant selection that is sensitive to local climate, topography and natural features.

Requirements

(1) Development is to incorporate landscaping in accordance with the relevant controls of F3 Landscaping of this Plan.

Exceptions

- The requirements of this control do not apply to development for the purpose of a dual occupancy, dwelling house, secondary dwelling or semi-detached dwelling.

Notes:

Landscaping requirements may be specified within an environmental planning instrument for certain types of residential accommodation. In this regard, the provisions of an environmental planning instrument prevail.

D5.12 ANCILLARY DEVELOPMENT REQUIREMENTS

Applies to Land

This control applies to development for the purpose of residential accommodation and tourist and visitor accommodation on land zoned R1 General Residential and SP3 Tourist under Coffs Harbour LEP 2013.

Objectives

- To ensure that the design and location of ancillary development minimises impacts on the streetscape and adjoining land.

Requirements

General

(1) Ancillary development is to be:

(a) designed and constructed to minimise visual impacts on adjoining land and the amenity of the area; and

(b) sited to minimise impacts on private open space within the site and on adjoining land.

(2) Ancillary development comprising open walled structures may have a zero boundary setback provided that it has a maximum roof height of three metres and there are no adverse impacts on the amenity of the adjoining properties.

(3) Reduced street setbacks for carports and garages may be provided in the following circumstances:

(a) there is an existing pattern of similarly located carports/garages in the street; or

(b) the topography of the land is such that the carport/garage can form a part of an existing slope or retaining wall; or

(c) the topography of the land is such that the existing house is significantly below the street level; or

(d) the house is located on a corner lot; or

(e) the existing setback from the street is significantly greater than other setbacks in the streetscape; or

(f) the subject lot is irregular in shape and location.

(4) New carports/garages associated with existing development on the land are to be designed and constructed in a manner that is integral to, and consistent with the style and standard of finishes of the existing development.

Outbuildings

(5) The maximum floor area of an outbuilding is not to have a floor area of more than:

(a) 45m², if the lot has an area of at least 450m² but less than 600m²; or

(b) 60m², if the lot has an area of at least 600m² but less than 900m²; or

(c) 100m², if the lot has an area of at least 900m².

Fencing

(6) Ancillary development comprising fencing is to be designed so that:

(a) views are not unreasonably obscured from a dwelling to the primary road frontage or vice versa; and

(b) side fences which project forward of the front building line step down to the height of the adjoining front fence; and

(c) it is compatible with existing fencing in the immediate locality; and

(d) it does not comprise sheet metal (including colour bond) as the dominant feature of a front fence; and

(e) it does not comprise expansive flat and blank surfaces along street frontages.

(7) Ancillary development comprising solid fencing:

(a) may be located along the boundary of, or within the setback area to, a primary road or secondary road provided that:

(i) it does not exceed 1.8 metres in height above ground level when measured from the road side of the fence; and

(ii) it is setback a minimum of 0.6 metres from the front boundary where it is between 1.2 metres and 1.5 metres in height above ground level (existing); or

(iii) it is setback a minimum of one metre from the front boundary where it is between 1.5 metres and 1.8 metres in height above ground level (existing); and

(iv) landscaping is provided for a minimum of 50% of the length of the fence; and

(v) it does not impact on traffic visibility, and;

(vi) it incorporates setback splays or openings to maintain pedestrian visibility if adjacent to a driveway.

Swimming Pools

(8) Swimming pools located within the front setback area are to comply with the private open space requirements in D5.5 of this Plan.

(9) Cut and fill of the area surrounding the swimming pool is to be limited to a maximum of one metre.

(10) All mechanical pump and filter equipment associated with swimming pools are to be adequately soundproofed so as not to create a noise nuisance in terms of the Protection of the Environment Operations Act 1997.

(11) All waste water from swimming pools is to be connected to Council's sewer main via a suitable 100mm diameter gully trap. A minimum air gap of 100mm is to be provided between the discharge outlet and the gully grate.

(12) The water edge of swimming pools is to be a minimum of 0.9 metres from a side or rear boundary.

Exceptions

- In un-sewered areas, waste water from swimming pools is to be discharged to an absorption pit positioned within the property where it will not impact on an adjoining property or a nearby waterway.
- A reduced setback for swimming pools may be provided if it can be demonstrated that the pool will not result in any detrimental impact on adjoining properties.
- Requirement (5) of this control does not apply to development Zone SP3 Tourist.

Notes:

- *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* ***specifies some forms of ancillary development as exempt or complying development.***
- ***Swimming pool safety fencing is to be in accordance with the*** *Swimming Pools Act 1992* ***and*** *Regulations*.

D5.13 ACCESSIBILITY REQUIREMENTS

Applies to Land

This control applies to land zoned R1 General Residential and SP3 Tourist under Coffs Harbour LEP 2013.

Objectives

- To ensure that dignified, equitable, cost-effective and reasonably achievable access to buildings, and facilities and services within buildings, is provided for all people.

Requirements

(1) Where the provisions of the Disability (Access to Premises – Building Standards) 2010 apply for alterations and additions to an existing building, an accessible accessway is to be provided in accordance with the relevant Australian Standards from the site boundary to the principle pedestrian entry.

(2) Public footpaths, recreation areas and other public spaces associated with development are to be designed as barrier-free environments for all people in accordance with the Disability Discrimination Act 1992.

Notes:

- ***Applicants are reminded of their responsibilities under the Disability Discrimination Act 1992 and associated Disability (Access to Premises – Building Standards) 2010.***
- ***Certification from an accredited access consultant may be required to demonstrate compliance with the Disability (Access to Premises – Building Standards) 2010 at the discretion of the City of Coffs Harbour.***

D5.14 SAFER BY DESIGN REQUIREMENTS

Applies to Land

This control applies to land zoned R1 General Residential and SP3 Tourist under Coffs Harbour LEP 2013.

Objectives

- To ensure that Crime Prevention Through Environmental Design principles are considered in the design of residential development.

Requirements

(1) Crime Prevention Through Environmental Design principles are to be considered in the design of development in accordance with the NSW Police Safer by Design: Crime Prevention Through

Environmental Design guidelines.

(2) Development applications for residential accommodation comprising 20 or more dwellings and tourist and visitor accommodation comprising 20 or more accommodation buildings may be referred to the NSW Police Service for a 'safer by design' assessment depending on the likely impacts from the development on the safety of the community.

Exceptions

- The requirements of this control do not apply to development for the purpose of a dwelling house, dual occupancy, secondary dwelling and semi detached dwelling.

D5.15 CONSOLIDATION REQUIREMENTS

Applies to Land

This control applies to land zoned R1 General Residential and SP3 Tourist under Coffs Harbour LEP 2013.

Objectives

- To ensure that development is sited on the land in a practical and functional arrangement.

Requirements

(1) Where the development is situated over the boundary of two or more lots, the subject lots are to be consolidated into one allotment.

D5.16 LAND DEDICATION

Applies to Land

This control applies to land zoned R1 General Residential and SP3 Tourist under Coffs Harbour LEP 2013.

Objectives

- To enable the dedication of suitable land of significant environmental value or public benefit.

Requirements

(1) Land that is unable to be developed due to significant environmental constraints or that is of public benefit may be dedicated to the City of Coffs Harbour via a voluntary planning agreement or other suitable arrangement in accordance with the City of Coffs Harbour's Dedication of Land Policy.

Notes:

Additional mechanisms exist for the in-perpetuity management of high conservation value land, such as the Biodiversity Offsets Scheme administered by the NSW** Department of Planning and Environment **under the** Biodiversity Conservation Act 2016**.

D5.17 SIGNAGE REQUIREMENTS

Applies to Land

This control applies to land zoned R1 General Residential and SP3 Tourist under Coffs Harbour LEP 2013.

Objectives

- To ensure that all advertising is of a high quality and is integrated into the architectural design of buildings and the character of the streetscape.
- To ensure that advertising is designed with consideration to the amenity of residential areas and the visual quality of the public domain.

Requirements

(1) Development comprising signage is to accord with the relevant controls of F5 Signage of this Plan.

Notes:

Signage requirements may be specified within an environmental planning instrument for certain types of residential accommodation. In this regard, the provisions of an environmental planning instrument prevail.

D5.18 WATER MANAGEMENT REQUIREMENTS

Applies to Land

This control applies to land zoned R1 General Residential and SP3 Tourist under Coffs Harbour LEP 2013.

Objectives

- To implement best practice stormwater management techniques.
- To incorporate the use of water sensitive urban design techniques to reduce negative impacts on the natural water cycle and aquatic ecosystems.
- To manage water as a valuable and finite regional resource on a total water cycle basis.

Requirements

(1) Stormwater drainage is to be provided in accordance with the City of Coffs Harbour's Development Specifications.

(2) Development applications are to be supported by concept stormwater drainage designs.

(3) Stormwater is to be gravity drained to the City of Coffs Harbour's drainage system or a designated watercourse as shown on the NSW Hydro Line Dataset.

(4) Where development requires drainage works over adjoining properties, the respective development application is to be supported by land owners consent from the affected properties to the lodgement of the development application, including written agreement to the creation of easements on title for interallotment drainage.

(5) Stormwater drainage design is to generally reflect the pre-existing flow characteristics of the site, and may require on-site stormwater detention.

(6) Water sensitive urban design is to be incorporated into the design of the development in accordance

with the City of Coffs Harbour's Water Sensitive Urban Design Guidelines.

(7) Where Estuary Management Plans, Coastal Zone Management Plans or Coastal Management Programs (approved by the City of Coffs Harbour) outline specific water quality targets that are to be met, development within the catchment area (to the extent that they could have a significant impact on the water quality of a waterbody) of those Management Plans / Programs must demonstrate that they can achieve the specified water quality targets. Appropriate modelling is to be used to demonstrate compliance with this requirement.

Notes:

Water management requirements may be specified within an environmental planning instrument for certain types of residential accommodation. In this regard, the provisions of an environmental planning instrument prevail.

D5.19 EROSION AND SEDIMENT CONTROL REQUIREMENTS

Applies to Land

This control applies to land zoned R1 General Residential and SP3 Tourist under Coffs Harbour LEP 2013.

Objectives

- To ensure that earthworks will not have a detrimental impact on environmental functions and processes, neighbouring uses or features of the surrounding land.

Requirements

(1) Erosion and sediment control measures are to be provided in accordance with the document Managing Urban Stormwater – Soils & Construction Volume 1 (Landcom 2004) for development comprising earthworks.

(2) Development applications for development comprising earthworks are to be accompanied by supplementary information in accordance with the following table:

Area of earthworks (m^2)	Supplementary Information
< 800m^2 of disturbed area	Basic Erosion and Sediment Control Plan
800m^2 to 2,500m^2 of disturbed area	Erosion and Sediment Control Plan
>2,500m^2 of disturbed area	Soil and Water Management Plan

(3) Basic Erosion and Sediment Control Plans are to be prepared in accordance with the principles of Best Practice Management for Small Areas of Disturbance.

(4) Erosion and Sediment Control Plans are to be prepared in accordance with the document Managing Urban Stormwater – Soils & Construction Volume 1 (Landcom 2004).

(5) Soil and Water Management Plans are to be of a scale 1:500 or larger and are to be prepared in accordance with the document Managing Urban Stormwater – Soils & Construction Volume 1 (Landcom 2004).

Notes:

The Coffs Harbour LGA comprises very steep land and highly erodible soils which may require specific erosion and sediment control measures to perform adequately.

D5.20 ENVIRONMENTAL REQUIREMENTS

Applies to Land

This control applies to land zoned R1 General Residential and SP3 Tourist under Coffs Harbour LEP 2013.

Objectives

- To ensure that development is responsive to the environmental context of the site.
- To ensure that development occurs in a manner that provides for the continued protection of high conservation value land.

Requirements

(1) Development is to comply with the relevant controls of E1 Biodiversity of this Plan.

Notes:

- ***Clause 7.1 Acid Sulfate Soils of** Coffs Harbour LEP 2013 **requires development consent and the preparation of an Acid Sulfate Soils Management Plan for the carrying out of certain works on land shown on the** Coffs Harbour LEP 2013 Acid Sulfate Soils Map**. It is the responsibility of the proponent to determine if the land upon which the development is proposed, is identified on the** Acid Sulfate Soils Map **and thus if the provisions of Clause 7.1 of** Coffs Harbour LEP 2013 **apply to the proposed development.***
- ***Development applications for development on land comprising steep land shown on the** Steep and Highly Erodible Land Map **may be required to be accompanied by a geotechnical report.***

D5.21 FLOOD REQUIREMENTS

Applies to Land

This control applies to land zoned R1 General Residential and SP3 Tourist under Coffs Harbour LEP 2013.

Objectives

- To ensure that impacts from flood hazard are minimised.

Requirements

(1) Development is to comply with the relevant controls of E4 Flooding of this Plan.

D5.22 COASTAL HAZARD REQUIREMENTS

Applies to Land

This control applies to land zoned R1 General Residential and SP3 Tourist under Coffs Harbour LEP 2013.

Objectives

- To ensure that impacts from coastal hazard are minimised.

Requirements

(1) Development is to comply with the relevant controls of E2 Coastal Hazards of this Plan.

D5.23 CONTAMINATED LAND REQUIREMENTS

Applies to Land

This control applies to land zoned R1 General Residential and SP3 Tourist under Coffs Harbour LEP 2013.

Objectives

- To ensure that development is responsive to any environmental constraints of the land.

Requirements

(1) Development on land comprising contaminated land or potentially contaminated land is to accord with the relevant controls of E3 Contaminated Land of this Plan.

D5.24 HERITAGE REQUIREMENTS

Applies to Land

This control applies to land zoned R1 General Residential and SP3 Tourist under Coffs Harbour LEP 2013.

Objectives

- To preserve the heritage significance of heritage items and heritage conservation areas within Coffs Harbour.
- To conserve archaeological sites, Aboriginal objects and Aboriginal places of heritage significance within Coffs Harbour.

Requirements

(1) Development is to accord with the relevant controls of F2 Heritage Conservation of this Plan.

D5.25 AMENITY REQUIREMENTS

Applies to Land

This control applies to land zoned R1 General Residential and SP3 Tourist under Coffs Harbour LEP 2013.

Objectives

- To ensure that the impact of road/rail noise or vibration is considered in the assessment of development proposals near the Pacific Highway and/or rail corridors.

Requirements

(1) Development applications comprising development to which Clause 2.100 or Clause 2.120 of State Environmental Planning Policy (Transport and Infrastructure) 2021 applies are to be accompanied by sufficient information demonstrating that the relevant provisions of the policy and the guideline can be satisfied.

(2) Landscaped buffers (utilising native vegetation where practicable) are to be provided between residential uses and road and/or rail corridor.

(3) Development applications comprising noise generating development adjacent to or within line of sight from established noise-sensitive developments such as schools, hospitals or residential accommodation are to have regard to the Noise Policy for Industry (Environment Protection Authority 2017).

Notes:

- ***Development consent cannot be granted to development for the purposes of a building for residential use on land in or adjacent to the Pacific Highway or on land in or adjacent to a rail corridor unless it can be demonstrated that noise levels as prescribed by Clause 2.100(3) and/or Clause 2.120(3) of** State Environmental Planning Policy (Transport and Infrastructure) 2021 **are not exceeded.***
- ***An acoustic report may be required to be undertaken by an appropriately qualified person to demonstrate that the requirements specified in the policy and the following guidelines can be reasonably met:***
  - *Development Near Rail Corridors and Busy Roads – Interim Guideline**; and***
  - ***Any other associated guidelines issued by the Director-General for the purposes of** State Environmental Planning Policy (Transport and Infrastructure) 2021**.***
- ***Noise levels at the boundary of the site subject to the development are to accord with the requirements of the** Protection of the Environment Operations Act 1997**.***
- ***Acoustic and amenity requirements may be specified within an environmental planning instrument for certain types of residential accommodation. In this regard, the provisions of an environmental planning instrument prevail.***

Part E Environmental Controls

E1 BIODIVERSITY

E1.1 PRESERVATION OF TREES AND VEGETATION

Applies to Land

This control applies to land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To prescribe for the purposes of State Environmental Planning Policy (SEPP) (Biodiversity and Conservation) 2021, vegetation for preservation.
- To provide criteria that will be taken into consideration by the City of Coffs Harbour as part of the assessment of applications for vegetation removal.
- To preserve a diversity of plants and animals, through maintenance of ecological processes.
- To protect native old growth and/or hollow bearing tree (s) due to their distinct ecological significance.
- To provide criteria relating to trees (or other vegetation) that are dying or dead or are not required as the habitat of native fauna, or where it may present a risk to human life or property.

Requirements

(1) Prescribed vegetation for the purposes of the SEPP (Biodiversity and Conservation) 2021 is:

(a) All native vegetation shown on the Preservation of Vegetation Map (regardless of size); and

(b) any native tree with either a height greater than five metres or any part of a trunk that has a diameter greater than 15 centimetres (or a girth greater than 47 cm); and

(c) any hollow bearing tree; and

(d) any significant tree.

(2) Approval is required in accordance with the SEPP (Biodiversity and Conservation) 2021 prior to the removal (or other specified action) of any prescribed vegetation.

Exceptions

- The requirements of this control do not apply to land zoned RU2 Rural Landscape under Coffs Harbour LEP 2013.
- Prescribed vegetation only applies to Land Use Zones regulated by the City of Coffs Harbour under the SEPP (Biodiversity and Conservation) 2021.
- Approval is not required for the removal (or other specified action) of prescribed vegetation where the removal (or other specified action) is required as a result of an emergency and is undertaken

within 48 hours of the emergency or where the vegetation represents an imminent risk to human life or property and adequate evidence can be provided to the City of Coffs Harbour.

- Approval is not required for the removal (or other specified action) of prescribed vegetation on land zoned C2 Environmental Conservation under Coffs Harbour LEP 2013 for the maintenance or construction of boundary fencing where the following criteria is satisfied:
  - the land adjoins land zoned RU2 Rural Landscape under Coffs Harbour LEP 2013; and
  - the works are restricted to a three metres corridor either side of an external boundary fence; and
  - consent to the works is obtained from the adjoining landowner; and
  - the works do not comprise the removal (or other specified action) of any native old growth, hollow-bearing tree or significant tree.
- Approval is not required for the removal (or other specified action) of prescribed vegetation where the trunk of the tree is within 3m of a lawful dwelling.
- Approval is not required for the pruning of less than 10% of prescribed vegetation in any 12 month period. Pruning is to be done in accordance with the Australian Standard "Pruning Amenity Trees" AS4373-1996.
- Approval is not required for the removal (or other specified action) of prescribed vegetation where the vegetation is dead or dying, such as where:
  - there is a lack of leaves (excluding deciduous trees), or the leaves are consistently brown; and
  - the cambium (the thin layer between the bark and the inside wood) is not green; and is not habitat for native fauna such as any hollow or nest.
- Approval is not required for the removal (or other specified action) of prescribed vegetation where:
  - the vegetation is a risk to human life or property; and
  - this risk is imminent (i.e within 48 hours of an emergency); and
  - adequate evidence can be provided to the City of Coffs Harbour.

Notes:

- ***The clearing of native vegetation on land zoned RU2 Rural Landscape under** Coffs Harbour LEP 2013 **is subject to the** Local Land Services Act 2016 **administered by** Local Land Services.*
- ***The removal of native plants from land identified as coastal wetlands or littoral rainforest on the Coastal Wetlands and Littoral Rainforests Area Map as described by** State Environmental Planning Policy (Resilience and Hazards) 2021**, requires approval from the City of Coffs Harbour and the concurrence of the NSW Department of Planning and Environment.***
- ***The removal or lopping of a tree in connection with an existing educational establishment may be complying development provided that it complies with the provisions of** State Environmental Planning Policy (Transport and Infrastructure) 2021.*
- ***Approval is not required where the** SEPP (Biodiversity and Conservation) 2021 **does not apply. The** SEPP (Biodiversity and Conservation) 2021 **should be viewed for exemptions. An Authority to clear vegetation is not required under** SEPP (Biodiversity and Conservation) 2021 **if it is clearing of a kind that is authorised under section 60O of the** Local Land Services Act 2013 **(such as clearing authorised by a private land conservation agreement under the** Biodiversity Conservation Act 2016**).***
- ***The Preservation of Vegetation Map is based on 2009 spatial data. Where discrepancies are identified with the mapping, the City of Coffs Harbour should be contacted for further advice.***
- ***Some vegetation communities in the Coffs Harbour LGA require both floristic and soil information to verify their status as an Endangered Ecological Community (EEC). Under these circumstances, the City of Coffs Harbour has adopted a precautionary approach and considers all relevant communities that meet the floristic criteria as EECs. Their EEC status can only be challenged via appropriate soil reports.***
- *NSW Flora Online* ***can assist proponents in determining Native Vegetation of the NSW North Coast.***
- ***The following criteria will be taken into consideration by the City of Coffs Harbour as part of the assessment of applications for vegetation removal (or other specified action):***

- ***Dangerous or diseased vegetation (validation by an Arborist Report)***
- ***Available space for the vegetation at maturity;***
- ***Damage to existing structures or utility services and validation by a suitably qualified person;***
- ***Interference with solar photovoltaic/hot water systems (in most cases thinning of the vegetation is the preferred option);***
- ***Interference with the amenity of a habitable room;***
- ***Inconsistency with any other approvals (i.e. development consent)***
- ***Impacts on threatened species, populations or ecological communities and their habitats.***
- ***Resulting illness and/or severe allergic reaction (substantiated by medical documentation).***

- ***The following matters are not considered to be valid reasons for the removal of prescribed vegetation (or other specified action):***
  - ***Pruning and/or removal of vegetation to optimise or enhance a view or outlook; or***
  - ***Leaf/flower/fruit fall; or***
  - ***Pre-emptive clearing (i.e. a healthy tree on vacant residential zoned land well clear of boundaries with no approved building work presents a very low risk. Tree removal needs to be considered in the context of any eventual development).***

E1.2 COMPENSATORY REQUIREMENTS

Applies to Land

This control applies to land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To offset impacts associated with the removal (or other specified action) of high conservation value vegetation.
- To protect and maintain important linkages between habitats.

Requirements

(1) Compensatory planting is to be provided for the removal of high conservation value vegetation in accordance with the following table:

Compensatory Replacement Rates for the Removal of High Conservation Value Vegetation

Description of Habitat Type	Replacement Rate
Native old growth, hollow-bearing or ecologically/aesthetically significant tree	1:20
Endangered Ecological Community, Over-Cleared Vegetation Types and High Value Arboreal Habitats	1:10
Primary Koala Habitat	1:5
Secondary Koala Habitat (adjacent to primary koala habitat)	1:5
Secondary Koala Habitat (not adjacent to primary koala habitat)	1:3
Riparian Zones	1:10
Steep Land	1:3
Other	1:2

(2) Where development requires the provision of bushfire asset protection zones, the location and type of compensatory planting is to have regard to Planning for Bushfire Protection 2006 and the NSW Rural Fire Services document Standards for Asset Protection Zones.

(3) Where practicable, compensatory planting is to be located on the subject site to enhance habitat links with regard to:

(a) the Coffs Harbour City Koala Plan of Management 1999, and

(b) any existing recovery plan for threatened species under the Threatened Species Conservation Act 1995 or Fisheries Management Act 1994.

(4) Compensatory planting is to reflect the vegetation community being removed and/or modified in accordance with the community types defined within the Coffs Harbour Fine-scale Vegetation Mapping Volume 2.

(5) Native old growth or hollow bearing tree (s) are to be retained on the land at the highest priority, however where the loss of such trees is unavoidable, the following mitigation measures are to be applied:

(a) retention of hollow resources on the subject site either as remounted (preferred) or ground resources to enhance habitat rehabilitation; or

(b) artificial hollow replacement in accordance with the following table when natural hollow resources cannot be remounted (also refer to the guideline for preparing Vegetation Management Plans in Appendix 2 of this Plan):

Artifical Hollow Replacement Rates

Hollow size	Diameter	Ratio	Species Specific
Small	30-50mm	N/A	N/A
Medium	51-100mm	1:1	*Microchiroptera* or small arboreal mammal or avian
Large	101-200mm	1:2	Small/medium arboreal mammal or small/medium avian
Very Large	>200mm	1:4	Large arboreal mammal or avian

(6) Trees listed on the City of Coffs Harbour's Significant Tree Register are to be retained on the land at the highest priority, however where the loss of such trees is unavoidable mitigation measures should be proposed in line with the categories of Significance as follows:

(a) trees of ecological significance (rare or localised, particularly old, outstanding size, remnant and outstanding habitat value categories) are to be offset in accordance with E1.2 (1) and (5) of DCP 2015; and

(b) trees of historical and/or cultural significance (historic value, location or landscape context, Aboriginal, Torres Strait Islander or South Sea Islander culture categories) are to be offset in consultation with local indigenous and/or heritage groups/representatives.

(c) trees of aesthetic significance (aesthetic value, curious growth form, outstanding example of a species, horticultural value categories) are to be offset in accordance with E1.2 (1) of this Plan with consideration given to propagation from the significant tree. This excludes weed species.

Exceptions

- Where the land is not conducive to compensatory planting, restoration techniques (such as infill planting and weed removal) may be supported.

Notes:

- ***Additional mechanisms exist for offsetting and the in-perpetuity management of high conservation value land, under the** Biodiversity Conservation Act 2016**. Where offsets are required under the** Biodiversity Conservation Act 2016 **the City of Coffs Harbour may still impose offsets designed to protect local biodiversity.***
- ***Where a significant tree is classified in more than one category, the City of Coffs Harbour will seek to reach an outcome that recognises all values with an emphasis on the best ecological outcome.***

E1.3 RIPARIAN ZONE REQUIREMENTS

Applies to Land

This control applies to land identified as a watercourse on the Riparian Lands and Watercourses Map under Coffs Harbour LEP 2013 and to land defined as a coastal wetland.

Objectives

- To improve water quality within waterways through sustainable design.
- To improve the stability of the bed and banks of watercourses through the management of riparian vegetation.
- To improve the aquatic and terrestrial habitat interface by protecting the ecological function of riparian zones.

Requirements

(1) Riparian zones are to be vegetated and stabilised with native vegetation for the required width specified in the following table:

Riparian Zone Buffer Distances

Description	Vegetated Riparian Zone Width
Boambee Creek	50m
Moonee Creek	100m
Skinners Creek	50m
Hearnes Lake and Double Crossing Creek	50m (horizontal and vertical buffer from an RL Level of 3.5m AHD)
Coastal Wetland	50m
Willis Creek	50m
Watercourses shown on the Coffs Harbour LEP 2013 Riparian Lands and Watercourses Map which are classified with a stream order of three or greater by applying the Strahler System.	40m

(2) Riparian zones are not to be used for private infrastructure purposes, such as on-site sewage management, bush fire asset protection zones and the like.

Exceptions

- Where buffer distances are not specified in the table to this control, the Guidelines for Riparian

Corridors on Waterfront Land apply.

Notes:

- ***Development including driveways, road crossings, and other infrastructure located over a waterway may require approval under the** Fisheries Management Act 1994**.***
- ***Development in, on or under waterfront land may require approval under the** Water Management Act 2000**.***

E1.4 ENVIRONMENTAL DESIGN REQUIREMENTS - GENERAL

Applies to Land

This control applies to land shown on Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To protect high conservation value land through recognition of its ecological value and scarcity in the landscape.
- To reduce the incidences of negative interactions between people and kangaroos.
- To reduce the incidences of negative interactions between people and Flying-foxes.

Requirements

(1) Perimeter roads are to be provided between land proposed for development and:

(a) high conservation value land; and

(b) land reserved for public recreation and environmental purposes.

(2) Infrastructure associated with development and subdivision proposals (including bush fire asset protection zones) are not to be provided on high conservation value land.

(3) Development and/or subdivision proposals on land to which Clause 7.8 Koala Habitat of Coffs Harbour LEP 2013 applies are to incorporate specific design requirements in accordance with the Coffs Harbour City Koala Plan of Management 1999 (see also E1.5(6) of this Plan).

(4) Subdivisions within mapped Kangaroo Management Units, as shown in the Kangaroo Management Plan for the Coffs Harbour Northern Beaches 2017, shall use exclusion fencing for common open space areas (e.g. play grounds).

(5) Subdivisions within Priority 1, 2 and 3 mapped Kangaroo Management Units, as shown in the Kangaroo Management Plan for the Coffs Harbour Northern Beaches 2017, are to implement staged clearing linked to infrastructure needs and demand.

(6) Development and subdivisions adjacent to mapped Flying Fox Camps as described in the Coffs Harbour LGA Flying-fox Camps Strategic Camp Management Plan 2017 are to provide adequate buffers from camps to reduce impacts to residents.

(7) Applications adjoining land managed by the NSW Department of Planning and Environment shall address 'Guidelines for developments adjoining land managed by the Office of Environment and Heritage', March 2013.

(8) Development should be excluded from land within 100m of any identified Osprey nest.

Exceptions

- Bush fire asset protection zones and pedestrian walkways may be provided on high conservation value land where existing fire trails occur and/or the proposal is unlikely to result in negative impacts on the values of such land.
- The need for staged clearing (requirement (5) above) is necessary as broad scale clearing creates large area of grassy habitat. If this cannot be achieved then alternative measures are to be implemented such as site stabilisation techniques that do not create habitat, or temporary fencing in stages that are yet to be released.

Notes:

- ***Development on bush fire prone land is subject to the provisions of the** Rural Fires Act 1997**. In this regard, Sections 4.14 and 4.46 of the** Environmental Planning and Assessment Act 1979 **may be relevant considerations for development and/or subdivision proposals.***
- ***Buffers required by Requirement (6) are to be determined on a case by case basis taking into consideration camp characteristics and the nature of the development. In this regard endorsement of buffers by the City of Coffs Harbour's Local Planning Section is required.***

E1.5 APPLICATION REQUIREMENTS

Applies to Land

This control applies to land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure that development applications and clearing permit applications are accompanied by sufficient information to enable a proper assessment of the proposal in accordance with relevant legislation.

Requirements

Clearing Permits

(1) Applications for the removal of prescribed vegetation (or other specified action) are to be accompanied by sufficient information to demonstrate the need for the activity and the following:

(a) Site Plan comprising:

(i) property boundaries;

(ii) existing development on the land;

(iii) identification number for trees subject to the application;

(iv) description of trees subject to the application (i.e. species, diameter, height);

(v) description of proposed works (i.e. removal or other specified action); and

(vi) location and type of compensatory planting (see E1.2).

(2) Where adverse impacts are likely to result on high conservation value land that cannot be avoided, tree permit applications are to be accompanied by an ecological assessment report prepared in accordance with relevant survey and assessment guidelines endorsed by the NSW Department of

Planning and Environment and vegetation management plan for the continued protection and long term maintenance of this land (Refer to the Guideline for Preparing Vegetation Management Plans in Appendix 2 of this Plan).

(3) Ecological assessment reports are to take into consideration any local environmental data endorsed by the City of Coffs Harbour including the Coffs Harbour Fine-Scale Vegetation Mapping, the Over Cleared Vegetation Types and the High Value Arboreal Habitats.

(4) Ecological assessment reports are to identify actions to avoid, mitigate or offset projected impacts from the proposed development.

(5) Applications for work to a tree listed on the Significant Tree Register must be accompanied by an Arborist's (Level 5 Australian Qualification Framework) report. The report is to be provided in all situations where tree removal, modification or maintenance is requested.

Terrestrial Biodiversity

(6) Development applications for development and/or subdivision proposals on land to which Clause 7.4 Terrestrial biodiversity of Coffs Harbour LEP 2013 applies, are to be accompanied by sufficient information to demonstrate that the development/subdivision has been designed to avoid, minimise or mitigate any likely impacts of the development as detailed in subclause 7.4(3)(a) of Coffs Harbour LEP 2013.

Koala Habitat

(7) Development applications for development and/or subdivision proposals on land to which Clause 7.8 Koala Habitat of Coffs Harbour LEP 2013 applies, are to be accompanied by sufficient information to demonstrate that the proposed development/subdivision accords with Coffs Harbour City Koala Plan of Management 1999.

Ecological Assessment

(8) Where development and/or subdivision proposals are likely to result in adverse impacts on high conservation value land that cannot be avoided, development applications are to be accompanied by an ecological assessment report prepared in accordance with relevant survey and assessment guidelines endorsed by the NSW Department of Planning and Environment.

(9) Ecological assessment reports are to take into consideration any local environmental data endorsed by the City of Coffs Harbour including the Coffs Harbour Fine-Scale Vegetation Mapping, the Over Cleared Vegetation Types and the High Value Arboreal Habitats.

(10) Ecological assessment reports are to identify actions to avoid, mitigate or offset projected impacts from the proposed development.

(11) A Biodiversity Assessment Report is required to accompany development applications for development on land that exceeds the Biodiversity Offsets Scheme, is likely to significantly affect threatened species, populations or ecological communities, or their habitats, or impacts areas mapped in the Biodiversity Values Land Map.

Vegetation Management Plans

(12) Where development and/or subdivision proposals are likely to result in adverse impacts on high conservation value land that cannot be avoided, development applications are to be accompanied by a vegetation management plan, prepared by a suitably qualified professional with demonstrated experience in bush regeneration, for the continued protection and long term maintenance of such

values (Refer to the Guideline for Preparing Vegetation Management Plans in Appendix 2 of this Plan).

Other

(13) Development applications comprising compensatory planting or compensatory habitat resources are to be accompanied by a plan clearly identifying the location of compensatory planting and resources.

(14) Development applications for the purposes of forestry are to be accompanied by an ecological harvesting plan.

Exceptions

- Regardless of requirement (12) of this control, a preliminary vegetation management plan may accompany development applications where a detailed vegetation management plan is subsequently prepared and approved by the City of Coffs Harbour in accordance with a condition of development consent.

Notes:

- ***Clearing permit applications or development applications seeking to remove vegetation that represents a risk to human life or property may be required to be accompanied by an Arborist's Report prepared in accordance with relevant Australian Standards from a qualified professional.***
- ***Where a vegetation management plan is required to be prepared, approval is to be conditional upon all initial works being properly effected on the subject land and the creation of a positive covenant on the title of the subject land in the City of Coffs Harbour's favour ensuring continued compliance with the plan.***
- ***In deciding whether there is likely to be a significant effect on threatened species, populations or ecological communities, or their habitats from the proposal, the matters specified in Section 7.3 of the Biodiversity Conservation Act 2016 are required to be taken into account.***
- ***Clause 56 of the Marine Estate Management Act 2014 is a relevant consideration for development in the area of a Marine Park. If the Consent Authority is of the opinion that the development is likely to have an effect on the plants and animals within the Marine Park or their habitat, the Consent Authority must consult with the relevant Ministers prior to determining the application.***
- ***Pursuant to Clause 5.10 of Coffs Harbour LEP 2013, a tree permit cannot allow the removal (or other specified action) of any prescribed vegetation that is or forms part of a heritage item or that is within a heritage conservation area, or that is or forms part of an Aboriginal object or that is within an Aboriginal place of heritage significance unless the City of Coffs Harbour is satisfied that the proposed activity is of a minor nature or is for the maintenance of the heritage item, Aboriginal object, Aboriginal place of heritage significance or heritage conservation area, and would not adversely affect the heritage significance of the heritage item, Aboriginal object, Aboriginal place of heritage significance or heritage conservation area.***
- ***It is the responsibility of the proponent to ascertain if the prescribed vegetation is or forms part of a heritage item or heritage conservation area, or is or forms part of an Aboriginal object or Aboriginal place of heritage significance.***
- ***The SEPP (Biodiversity and Conservation) 2021 provides that clearing that exceeds the Biodiversity Offsets Scheme must be approved by the Native Vegetation Panel and is subject to the Biodiversity Offsets Scheme.***

E1.6 LAND DEDICATION

Applies to Land

This control applies to land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To enable the dedication of suitable land of significant environmental value or public benefit.

Requirements

(1) Land that is unable to be developed due to significant environmental constraints, or that is of public benefit, may be dedicated to the City of Coffs Harbour via a voluntary planning agreement or other suitable arrangement in accordance with the City of Coffs Harbour's Dedication of Land Policy.

Notes:

Additional mechanisms exist for the in-perpetuity management of high conservation value land, such as the Biodiversity Offsets Scheme administered by the NSW Department of Planning and Environment under the Biodiversity Conservation Act 2016.

E2 COASTAL HAZARDS - DEFERRED

E3 CONTAMINATED LAND

E3.1 POTENTIALLY CONTAMINATED LAND

Applies to Land

This control applies to land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To determine whether land is contaminated as part of the development assessment process.
- To ensure that preliminary site investigations are carried out in a satisfactory manner, and where appropriate, independently verified by site audits.

Requirements

(1) Development and subdivision proposals are to accord with the City of Coffs Harbour's Contaminated Land Policy.

(2) Development applications are to be accompanied by a preliminary site investigation where an initial evaluation indicates that the land may potentially be contaminated.

(3) Preliminary site investigations are to be:

(a) carried out in accordance with the requirements of any relevant Guidelines made or approved by the NSW Environment Protection Authority in accordance with the Contaminated Land Management Act 1997; and

(b) undertaken by a suitably qualified consultant at no cost to the City of Coffs Harbour (including a site auditor, if requested by the City of Coffs Harbour).

(4) Where contaminating activities are suspected to have or have had the potential to impact upon land proposed to be developed, sampling and analysis may be required at the discretion of the City of Coffs Harbour to confirm and support any conclusion reached from the site history appraisal.

Notes:

- ***Reporting requirements for preliminary site investigations are outlined in the*** *Contaminated Sites: Guidelines for Consultants*

Reporting on Contaminated Sites ***(NSW Environment Protection Authority), refer also to Section 2.13 of the*** *Contaminated Land Policy****.***

- ***If the City of Coffs Harbour is satisfied that a preliminary site investigation justifiably concludes that the site is suitable for the proposed use, then further investigations are not required to be undertaken.***
- ***An initial evaluation is undertaken by the City of Coffs Harbour as part of the development assessment process to determine whether contamination is an issue, and whether sufficient information is available to the City of Coffs Harbour to carry out its planning functions in good faith.***
- ***Initial evaluations are based on readily available factual information provided by the applicant and other information available to the City of Coffs Harbour, such as previous investigations in relation to contamination on the land, previous land use zoning and uses of the subject land as well as any restrictions relating to possible contamination such as notices issued by the NSW Environment Protection Authority.***
- ***Initial evaluations are carried out regardless of the nature of the proposed use or any current use. The onus is on the proponent to ensure that the information included in any development application is sufficient to enable the City of Coffs Harbour to make a decision.***
- ***The City of Coffs Harbour may require a site audit to be undertaken in accordance with the*** *Contaminated Land Management Act 1997* ***at any or all stages of investigation processes.***

E3.2 DETAILED SITE CONTAMINATION INVESTIGATION REQUIREMENTS

Applies to Land

This control applies to land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure that contaminated land is suitable in its contaminated state (or will be suitable, after remediation) for the purpose for which the development is proposed to be carried out.
- To ensure that detailed site investigations are carried out in a satisfactory manner, and where appropriate, independently verified by site audits.

Requirements

(1) Development applications are to be accompanied by a detailed site investigation where the results of a preliminary site investigation demonstrate the potential for, or existence of, contamination which may render the proposed use of the land unsuitable; or where the City of Coffs Harbour is not satisfied with the content or completeness of a preliminary site investigation.

(2) A detailed site investigation shall:

(a) be carried out in accordance with the requirements of any relevant Guidelines made or approved by the NSW Environment Protection Authority in accordance with the Contaminated Land Management Act 1997; and

(b) be undertaken by a suitably qualified consultant at no cost to the City of Coffs Harbour (including a site auditor, if requested by the City of Coffs Harbour); and

(c) include a statement which describes whether the site is suitable for the proposed use, or if remediation is necessary to make the site suitable for the proposed use; and

(d) if remediation is required, include a list of the feasible remediation options available to remediate the site.

Notes:

- ***In some cases preliminary site investigations and detailed site investigations may be combined where the land is known to contain or has contained a potentially contaminating activity.***
- ***Reporting requirements for detailed site investigations are outlined in the*** *Contaminated Sites: Guidelines for Consultants Reporting on Contaminated Sites* ***(NSW Environment Protection Authority), refer also to Section 2.13 of the*** *Contaminated Land Policy****.***
- ***Category 1 remediation works, as defined in Chapter 4 of*** *State Environmental Planning Policy (Resilience and Hazards) 2021****, is required to be publicly notified for a period of 28 days in accordance with Schedule 1C, Part 1, Division 1 of the*** *Environmental Planning and Assessment Act 1979****.***

E3.3 REMEDIAL ACTION PLAN REQUIREMENTS

Applies to Land

This control applies to land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure that any land requiring remediation for the purposes of any proposed development is satisfactorily remediated prior to the land being used for such purpose, and where appropriate, independently verified by site audits.

Requirements

(1) Development applications are to be accompanied by a remedial action plan where the results of a detailed site investigation conclude that the land is not suitable for the proposed use in its present state.

(2) A remedial action plan shall be:

(a) prepared in accordance with the requirements of any relevant Guidelines made or approved by the NSW Environment Protection Authority in accordance with the Contaminated Land Management Act 1997; and

(b) undertaken by a suitably qualified consultant at no cost to the City of Coffs Harbour (including a site auditor, if requested by the City of Coffs Harbour).

E3.4 VALIDATION AND MONITORING REPORT REQUIREMENTS

Applies to Land

This control applies to land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure that any land requiring remediation for the purposes of any proposed development is satisfactorily remediated prior to the land being used for such purpose.
- To ensure that continued monitoring of the land is undertaken where required.

Requirements

(1) Where a remedial action plan is required, the issue of any development consent shall be conditional upon the submission of a validation and monitoring report following completion of remediation works, and prior to the issue of any buildings works construction certificate.

(2) A validation and monitoring report shall be prepared in accordance with the requirements of any relevant Guidelines made or approved by the NSW Environment Protection Authority in accordance with the Contaminated Land Management Act 1997.

Notes:

Reporting requirements for remedial action plans are outlined in the** Contaminated Sites: Guidelines for Consultants Reporting on Contaminated Sites **(NSW Environment Protection Authority), refer also to Section 2.13 of the** Contaminated Land Policy**.

E4 FLOODING

E4.1 FLOOD PLANNING REQUIREMENTS – GENERAL

Applies to Land

This control applies to land shown on the Coffs Harbour LEP 2013 Land Application Map that is at or below the flood planning level.

Objectives

- To provide clear guidelines for development and subdivision proposals on land with a flood hazard to ensure that the provisions of Clause 7.3 Flood Planning, of Coffs Harbour LEP 2013 are satisfied.
- To minimise the flood risk to life and property associated with the use of land.

Requirements

(1) Development is to be designed and located so that it is free from any land that is at or below the 100-year Average Recurrence Interval flood level.

(2) Development is to be designed and located so that it is free from any floodways.

(3) Development is not to comprise the external storage of any materials below the 100-year Average Recurrence Interval flood level that are potentially hazardous or that may cause pollution.

(4) Development is not to result in an increase in flood levels on adjoining or surround land.

(5) Operational access to the development is to provide a level of service commensurate with the zoning and proposed use with consideration to both on site and off site access.

Exceptions

- Development (including fill) may be supported below the 100-year Average Recurrence Interval flood level provided that:
    - the measures specified in this Chapter for specific development types are satisfied; and
    - no net filling is undertaken with the Coffs Creek Catchment west of the highway excluding balanced earthworks which may be supported subject to a merit assessment; and
    - basement car parks (where relevant) have weir protection from the 100-year Average

Recurrence Interval flood level plus 100mm freeboard.

- Development proposals resulting in an increase in flood levels on adjoining land may be supported where consent is obtained from affected land owners agreeing to such increases. In this regard, written confirmation of acceptance of changed flood conditions from all adversely affected land owners is required to accompany the relevant development application. Proposals of this nature will be assessed on merit taking into account existing land uses, zoning and predicted impacts on adjoining land. Low intensity land uses including land zoned for rural, recreational and environmental purposes under Coffs Harbour LEP 2013 have additional merit.
- Open parking areas are to be assessed on merit, taking into account adjoining land uses and flood levels, access constraints and fill requirements.

Notes:

- ***Flood controls are also contained within the** National Construction Code, Volumes 1 & 2 **– Building Code of Australia and** Australian/New Zealand Standard AS/NZS 3500.2:2003 – Sanitary Plumbing and Drainage**.*
- ***Safe and reliable access for pedestrians may be required from development to an area of refuge above the Probable Maximum Flood Level, either on or off the site.***

E4.2 FLOOD PLANNING REQUIREMENTS - RESIDENTIAL AND TOURIST DEVELOPMENT

Applies to Land

This control applies to development for the purposes residential accommodation and tourist and visitor accommodation on land shown on the Coffs Harbour LEP 2013 Land Application Map that is at or below the flood planning level.

Objectives

- To provide clear guidelines for residential and tourist development on land with a flood hazard to ensure that the provisions of Clause 7.3 Flood Planning, of Coffs Harbour LEP 2013 are satisfied.

Requirements

(1) Buildings are to be designed and located so that they are free from any high hazard flood area.

(2) Development is to be designed and located with consideration to impacts from any high hazard flood area on access to the development and the operation of the development.

(3) Development applications for development at or below the 100-year Average Recurrence Interval flood level are to be accompanied by a flood study prepared by a suitably experienced and qualified engineer to substantiate that the development will not increase upstream or downstream flood levels or change flood behaviour to the detriment to any other property.

(4) The minimum finished floor level of all habitable room(s) is to be at the height of the 100-year Average Recurrence Interval flood level plus 0.5 metre freeboard.

(5) The minimum finished floor level of all non-habitable room(s) is to be at the height of the 100-year Average Recurrence Interval flood level.

Exceptions

- Infill development and/or changes of use are to be assessed on merit, taking into account adjoining land uses and flood levels, access constraints and fill requirements. A flood study may be required in certain situations.
- The minimum floor level for alterations and additions to existing residential accommodation shall be as close to the flood planning level as practical and no lower than the existing floor level; and
    - where the existing floor level is < the 100-year Average Recurrence Interval flood level, alterations and additions are not to exceed 50m^2; or
    - where the existing floor level is > the 100-year Average Recurrence Interval flood level but below the 0.5 metre freeboard level, alterations and additions are not to exceed 100m^2.
- Alterations and additions to existing tourist and visitor accommodation is to be assessed on merit, taking into account adjoining land uses and flood levels, access constraints and fill requirements.
- A reduction in the 0.5 metre freeboard requirement may be supported for habitable rooms on land above the 100-year flood level but still affected by the Flood Planning Level (FPL) where adequate flood information is available. Flood behaviour and other points of considerations for a freeboard reduction include low flood flow volumes and velocities, flat flood gradient, compatibility with adjoining development and access issues.
- A reduction in the minimum finished floor level of all non-habitable room(s) buildings may be supported on merit taking into consideration compatibility with adjoining land use, access issues for the site and associated filling required.

Notes:

- ***Approval may be conditional upon the lodgement of a registered surveyor's certificate certifying the floor level prior to the development proceeding above finished floor level.***
- ***Approval may be conditional upon a Flood Safe Plan being prepared in accordance with SES guidelines and implemented during the operational phase of the development.***

E4.3 FLOOD PLANNING REQUIREMENTS – COMMERCIAL AND INDUSTRIAL DEVELOPMENT

Applies to Land

This control applies to development for commercial and industrial purposes on land shown on the Coffs Harbour LEP 2013 Land Application Map that is at or below the flood planning level.

Objectives

- To provide clear guidelines for commercial and industrial development on land with a flood hazard to ensure that the provisions of Clause 7.3 Flood Planning, of Coffs Harbour LEP 2013 are satisfied.

Requirements

(1) Buildings are to be designed and located so that they are free from any high hazard flood area.

(2) Development is to be designed and located with consideration to impacts from any high hazard flood area on access to the development and the operation of the development.

(3) Development applications for development at or below the 100-year Average Recurrence Interval flood level are to be accompanied by a flood study prepared by a suitably experienced and qualified engineer to substantiate that the development will not increase upstream or downstream flood levels

or change flood behaviour to the detriment to any other property.

(4) The minimum finished floor level for buildings is to be at the height of the 100-year Average Recurrence Interval flood level plus 0.5 metre freeboard.

Exceptions

- The minimum floor level for alterations and additions to existing buildings is to be as close to or above the flood planning level as practical, taking into consideration issues such as the proposed use of the premises, adjoining land uses and flood levels and access constraints.
- Infill development and/or a change of use are to be assessed on merit, taking into account adjoining land uses and flood levels, access constraints and fill requirements. A flood study may be required in certain situations.

Notes:

- ***Approval may be conditional upon the lodgement of a registered surveyor's certificate certifying the floor level prior to the development proceeding above finished floor level.***
- ***Approval may be conditional upon a Flood Safe Plan being prepared in accordance with SES guidelines and implemented during the operational phase of the development.***

E4.4 FLOOD PLANNING REQUIREMENTS - NON-URBAN DEVELOPMENT

Applies to Land

This control applies to non-urban development on land shown on the Coffs Harbour LEP 2013 Land Application Map that is at or below the flood planning level.

Objectives

- To provide clear guidelines for non-urban development on land with a flood hazard to ensure that Clause 7.3 Flood Planning, of Coffs Harbour LEP 2013 is satisfied.

Requirements

(1) The minimum finished floor level for buildings is to be at the height of the 100-year Average Recurrence Interval flood level.

Exceptions

- The minimum finished floor level for buildings may be varied provided that sufficient evidence is provided to justify this variation, based on site specific conditions and / or the proposed use of the premises.

Notes:

A flood study may be required at the discretion of the City of Coffs Harbour for development at or below the 100-year Average Recurrence Interval flood level to substantiate that the development will not increase upstream or downstream flood levels or change flood behaviour to the detriment to any other property. The flood study is to be prepared by a suitably experienced and qualified engineer.

E4.5 FLOOD PLANNING REQUIREMENTS – INFRASTRUCTURE

Applies to Land

This control applies to development for the purposes of infrastructure development on land shown on the Coffs Harbour LEP 2013 Land Application Map that is at or below the flood planning level.

Objectives

- To provide clear guidelines for infrastructure development on land with a flood hazard to ensure that Clause 7.3 Flood Planning, of Coffs Harbour LEP 2013 is satisfied.

Requirements

(1) Infrastructure development may be situated on land at or below the 100-year Average Recurrence Interval flood level where it is impractical to locate it elsewhere.

(2) Development applications are to be accompanied by sufficient information to demonstrate that proposed buildings and structures can withstand the forces of floodwater, debris and buoyancy up to and including the flood planning level.

(3) Buildings and structures located at or below the 100-year Average Recurrence Interval flood level are to be constructed with flood compatible materials.

Notes:

A flood study may be required at the discretion of the City of Coffs Harbour for development at or below the 100-year Average Recurrence Interval flood level to substantiate that the development will not increase upstream or downstream flood levels or change flood behaviour to the detriment to any other property. Where required, the flood study is to be prepared by a suitably experienced and qualified engineer and shall include an assessment of possible impacts of climate change including sea level rise and increased rainfall intensities is to be undertaken in accordance with prevailing Guidelines.

E4.6 FLOOD PLANNING REQUIREMENTS – ESSENTIAL FACILITIES

Applies to Land

This control applies to development for the purposes of an essential facility on land shown on the Coffs Harbour LEP 2013 Land Application Map that is at or below the flood planning level.

Objectives

- To provide clear guidelines for the development of essential facilities on land with a flood hazard to ensure that Clause 7.3 Flood Planning, of Coffs Harbour LEP 2013 is satisfied.

Requirements

(1) The minimum floor level for buildings is to be at a height of the Probable Maximum Flood level.

(2) The operational components of the development are to be above the Probable Maximum Flood level.

Notes:

A flood study may be required at the discretion of the City of Coffs Harbour for development at or below the 100-year Average

Recurrence Interval flood level to substantiate that the development will not increase upstream or downstream flood levels or change flood behaviour to the detriment to any other property. Where required the flood study is to be prepared by a suitably experienced and qualified engineer and shall include an assessment of possible impacts of climate change including sea level rise and increased rainfall intensities is to be undertaken in accordance with prevailing Guidelines.

E4.7 FLOOD PLANNING REQUIREMENTS – SENSITIVE FACILITIES

Applies to Land

This control applies to development for the purposes of a sensitive facility on land shown on the Coffs Harbour LEP 2013 Land Application Map that is at or below the flood planning level.

Objectives

- To provide clear guidelines for the development of sensitive facilities on land with a flood hazard to ensure that Clause 7.3 Flood Planning, of Coffs Harbour LEP 2013 is satisfied.

Requirements

(1) The minimum floor level for all buildings it to be at a height of the 500-year Average Recurrence Interval flood level plus 500mm freeboard.

(2) Approval may be conditional upon a Flood Safe Plan being prepared in accordance with State Emergency Services (SES) guidelines and implemented during the operational phase of the development.

Notes:
A flood study may be required at the discretion of the City of Coffs Harbour for development at or below the 100-year Average Recurrence Interval flood level to substantiate that the development will not increase upstream or downstream flood levels or change flood behaviour to the detriment to any other property. Where required the flood study is to be prepared by a suitably experienced and qualified engineer and shall include an assessment of possible impacts of climate change including sea level rise and increased rainfall intensities is to be undertaken in accordance with prevailing Guidelines.

E4.8 FLOOD PLANNING REQUIREMENTS – SUBDIVISIONS

Applies to Land

This control applies to the subdivision of land shown on the Coffs Harbour LEP 2013 Land Application Map that is at or below the flood planning level.

Objectives

- To provide clear guidelines for the subdivision of land with a flood hazard to ensure that the provisions of Clause 7.3 Flood Planning of Coffs Harbour LEP 2013 are satisfied.

Requirements

(1) Development applications for the subdivision of land at or below the 100-year Average Recurrence Interval flood level are to be accompanied by a flood study prepared by a suitably experienced and

qualified engineer to substantiate that the development will not increase upstream or downstream flood levels or change flood behaviour to the detriment to any other property.

(2) An assessment of possible impacts of climate change including sea level rise and increased rainfall intensities is to be undertaken in accordance with prevailing guidelines.

(3) Resulting lots zoned for residential purposes under Coffs Harbour LEP 2013 are to comprise a minimum building envelope of 400m^2 in area of functional proportions above the 100-year Average Recurrence Interval flood level.

(4) Any portion of a resulting lot lower than the 100-year Average Recurrence Interval flood level is to be conditional upon a restriction being placed on the title of the lot restricting the use of this portion of the lot for any habitable building or structure.

Exceptions

- Infill subdivisions are to be assessed on merit, taking into account adjoining land uses and flood levels, access constraints and fill requirements. A flood study may be required in certain situations.

Part F General Development Controls

F1 ACCESS AND PARKING

F1.1 VEHICULAR ACCESS AND MANOEUVRING - GENERAL

Applies to Land

This control applies to land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure pedestrian and driver safety and efficient use of the site through the provision of sufficient vehicle manoeuvring areas.
- To minimise the impact of driveway crossovers on pedestrian safety and streetscape amenity.
- To ensure that the design of parking areas has regard for the safety of pedestrians.

Requirements

(1) Where possible, driveways are to be provided from lanes and secondary roads rather than primary roads.

(2) Vehicle access and entry points are to be integrated into the building design so as not to dominate the streetscape.

(3) Driveway width and grades, vehicle circulation, passing bays and vehicular ramp width and grades are to accord with Australian Standard 2890.

(4) Vehicles must be able to enter and leave the site in a forward direction.

(5) Driveway crossovers are to be:

  (a) designed in accordance with the City of Coffs Harbour's Driveway Specifications, and

  (b) located to take into account any services within the road reserve, such as power poles, drainage inlet pits and existing street trees, and

  (c) located clear of intersections as specified in Australian Standard AS2890,

  (d) located to minimise amenity impacts to adjacent properties, and

  (e) located to avoid adverse impacts on traffic safety.

(6) Vehicular ramps are to be less than 20 metres long within developments and parking stations must not exceed a maximum grade of 1 in 5 (20%). Ramp widths are to accord with Australian Standard 2890.1.

(7) Vehicle access ramps parallel to the street frontage are not supported.

(8) Porte cocheres:

  (a) are permitted in certain circumstances for hotels, major tourist venues, aged care developments, medical centres and the like subject to urban design, streetscape, heritage and pedestrian amenity considerations; and

  (b) should be attached to the building with one combined vehicle entry and exit point, or one entry and exit point on two different street frontages of the development; and

(c) may have separate entry and exit points across the footpath (in exceptional circumstances) for buildings with one street frontage only, provided that:

(i) they are constructed entirely at the footpath levels, and

(ii) they provide active street frontage uses in addition to any hotel entry or lobby at their perimeter, and

(iii) they are of high quality design and finish, and

(iv) they provide for safe and clear pedestrian movement along the street.

(9) Certain parking areas will require dedicated pedestrian paths (separate to parking spaces and vehicle manoeuvring areas) where high public usage is expected.

Exceptions

- The requirements of this control do not apply to development for the purposes of a dual occupancy, dwelling house, semi-detached dwelling, or secondary dwelling.

Notes:

- ***Works within the footpath and road reserve may be subject to an approval under the Roads Act 1993.***
- ***Pursuant to Clause 101 of State Environmental Planning Policy (Transport and Infrastructure) 2021, the Consent Authority must not grant consent to development on land that has a frontage to a classified road unless it is satisfied that:***
  - ***vehicular access to the land is provided by a road other than a classified road; and***
  - ***the safety, efficiency and ongoing operation of the classified road will not be adversely affected by the development; and***
  - ***the development is not sensitive to traffic noise or vehicle emissions.***

F1.2 VEHICULAR ACCESS AND MANOEUVRING - RESIDENTIAL

Applies to Land

This control applies to development for the purpose of residential accommodation on land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure pedestrian and driver safety and efficient use of the site through the provision of sufficient vehicle manoeuvring areas.

Requirements

(1) Vehicles must be able to enter and leave the site in a forward direction, where:

(a) the driveway is steep, or

(b) the site fronts a busy road, or

(c) the site has three or more dwellings, or

(d) the street is subject to high pedestrian use, or

(e) the driveway is more than 30 metres in length.

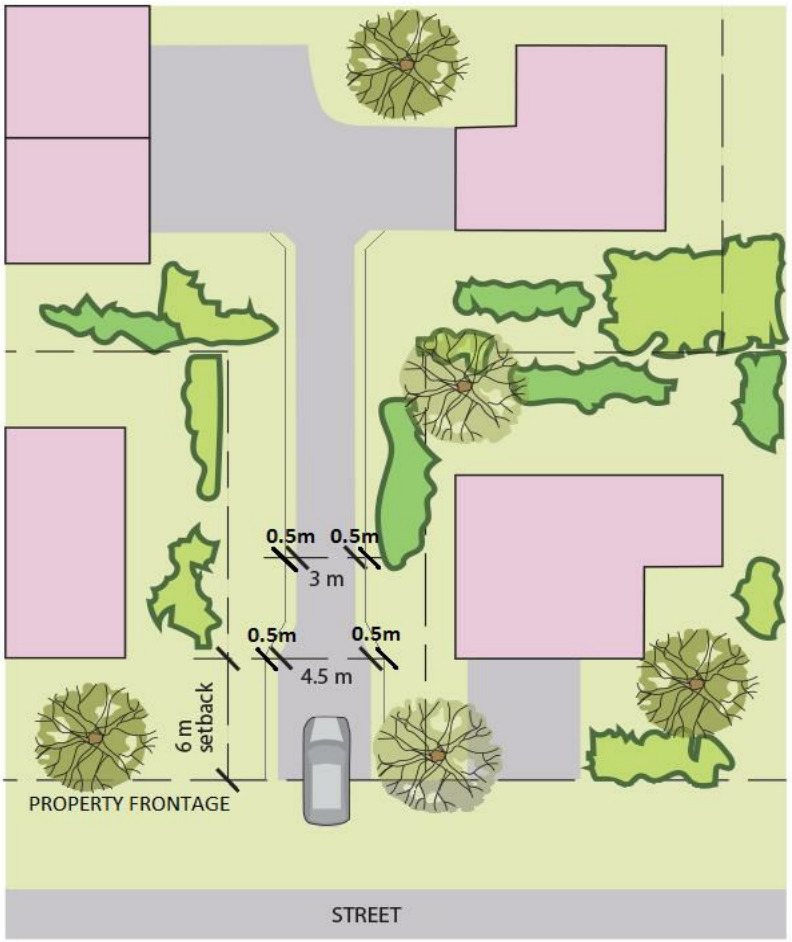
(2) A driveway, which serves a maximum of two dwellings, is to have a minimum paved width of three metres at the street.

(3) A shared driveway, which serves more than two dwellings, is to provide:

(a) a minimum paved width of 4.5 metres at the property frontage, continuing at this width to a depth of six metres, and thereafter at a minimum width of three metres, and

(b) a minimum of 0.5 metres of unobstructed area either side of the driveway to enable provision of services.

Shared Driveway Example



(4) Driveways may require 'passing points' (particularly where the driveway is providing access to and from a busy road).

(5) Manoeuvring areas including car parking areas, circulation roadways and access driveways are to be designed in accordance with Australian Standard AS2890 to allow for the 85% Design Car Turning Path template generally and the 99% design vehicle where applicable.

(6) Wherever practicable, a driveway crossover is to be a single lane crossing with a minimum width of 3.0 metres over the footpath, and perpendicular to the kerb alignment. Increased crossing width may be permitted in accordance with AS2890.

(7) Access is to be limited to one point from public road frontage (secondary roads where available) and is to conform to the City of Coffs Harbour's Development Specifications.

Note:

- ***Development on bushfire prone land may be required to provide vehicular and manoeuvring requirements in accordance with the NSW Rural Fire Service (Planning for Bushfire Protection) that differ from the requirements of this control.***

F1.3 VEHICULAR ACCESS AND MANOEUVRING – COMMERCIAL/INDUSTRIAL

Applies to Land

This control applies to development on land within an employment zone under Coffs Harbour LEP 2013.

Objectives

- To ensure pedestrian and driver safety and efficient use of the site through the provision of sufficient vehicle manoeuvring areas.
- To minimise the impacts on streetscape amenity from commercial development.

Requirements

(1) Adequate space must be provided within any development for the loading and unloading of service/delivery vehicles, including waste collection.

(2) All service doors, loading docks and waste storage areas must be screened from street frontages where possible.

F1.4 ON-SITE PARKING - RESIDENTIAL USES

Applies to Land

This control applies to development for the purposes of an attached dwelling, dwelling house, dual occupancy, semi-detached dwelling, multi-dwelling housing and residential flat building on land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To provide an appropriate level of on-site parking for residential development.
- To minimise the visual impact of on-site parking within residential areas.
- To provide adequate on-site space for parking and manoeuvring of vehicles.

Requirements

(1) Parking is to be provided in accordance with the Off Street Parking Rates as shown in the table below.

(2) Visitor/overflow parking is to be provided in accordance with the Off Street Parking Rates as shown in the table below.

(3) Visitor/overflow parking provided within the front setback area is to be appropriately screened from the primary road.

(4) Parking design is to accord with the relevant Australian Standards (AS 2890.1, AS 2890.2, AS 2890.3 and AS 2890.6).

Off Street Parking Rates - Residential Uses

Use	Cars	Visitor/Overflow Spaces
Attached Dwelling / Dwelling House/ Dual Occupancy / Semi- detached Dwelling	≤100m2 GFA one space behind front setback >100m2 GFA two spaces – at least one space behind front setback *Note: stack parking acceptable*	Nil
Multi-dwelling Housing / Residential Flat Building	≤100m² GFA one space >100m² GFA two spaces *Note: stacked parking is not acceptable.*	One space per every five dwellings or part thereof

Exceptions

- Where development for the purposes of an attached dwelling, dwelling house, dual occupancy and semi-detached dwelling requires more than one parking space, one parking space is permitted between the development and the front boundary of the site, provided that it is adequately screened from the street.

F1.5 ON-SITE PARKING – NON RESIDENTIAL USES

Applies to Land

This control applies to land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To provide an appropriate level of on-site parking to cater for a mix of development types.
- To minimise the visual impact of on-site parking.
- To provide adequate on-site space for parking and manoeuvring of vehicles (including service vehicles).

Requirements

(1) Parking is to be provided in accordance with the City of Coffs Harbour's Off Street Parking Rates as shown in the following table:

Off Street Parking Rates - Non Residential Uses

Use	Rate
Business Premises Office Premises Pubic Administration Buildings	One space per 40m² GFA for up to three storey development
Sex Services Premises	One space per 30m²
Educational Establishments	Subject to parking study (see note 1)
Health Consulting Rooms / Medical Centres	One space per 40m²
Hospitals	One space per two hospital beds
Veterinary Hospitals	One space per 40m2

Child Care Centres	One space per staff member + the provision of a safe set-down and pick-up area of one space per 10 children, with a minimum of two spaces for set down and pick up.
Squash Courts Tennis Courts Bowling alleys Bowling greens Gymnasiums Gymnasiums (regional)	Three spaces per court Three spaces per court Three spaces per alley 30 spaces for first green + 15 spaces for each additional green One space per 22m² GFA One space per 33m² GFA
Hotel or Motel Accommodation Serviced Apartments	One space per unit + one space per two employees + one space per manager's residence. *If restaurant/café and or /function centre included – one additional space per 13.2m² of GFA of restaurant/function centre.*
Caravan Parks	One space per caravan and tent site + one visitor space per 10 long term sites and one per 20 short term sites One visitor space per 40 tent sites. A minimum of four visitor spaces must be provided in any caravan park
Marinas	Subject to parking study (see note 1) Note: if a survey of a similar existing development has not been undertaken, the following figures may be used as a general guide: 0.6 spaces per wet berth 0.2 spaces per dry storage berth 0.2 spaces per swing mooring *0.5 spaces per marina employee*
Shops / Neighbourhood Shops / Takeaway Food and Drink Premises / Cellar Door Premises / Kiosks / Restricted Premises	One space per 25m² GLFA
Bulky Goods Salesrooms Hardware and Building Supplies Garden Centres	One space per 50m²
Shopping Centres	GLFA (m²) Spaces per 100m² GLFA 0-10,000 6.1 10,000-20,000 5.6 20,000-30,000 4.3 Over 30,000 4.1
Service Stations	One space per 20m² GFA + six spaces per work bay for any associated vehicle repair workshop *Note: stack parking acceptable for vehicle repair workshop*

Restaurants / Cafes	New premises: one space per 6.6m² GFA Change of use of existing premises: one space per 25m² GFA Ancillary to another use e.g. motel / service station: one space per 13.2m2 GFA
Pubs / Small Bars	Subject to parking study
Clubs	Subject to parking study
Factories/Warehouses or Distribution Centres/ Timber Yards / Wholesale Supplies / Rural Supplies / Landscaping Materials Supplies / Plant Nurseries / Depots / Self Storage Units	One space per 100m² GFA
Vehicle Repair Stations	Six spaces per work bay *Note: stack parking acceptable*
Vehicle Body Repair Workshops	Six spaces per work bay *Note: stack parking acceptable*
Vehicle Sales or Hire Premises	One space per 135m2 of car display site areas + six spaces per work bay (for vehicle servicing facilities) *Note: stack parking acceptable for vehicle servicing*
Transport / Truck Depots	Subject to Parking Study *See note 1.*
Places of Public Worship	Subject to Parking Study *See note 1.*
Backpackers' Accommodation	Subject to Parking Study *See note 1.*
Bed and Breakfast Accommodation	At least one parking space per guest bedroom behind front setback
Highway Service Centre	Subject to Parking Study *See note 1.*
Function Centre	Subject to Parking Study *See note 1.*
Entertainment Facility	Subject to Parking Study *See note 1.*
Community Facility	Subject to Parking Study *See note 1.*
Other development not specified	Subject to Parking Study *See note 1.*

(2) Parking design is to accord with the relevant Australian Standards (AS 2890.1, AS 2890.2, AS 2890.3 and AS 2890.6).

(3) Accessible parking spaces are to be provided in accordance with the Disability (Access to Premises – Building Standards) 2010.

(4) Accessible parking spaces are to be located as close as possible to the principal pedestrian entrance and should have regard to the use and function of the building.

(5) Parking areas shall be:

(a) clearly marked and signposted; and

(b) constructed to an all weather standard; and

(c) designed to collect and drain stormwater to the City of Coffs Harbour's stormwater system.

(6) The minimum vertical clearance for parking areas is to accord with the relevant Australian Standards.

(7) Parking areas are to be incorporated into the building or provided at, or behind, the front setback of the building where practical.

(8) Development applications comprising below ground level parking are to:

(a) be accompanied by a geotechnical report prepared by an appropriately qualified professional; and

(b) be accompanied by supporting information addressing any dewatering of the site and/or the disposal of contaminated/sediment laden water; and

(c) ensure that all access points to the car park are at or above the 100-year ARI flood level plus 100mm (Refer to *E4 Flooding* of this Plan).

(9) Natural ventilation is to be provided to underground parking areas where possible, with ventilation grilles and structures:

(a) integrated into the overall facade and landscape design of the development;

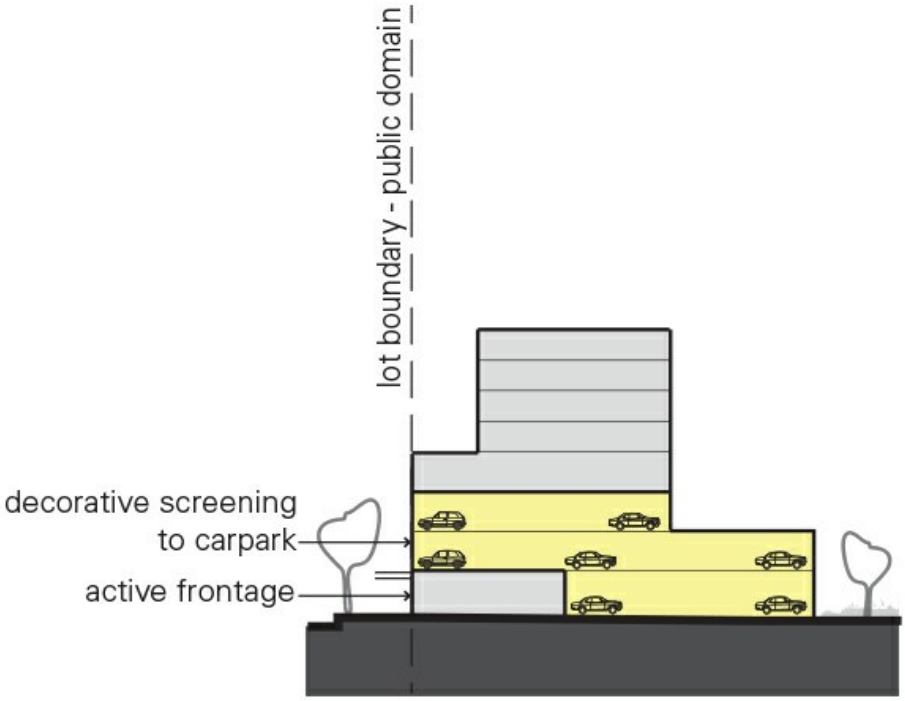
(b) not located on the primary street façade; and

(c) oriented away from windows of habitable rooms and private open space areas.

(10) Where development is required to provide active street frontages, above ground parking is not to be located on the primary road frontage.

(11) Above ground parking structures are to be artistically and imaginatively screened from view from the public domain with examples demonstrated below:

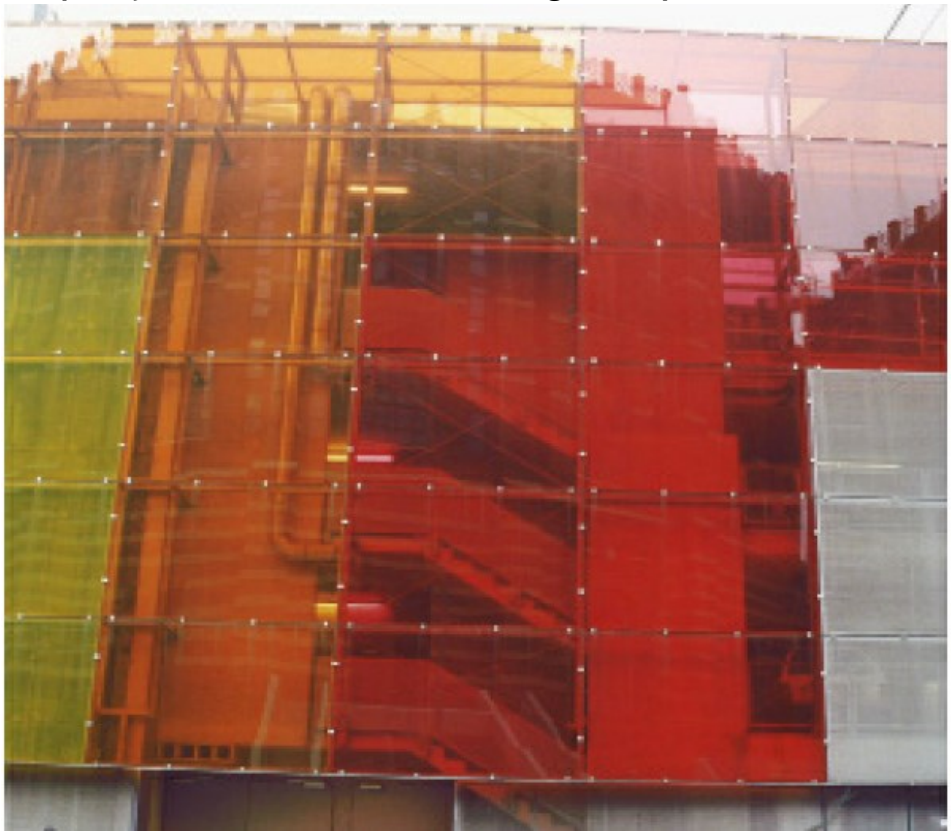
Example of Above Ground Parking



Adequately Screened Above Ground Parking – Example 1



Adequately Screened Above Ground Parking – Example 2



Adequately Screened Above Ground Parking – Example 3





(12) The impact of at-grade parking is to be minimised by:

(a) locating parking on the side or rear of the site away from the street frontage; and

(b) the provision of fencing or landscaping to screen the parking area from the public domain and adjoining development; and

(c) the provision of safe and direct access to building entry points; and

(d) incorporating landscaping in accordance with *F3 Landscaping* of this Plan.

Exceptions

- The requirements of this control do not apply to development for the purposes of an attached dwelling, dwelling house, dual occupancy, semi-detached dwelling, multi-dwelling housing and

residential flat building.

- Where it is not possible to provide off street parking on the development site, the City of Coffs Harbour may accept contributions in lieu for car parking in the business areas of Coffs Harbour, the Jetty area, Woolgoolga, and Park Beach in accordance with the relevant Developer Contributions Plan.
- Where developer contributions have been paid for parking associated with an existing lawful use, any new development on the site is entitled to parking credits equivalent to the number of spaces for which developer contributions were paid.
- Where a car parking credit has previously been granted for land dedication or work on a public road ancillary to a development, any new development on the same site is entitled to an equivalent number of parking credits.
- Development on land in an employment zone comprising the removal of a driveway crossover and the creation of additional on street parking spaces are entitled to a parking credit for the additional space(s).
- Development on land in an employment zone comprising an additional driveway crossover or a wider driveway crossover resulting in the removal of any on street parking spaces are subject to a parking debit for the spaces removed.

Note 1:

- ***Unless otherwise specified in the table above, off street parking rates are subject to a parking study.***
- ***Depending on the land use type, parking for delivery/service vehicles, courier vehicles, bicycles, buses, taxis shall also be provided.***
- ***For mixed use developments the number of parking spaces shall be calculated on the basis of each separate use e.g. shops with housing above would be calculated on the basis of the number of dwellings and GFA for the shop component.***
- ***Calculations are to be rounded up to the nearest whole number e.g. if the calculation determines that 2.3 car parking spaces are required, then three parking spaces are required.***
- ***Where development is subject to a parking study, applicants are required to undertake a parking study of a similar type of development in a similar location to determine the number of parking spaces required for the proposed development.***
- ***Where development is subject to a parking study, it must be prepared in accordance with AUSTROADS Guide to Traffic Management, Part 3, Traffic Studies and Analysis by a suitably qualified professional and take into consideration the RMS Guide to Traffic Generating Developments.***

Note 2:

- ***Parking requirements may be specified within an environmental planning instrument for certain types of development (such as seniors housing, hostels and group homes). In this regard, the provisions of an environmental planning instrument prevail.***

Note 3:

- ***Stack parking is not acceptable unless noted otherwise.***

F1.6 ON-SITE PARKING - REDEVELOPMENT OF EXISTING BUILDINGS

Applies to Land

This control applies to land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure that adequate on-site parking is provided as part of the redevelopment of existing buildings.

- To minimise the visual impact of on-site parking.
- To provide adequate on-site space for parking and manoeuvring of vehicles (including service vehicles).

Requirements

(1) Parking is required to be provided in accordance with the City of Coffs Harbour's Off Street Parking Rates (as shown in F1.4 and F1.5 of this Plan) for development comprising:

(a) a total redevelopment of existing buildings; or

(b) a change of use.

(2) Development proposals comprising additions to an existing lawful use are to provide parking in accordance with the City of Coffs Harbour's Off Street Parking Rates (as shown in F1.4 and F1.5 of this Plan) only for the new area of the development. Additional parking shall not encroach upon existing parking in this instance.

Exceptions

- Alterations and additions to existing lawful uses comprising only informal on-site parking is deemed to have satisfied the City of Coffs Harbour's parking requirements, provided that the informal parking spaces are retained on site and formalised in accordance with relevant Australian Standards.

F1.7 PUBLIC TRANSPORT CIRCULATION

Applies to Land

This control applies to land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure that urban releases areas and major commercial and public use developments within Coffs Harbour incorporate appropriate circulation for public transport.

Requirements

(1) Major subdivision proposals and commercial/public use developments comprising internal roads and off street parking along public transport routes, are to provide appropriate circulation and set down/pick up areas for public transport within the footprint of the development.

(2) Major subdivision proposals and commercial/public use developments comprising internal roads and off street parking along public transport routes are to consult with contracted bus companies and taxi operators that service that particular area at the concept design stage for the development.

(3) Development applications for major subdivision proposals, and for major commercial and public use developments are to:

(a) be accompanied by supporting documentation identifying appropriate internal circulation and manoeuvring paths; and

(b) consider the safe and efficient movement of public transport through the development by:

(i) provision of appropriate road widths and circulation paths on roads likely to form part of a bus route within the development site; and

(ii) provision of bus bays and taxi zones where appropriate; and

(iii) linking bus and taxi routes, bus stops and taxi zones to the pedestrian network.

Exceptions

- The requirements of this development control do not apply to development for the purposes of infill subdivision or minor alterations and additions to existing commercial and public use developments.

Notes:

All new public transport infrastructure is to comply with *the Disability Standards for Accessible Public Transport 2001.*

F2 HERITAGE CONSERVATION

F2.1 CULTURAL HERITAGE REQUIREMENTS

Applies to Land

This control applies to land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To conserve Aboriginal objects and Aboriginal places of heritage significance.
- To ensure that impacts of development on Aboriginal heritage are adequately considered.

Requirements

(1) Development applications for development and subdivision proposals are to be accompanied by an archaeological assessment prepared by an appropriately qualified person where the Due Diligence Code of Practice for the Protection of Aboriginal Objects in New South Wales (DECCW 2010) identifies that such an assessment should be undertaken.

(2) Where ever practicable, heritage values should be protected in situ and managed appropriately in consultation with the local Aboriginal community.

Notes:

- ***It is recommended that the Coffs Harbour and District Local Aboriginal Land Council and the NSW*** *Department of Planning and Environment* ***are consulted during the preparation of any archaeological assessment.***
- ***Pursuant to section 86 of the*** *National Parks and Wildlife Act 1974* ***a person must not harm or desecrate an object that the person knows is an Aboriginal object or harm or desecrate an Aboriginal place without an*** *Aboriginal Heritage Impact Permit (AHIP).*
- ***Development that is likely to harm or desecrate an Aboriginal object or Aboriginal place is classified as integrated development under section 91(2) of the*** *Environmental Planning and Assessment Act 1979****, requiring approval under section 90 of the*** *National Parks and Wildlife Act 1974 (AHIP).*
- ***The*** *National Parks and Wildlife Act 1974* ***Act provides that a person who exercises due diligence in determining that their actions will not harm Aboriginal objects has a defence against prosecution for the strict liability offence if they later unknowingly harm an object without an*** *AHIP.*

- ***An environmental impact assessment undertaken in accordance with the** Due Diligence Code of Practice for the Protection of Aboriginal Objects in New South Wales **(DECCW 2010) 'the due diligence code' is deemed to satisfy the due diligence test.***

F2.2 HERITAGE REQUIREMENTS - GENERAL

Applies to Land

This control applies to land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To conserve the environmental heritage of Coffs Harbour.
- To conserve the heritage significance of heritage items and heritage conservation areas, including associated fabric, setting and views.
- To conserve Archaeological sites.

Requirements

(1) Development applications are to be accompanied by a Heritage Impact Statement where the development comprises:

(a) the disturbance or excavation of an archaeological site where the disturbance or excavation will or is likely to result in a relic being discovered, exposed, moved, damaged or destroyed; or

(b) the demolition or relocation of a heritage item or a building, work, relic or tree within a heritage conservation area; or

(c) alterations to the exterior (including in the case of a building, making changes to its detail, fabric, finish or appearance) of a heritage item or a building, work, relic or tree within a heritage conservation area; or

(d) alterations to the interior (including in the case of a building, making changes to its detail, fabric, finish or appearance) of a heritage item, draft heritage item or a building within a heritage conservation area that is noted as being of significance on the Statement of Significance for the item or building.

(2) Development comprising a heritage item or on land within a heritage conservation area is to be designed:

(a) to achieve a subtle contrast between old elements and new; and

(b) to be sympathetic to retained elements; and

(c) with consideration to the items setting in terms of setback, scale, building design and form, materials and proportion and spacing of openings; and

(d) to retain as much of the existing building fabric as is possible, particularly those elements which contribute towards the building's visual/heritage significance; and

(e) to minimise modifications to original external door or window openings, spacings and proportions.

(3) Development of land adjoining a heritage item or heritage conservation area is to be designed so that it is:

(a) compatible with the average height, bulk and scale of buildings located on adjoining or nearby

land; adequately set back to ensure that heritage items and other significant buildings in the streetscape are not dominated by new or infill development; and

(b) compatible with existing architectural elements including:

(i) the existing building line;

(ii) brickwork styles;

(iii) parapet style and rhythm;

(iv) window and door opening dimensions, proportions and spacing;

(v) fenestration treatment;

(vi) roof form and treatment; and

(vii) materials and finishes.

Notes:

- ***Heritage Items and Heritage Conservation Areas are listed and described in Schedule 5 of Coffs Harbour LEP 2013.***
- ***Pursuant to subclause 5.10(5) of Coffs Harbour LEP 2013, the City of Coffs Harbour may require a heritage management document to be prepared that assesses the extent to which the carrying out of the proposed development would affect the heritage significance of the heritage item or heritage conservation area concerned.***
- ***Pursuant to subclause 5.10(6) of Coffs Harbour LEP 2013, the City of Coffs Harbour may require the submission of a heritage conservation management plan.***
- ***The City of Coffs Harbour's Heritage Inventory contains detailed information in relation to heritage items and heritage conservation areas which should be referenced in heritage impact statements. A copy of the relevant heritage inventory sheet can be obtained from the City of Coffs Harbour upon request.***
- ***The Heritage Act 1977 may also be a relevant consideration for development and/or subdivision proposals for land listed on the State Heritage Register or to which an interim heritage order applies.***

F2.3 HERITAGE REQUIREMENTS –HERITAGE CONSERVATION AREAS

Applies to Land

This control applies to land within the Coramba and Sawtell heritage conservation areas shown on the Coffs Harbour LEP 2013 Heritage Map.

Objectives

- To conserve the environmental heritage of Coffs Harbour.
- To conserve the heritage significance of heritage items and heritage conservation areas, including associated fabric, setting and views.

Requirements

(1) Development applications for development comprising a heritage item within the Coramba heritage conservation area or the Sawtell heritage conservation area are to be accompanied by a Heritage Impact Statement.

(2) Development applications for development comprising a heritage item within the Coramba or Sawtell heritage conservation areas are to address the following matters:

(a) roof form and pitch;

(b) the style, size, proportion and position of the openings for windows and doors;

(c) the compatibility of proposed colours, textures, style, size and type of materials to be used on the exterior of the development with the heritage item; and

(d) any other relevant heritage matter.

(3) Development within the Coramba heritage conservation area is to be designed so that exterior colours accord with the Heritage Colour Guide for Coramba.

(4) Development within the Sawtell heritage conservation area is to be designed so that colours, textures and materials of buildings and landscape elements reflect the character of the seaside holiday theme of the 1930s to the 1960s eras, such as pastels of blue, green, yellow, red and orange.

F2.4 HERITAGE REQUIREMENTS –SUBDIVISION REQUIREMENTS

Applies to Land

This control applies to the subdivision of land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To conserve the environmental heritage of Coffs Harbour.
- To conserve the heritage significance of heritage items and heritage conservation areas, including associated fabric, setting and views.

Requirements

(1) Subdivision proposals comprising or adjoining a heritage item or within or adjoining a heritage conservation area are to be designed so that:

(a) adequate landscape buffers (or like features) are incorporated to provide separation between land uses where conflict may arise; and

(b) adequate curtilage is provided around heritage items to establish an appropriate buffer.

(2) Development applications for the subdivision of land comprising a heritage item or within a heritage conservation area are to be accompanied by a Heritage Impact Statement.

F3 LANDSCAPING

F3.1 LANDSCAPING REQUIREMENTS – GENERAL

Applies to Land

This control applies to land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To contribute to streetscape character and the amenity of the public domain.
- To protect, enhance and maintain key features of the natural environment.
- To encourage plant selection that is sensitive to local climate, topography and natural features.

Requirements

(1) Landscaping is to be provided which:

(a) complements and enhances the existing streetscape features of the locality; and

(b) creates human scale at ground level; and

(c) softens buildings and hard landscaping; and

(d) provides privacy.

(2) Soft landscaping is to comprise:

(a) species that are sensitive to local climate, topography and natural features (see Appendix 3 of this Plan for a list of recommended landscaping species and non-desirable weed species); and

(b) understorey plantings to visually enhance the development (in keeping with NSW Police Safer by Design: Crime Prevention Through Environmental Guidelines); and

(c) groundcover to minimise unsealed ground; and

(d) deep soil zones to promote large tree growth; and

(e) species that will ensure driver visibility for ingress and egress to the site; and

(f) shade trees to soften the visual impact of large parking areas (where provided).

(3) Landscaping beds (internal dimensions not including edging or supports) are to be:

(a) a minimum of 1.5 metres in width where trees are likely to reach four metres in height upon maturity; or

(b) a minimum of two metres in width where trees are likely to reach more than four metres in height upon maturity.

(4) The visual impact of hard landscaping is to be minimised via soft landscaping.

(5) Shade tree planting is to be provided for every eight parking spaces within parking areas and along public street frontages of parking areas.

(6) Existing high conservation value vegetation, mature trees and high landscape value trees are to be retained on the site and incorporated into the landscaping design wherever possible.

(7) Where development or subdivision proposals comprise or adjoin high conservation value vegetation, plant species selection for additional soft landscaping is to comprise a mix of bushland friendly species (see Appendix 3 of this Plan) and native vegetation where possible.

(8) Where palms are incorporated into landscape designs, they are to complement and not substitute trees.

(9) One (1) street tree is to be planted for every 5 - 10 metres of the development's public road frontage.

Exceptions

- The requirements of this control do not apply to development for the purposes of a dual occupancy, dwelling house, semi-detached dwelling, or secondary dwelling.
- The requirements of this control do not apply to a change of use or to minor alterations and additions to existing development that does not comprise any new buildings or a substantial increase in gross floor area.
- Shade structures may be used in lieu of shade tree planting for parking areas where the City of Coffs Harbour is satisfied that site constraints preclude the provision of shade tree planting as

required by requirement (5) of this control.

Notes:

Deep soils zones have important environmental benefits, including promoting healthy growth of large trees with large canopies, protecting existing mature trees and allowing infiltration of rainwater to the water table and reduction of stormwater runoff.

F3.2 LANDSCAPING REQUIREMENTS – RESIDENTIAL AREAS

Applies to Land

This control applies to development on land zoned R1 General Residential, R2 Low Density Residential, R3 Medium Density Residential, R4 High Density Residential and R5 Large Lot Residential shown under Coffs Harbour LEP 2013.

Objectives

- To provide a unified landscape character within residential areas.
- To add value to residents' quality of life within the development in the form of privacy, outlook and views.
- To enhance the character of the locality by softening, screening and framing development.

Requirements

(1) Soft landscaping is to be provided along front, side and rear boundaries of the site.

(2) The minimum area of the site to be set aside as deep soil zones for soft landscaping on land zoned R1 General Residential, R3 Medium Density Residential and R4 High Density Residential under Coffs Harbour LEP 2013 is to be in accordance with the following table:

Number of Dwellings	Minimum area of deep soil zone landscaping per site area
3	25%
4	20%
≥5	15%

(3) Soft landscaping is to comprise:

(a) trees within the front setback area, which are capable of attaining a minimum height of 10 metres or at least the same height as the tallest component of the development where buildings are less than 10 metres in height; and

(b) trees within side and rear setback areas, which are capable of attaining at least the same height as the upper most living room or bedroom windows; and

(c) screening shrubs within the side and rear setback areas to achieve a minimum height of three metres upon maturity.

(4) Soft landscaping for multi dwelling housing and residential flat building development with more than five dwellings is to comprise tree and shrub planting that provides a vegetated outlook and privacy for occupants from adjacent properties.

Exceptions

- The requirements of this control do not apply to development for the purposes of a dual occupancy, dwelling house, semi-detached dwelling or secondary dwelling.
- The requirements relating to the provision of trees may be dispensed with at the discretion of the City of Coffs Harbour where:
    - the trees are likely to conflict with the long term maintenance of hard landscaping; and
    - there is no other suitable location available on the site for required hard landscaping (driveways, parking and waste storage areas).

F3.3 LANDSCAPING REQUIREMENTS – COMMERCIAL AREAS

Applies to Land

This control applies to development on land zoned E1 Local Centre, E2 Commercial Centre, E3 Productivity Support, MU1 Mixed Use and SP3 Tourist shown under Coffs Harbour LEP 2013.

Objectives

- To provide a unified landscape character within commercial areas.
- To contribute to streetscape character and the amenity of the public domain by encouraging planting and landscape elements appropriate to the scale of development.
- To enhance the character of the locality by softening, screening and framing development.

Requirements

(1) Soft landscaping is to be provided on land zoned E1 Local Centre and E2 Commercial Centre under Coffs Harbour LEP 2013:

(a) within the front setback area (if provided); and

(b) in parking areas; and

(c) in rear setback areas that are visible from streets, lanes, service roads, railway lines or residential development.

(2) Soft landscaping is to be provided on land zoned E3 Productivity Support under Coffs Harbour LEP 2013 in accordance with D1.1, requirement (5) of this Plan.

(3) Soft landscaping is to be provided on land zoned E1 Local Centre, MU1 Mixed Use and SP3 Tourist under Coffs Harbour LEP 2013 comprising:

(a) trees within the front setback area (if provided), which are capable of attaining a minimum height of 10 metres or at least the same height as the tallest component of the development where buildings are less than 10 metres in height; and

(b) trees within the side and rear setback areas, which are capable of attaining a minimum height of adjacent buildings upon maturity; and

(c) screening shrubs within side and rear setback areas to achieve a minimum of three metres upon maturity to break up blank walls and provide privacy.

Exceptions

- Soft landscaping is not required where the development is built to the allotment boundary.

- The requirement for the provision of trees may be dispensed with at the discretion of the City of Coffs Harbour where:
    - they are likely to conflict with the long term maintenance of hard landscaping; and
    - there is no other suitable location available on the site for required hard landscaping (driveways, parking and waste storage areas).

F3.4 LANDSCAPING REQUIREMENTS – INDUSTRIAL AREAS

Applies to Land

This control applies to land zoned E4 General Industrial, E5 Heavy Industrial and W4 Working Waterfront shown under Coffs Harbour LEP 2013.

Objectives

- To provide a unified landscape character within industrial areas.
- To contribute to streetscape character and the amenity of the public domain by encouraging planting and landscape elements appropriate to the scale of development.
- To enhance the character of the locality by softening, screening and framing development.

Requirements

(1) Soft landscaping is to be provided within:

(a) front setback areas; and

(b) rear setback areas where the land abuts access streets, lanes, service roads, railway lines or residential development.

(2) Soft landscaping within the front setback area and rear setback area is to comprise trees which are capable of attaining at least the same height as the tallest component of the development.

Exceptions

- The requirements of this control do not apply to development for the purposes of a dwelling house.
- The requirement for the provision of trees may be dispensed with at the discretion of the City of Coffs Harbour where:
    - they are likely to conflict with the long term maintenance of hard stand areas; and
    - there is no other suitable location available on the site for required hard stand areas (driveways, parking and waste storage areas).
- Development which incorporates a side setback area is to provide soft landscaping within the setback area comprising:
    - trees which are capable of attaining at least the same height as the tallest component of the development; and
    - screening shrubs to achieve a minimum of three metres upon maturity to break up blank walls and provide privacy.

F3.5 LANDSCAPING REQUIREMENTS – SUBDIVISION

Applies to Land

This control applies to the subdivision of land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To provide a unified landscape character within new subdivisions.
- To contribute to streetscape character and the amenity of the public domain.

Requirements

(1) Development applications for subdivisions:

(a) on greenfield sites comprising the provision of a public road (or certain community title schemes), or works on a public road frontage, are to be accompanied by a street tree masterplan in accordance with the City of Coffs Harbour's requirements and the Coffs Harbour Public Realm Urban Design Guidelines comprising the provision of a minimum of 1 street tree for every 5 - 10 metres of road frontage to a public road.

(b) on infill sites are to provide a minimum of 1 street tree for every 5 - 10 metres of frontage to a public road in accordance with the City of Coffs Harbour's requirements and the Coffs Harbour Public Realm Urban Design Guidelines.

(2) Street tree species are to complement existing street trees in the locality or where there are no existing street trees in the locality, the City of Coffs Harbour's Landscape Architect is to be consulted.

(3) Street tree species are to be carefully selected so that:

(a) they visually enhance the development (in keeping with NSW Police Safer by Design: Crime Prevention Through Environmental Guidelines); and

(b) upon maturity they are likely to achieve a height of six metres (unless above ground services are present); and

(c) they are not located above water and/or sewer infrastructure.

(4) Where subdivision proposals comprise median treatments:

(a) Sir Walter Buffalo is to be used as the preferred turf; and

(b) mass planting is to be provided where the ground slope is greater than 1:4 utilising a suitable ground cover approved by Council.

Exceptions

The provision of street trees in accordance with requirement (1) of this control may be varied at the discretion of the City of Coffs Harbour where the road frontage is constrained (i.e. location of services) and to cater for species selection.

F3.6 APPLICATION REQUIREMENTS

Applies to Land

This control applies to land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure that development applications for development and subdivision proposals requiring landscaping provide sufficient information to enable a proper assessment of the proposal.

Requirements

(1) Development applications for development requiring landscaping are to be accompanied by a Landscape Concept Plan or Detailed Landscape Plan.

(2) Development applications for subdivision proposals comprising the provision of a public road are to be accompanied by a Landscape Masterplan.

(3) Detailed Landscape Plans and Landscape Masterplans are to be prepared by a suitably qualified consultant with membership to the Australian Institute of Landscape Architects (AILA).

(4) Landscape Concept Plans are to contain the following information:

(a) property boundaries; and

(b) north point and appropriate scale (i.e. 1:100); and

(c) contours and topographical features; and

(d) layout and area calculations of proposed planting areas; and

(e) proposed buildings, surface and edging treatments including paving, roads, car parks, driveways, and driveway crossovers;

(f) fencing and retaining walls including style (type) and height; and

(g) any existing trees that are to be retained as well as any existing trees that are to be removed and the reasons for removal; and

(h) proposed tree species and proposed plant species palette (refer to Appendix 3 of this Plan).

(5) Landscape Masterplans are to contain the following information:

(a) an overall development concept plan demonstrating how engineering and architectural plans for the subdivision fit together; and

(b) information required for a Concept Landscape Plan (see F3.6.4 above); and

(c) road and footpath set out and connectivity; and

(d) proposed uses for public open spaces; and

(e) environmental considerations and/or requirements; and

(f) design considerations to enhance connectivity to the local area.

F4 SEX SERVICES

F4.1 LOCATION REQUIREMENTS

Applies to Land

This control applies to development for the purposes of sex services premises on land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To provide clear guidelines for sex services premises to ensure that the provisions of Clause 7.17 of Coffs Harbour LEP 2013 are satisfied.
- To ensure that the location of sex service premises is appropriate to the context of the locality.

Requirements

(1) Sex services premises are to have adequate separation from residential areas and from places regularly frequented by children.

(2) Sex services premises are not to be located in close proximity to bus stops utilised by school bus services.

Notes:

Sex services premises do not include home occupation (sex services). For further information in relation to home occupation (sex services), refer to** Coffs Harbour LEP 2013**.

F4.2 DESIGN REQUIREMENTS

Applies to Land

This control applies to development for the purposes of sex services premises on land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To provide clear guidelines for sex services premises to ensure that the provisions of Clause 7.17 of Coffs Harbour LEP 2013 are satisfied.
- To ensure that the design and external appearance of sex service premises is appropriate to the context of the locality.
- To ensure that Crime Prevention Through Environmental Design principles are considered in the design of residential development.

Requirements

(1) Sex services premises are to be designed to minimise noise, disturbance and overlooking of adjoining land.

(2) Crime Prevention Through Environmental Design principles are to be considered in the design of sex services premises in accordance with the NSW Police Safer by Design: Crime Prevention Through Environmental Guidelines.

(3) Access to sex services premises is to be discreet and should be designed to discourage clients gathering or waiting on the street.

(4) The design and external appearance of sex service premises and any ancillary structures should complement the character and amenity of the locality and streetscape.

(5) Signage should be discreet and is to comply with the relevant controls within F5 Signage, of this Plan.

(6) Staff facilities must include a communal lounge or rest area and staff notice board.

(7) A minimum of one bathroom (toilet, shower, hand basin) is to be provided for each three suites or parlours (excluding the one suite and its associated facilities designed to be used by a person with a disability).

(8) Hand basins are to be located within or close to areas of sexual activity.

(9) Hand basins are to be provided with potable running water through a single outlet (such as push button or mixer tap), liquid antibacterial soap and single use paper towels or air dryers.

Notes:

All development applications for sex services premises are required to be referred to the NSW Police Service for a 'safer by design' assessment.

F4.3 PARKING REQUIREMENTS

Applies to Land

This control applies to development for the purposes of a sex services premises on land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To provide clear guidelines for sex services premises to ensure that the provisions of Clause 7.17 of Coffs Harbour LEP 2013 are satisfied.
- To ensure that adequate off street car parking is provided.

Requirements

(1) Off street parking is to be provided in accordance with F1 Access and Parking of this Plan.

F4.4 APPLICATION REQUIREMENTS

Applies to Land

This control applies to development for the purposes of a sex services premises on land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To provide clear guidelines for sex services premises to ensure that the provisions of Clause 7.17 of Coffs Harbour LEP 2013 are satisfied.
- To ensure that development applications contain sufficient information for the City of Coffs Harbour to determine if the development is appropriate to the context of the locality.

Requirements

(1) Development applications are to be accompanied by the following information:

(a) the location of any adjoining, opposite or nearby child care centres, community facilities, educational establishment or places of public worship;

(b) details of any place likely to be frequented by children, including those that adjoin or can be viewed from the proposed development or from which a person can view the proposed development;

(c) hours of operation;

(d) details of any existing sex services premises in the locality; and

(e) an assessment of any likely impacts on the character of the area or amenity of the neighbourhood from the proposed development.

(2) Development applications are to be accompanied by a plan of management addressing (but not limited to) the following matters:

(a) security measures;

(b) lighting;

(c) waste management;

(d) cleaning;

(e) dealing with anti-social behaviour;

(f) worker and client health education;

(g) laundry arrangements;

(h) parking arrangements; and

(i) compliance with the requirements of the Public Health Act 2010 or other prevailing legislation.

Notes:

Approval is to be conditional upon the requirements of any approved plan of management being displayed on a staff notice board within a communal lounge or rest area.

F5 SIGNAGE

F5.1 GENERAL SIGNAGE REQUIREMENTS

Applies to Land

This control applies to development for the purposes of signage on land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure that signage is of a high quality and complements the architectural design of buildings and the character of the streetscape.
- To minimise the amount of signage and avoid visual clutter on buildings and within the streetscape.
- To consider the visual quality of the public domain in the design and location of signage.

Requirements

(1) Signage is to be designed and located to:

(a) relate to the use of the building; and

(b) exhibit a high level of design quality; and

(c) ensure compatibility with the architectural design of the supporting building having regard to:
  (i) fenestration; and
  (ii) materials; and
  (iii) finishes; and
  (iv) colours; and

(d) ensure that architectural features of the building are not obscured; and

(e) have regard to the view of the sign (and any supporting structure/cabling), including visibility from the street level and nearby higher buildings, and against the skyline; and

(f) have only minimal projection from the building.

(2) Signage is not to contain advertising promoting products or services not related to the approved use of the premises or site.

(3) Signage is not to be painted or applied on the roof of buildings.

(4) Development applications for new signage are to be accompanied by:

(a) details in relation to the number of existing signs on the site and in the vicinity of the site; and

(b) justification that the proposed signage is consistent with the requirements of this control; and

(c) suitable justification that the proposed signage is unlikely to result in any cumulative impacts that may give rise to visual clutter.

F5.2 SPECIFIED SIGNAGE REQUIREMENTS

Applies to Land

This control applies to development for the purposes of signage on land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure that signage is of a high quality and complements the architectural design of buildings and the character of the streetscape.
- To minimise the amount of signage and avoid visual clutter on buildings and within the streetscape.
- To consider the visual quality of the public domain in the design and location of signage.

Requirements

(1) A business identification sign that projects from the exterior wall of an existing building (projecting wall sign) must:

(a) not result in more than four business identification signs of this type for the building (which may refer to more than one business within the building); and

(b) not result in more than one sign being visible on each elevation of the building; and

(c) not project beyond the parapet or eaves of the building to which it is attached; and

(d) be no more than 2.5m^2 in area and not project more than 1.5 metres horizontally from the facade of the building if located in an industrial zone; and

(e) be no more than 1.5m^2 in area and not project more than 0.75 metres horizontally from the

facade of the building if located in any zone other than an industrial zone; and

(f) if the sign is illuminated satisfy the requirements of F5.3 of this Plan below.

(2) A business identification sign that is displayed on a freestanding structure that is mounted on the ground on one or more supports (freestanding pylon and directory board sign) must:

(a) not result in more than one such freestanding sign for each street frontage of the lot on which the development is located that is more than 15 metres in width; and

(b) not be higher than six metres from ground level (existing); and

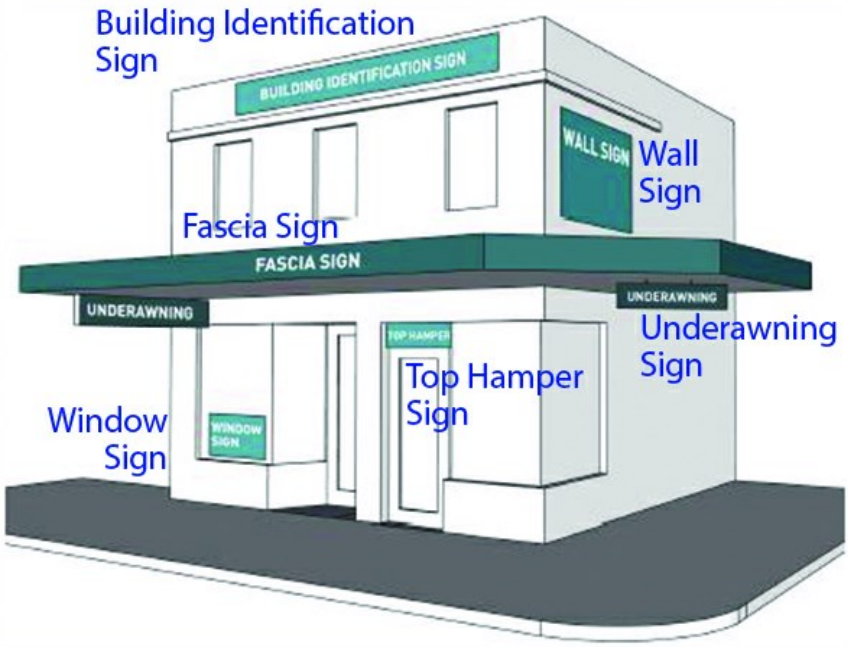
(c) not have an area for the sign of more than 8m^2 or where the development is located on a premises with more than one commercial tenant, not have an area for the sign of more than 16m^2; and

(d) not be located within three metres of any prescribed vegetation; and

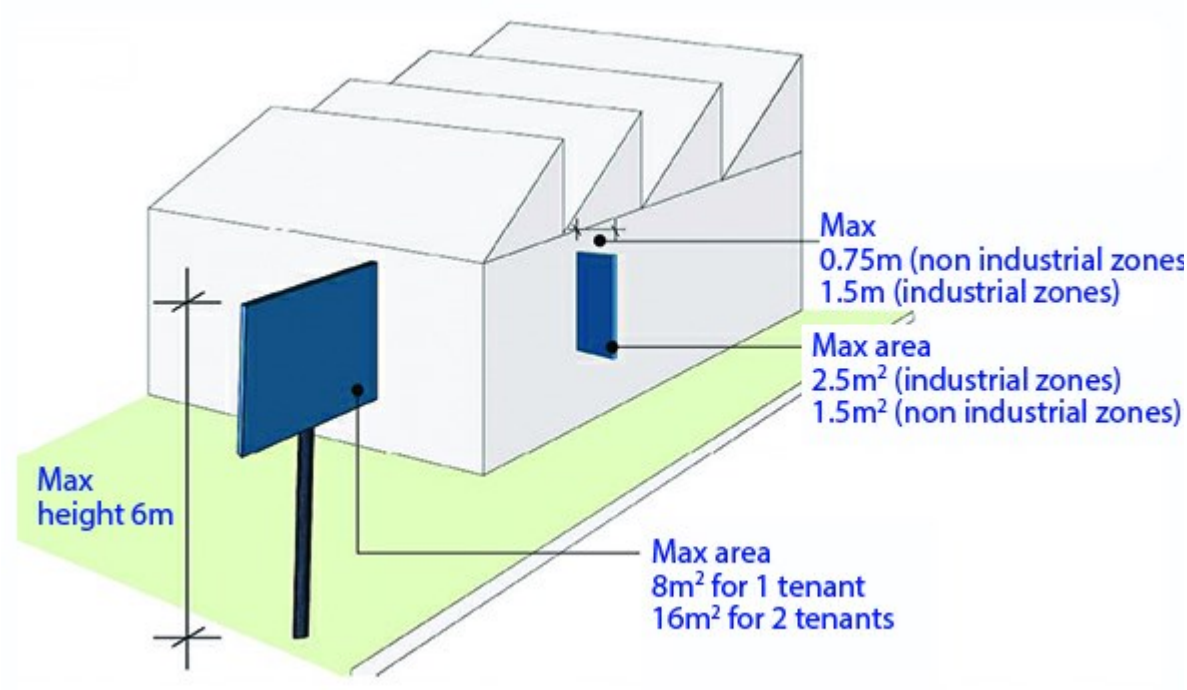
(e) not obstruct the visibility sight lines of, or interfere with, any traffic control device, including traffic control lights; and

(f) if the sign is illuminated satisfy the requirements of F5.3 of this Plan below.

Examples of appropriate signage



Source: NSW Planning and Infrastructure 2014



Source: NSW Planning and Infrastructure 2014

Notes:

- *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 and Coffs Harbour LEP 2013 prescribe certain signage types as exempt development or as development being permissible without the need for development consent.*
- *It is the responsibility of the proponent to determine if any proposed signage requires development consent (sought through the lodgement of a development application) and/or an environmental assessment (under Part 5 of the Environmental Planning and Assessment Act 1979).*
- *State Environmental Planning Policy (Industry and Employment) 2021 applies to all signage, excluding signage prescribed as exempt development.*
- *In accordance with this Policy, the City of Coffs Harbour may only grant consent to an application to display signage if it is satisfied that the signage is consistent with the objectives of the Policy and that the signage satisfies the assessment criteria specified in Schedule 1 of the Policy.*
- *Additional requirements are also provided within the Policy for signage other than business identification signs, building identification signs and signage on vehicles.*
- *It is the responsibility of the proponent to determine any relevant controls of this Policy and to adequately address such controls within any development application for signage.*

F5.3 ILLUMINATED SIGN REQUIREMENTS

Applies to Land

This control applies to development for the purposes of signage on land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To consider the amenity of residential development and the visual quality of the public domain.
- To ensure that illuminated signage does not detract from the architecture of the supporting

building.

Requirements

(1) Illuminated signs are to be designed and located so as not to detract from the architecture of the supporting building during daylight.

(2) The illumination of any signage is to:

(a) have its means of illumination, including any associated cables, concealed or integrated within the frame of the sign, and

(b) not be animated, flashing or moving, and comply with AS 4282-1997, control of the obtrusive effects of outdoor lighting, and

(c) if the sign is on land that is within a residential zone or within 50 metres of land that is within a residential zone and the sign faces the residential zone, only be illuminated during the following periods:

(i) if the hours of operation of the business identified on the sign have been approved, during those hours, or

(ii) if the hours of operation of the business identified on the sign have not been approved, between 7.00 am and 10.00 pm on any day.

(3) Any external lighting of signage is to be downward pointing and focused directly on the sign to prevent or minimise the escape of light beyond the sign.

Notes:

The uplighting of signage is not supported.

F5.4 ROAD SAFETY REQUIREMENTS

Applies to Land

This control applies to development for the purposes of signage on land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure that the location and design of signage is consistent with road safety principles.

Requirements

(1) Signage is to be designed and located so that:

(a) it does not obscure or interfere with road traffic signs and signals or with the view of any road hazard, oncoming vehicle, or any other vehicle or person, or an obstruction which should be visible to drivers or other road users; and

(b) it does not give instructions to traffic by use of words or other directions, which could be confused with traffic signs; and

(c) any variable messages or intensity of lighting does not impair a drivers' vision or distract a drivers' attention; and

(d) they are not situated at locations where the demands on drivers' concentration due to road conditions are high, such as at major intersections or merging and diverging lanes.

F5.5 SEX SERVICES PREMISES REQUIREMENTS

Applies to Land

This control applies to development for the purposes of signage associated with sex services premises on land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure that any signage associated with sex services premises is discreet and does not impact on the amenity of the locality.

Requirements

(1) Signage associated with sex services premises is to be designed and located so that it is discreet and includes only the site address and contact details.

Exceptions

- In locations where sex services premises, adult shops and restricted premises predominate, signage may include additional advertising that relates to the use of the premises.

F6 WASTE MANAGEMENT

F6.1 WASTE REQUIREMENTS - GENERAL

Applies to Land

This control applies to land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure that waste is appropriately separated to assist with the collection and management of waste.
- To ensure that waste management systems are compatible with collection services.

Requirements

(1) A three stream waste separation system is to be provided to cater for all waste generated by the development.

(2) The following variables are to be considered in the calculation of waste generation rates:

(a) the number of occupants;

(b) size of dwellings;

(c) nature of business;

(d) nature of waste being generated;

(e) frequency of collections; and

(f) peak season volume changes.

(3) The number and type of bins required for waste separation systems are to suit the type of development and may include any of the following options:

(a) 240 litre lime green-lidded bin for organics (green waste and food waste, collected weekly); and 240 litre yellow-lidded bin for recycling (collected on alternate fortnights); and 240 litre red-lidded bin for residual garbage (collected on alternate fortnights); or

(b) 660 litre red and yellow-lidded bulk bins (collected weekly) for multi dwelling housing (with six or more units) or commercial development; or

(c) 1,100 litre red and yellow-lidded bulk bins (collected weekly) for multi dwelling housing (with ten or more units) or commercial development; or

(d) 1m3 to 3m3 bulk bins for commercial and industrial development (with no council service).

(4) Maximum weekly waste generation rates collected through the City of Coffs Harbour's standard waste collection service are outlined in the following table:

Weekly waste entitlement through the City of Coffs Harbour's standard waste collection service

Waste Stream	Weekly Volume Per Premises
Recycling	120 litres
Organics (greenwaste and food scraps)	240 litres
Garbage	120 litres
Total Weekly Waste Entitlement	**480 litres**
Hotel/Motels	10 litres per bed per day (additional generation rates apply for ancillary restaurants)

Exceptions

- The requirements of this control do not apply to development for the purposes of a dwelling house, dual occupancy, secondary dwelling and semi-detached dwelling. Please refer to F6.2 of this Plan for waste requirements applicable to low density residential development types.
- Chutes for the transfer of waste, food waste disposal units and in-sink-erators are not supported waste management systems.

Notes:

- ***A waste entitlement is the standard service provided for each parcel of land for which a domestic or non-domestic waste service is available. Where development proposals require additional waste services to those provided in the table above, additional fees may apply.***
- ***More information in relation to waste generation rates can be found at http://www.epa.nsw.gov.au/your-environment/waste/local-council-operations/resources-for-local-councils.***
- ***Mobile garbage bins may be shared depending on the space available at the kerbside for the number of allocated bins. The responsibility for the transfer of shared bins to and from the kerb and maintenance of the bin storage area rests with the property owner or owners corporation.***
- ***While greenwaste generation rates vary depending upon the size of the property, the amount of open space available, seasonal variations or where private arrangements are made for the removal of greenwaste, all properties produce organic waste from kitchens, lunch rooms and cleaning.***
- ***The amount of recycling, garbage and organics produced is dependent on the number of bedrooms in each dwelling.***

Dwellings designed for seniors housing generally generate less than the average amounts of waste. In this regard, a site specific Waste Minimisation and Management Plan may be supported where adequately justified.

F6.2 WASTE REQUIREMENTS – LOW DENSITY RESIDENTIAL DEVELOPMENT

Applies to Land

This control applies to development for the purposes of a dwelling house, dual occupancy and semi-detached dwelling on land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure that residential waste is appropriately separated to assist with the collection and management of waste.
- To ensure that waste bins are stored appropriately to minimise impacts on the streetscape.

Requirements

(1) Development is to provide a three stream waste separation system comprising:
  (a) one 240 litre lime green-lidded bin for organics (green waste and food waste, collected weekly); and
  (b) one 240 litre yellow-lidded bin for recycling (collected on alternate fortnights); and
  (c) one 240 litre red-lidded bin for residual garbage (collected on alternate fortnights).

(2) Waste bins are to be:
  (a) stored externally on the site; and
  (b) located behind the front setback area; and
  (c) adequately screened from the street.

(3) Development applications are to be accompanied by a Demolition and Construction Waste Management Plan (Refer to F6.5 and Appendix 4 Waste Management Examples, of this Plan).

Exceptions

- Waste bins may be stored within the front setback area where no other opportunity is available on the site and where adequately screened from the street.

Notes:

- ***The Demolition and Construction Waste Management Plan detailed in Appendix 4 of this Plan is not suited for development with a capital investment greater than $1 million dollars as these proposals require a more detailed analysis.***
- ***Individual bins cannot be stored within dwellings or garages or stored on common property where conflicts may arise (i.e. conflicts with access to the site or the like).***

F6.3 WASTE STORAGE REQUIREMENTS

Applies to Land

This control applies to land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure that development provides for the efficient storage and collection of waste.
- To ensure that waste storage facilities are of a high quality design to minimise impacts on the streetscape.

Requirements

(1) Development is to provide a communal bin storage/wash area where bulk bins or shared mobile garbage bins are used.

(2) Individual bins may be used only where:

(a) appropriate external bin storage space is available for each dwelling; and

(b) the storage areas are easily accessible to the service road.

(3) Bin storage/wash areas are to be:

(a) large enough to accommodate the number of bins required to service the development; and

(b) a maximum height (to the underside of the roof) of 2.4 metres; and

(c) roofed with a 100mm overhang where one or more sides of the storage/wash area is open to the weather; and

(d) bunded (a minimum 50mm high) and graded to prevent the ingress of stormwater/ rainwater; and

(e) located a minimum of two metres from neighbouring residential properties in order to mitigate odour impacts and to allow for appropriate screening; and

(f) screened from public view and located to minimise potential odour and noise impacts to adjoining properties; and

(g) drained to the sewer, with a concrete floor graded and drained to a dry basket arrestor, prior to draining to the sewer (refer to the City of Coffs Harbour's Liquid Trade Waste Policy); and

(h) compatible with the materials of the principle development when located within the front building setback; and

(i) easily accessible from all residential areas and the service road, with a maximum bin carting grade of 1:14; and

(j) located near car parking areas or letter boxes for ease of use.

(4) Dry basket arrestors are to have fixed screens to any associated drains.

(5) Approval is to be conditional upon the ongoing management of bin storage/wash areas to:

(a) minimise nuisance to adjoining landowners; and

(b) ensure that dry basket arrestors are regularly cleaned and maintained to prevent odour nuisance and health risks; and

(c) ensure that clear signage, which depicts the correct use of bins within the storage area, is displayed at all times, including contact details for the complex management or person/s responsible for the management of the area; and

(d) ensure that a hose with a trigger nozzle or high pressure cleaner is available at all times to wash bins.

Exceptions

- The requirements of this control do not apply to development for the purposes of a dwelling house, dual occupancy, secondary dwelling and semi-detached dwelling.

Notes:

- ***Refer to** Appendix 4 Waste Management Examples **of this Plan for design guidelines relating to bin wash/storage areas, available bin sizes, dry basket arrestors and roof overhang.***
- ***Commercial service operators may have different bin sizes than those detailed in the guidelines.***
- ***Bunding is to allow for access to the waste bin storage/wash area by persons with a disability.***
- ***Individual bins cannot be stored within dwellings or garages or stored on common property where conflicts may arise (i.e. conflicts with access to the site or the like).***

F6.4 ACCESS AND DESIGN REQUIREMENTS

Applies to Land

This control applies to land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure that waste storage/wash areas are appropriately located and accessible to waste collection vehicles.

Requirements

(1) Development and subdivision proposals are to be designed:

- (a) to enable waste collection vehicles to travel in a forward direction wherever possible; and
- (b) to include either a bowl 'T' or 'Y' shaped arrangement where waste collection vehicles are required to turn at a cul-de-sac head; and
- (c) to enable placement of mobile garbage bins at the kerbside for collection; and
- (d) so as not to interfere with parked cars on access roads; and
- (e) to allow for collection vehicle overhang and minimise interference with bins and road furniture; and
- (f) to enable waste collection vehicles to complete a full U-turn in a three-point turn; and
- (g) to ensure that a minimum ceiling height of six metres is provided where bulk bins are to be retrieved from within a building.

(2) Development is to be designed so that road geometry complies with the following:

- (a) a maximum road gradient of 10% for turning heads;
- (b) a maximum longitudinal road gradient of 20%;
- (c) a minimum radius of 11.25 metres and a minimum width of four metres;
- (d) a minimum kerb radius of 8.5 metres at the outside of turn; and
- (e) an industrial strength pavement to withstand a maximum wheel loading of seven tonnes per axle.

(3) Where waste collection vehicles are proposed to enter private property for collection purposes:

(a) a sufficient manoeuvring area is required to be provided for collection vehicles; and

(b) approval is to be conditional upon the submission of a Section 88B Instrument (or inclusion of an appropriate Clause within a Management Statement for community title schemes or by-law for strata schemes) that allows for collection vehicles to access the land and indemnifies the City of Coffs Harbour and its contractors.

Exceptions

- The requirements of this control do not apply to development for the purposes of a dwelling house, dual occupancy, secondary dwelling and semi-detached dwelling.

Notes:

Refer to the City of Coffs Harbour's current waste collection contractor for access design details and Appendix 4 Waste Management Examples of this Plan for a sample Section 88B Instrument and/or sample Clauses for inclusion within a management statement or by-law.

F6.5 DEMOLITION AND CONSTRUCTION WASTE MANAGEMENT REQUIREMENTS

Applies to Land

This control applies to land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure that demolition and construction waste is appropriately stored on site and disposed to an approved waste management facility.

Requirements

(1) Demolition, construction and subdivision waste shall be stored within the development site and not within public areas such as footpaths, public and/or road reserves.

(2) Adequate measures shall be implemented to prevent litter from being blown from the site.

(3) Any waste or materials that are transported off-site shall be transported to an approved waste management facility, in accordance with the requirements of the Protection of the Environment Operations Act 1997.

(4) The generation, storage, treatment and disposal of hazardous waste and special waste (including asbestos) shall be undertaken in accordance with the requirements of the Environmental Protection Authority and WorkCover NSW.

(5) Evidence of waste disposal such as weighbridge dockets and invoices shall be retained.

(6) At the completion of construction works the development site shall be left clear of waste and debris.

Notes:

Refer to Appendix 4 Waste Management Examples of this Plan for further details in relation to Demolition and Construction Waste Management Plans.

F6.6 WASTE REQUIREMENTS – STRATA AND COMMUNITY TITLE SCHEMES

Applies to Land

This control applies to the subdivision of land for strata or community title schemes on land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure that waste bin storage areas are accessible to all resulting lots and service roads.

Requirements

(1) Communal waste bin storage areas are to be retained within common property and are to be accessible to:

(a) all resulting lots; and

(b) the service road.

F6.7 APPLICATION REQUIREMENTS

Applies to Land

This control applies to development on land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To plan for the type, amount and disposal of waste generated during the construction and operational stages of development.

Requirements

(1) Development applications are to be accompanied by:

(a) a Waste Minimisation and Management Plan outlining measures to minimise and manage waste generation during the construction and operational stages of the development; and

(b) a site analysis plan (prepared at a scale of 1:200) detailing:

(i) the location of bin storage areas; and

(ii) design details for bin storage areas, including a floor plan, elevation plans, cross-sections, screening, dimensions and drainage.

Exceptions

- The requirements of this control do not apply to development for the purposes of a dual occupancy, dwelling house, secondary dwelling and semi-detached dwelling.

Notes:

- ***Refer to Appendix 4 Waste Management Examples of this Plan for an example Waste Minimisation and Management Plan.***
- ***The Waste Minimisation and Management Plan detailed in Appendix 4 of this Plan is not suited for development with a***

capital investment greater than $1 million dollars as such proposals require a more detailed analysis.

- *Ongoing management of a shared bin area is required to comply with Schedule 2– Model by-laws for residential strata schemes under the Strata Schemes Management Regulation 2016.*
- *A caretaker may be responsible for transferring waste for collection in large developments; however the responsibility for waste management ultimately rests with the owner or owners corporation.*
- *The installation of appropriate signage is the responsibility of the owners corporation (refer to the Environment Protection Authority webpage at the following link for standard recycling signs http://www.epa.nsw.gov.au/wastetools/signs-posters-symbols.htm.*

F7 TELECOMMUNICATIONS FACILITIES

F7.1 APPLICATION REQUIREMENTS

Applies to land

This control applies to the assessment of development applications for the construction, alteration, establishment and use of telecommunications facilities on land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure development applications for telecommunications facilities include all required information and documentation.

Requirements

1) The following documents must be provided with the application:
   a) An environmental Electromagnetic Energy (EME) report.
   b) A visual impact assessment report.
   c) An image or images showing the proposed facility located on the site as viewed from any significant public vantage point or points.
   d) A landscaping plan if landscaping is proposed.
   e) An outline of the site selection process, including the consideration of alternative sites where alternatives are available.
   f) Where co-location is not proposed, a plan showing existing facilities in proximity to the proposed site or intended coverage area and an explanation as to why each facility is not suitable to accommodate the proposed facility.
   g) Where pre-development application consultation has been undertaken with the community and owners of land surrounding the site or other land likely to be affected by the proposed facility on the proposed facility and/or site selection, the application should include a report detailing the method and outcomes of that consultation.
   h) Where the proposed development is mobile phone telecommunications infrastructure, an outline of how the site selection and design of the facility are consistent with the provisions of *Industry Code C564:2020 Mobile Phone Base Station Deployment*.

F7.2 SITING, DESIGN AND AMENITY REQUIREMENTS

Applies to land

This control applies to the assessment of development applications for the construction, alteration, establishment and use of telecommunications facilities on land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure that telecommunications facilities are located to avoid or minimise adverse impacts on the built or natural environment.
- To ensure that telecommunications facilities are sited to avoid or minimise adverse impacts on areas of high landscape or scenic amenity and/or significant vistas, views or focal points.
- To ensure that the design of telecommunications facilities incorporates measures to minimise visual impact where required.

Requirements

1) The facility should be co-located on or with existing telecommunications infrastructure where possible or should be designed to facilitate future co-location.
2) The facility must not be sited where it will create significant adverse visual impact on areas, locations, landscapes, landscape features or landforms of high scenic amenity value. The facility must not be located where it will interrupt or have a significant adverse impact on views from any significant public vantage point, or within any significant public view corridor or to any significant public focal point. The facility must not have significant adverse impact on views of heritage items or significant landmarks, streetscapes or vistas.
3) The facility (including any security fencing) must have suitable setbacks from site boundaries to enable the provision of landscaping and screening planting, parking and manoeuvring areas and asset protection zones where required. Where it is not possible to provide setbacks to site boundaries, the application must demonstrate that this will not result in adverse impacts on its surroundings.
4) The form, scale, materials, external colours and finishes of the structure or building must minimise its visual impact, be sympathetic to the surrounding landscape and, where required, measures such as camouflage or screening planting are employed.
5) Where the facility is located within an area of open space or a rural or natural area and is prominently visible from public vantage points, the facility must use landscaping and/or tree planting to provide screening of structures from public vantage points and assist its integration into the landscape.
6) The site must have a legal point of access to a formed public road.
7) Operation of the facility must not create adverse impacts on the amenity of surrounding land from noise or as a result of inadequate maintenance of the site or facility.
8) The facility should be located a minimum of 500 metres from sensitive land uses.

Exceptions

- If co-location with existing infrastructure is not possible, the application must provide evidence to show that there is no existing infrastructure that is suitable for co-location (including an outline of

the technical or locational issues that prevent co-location).

Notes:

Under the provisions of SEPP (Transport and Infrastructure) 2021 the consent authority must have regard to any guidelines published by the Secretary; this includes the NSW Telecommunications Facilities Guideline, NSW Department of Planning and Environment, 2022 or any successive version.

F7.3 ENVIRONMENTAL REQUIREMENTS

Applies to land

This control applies to the assessment of development applications for the construction, alteration, establishment and use of telecommunications facilities on land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure that development of telecommunications facilities is responsive to the environmental constraints of the land.
- To ensure that development occurs in a manner that provides for the continued protection of high conservation value land.

Requirements

1) Development is to comply with the relevant controls of E1 Biodiversity of this Plan.

F7.4 FLOOD PLANNING REQUIREMENTS

Applies to land

This control applies to the assessment of development applications for the construction, alteration, establishment and use of telecommunications facilities on land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To ensure that telecommunications facilities on flood prone land are compatible with the flood hazard.

Requirements

1) Development is to comply with the relevant controls of E4 Flooding of this Plan.

F7.5 HERITAGE REQUIREMENTS

Applies to land

This control applies to the assessment of development applications for the construction, alteration, establishment and use of telecommunications facilities on land shown on the Coffs Harbour LEP 2013 Land Application Map.

Objectives

- To preserve the heritage significance of heritage items and heritage conservation areas within the Coffs Harbour City Council local government area.
- To conserve archaeological sites, Aboriginal objects and Aboriginal places of heritage significance within the Coffs Harbour City Council local government area.

Requirements

1) Development is to comply with the relevant controls of F2 Heritage Conservation of this Plan.

Part G Special Area Controls

G1 BOAMBEE CREEK

G1.1 MASTERPLAN

Applies to Land

This control applies to land within the Boambee Creek urban release area shown on the Boambee Creek Masterplan.

Objectives

- To enable the coordination of public and private development within the release area.
- To provide for development on land that is free from environmental constraints.

Requirements

(1) Development and subdivision proposals are to comply with the principles of the Boambee Creek Masterplan.

G1.2 INFRASTRUCTURE REQUIREMENTS

Applies to Land

This control applies to the subdivision of land within the Boambee Creek urban release area shown on the Boambee Creek Masterplan.

Objectives

- To ensure that appropriate infrastructure and utility services are provided to land within the urban release area.
- To ensure that development within the urban release area is responsive to the environmental context of the land.

Requirements

(1) Subdivision proposals are to accord with the requirements of relevant controls within Chapter C1 Subdivision of this Plan.

(2) A collector road link from Bruce King Drive to the Boambee Creek urban release area is required to be constructed at no cost to the City of Coffs Harbour prior to the subdivision of land.

(3) Bus bays (including bus shelters and bus stops) are to be provided within the urban release area at no cost to the City of Coffs Harbour in accordance with the City of Coffs Harbour's Development Specifications and Chapter C1 Subdivision of this Plan.

(4) A cycleway is to be provided within the release area at no cost to the City of Coffs Harbour in accordance with the City of Coffs Harbour's Development Specifications and Chapter C1 Subdivision of this Plan.

(5) Reticulated water and sewerage services are to be provided within the release area at no cost to the City of Coffs Harbour in accordance with the City of Coffs Harbour's Development Servicing Plans and Development Specifications.

(6) The existing sewerage reticulation system is to be upgraded at no cost to the City of Coffs Harbour in accordance with the City of Coffs Harbour's Development Servicing Plans and Development Specifications.

(7) Stormwater drainage is to be provided in accordance with C1.9 Water Management Requirements of this Plan and the City of Coffs Harbour's Development Specifications.

(8) Where services identified in the City of Coffs Harbour's Development Servicing Plans are not in place at the time of development, such services are to be forward funded by the proponent.

G1.3 ENVIRONMENTAL REQUIREMENTS

Applies to Land

This control applies to the subdivision of land within the Boambee Creek urban release area shown on the Boambee Creek Masterplan.

Objectives

- To protect and maintain high conservation value land.

Requirements

(1) Subdivision proposals are to comply with the relevant controls of E1 Biodiversity of this Plan.

G1.4 LAND DEDICATION

Applies to Land

This control applies to the subdivision of land within the Boambee Creek urban release area shown on the Boambee Creek Masterplan.

Objectives

- To enable the dedication of suitable land of significant environmental value or public benefit.

Requirements

(1) Land that is unable to be developed due to significant environmental constraints or that is of public benefit may be dedicated to the City of Coffs Harbour via a voluntary planning agreement or other suitable arrangement in accordance with the City of Coffs Harbour's Dedication of Land Policy.

(2) Where land identified in requirement number (1) above is to be retained in private ownership,

development applications are to be accompanied by sufficient information to demonstrate that the subdivision will not compromise the continued protection and long term maintenance of high conservation value land under Coffs Harbour LEP 2013.

Notes:

Additional mechanisms exist for the in-perpetuity management of high conservation value land, such as the Biodiversity Offsets Scheme administered by the NSW Department of Planning and Environment under the Biodiversity Conservation Act 2016.

G2 COFFS HARBOUR ARTHUR STREET PRECINCT

G2.1 MASTERPLAN - ARTHUR STREET EAST PRECINCT

Applies to Land

This control applies to land within the Coffs Harbour Arthur Street East Precinct.

Objectives

- To ensure that development within the Arthur Street East Precinct accords with the Coffs Harbour Arthur Street East Precinct Masterplan.
- To ensure that development is planned around a well-designed street grid providing multiple connections to the surrounding area.
- To protect and maintain high conservation value land and maximise deep soil zones.
- To maintain view corridors and a high level of amenity from adjoining land.

Requirements

(1) Development is to comply with the principles of the Coffs Harbour Arthur Street East Precinct Masterplan.

(2) Development is to provide a grid street layout and a hierarchy of streets to stitch the development into the surrounding street network.

(3) Development is to maintain setback controls as per Part D Residential Development of this Plan for land zoned R3 Medium Density Residential.

(4) Street design is to incorporate traffic management to cater for topography and local connectivity.

(5) Pedestrian connectivity is to be provided through public open spaces.

(6) The number of driveway entrances are to be minimised.

(7) Roads are to be located to minimise impacts on existing vegetation.

(8) Development is to provide a central public space to minimise impacts on high conservation value land.

(9) Development should be designed so that higher components of the development are concentrated on the lower parts of the site, near Arthur Street, to minimise visual impacts.

(10) Underground parking is to be confined to the building footprints as detailed in the Arthur Street East Precinct Masterplan to maximise the extent of deep soil zones.

G2.2 MASTERPLAN - ARTHUR STREET WEST PRECINCT

Applies to Land

This control applies to land within the Coffs Harbour Arthur Street West Precinct.

Objectives

- To ensure that development within the Arthur Street West Precinct accords with the Coffs Harbour Arthur Street West Precinct Masterplan.
- To improve pedestrian access and connectivity in the Park Beach locality.
- To maximise deep soil zones.

Requirements

(1) Development is to comply with the principles of the Coffs Harbour Arthur Street West Precinct Masterplan.

(2) A new local street is to be provided to connect York Street and San Francisco Avenue.

(3) Development is to maintain the setback controls provided within Part D3 Residential Development of this Plan for land zoned R3 Medium Density Residential.

(4) Development is to provide a grid street layout by extending San Francisco Avenue to connect Arthur Street and Columbus Circuit.

(5) Pedestrian connectivity is to be provided through public open spaces.

(6) Underground parking may protrude above ground to a maximum of 1.5 metres provided that it is adequately screened from the street by landscaping.

(7) Parking is to be confined to the building footprints as detailed in the Arthur Street West Masterplan to maximise the extent of deep soil zones.

(8) The number of driveway entrances are to be minimised.

G3 COFFS HARBOUR CITY CORE PRECINCT

G3.1 CITY CENTRE MASTERPLAN

Applies to Land

This control applies to land within the Coffs Harbour City Centre Masterplan Boundary.

Objectives

- To ensure that development within the City Centre accords with the Coffs Harbour City Centre Master Plan.
- To ensure that development within the City Centre incorporates landscape materials and planting selections in accordance with the Coffs Harbour City Centre Master Plan.
- To provide for missing pedestrian links within the city core.

Requirements

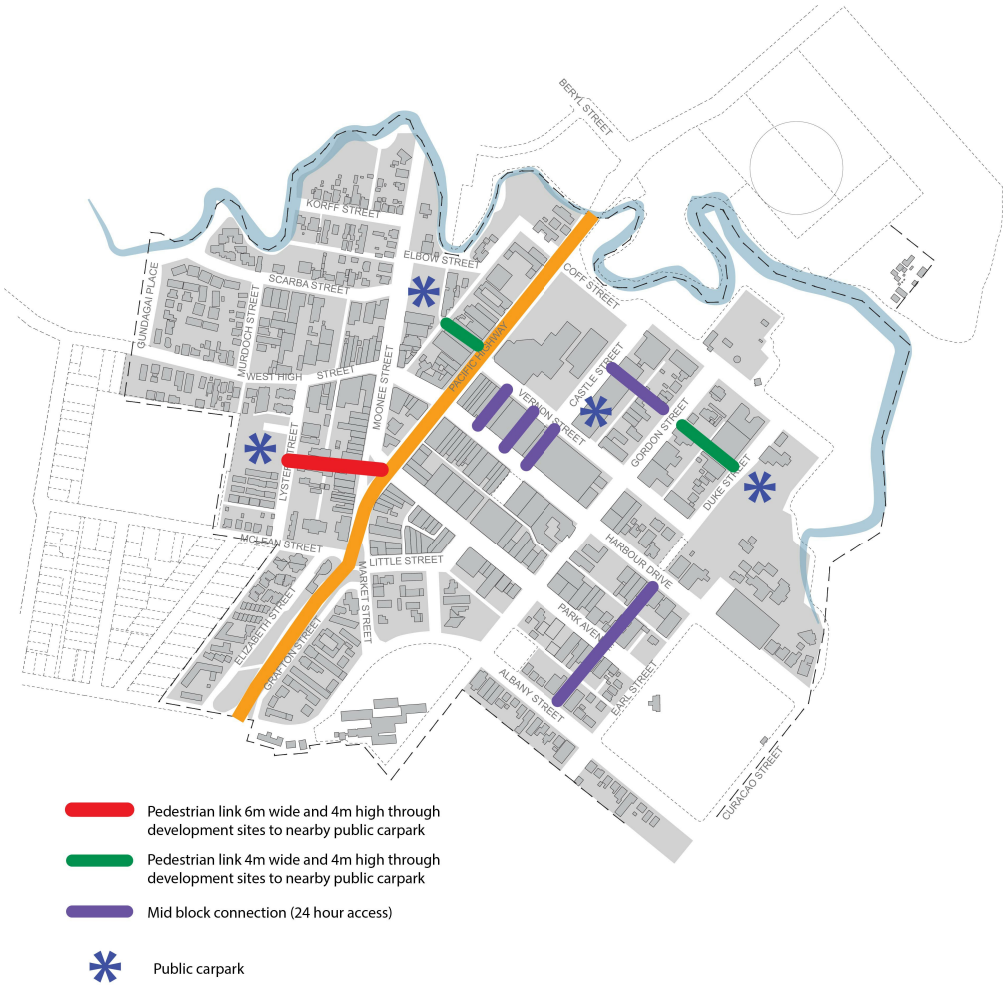
(1) Development is to comply with the principles of the Coffs Harbour City Centre Master Plan and appendices.

(2) Landscape materials and planting selection associated with development proposals are to accord with the Landscape Materials and Planting Section within the Coffs Harbour City Centre Master Plan.

(3) Development adjoining any riparian zone along Coffs Creek is to be designed to provide connectivity to existing public passive open space networks and to enable the utilisation of creek edges for low key recreation and environmental conservation.

(4) Where practicable, pedestrian linkages shown in the following diagram are to be maintained for unrestricted public access as part of any new development or substantial redevelopment:

Desired Pedestrian Links



G3.2 SETBACK REQUIREMENTS

Applies to Land

This control applies to land within the Coffs Harbour City Core Precinct zoned E2 Commercial Centre under Coffs Harbour LEP 2013.

Objectives

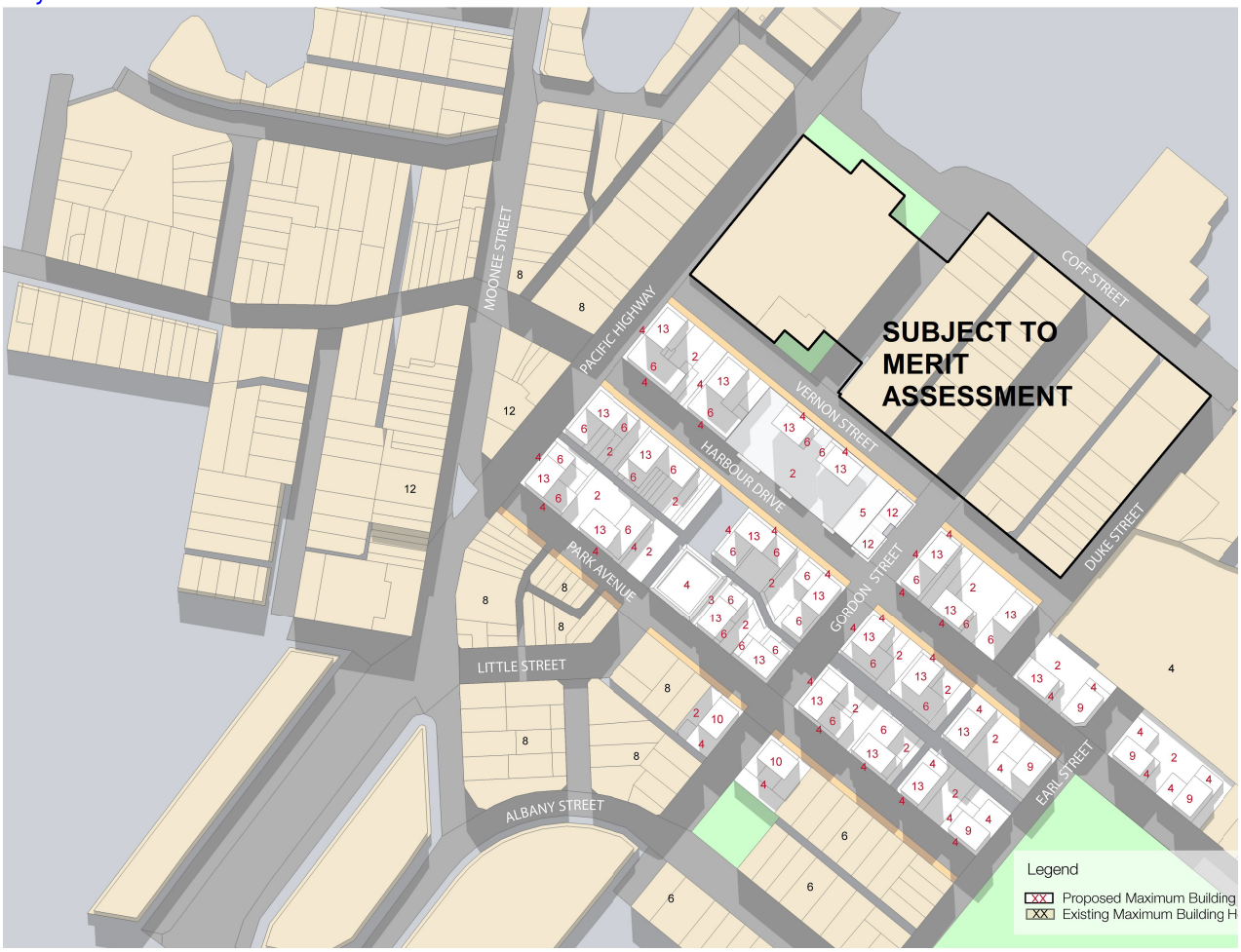
- To ensure that building frontages have consistent alignment and visual appearance.

- To achieve active street frontages along major streets.
- To achieve human scale at the street frontage.
- To ensure an appropriate level of amenity for building occupants in terms of daylight, outlook, view sharing, ventilation and privacy.
- To maintain winter sun access to the public domain.

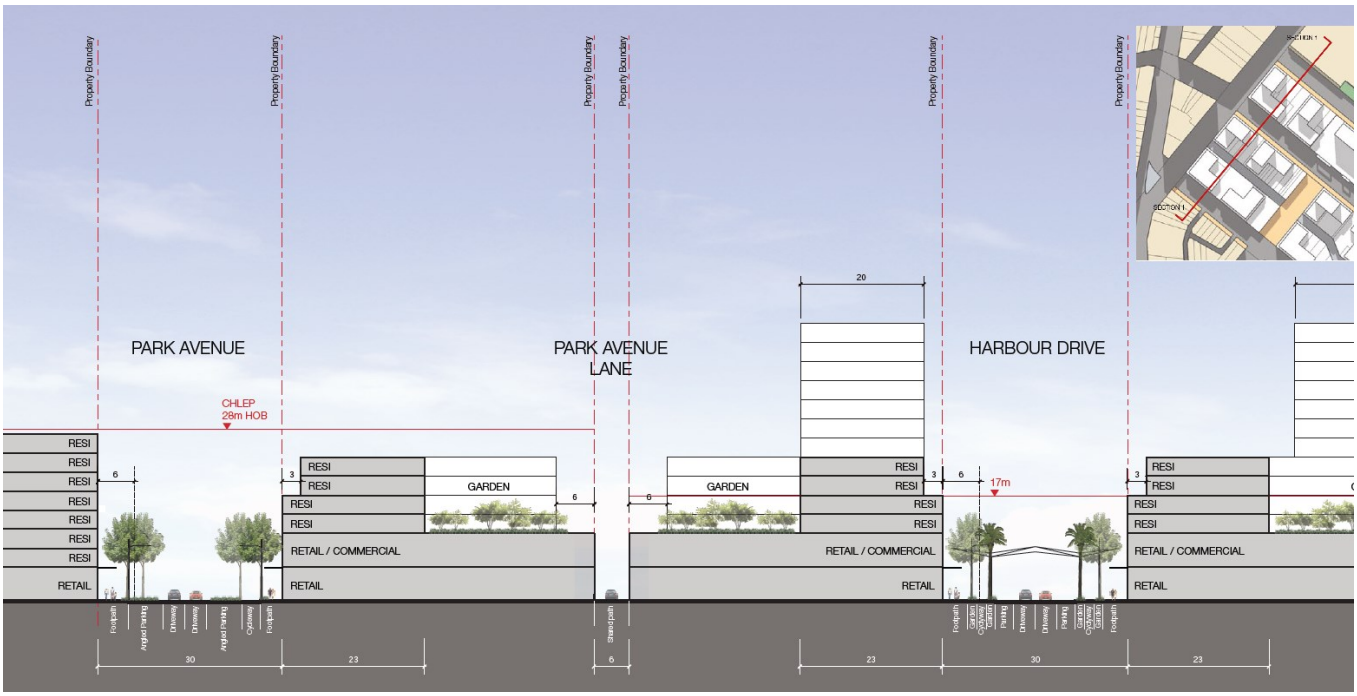
Requirements

(1) Where a front setback requirement is shown on the Front Setbacks Map for land zoned E2 Commercial Centre under Coffs Harbour LEP 2013, buildings are to be setback in accordance with the city core built form diagram. A cross-section example of setbacks is demonstrated below.

City Core Built Form



Cross Section Example of Setbacks



Exceptions

- Regardless of the requirements of this control, new buildings (or substantial redevelopment of existing buildings) are not to encroach on existing winter solar access within the city square (see G3.4 of this Plan).
- Regardless of the requirements of this control, new buildings (or substantial redevelopment of existing buildings) on number 66-90 Harbour Drive are to be setback in accordance with G3.4 of this Plan.
- Regardless of the requirements of this control, new buildings identified for merit assessment are not to unreasonably impact on winter solar access to the public domain.

Notes:

The setback requirement within the city core provides for buildings to have a podium level 'street wall' in accordance with the above referenced diagrams (i.e. maximum height of 17 metres) at the front boundary (zero setback) and then a setback above the podium height of three metres to ensure that the public road/pedestrian area on the opposite building alignment of the primary road receives sunlight between 12pm- 2.00pm on the winter solstice. The pedestrian area is the area extending six metres from the opposite building alignment.

G3.3 DESIGN REQUIREMENTS – GENERAL

Applies to Land

This control applies to land within the Coffs Harbour City Core Precinct.

Objectives

- To ensure that the future character of the area is of an active retail, employment and residential area catering to locals and tourists.

Requirements

(1) New development is to be of a high quality with a mix of uses that encourage safety and activity during the day and night.

(2) New buildings are to generally take the form of edge defining mixed use podium buildings with active frontages at street level.

(3) Podium buildings and above podium level tower buildings are to be:

(a) generously spaced and are to avoid creating a continuous 'wall' of towers which would block sunlight to streets and be of inappropriate scale and bulk; and

(b) are to be designed in accordance with the principles of the city core built form diagrams contained in G3.2 of this Plan.

(4) Where tower buildings are proposed, the maximum tower footprint permitted is 600m^2 (building footprint, not gross floor area).

(5) New development is to maximise permeability of the city block in accordance with the 'desired pedestrian links' diagram contained in G3.1 of this Plan.

(6) Development Applications for buildings greater than four storey in height, must accompanied by a Wind Assessment, which includes details of measures to mitigate any adverse wind effects on the public domain.

Notes:

Rooftop or podium level gardens are encouraged wherever possible.

G3.4 DESIGN REQUIREMENTS – CITY SQUARE

Applies to Land

This control applies to land within the Coffs Harbour City Core Precinct shown on the City Square Plan.

Objectives

- To ensure that the city square continues to be the central public space in the Coffs Harbour Central Business District.
- To improve pedestrian access from Park Avenue and increase the extent of active frontages.

Requirements

(1) Development is to provide active frontages to the pedestrian link connecting the square to Park Avenue.

(2) Vehicle access from Park Avenue Lane is to be restricted adjacent to the square in order to improve pedestrian amenity and allow for active frontages on the southern side of the square.

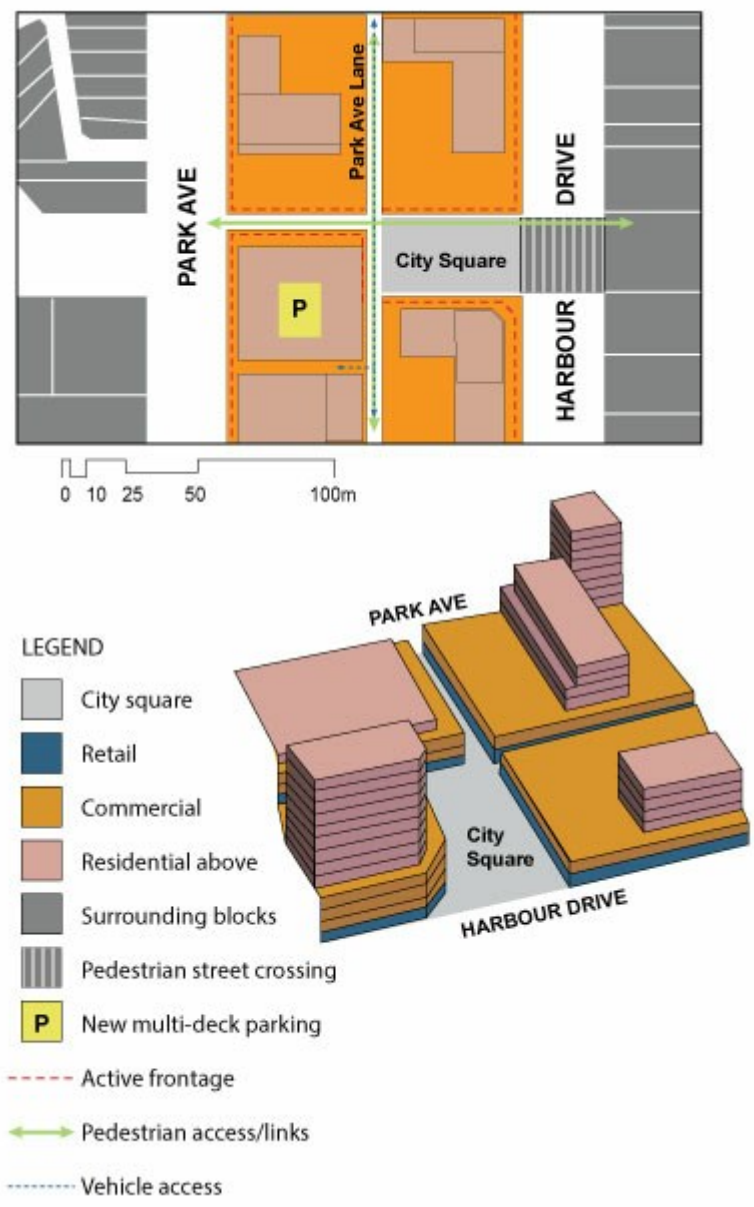
(3) Residential development is to have an upper level setback on the eastern and western sides of the square.

(4) Vehicle and service access is to be confined to Park Avenue Lane.

(5) No driveways are to be constructed adjacent to the square.

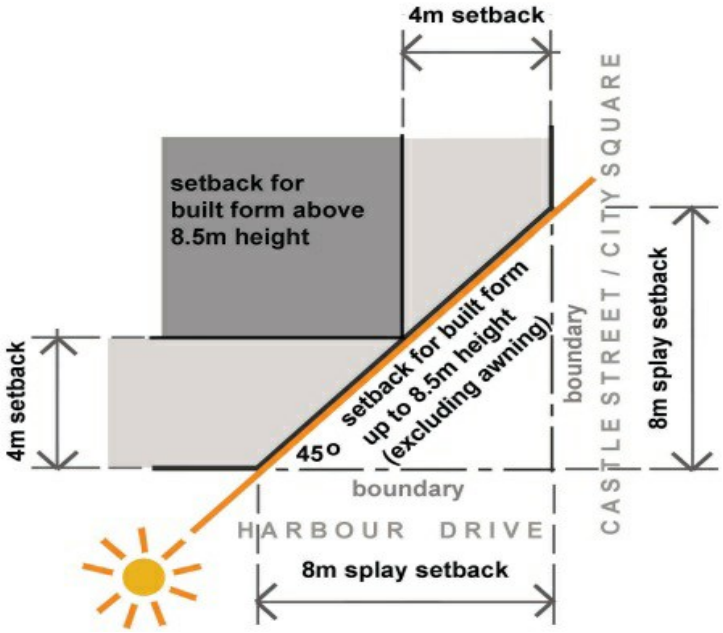
(6) Ground level active frontages and outdoor dining are to be maintained along the square as shown in the City Square Plan below:

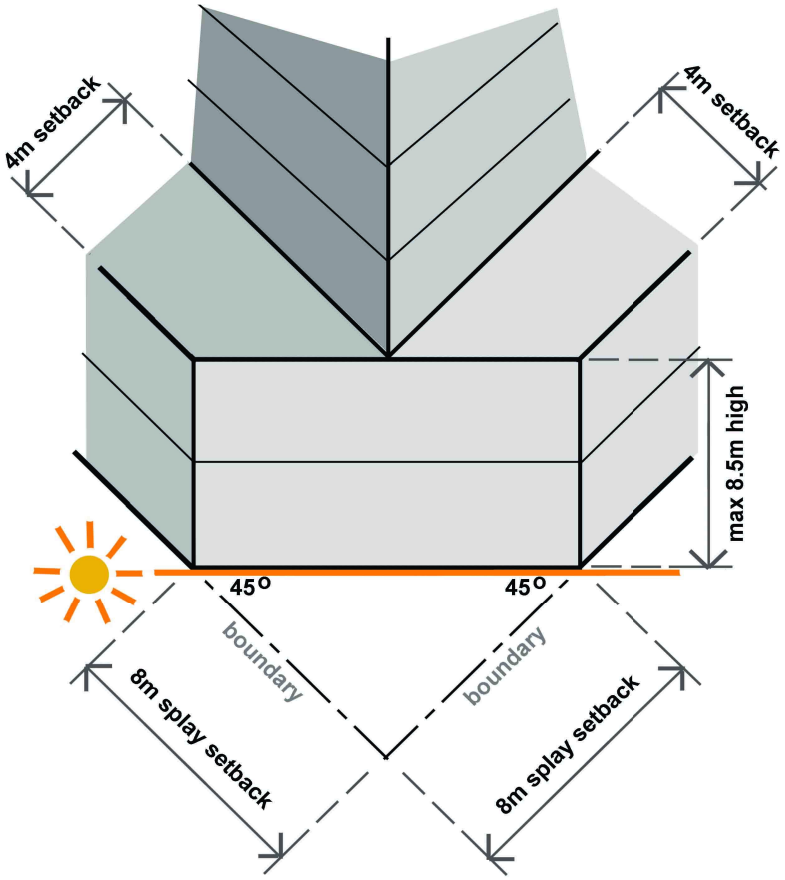
City Square Plan



(7) New buildings (or substantial redevelopment of existing buildings) are not to encroach on existing winter solar access within the city square (refer to relevant clause of Coffs Harbour LEP 2013).

(8) New Buildings (or substantial redevelopment of existing buildings) on number 66-90 Harbour Drive are to be setback in accordance with the following diagrams:


4m setback
setback for
built form above
8.5m height
4m setback
setback for built form
up to 8.5m height
(excluding awning)
45°
boundary
boundary
CASTLE STREET / CITY SQUARE
8m splay setback
HARBOUR DRIVE
8m splay setback


4m setback
4m setback
max 8.5m high
45°
45°
boundary
boundary
8m splay setback
8m splay setback



G4 COFFS HARBOUR JETTY BUSINESS PRECINCT

G4.1 DESIGN REQUIREMENTS

Applies to Land

This control applies to land within the Coffs Harbour Jetty Business Precinct.

Objectives

- To strengthen the area as a tourist precinct with a distinctive character.
- To promote development which complements the 'Jetty Strip'.
- To preserve sight corridors and views to the foreshore area.

Requirements

(1) Shop top housing is encouraged.

(2) Mixed use developments are generally to take the form of edge-defining podium buildings with an upper level setback to residential development (refer to Jetty Business Precinct Concept Plan).

(3) Buildings are to be designed to take advantage of views without significantly compromising the views from surrounding buildings, in particular residential buildings.

(4) Colours, textures and materials of buildings and landscape elements are to reflect the character of the coast, harbour and beaches (i.e. blues, greens and lighter shades).

(5) Buildings are to occupy footprint envelopes shown in the Jetty Business Precinct Concept Plan above to preserve the view corridor toward the harbour along the axis of Harbour Drive and Marina Drive.

(6) Development at the south east end of Harbour Drive is to be distinctive and of a high quality design to mark the gateway to the precinct (see Jetty Business Precinct Concept Plan).

(7) Development referred to in requirement (6) above is to be designed to maintain sight lines to the harbour and beach.

(8) Development adjacent to the railway line is to incorporate mitigation measures designed to reduce the impact of noise and vibration from trains.

(9) Development is to incorporate landscaping in accordance with the relevant controls of F3 Landscaping of this Plan.

(10) Development on land comprising the Jetty Post Office (Lot 1 DP 211339) and on land adjoining the post office is to accord with the relevant requirements of F2 Heritage Conservation of this Plan.

G4.2 SETBACK REQUIREMENTS

Applies to Land

This control applies to land within the Coffs Harbour Jetty Business Precinct.

Objectives

- To ensure that building frontages have consistent alignment and visual appearance.
- To achieve active street frontages.
- To preserve sight corridors and views to the foreshore area.

Requirements

(1) Setbacks are to be provided as shown on the Jetty Business Precinct Concept Plan.

(2) All buildings are to address the street with ground level active frontages where shown on the Jetty Business Precinct Concept Plan.

(3) Buildings can be built to the side and rear boundaries (zero setbacks) where there is no adverse impact upon the amenity of adjoining properties and there is no disruption to overland drainage paths.

G4.3 ACCESS AND PARKING REQUIREMENTS

Applies to Land

This control applies to land within the Coffs Harbour Jetty Business Precinct.

Objectives

- To ensure that appropriate access, vehicular manoeuvring area and on site car parking is provided for development.

Requirements

(1) Laneways are to provide vehicle and service access as shown in the Jetty Business Precinct Concept Plan.

(2) No new driveways are to be constructed off Harbour Drive.

(3) Surface car parking is to be confined to the rear of buildings as shown in the Jetty Business Precinct Concept Plan.

(4) Improvements to Harbour Drive are to include enhanced street tree planting and widened footpaths

to allow space for outdoor dining.

(5) Improvements to Harbour Drive are to include a new mid-block crossing as shown on the Jetty Business Precinct Concept Plan.

(6) Improvements to Harbour Drive are to include a widened footpath and pedestrian connection between Edgar Street and Harbour Drive as shown on the Jetty Business Precinct Concept Plan.

(7) Improvements to the intersection of Harbour Drive, Orlando Street and Marina Drive are to include pedestrian crossings and allow for the creation of an enlarged public plaza on the southeast corner of the intersection.

G5 COFFS HARBOUR VICTORIA STREET PRECINCT

G5.1 DESIGN REQUIREMENTS

Applies to Land

This control applies to land within the Coffs Harbour Victoria Street Precinct.

Objectives

- To develop the former hospital site with a mix of residential dwellings including high quality strata apartments, retirement dwellings, aged housing and other forms of accommodation offering a mixture of dwelling sizes and types.
- To ensure that the former hospital site is developed with regard to the amenity of neighbouring development.

Requirements

(1) Development is to be designed so that buildings with a maximum building height of 22 metres are located towards the centre of the site, with buildings being reduced in height where they front surrounding streets (see Victoria Street Precinct Concept Plan).

(2) Setbacks are to be provided in accordance with the Victoria Street Precinct Concept Plan.

(3) The length of building facades is to broken up to preserve view corridors to the north towards the sea.

(4) All parking is to be contained within building footprints to achieve an attractive streetscape and functional private open space.

(5) Entries and fences are to be designed to provide direct access and encourage the activation of surrounding streets.

(6) Vehicle access is to be limited to Boambee Street and Dibbs Street.

G6 EAST MOONEE/SAPPHIRE BEACH, HEARNES LAKE/SANDY BEACH

G6.1 MASTERPLAN

Applies to Land

This control applies to development and subdivision proposals on land within the East Moonee/Sapphire

Beach and the Hearnes Lake/Sandy Beach urban release areas shown on the East Moonee/Sapphire Beach Masterplan and the Hearnes Lake/Sandy Beach Masterplan.

Objectives

- To enable the coordination of public and private development within the release area.
- To provide for development on land that is free from environmental constraints.
- To protect high conservation value land through recognition of its ecological value and scarcity in the landscape.

Requirements

(1) Development and subdivision proposals are to comply with the principles of:

(a) the East Moonee/Sapphire Beach Masterplan; and

(b) the Hearnes Lake/Sandy Beach Masterplan.

G6.2 INFRASTRUCTURE REQUIREMENTS

Applies to Land

This control applies to development and subdivision proposals on land within the East Moonee/Sapphire Beach Masterplan and the Hearnes Lake/Sandy Beach Masterplan.

Objectives

- To ensure that appropriate infrastructure and utility services are provided to land within the urban release area.
- To ensure that development within the urban release area is responsive to the environmental context of the land.

Requirements

(1) Subdivision proposals are to accord with the requirements of relevant controls within Chapter C1 Subdivision.

(2) Reticulated water and sewerage services are to be provided within the release area by the developer in accordance with the City of Coffs Harbour's Development Servicing Plans and Development Specifications.

(3) Where services identified in the City of Coffs Harbour's Development Servicing Plans are not in place at the time of development, it is the developer's responsibility to forward fund such services.

(4) A collector road link from Moonee Beach Road to the southern boundary of Lot 1 DP 725785 is to be constructed at no cost to the City of Coffs Harbour prior to the subdivision of land.

(5) A bus turning area is to be provided on Hearnes Lake Road as shown on the Hearnes Lake Road Bus Turning Bay Plan.

(6) Future road upgrades along Solitary Islands Way are to accord with the Solitary Islands Way Road Upgrade Plan and the relevant Developer Contributions Plan.

(7) Pedestrian, Shared Paths and Cycleways are to be provided at no cost to the City of Coffs Harbour in accordance with East Moonee/Sapphire Beach Masterplan and the Hearnes Lake/Sandy Beach

Masterplan (unless otherwise specified in the Moonee Area or the Hearnes Lake Sandy Beach Developer Contributions Plans).

(8) Neighbourhood open space areas (including playgrounds) are to be provided at no cost to the City of Coffs Harbour in accordance with the City of Coffs Harbour's Development Specifications (unless otherwise specified in the Moonee Area or the Hearnes Lake Sandy Beach Developer Contributions Plans).

(9) Bus bays (including bus shelters and bus stops) are to be provided within the urban release area at no cost to the City of Coffs Harbour in accordance with the City of Coffs Harbour's Development Specifications and Chapter C1 Subdivision of this Plan (unless otherwise specified in the Moonee Area or the Hearnes Lake Sandy Beach Developer Contributions Plans).

(10) Reticulated water and sewerage services are to be provided within the release area by the developer in accordance with the City of Coffs Harbour's Development Servicing Plans and Development Specifications.

(11) Where services identified in the City of Coffs Harbour's Development Servicing Plans are not in place, it is the developer's responsibility to forward fund such services.

(12) Stormwater drainage within the East Moonee/Sapphire Beach urban release area is to be provided in accordance with C1.9 Water Management Requirements of this Plan and the City of Coffs Harbour's Development Specifications.

(13) Stormwater drainage within the Hearnes Lake/Sandy Beach urban release area is to be provided in accordance with C1.9 Water Management Requirements of this Plan, the City of Coffs Harbour's Development Specifications and the following:

(a) development is to achieve the *modified source and conveyance control treatment strategy* detailed in the report prepared by WBM Oceanics: MUSIC Modelling of Hearnes Lake Catchment, including:

(i) rainwater tanks;

(ii) filter strips;

(iii) vegetated swales;

(iv) bio-retention swales; and

(v) downstream storage.

(b) stormwater infrastructure is not to be provided within the riparian buffer zone specified for Hearnes Lake and Double Crossing Creek in *E1.3* of this Plan;

(c) stormwater infrastructure is not to be provided within bush fire asset protection zones; and

(d) stormwater requirements are to cater for cumulative impacts and shall include treatment measures designed for the ultimate fully developed condition of the land.

G6.3 ENVIRONMENTAL REQUIREMENTS

Applies to Land

This control applies to development and subdivision proposals on land within the East Moonee/Sapphire Beach Masterplan and the Hearnes Lake/Sandy Beach Masterplan.

Objectives

- To protect and maintain high conservation value land within the urban release areas.
- To conserve archaeological sites, Aboriginal objects and Aboriginal places of heritage significance within the urban release areas.
- To protect and maintain the Intermittently Closed and Open Lake or Lagoon within the Hearnes Lake/Sandy Beach Urban Release Area.

Requirements

(1) Subdivision and development proposals are to comply with the relevant controls of E1 Biodiversity of this Plan.

(2) Development should be excluded from areas with a high water table where there is likely to be adverse impacts on groundwater or surface water quality.

(3) Development should be excluded from land within 100m from any identified Osprey nest.

(4) Where practicable, seek to incorporate environment protection areas into the Coffs Coast Regional Park.

(5) Manage foreshore areas in consultation with the Marine Parks Authority and ensure that education and/or interpretation signage is provided for residents and visitors to the area.

(6) Development applications for development and subdivision proposals are to include an assessment of the ecological attributes of the land such as Endangered Ecological Communities, Over Cleared Vegetation Types, Koala Habitat, Potential *Moonee quassia* Habitat; High Value Arboreal Habitat taking into consideration the City of Coffs Harbour's Fine Scale Vegetation Mapping.

(7) Development applications for development and subdivision proposals are to take in consideration Coffs Harbour City Koala Plan of Management 1999.

G6.4 LAND DEDICATION

Applies to Land

This control applies to development and subdivision proposals on land within the East Moonee Beach/Sapphire Beach, Hearnes Lake/Sandy Beach and Emerald Beach urban release areas.

Objectives

- To enable the dedication of suitable land of significant environmental value or public benefit.

Requirements

(1) Land that is unable to be developed due to significant environmental constraints or that is of public benefit may be dedicated to the City of Coffs Harbour via a voluntary planning agreement or other suitable arrangement in accordance with the City of Coffs Harbour's Dedication of Land Policy (unless otherwise specified in the Moonee Area or the Hearnes Lake Sandy Beach Developer Contributions Plans).

(2) Where land identified in requirement number (1) above is to be retained in private ownership, development applications are to be accompanied by sufficient information to demonstrate that the subdivision will not compromise the continued protection and long term maintenance of high conservation value land under Coffs Harbour LEP 2013.

Notes:

Additional mechanisms exist for the in-perpetuity management of high conservation value land, such as the Biodiversity Offsets Scheme administered by the NSW Department of Planning and Environment under the Biodiversity Conservation Act 2016.

G7 KORORA LARGE LOT RESIDENTIAL

G7.1 MASTERPLAN

Applies to Land

This control applies to land within the Korora Large Lot Residential urban release area shown on the Korora Large Lot Residential Masterplan.

Objectives

- To enable the coordination of public and private development within the release area.
- To provide for development on land that is free from environmental constraints.

Requirements

(1) Development and subdivision proposals are to comply with the principles of the Korora Large Lot Residential Masterplan.

G7.2 INFRASTRUCTURE REQUIREMENTS

Applies to Land

This control applies to the subdivision of land within the Korora Large Lot Residential urban release area shown on the Korora Large Lot Residential Masterplan.

Objectives

- To ensure that appropriate infrastructure and utility services are provided to land within the urban release area.
- To ensure that development within the urban release area is responsive to the environmental context of the land.

Requirements

(1) Subdivision proposals are to accord with the requirements of relevant controls within Chapter C1 Subdivision of this Plan.

(2) Road widening and upgrading is to be undertaken in accordance with the Korora Rural Residential Developer Contributions Plan.

(3) Access via a public road is to be provided to all resulting lots in accordance with within C1 Subdivision of this Plan and the City of Coffs Harbour's Development Specifications.

(4) All roads leading to resulting lots are to be upgraded to the following minimum standards:

(a) minimum 4.5 metre wide sealed road pavement with 0.5 metre wide gravel shoulders (0 to 10%

bitumen seal, 10 to 20% Asphalt, >20% reinforced concrete); and

(b) minimum 1.0 metre wide grass verge suitable for safe pedestrian usage; and

(c) a turning area for garbage trucks; and

(d) drainage measures such as stabilised table drains and piped drainage.

(5) Development applications for the subdivision of land are to be accompanied by an on-site effluent disposal report prepared in accordance with the City of Coffs Harbour's On Site Sewage Management Strategy demonstrating that the resulting lots can be adequately serviced.

G7.3 ENVIRONMENTAL REQUIREMENTS

Applies to Land

This control applies to the subdivision of land within the Korora Large Lot Residential urban release area shown on the Korora Large Lot Residential Masterplan.

Objectives

- To protect and maintain high conservation value land.

Requirements

(1) Subdivision proposals are to comply with the relevant controls of E1 Biodiversity of this Plan.

(2) Habitat links identified on the Korora Large Lot Residential Masterplan are to be revegetated with native vegetation.

G7.4 LAND DEDICATION

Applies to Land

This control applies to the subdivision of land within the Korora Large Lot Residential urban release area shown on the Korora Large Lot Residential Masterplan.

Objectives

- To enable the dedication of suitable land of significant environmental value or public benefit.

Requirements

(1) Land that is unable to be developed due to significant environmental constraints or that is of public benefit may be dedicated to the City of Coffs Harbour via a voluntary planning agreement or other suitable arrangement in accordance with the City of Coffs Harbour's Dedication of Land Policy.

(2) Where land identified in requirement number (1) above is to be retained in private ownership, development applications are to be accompanied by sufficient information to demonstrate that the subdivision will not compromise the continued protection and long term maintenance of high conservation value land under Coffs Harbour LEP 2013.

Notes:

Additional mechanisms exist for the in-perpetuity management of high conservation value land, such as the Biodiversity Offsets Scheme administered by the NSW Department of Planning and Environment under the Biodiversity Conservation Act 2016.

G8 NORTH BOAMBEE VALLEY EAST

G8.1 MASTERPLAN

Applies to Land

This control applies to land within the North Boambee Valley East urban release area shown on the North Boambee Valley East Masterplan.

Objectives

- To enable the coordination of public and private development within the release area.
- To provide for development on land that is free from environmental constraints.

Requirements

(1) Development and subdivision proposals are to comply with the principles of the North Boambee Valley East Masterplan.

Notes:
The Masterplan incorporates the preferred Pacific Highway Bypass Route nominated by the NSW Roads and Maritime Services. The alignment of the bypass route may be subject to changes that are not reflected in the Masterplan.

G8.2 INFRASTRUCTURE REQUIREMENTS

Applies to Land

This control applies to the subdivision of land within the North Boambee Valley East Urban Release Area shown on the North Boambee Valley East Masterplan.

Objectives

- To ensure that appropriate infrastructure and utility services are provided to land within the urban release area.
- To ensure that development within the urban release area is responsive to the environmental context of the land.

Requirements

(1) Subdivision proposals are to accord with the requirements of relevant controls within Chapter C1 Subdivision of this Plan.

(2) Traffic calming measures are to be included on Lophostemon Drive and Halls Road to encourage a low speed traffic environment.

(3) Cycleways are to be provided at no cost to the City of Coffs Harbour in accordance with the City of Coffs Harbour's Development Specifications (unless otherwise specified in the North Boambee Valley

East Developer Contributions Plan).

(4) Neighbourhood open space areas (including playgrounds) are to be provided at no cost to the City of Coffs Harbour in accordance with the North Boambee Valley Masterplan (unless otherwise specified in the North Boambee Valley East Developer Contributions Plan).

(5) Bus bays (including bus shelters and bus stops) are to be provided within the urban release areas at no cost to the City of Coffs Harbour in accordance with the City of Coffs Harbour's Development Specifications and Chapter C1 Subdivision of this Plan (unless otherwise specified in the North Boambee Valley East Developer Contributions Plan).

(6) Reticulated water and sewerage services are to be provided within the release area by the developer in accordance with the City of Coffs Harbour's Development Servicing Plans and Development Specifications.

(7) Where services identified in the City of Coffs Harbour's Development Servicing Plans are not in place, it is the developer's responsibility to forward fund such services.

G8.3 ENVIRONMENTAL REQUIREMENTS

Applies to Land

This control applies to the subdivision of land within the North Boambee Valley East urban release area shown on the North Boambee Valley East Masterplan.

Objectives

- To protect and maintain high conservation value land.

Requirements

(1) Subdivision proposals are to comply with the relevant controls of E1 Biodiversity of this Plan.

G8.4 LAND DEDICATION

Applies to Land

This control applies to the subdivision of land within the North Boambee Valley East urban release area shown on the North Boambee Valley East Masterplan.

Objectives

- To enable the dedication of suitable land of significant environmental value or public benefit.

Requirements

(1) Land that is unable to be developed due to significant environmental constraints or that is of public benefit may be dedicated to the City of Coffs Harbour via a voluntary planning agreement or other suitable arrangement in accordance with the City of Coffs Harbour's Dedication of Land Policy (unless otherwise specified in the North Boambee Valley East Developer Contributions Plan).

(2) Where land identified in requirement number (1) above is to be retained in private ownership,

development applications are to be accompanied by sufficient information to demonstrate that the subdivision will not compromise the continued protection and long term maintenance of high conservation value land under Coffs Harbour LEP 2013.

Notes:

Additional mechanisms exist for the in-perpetuity management of high conservation value land, such as the Biodiversity Offsets Scheme administered by the NSW Department of Planning and Environment under the Biodiversity Conservation Act 2016.

G8A NORTH BOAMBEE VALLEY WEST

G8A.1 MASTERPLAN

Applies to Land

This control applies to development and subdivision proposals on land within the North Boambee Valley West urban release area shown on the North Boambee Valley West Masterplan.

Objectives

- To enable the coordination of public and private development within the release area.
- Provide for development on land that is free from environmental constraints.

Requirements

Development and subdivision proposals are to comply with the North Boambee Valley West Masterplan.

G8A.2 INFRASTRUCTURE REQUIREMENTS

Applies to Land

This control applies to development and subdivision proposals on land within the North Boambee Valley West Masterplan.

Objectives

- To ensure that appropriate infrastructure and utility services are provided to land within the urban release area.
- To ensure that development within the urban release area is responsive to the environmental context of the land.

Requirements

(1) Subdivision proposals are to accord with the requirements of relevant controls within Chapter C1 Subdivision of this Plan with the exception of:

(a) street hierarchy and geometry which shall accord with the North Boambee Valley West Masterplan and the cross-sections/design plans in G8A.6 of this Plan; and

(b) C1.1(5) of this Plan, access points from individual lots along North Boambee Road are permitted provided appropriate road safety requirements are satisfied.

(2) Development proposals which involve the rear of property boundaries facing North Boambee Road shall provide consistent landscaping treatment to screen the fence line from North Boambee Road.

(3) Reticulated water and sewerage services are to be provided within the release area at no cost to the City of Coffs Harbour in accordance with the City of Coffs Harbour's Development Servicing Plans and Development Specifications.

(4) Where services identified in the City of Coffs Harbour's Development Servicing Plans are not in place at the time of development, such services are to be forward funded by the proponent. Such services must be provided in a way that facilitates the servicing of adjoining development identified in the North Boambee Valley West Masterplan.

(5) North Boambee Road is to be upgraded in accordance with the North Boambee Valley West Masterplan and the North Boambee Valley West Developer Contributions Plan.

(6) The intersection of North Boambee Road and the existing Pacific Highway is to be upgraded in accordance with the North Boambee Valley West Developer Contributions Plan. The upgrade works involve line-marking on North Boambee Road to achieve to two approach lanes from Mansbridge Drive to the highway intersection, and changes to the operation of the traffic lights and line-marking over the intersection to allow two lanes on North Boambee Road to turn right onto the existing highway.

(7) Streets are to be designed as local residential streets in an inter-connected network in accordance with the street hierarchy identified in North Boambee Valley West Masterplan. The streets are to have regular inter-connections, a legible layout, minimal cul-de-sacs, and provide a choice of routes.

(8) Provide widened street verges to allow for large trees along 'Major Living Street' corridors to provide an entry statement at the two key local road corridors into the urban release area. Provide alternate in-street parking and group plantings of trees in other road corridors to reflect the surrounding rural character. Refer to the cross-sections/design plans in G8A.6 of this Plan.

(9) Roads that cross natural drainage channels are to be constructed of bridges with piered approaches in preference to culverts to maintain stream and wildlife corridor functions.

(10) Intersections and crossings along dedicated pedestrian routes and/or cycleways are to prioritise pedestrians and cyclists' safety and convenience. Pedestrian and/or cyclist refuges are to be provided at these intersections.

(11) Bus bays (including bus shelters and bus stops) are to be provided within the urban release area within 400m of all lots, where possible, at no cost to the City of Coffs Harbour in accordance with the City of Coffs Harbour's Development Specifications and Chapter C1 Subdivision of this Plan (unless otherwise specified in the North Boambee Valley West Developer Contributions Plan), as indicatively shown on the North Boambee Valley West Masterplan.

(12) Pedestrian, shared paths and cycleways are to be provided at no cost to the City of Coffs Harbour in accordance with the North Boambee Valley West Masterplan (unless otherwise specified in the North Boambee Valley West Developer Contributions Plan).

(13) Cul-de-sacs are to be avoided where possible. Where not possible, shared paths are to be provided at or near the head of any cul-de-sac so as to connect with adjacent streets to provide a permeable neighbourhood for pedestrians and/or cyclists. Pedestrian/cycle paths may, in some cases, perform a drainage function and/or provide access for servicing authorities.

(14) The Neighbourhood Park (including playground) is to be provided at no cost to the City of Coffs Harbour in accordance with the City of Coffs Harbour's Development Specifications (unless otherwise specified in the North Boambee Valley West Developer Contributions Plans).

(15) Local parks are to be provided within the urban release area within 500m of all lots, where possible, at no cost to the City of Coffs Harbour in accordance with the City of Coffs Harbour's Development Specifications (unless otherwise specified in the North Boambee Valley West Developer Contributions Plan), as indicatively shown on the North Boambee Valley West Masterplan.

(16) Stormwater drainage within the North Boambee Valley West urban release area is to be provided in accordance with C1.9 Water Management Requirements of this Plan and the City of Coffs Harbour's Development Specifications.

(17) Subdivision proposals are to be designed so that the minimum target lot yield specified in the North Boambee Valley West Developer Contributions Plan is achieved for the land.

(18) Where flood detention infrastructure identified in the North Boambee Valley West Developer Contributions Plan is not in place at the time of development, the development must be designed to mitigate or avoid increases to flood levels upstream or downstream to the detriment of any other property.

Exceptions

- The cross-sections referred to in requirement (1) of this control may be adjusted to accommodate site specific constraints such as topography and road geometry.

Notes:

- ***In respect to the cross-sections in requirement (1) of this control:***
  - ***the 2.6m wide parking / Water Sensitive Urban Design (WSUD) planting in the 'Major Living Street' cross-section represents indented parallel parking with two to three parking spaces between each WSUD planting bed.***
  - ***the 'Major Living Street' loop in the southern section of the residential release area is identified as the potential commercial bus route.***
  - ***the 2.6m wide parking / street tree section represents indented parallel parking, with two to three parking spaces provided between each group planting of street trees.***
- ***The purpose of requirement (2) of this control is to prevent corridors of long, uninterrupted fence line façades along North Boambee Road. Application of this requirement will contribute to safety, connectivity and visual amenity of the streetscape.***

G8A.3 ENVIRONMENTAL REQUIREMENTS

Applies to Land

This control applies to development and subdivision proposals on land within the North Boambee Valley West Masterplan.

Objectives

- To protect and maintain high conservation value land.
- Identify opportunities to develop small areas of high conservation value land for residential purposes and provide compensatory plantings while strengthening and creating ecological linkages.

Requirements

(1) Subdivision and development proposals are to comply with the relevant controls of Chapter E1 Biodiversity of this Plan.

(2) Development and subdivision proposals are to be designed to minimise impacts on high conservation value land as demonstrated in the following figure:

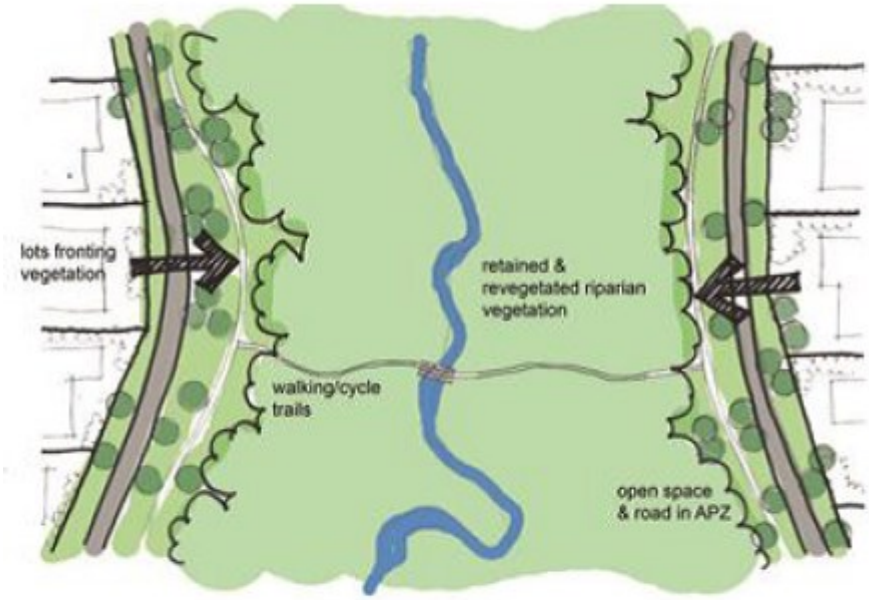


Figure: Future development to front remnant vegetation

(3) Development and subdivision proposals are to be designed so that they strengthen riparian zones with native vegetation as shown on the North Boambee Valley West Masterplan.

(4) Development and subdivision proposals are to be designed so that road networks, lot layouts and public open spaces have strong visual links to landscape features as shown below.

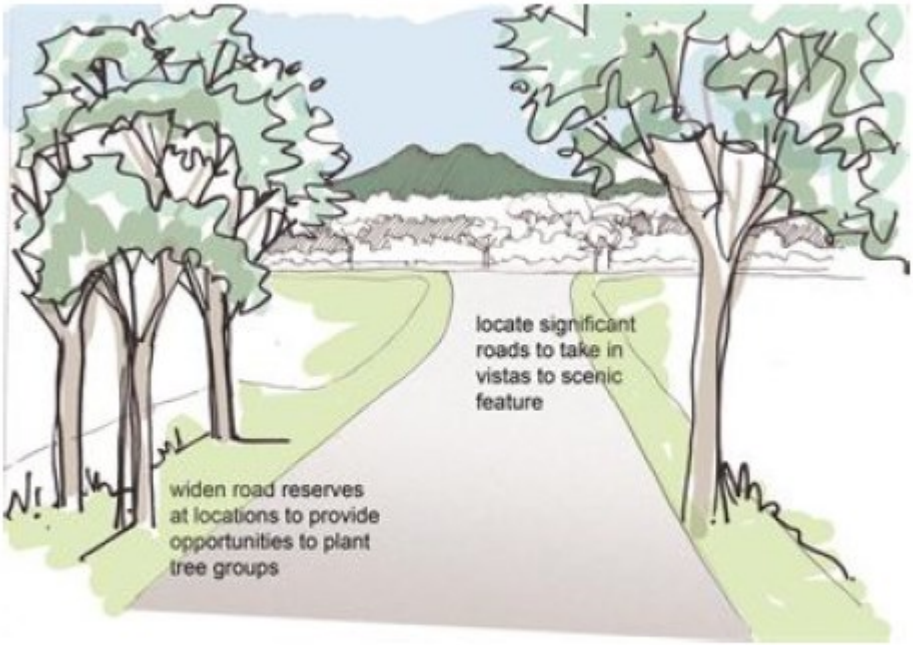


Figure: Roads to have vistas of landmarks and areas of remnant vegetation.

Notes:

Future development applications may be subject to the provisions of the** Biodiversity Conservation Act 2016**. In this regard, consideration should be given to Clause 34A(5) of the** Biodiversity Conservation (Savings and Transitional) Regulation 2017 **in relation to the site being part of a relevant planning arrangement.

G8A.4 AMENITY REQUIREMENTS

Applies to Land

This control applies to subdivision proposals on land within the North Boambee Valley West Masterplan.

Objectives

- To ensure that the impact of noise or vibration from a quarry is considered in the assessment of relevant subdivision proposals.

Requirements

(1) Applications for subdivision within 1000m of a quarry will be required to be accompanied by an acoustic report, identifying measures to ensure future residents are not subject to unacceptable noise or vibration levels.

Notes:

- ***Assessment is to be undertaken by an appropriately qualified person, having regard to the** Noise Policy for Industry **(EPA 2017) and relevant noise and vibration standards.***

G8A.5 LAND DEDICATION

Applies to Land

This control applies to development and subdivision proposals on land within the North Boambee Valley West Masterplan.

Objectives

- To enable the dedication of suitable land of significant environmental value and/or public benefit.

Requirements

(1) Land that is unable to be developed due to significant environmental constraints or that is of public benefit may be dedicated to the City of Coffs Harbour via a voluntary planning agreement or other suitable arrangement in accordance with the City of Coffs Harbour's Dedication of Land Policy (unless otherwise specified in the North Boambee Valley West Developer Contributions Plan).

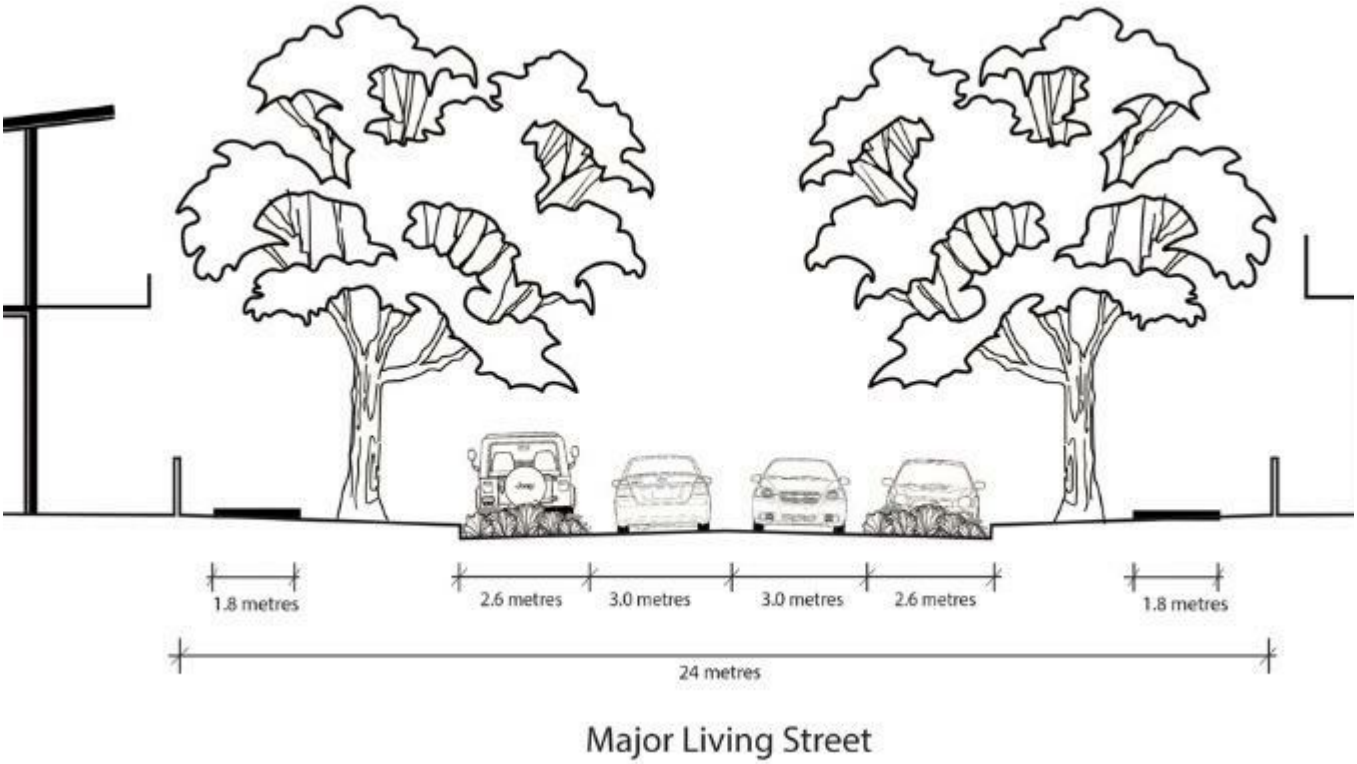
Notes:

Additional mechanisms exist for the in-perpetuity management of high conservation value land, such as the *Biodiversity Offsets Scheme* ***administered by the NSW*** *Department of Planning and Environment* ***under the*** *Biodiversity Conservation Act 2016****.***

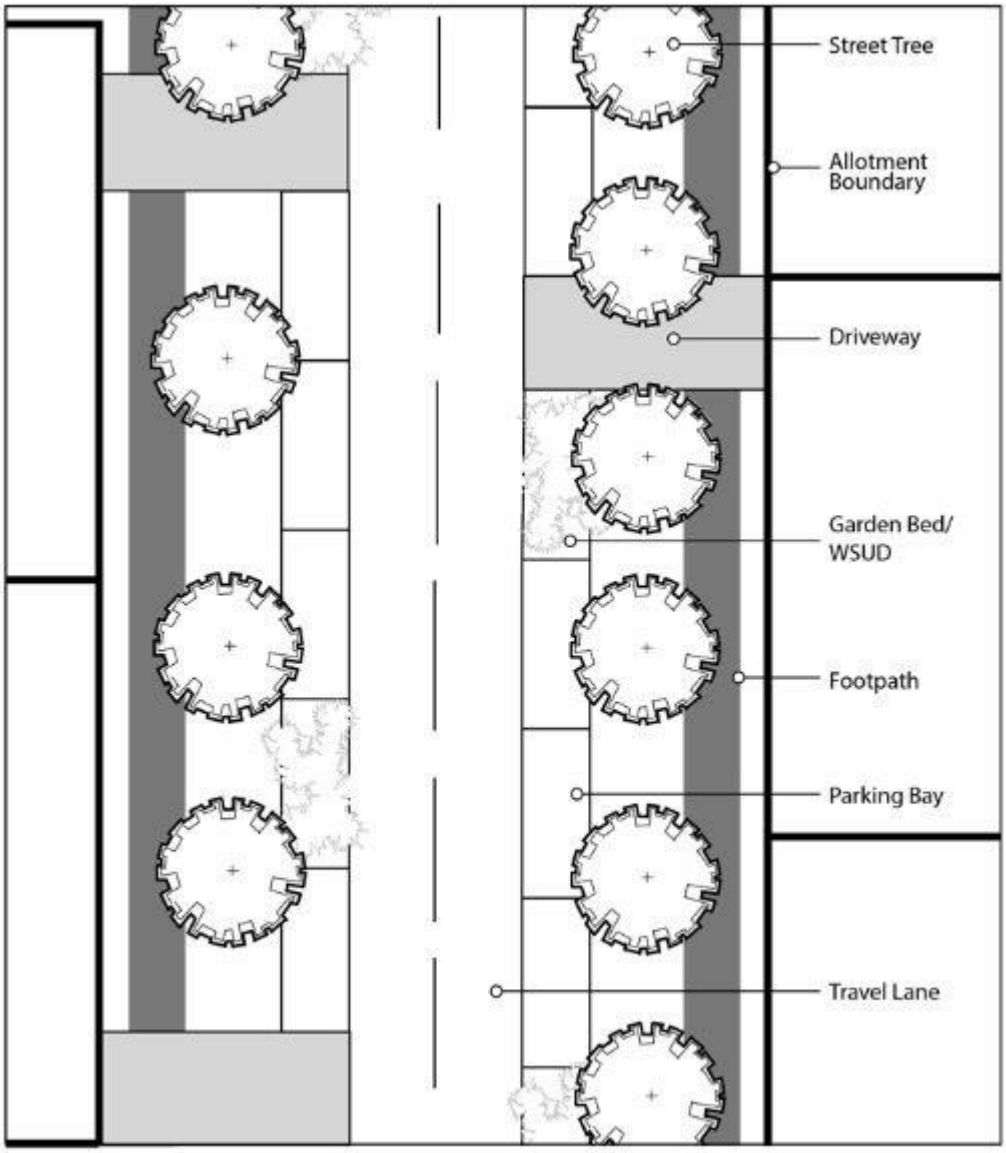
G8A.6 NORTH BOAMBEE VALLEY (WEST) STREET CROSS-SECTION/DESIGN PLANS

Street cross-section/design plans

Typical cross-section for major living street corridors identified in North Boambee Valley West Masterplan

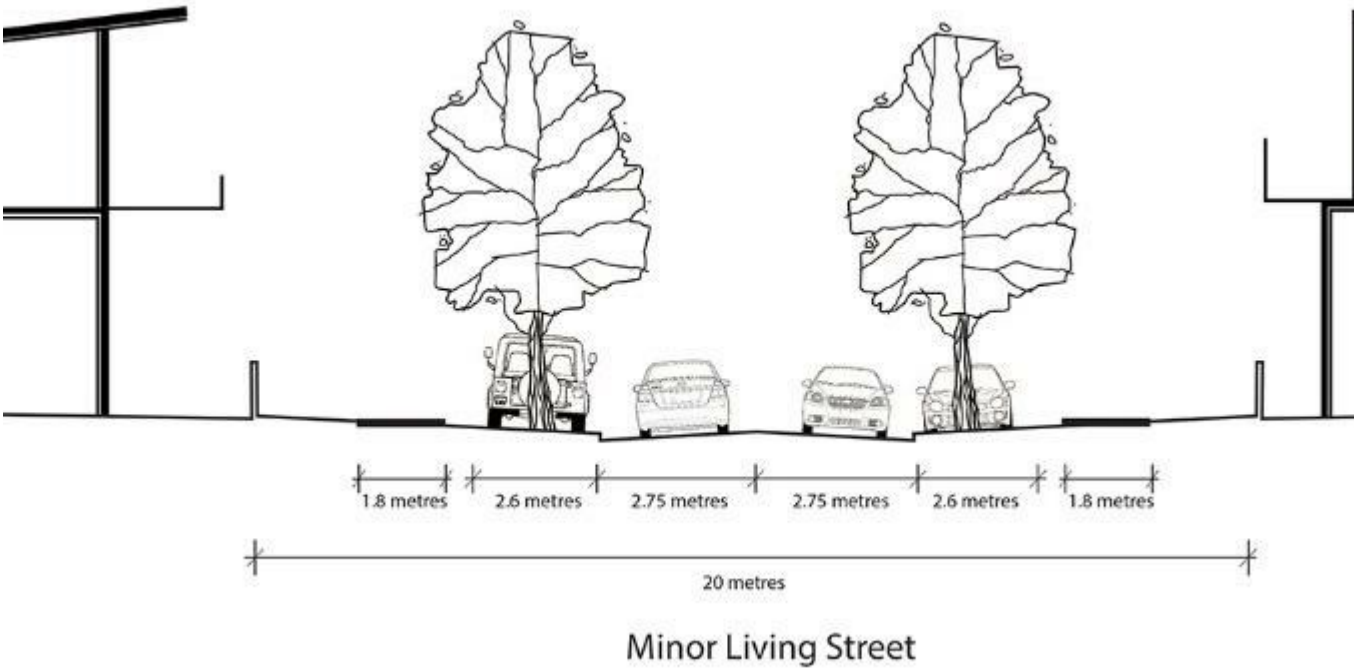


Typical plan for major living street corridors identified in North Boambee Valley West Masterplan

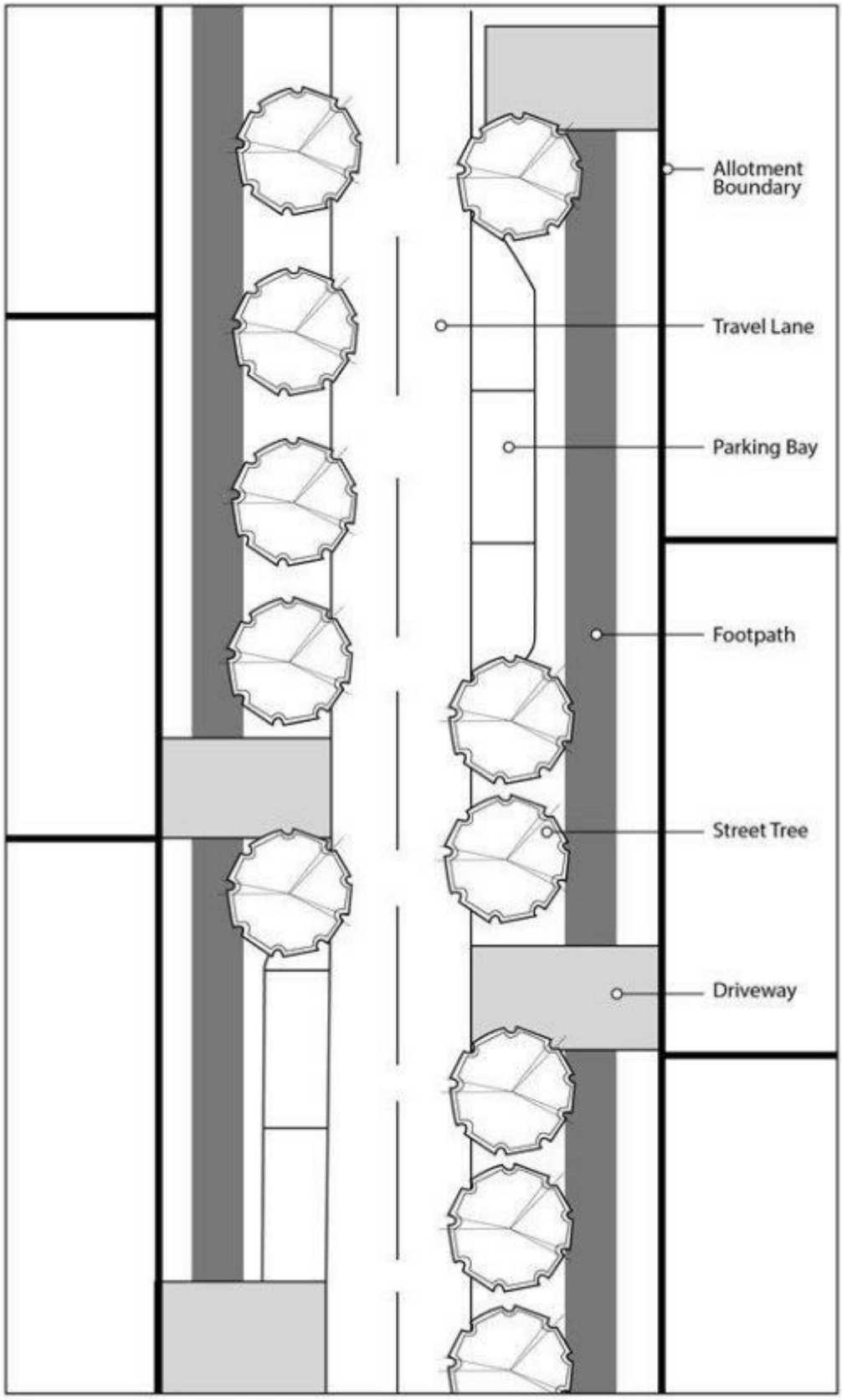


Major Living Street Plan

Typical cross-section for minor living street corridors in North Boambee Valley West Masterplan (all other streets excluding 'Major Living Streets' and North Boambee Road)



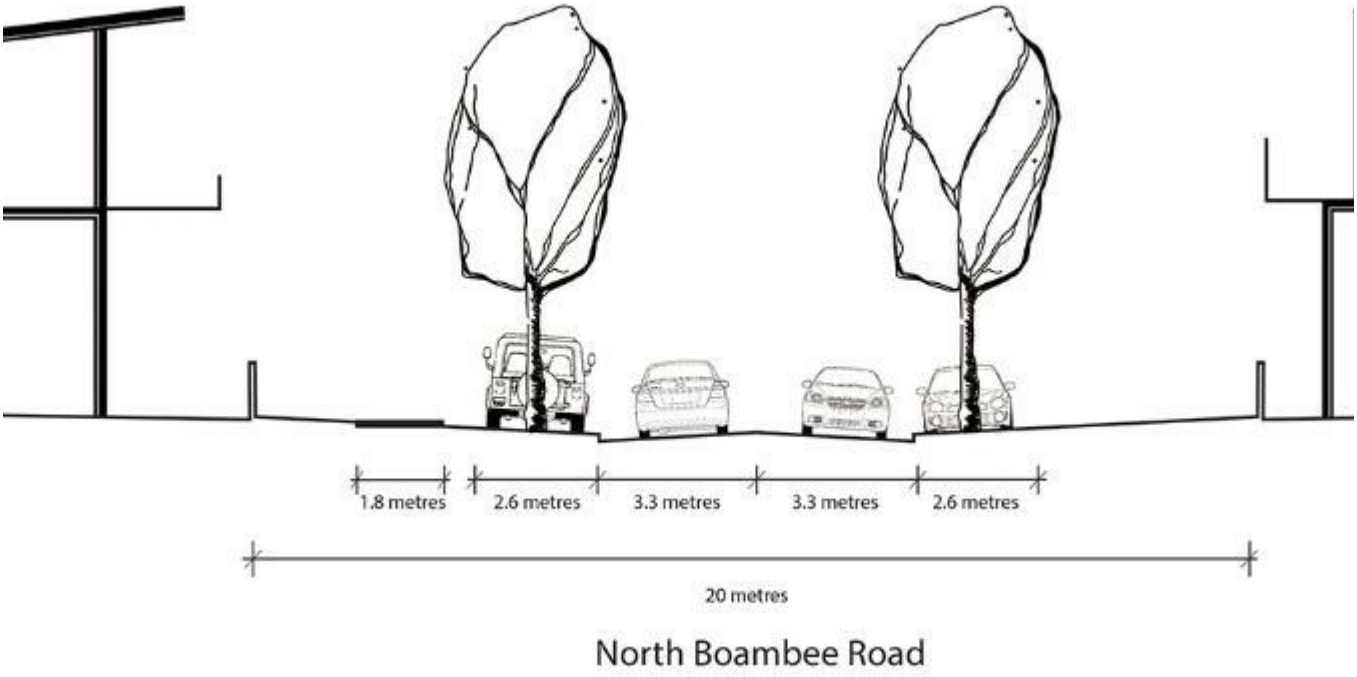
Typical plan for minor living street corridors identified in North Boambee Valley West Masterplan



Minor Living Street Plan

Typical cross-section for North Boambee Road upgrade

(The cross-section and plan layout may be adjusted to accommodate site specific constraints such as topography and adjoining land use)



Typical plan for North Boambee Road upgrade is similar to plan for minor living street corridors with adjustments to accommodate site specific constraints such as topography and adjoining land use

G9 NORTH BONVILLE

G9.1 MASTERPLAN

Applies to Land

This control applies to land within the North Bonville urban release area shown on the North Bonville Masterplan.

Objectives

- To enable the coordination of public and private development within the release area.
- To provide for development on land that is free from environmental constraints.

Requirements

(1) Development and subdivision proposals within the North Bonville urban release area are to comply with the principles of the North Bonville Masterplan.

G9.2 INFRASTRUCTURE REQUIREMENTS

Applies to Land

This control applies to the subdivision of land within the North Bonville urban release area shown on the North Bonville Masterplan.

Objectives

- To ensure that appropriate infrastructure and utility services are provided to land within the urban release area.
- To ensure that development within the urban release area is responsive to the environmental context of the land.

Requirements

(1) Subdivision proposals are to accord with the requirements of relevant controls within Chapter C1 Subdivision of this Plan.

(2) The road hierarchy shall restrict direct access to approved intersections only onto Lyons Road in accordance with the North Bonville Masterplan.

(3) Cycleways are to be provided at no cost to the City of Coffs Harbour in accordance with the City of Coffs Harbour's Development Specifications (unless otherwise specified in the North Bonville Developer Contributions Plan).

(4) Neighbourhood open space areas (including playgrounds) are to be provided in accordance with the North Bonville Masterplan (unless otherwise specified in the North Bonville Developer Contributions Plan).

(5) Bus bays (including bus shelters and bus stops) are to be provided within the urban release areas at no cost to the City of Coffs Harbour in accordance with the City of Coffs Harbour's Development Specifications and Chapter C1 Subdivision of this Plan (unless otherwise specified in the North Bonville Developer Contributions Plan).

(6) Reticulated water and sewerage services are to be provided within the release area by the developer in accordance with the City of Coffs Harbour's Development Servicing Plans and Development Specifications.

(7) Where services identified in the City of Coffs Harbour's Development Servicing Plans are not in place, it is the developer's responsibility to forward fund such services.

(8) The urban release area is to be serviced by the Toormina Reservoir. Any additional pump stations are to be provided at no cost to the City of Coffs Harbour.

G9.3 ENVIRONMENTAL REQUIREMENTS

Applies to Land

This control applies to the subdivision of land within the North Bonville urban release area shown on the North Bonville Masterplan.

Objectives

- To protect and maintain high conservation value land.

Requirements

(1) Subdivision proposals are to comply with the relevant controls of E1 Biodiversity of this Plan.

(2) Specialised koala fencing and signposting is to be provided adjacent to the Bongil Bongil National Park.

(3) Development applications for the subdivision of land are to be accompanied by a management plan prepared in accordance with the Companion Animals Act 1998 aimed at minimising impacts from future housing in the release area on the local koala population.

G9.4 LAND DEDICATION

Applies to Land

This control applies to the subdivision of land within the North Bonville urban release area shown on the North Bonville Masterplan.

Objectives

- To enable the dedication of suitable land of significant environmental value or public benefit.

Requirements

(1) Land that is unable to be developed due to significant environmental constraints or that is of public benefit may be dedicated to the City of Coffs Harbour via a voluntary planning agreement or other suitable arrangement in accordance with the City of Coffs Harbour's Dedication of Land Policy (unless otherwise specified in the North Bonville Developer Contributions Plan).

(2) Where land identified in requirement number (1) above is to be retained in private ownership, development applications are to be accompanied by sufficient information to demonstrate that the subdivision will not compromise the continued protection and long term maintenance of high conservation value land under Coffs Harbour LEP 2013.

Notes:

Additional mechanisms exist for the in-perpetuity management of high conservation value land, such as the Biodiversity Offsets Scheme administered by the NSW Department of Planning and Environment under the Biodiversity Conservation Act 2016.

G10 SAWTELL VILLAGE PRECINCT

G10.1 MASTERPLAN

Applies to Land

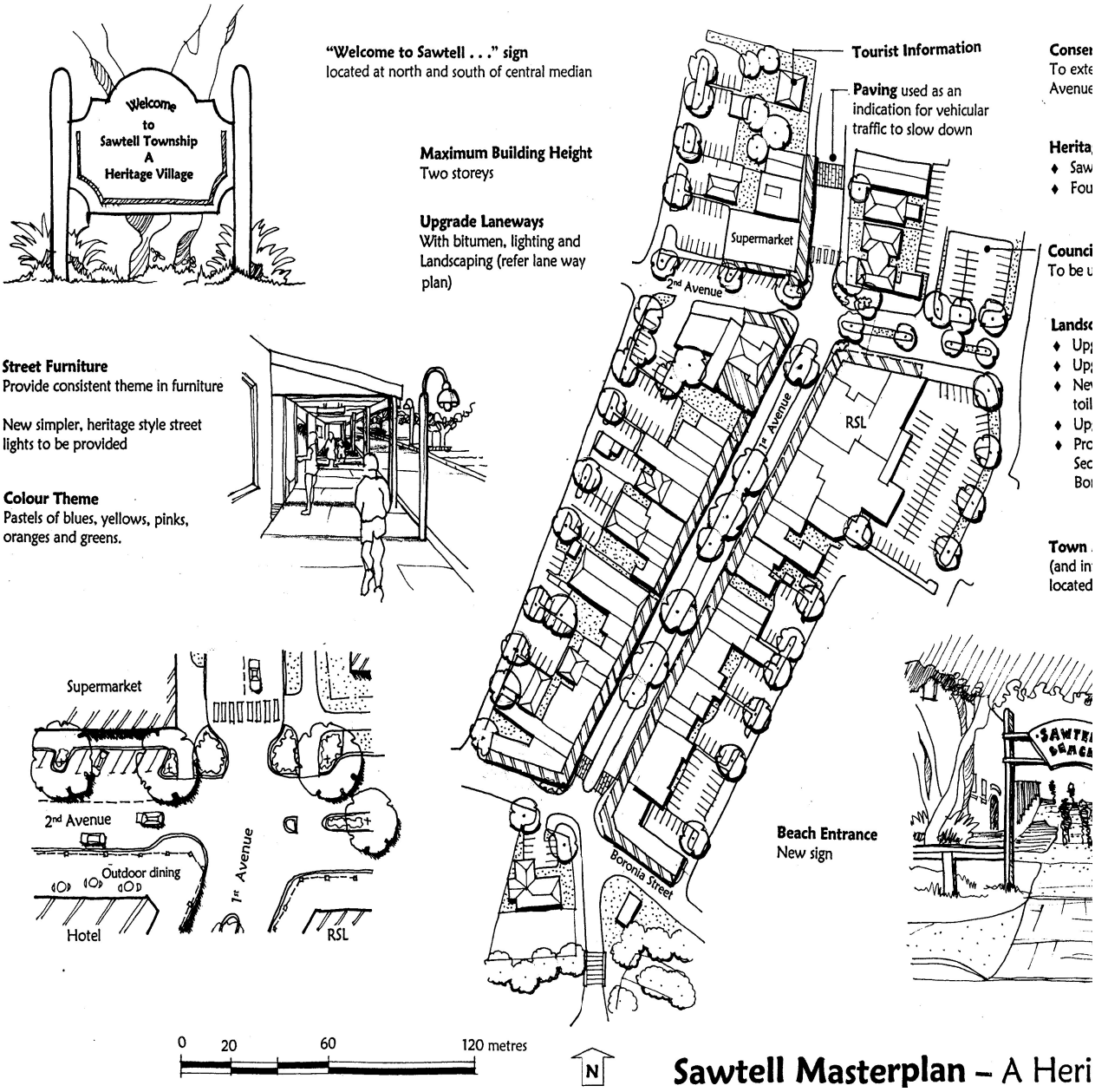
This control applies to land within the Sawtell Village Precinct shown on the Sawtell Village Precinct Masterplan below.

Objectives

- To enhance the character of Sawtell Village commercial, tourist and residential precincts.
- To preserve the heritage significance of the precinct.

Requirements

(1) Development proposals are to comply with the principles of the Sawtell Village Precinct Masterplan as follows:



G10.2 DESIGN REQUIREMENTS

Applies to Land

This control applies to land within the Sawtell Village Precinct shown on the Sawtell Village Precinct Masterplan.

Objectives

- To encourage good urban design practices which complement heritage values within the precinct.

Requirements

(1) Development on corner sites and on sites where vistas are terminated is to be designed to incorporate special architectural emphasis acknowledging the corner or vista.

Design Example for First Avenue and Second Avenue



(2) Development is to provide active street frontages and incorporate awnings in accordance with D1 Commercial Development of this Plan.

G10.3 ACCESS AND PARKING REQUIREMENTS

Applies to Land

This control applies to land within the Sawtell Village Precinct shown on the Sawtell Village Precinct Masterplan.

Objectives

- To reduce interactions between vehicles and pedestrians.
- To encourage good pedestrian connectivity.

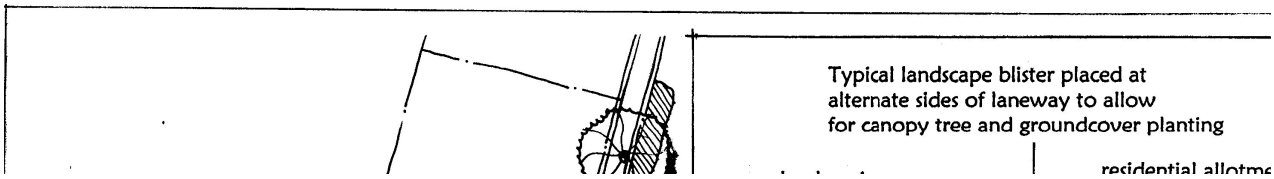
Requirements

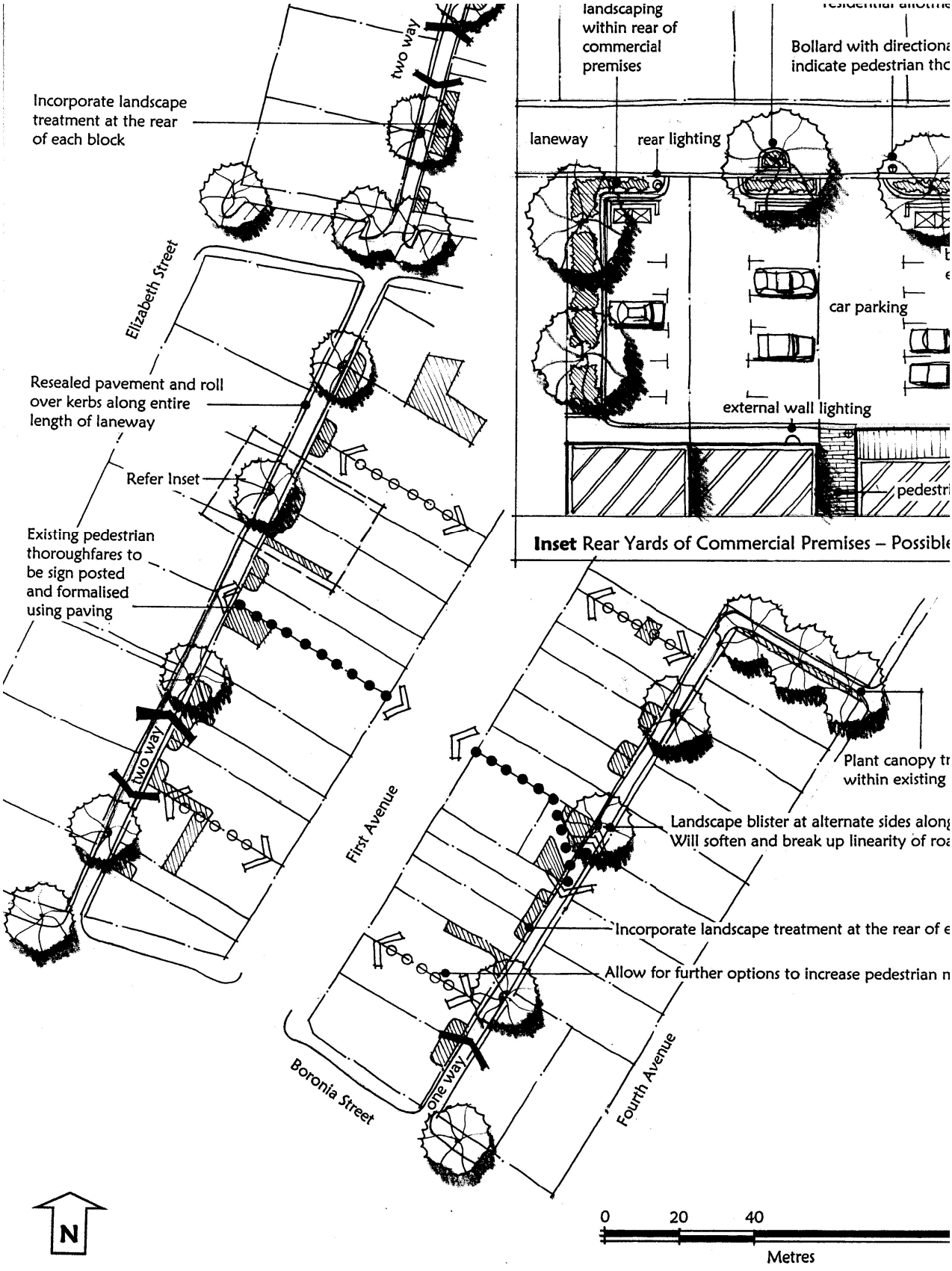
(1) Where rear lane access is available, it is to be used for direct vehicular access and service.

(2) On site parking at the rear of commercial premises is to be maximised, without limiting the ability for landscaping around parking areas (see laneway improvement plan below).

(3) Pedestrian links from First Avenue to rear car parking areas are to be provided to encourage and facilitate the use of rear on-site parking.

(4) Laneway access, landscaping and pedestrian links are to be provided in accordance with the Laneway Improvement Plan as follows:





Laneway Improvement Plan **Sawtell Masterplan** – A Heritage Vil

G10.4 HERITAGE CONSERVATION

Applies to Land

This control applies to land within the Sawtell Heritage Conservation Area shown on the Coffs Harbour LEP 2013 Heritage Map and development on land containing any heritage item listed under Schedule 5 of Coffs Harbour LEP 2013.

Objectives

- To protect and conserve heritage values within the precinct.
- To allow for appropriate adaptive reuse of buildings within the Sawtell Heritage Conservation Area.

Requirements

(1) Development is to comply with the relevant controls of F2 Heritage Conservation of this Plan.

(2) Development is to be designed in accordance with the Sawtell Heritage and Building Design Guidelines.

G11 SOUTH COFFS

G11.1 MASTERPLAN

Applies to Land

This control applies to land within the South Coffs urban release area shown on the South Coffs Masterplan.

Objectives

- To enable the coordination of public and private development within the release area.
- To provide for development on land that is free from environmental constraints.

Requirements

(1) Development and subdivisions proposals area are to comply with the principles of the South Coffs Masterplan.

G11.2 INFRASTRUCTURE REQUIREMENTS

Applies to Land

This control applies to the subdivision of land within the South Coffs Urban Release Area shown on the South Coffs Masterplan.

Objectives

- To ensure that appropriate infrastructure and utility services are provided to land within the urban

release area.

- To ensure that development within the urban release area is responsive to the environmental context of the land.

Requirements

(1) Subdivision proposals are to accord with the requirements of relevant controls within Chapter C1 Subdivision.

(2) Access to the release area is to be provided by two intersections located along Stadium Drive, with no direct access to Stadium Drive permitted from any resulting lot.

(3) Cycleways are to be provided at no cost to the City of Coffs Harbour in accordance with the City of Coffs Harbour's Development Specifications (unless otherwise specified in the South Coffs Developer Contributions Plan).

(4) Neighbourhood open space areas (including playgrounds) are to be provided at no cost to the City of Coffs Harbour in accordance with the City of Coffs Harbour's Development Specifications (unless otherwise specified in the South Coffs Developer Contributions Plan).

(5) Bus bays (including bus shelters and bus stops) are to be provided within the urban release areas at no cost to the City of Coffs Harbour in accordance with the City of Coffs Harbour's Development Specifications and Chapter C1 Subdivision of this Plan (unless otherwise specified in the South Coffs Developer Contributions Plan).

(6) Reticulated water and sewerage services are to be provided within the release area by the developer in accordance with the City of Coffs Harbour's Development Servicing Plans and Development Specifications.

(7) Where services identified in the City of Coffs Harbour's Development Servicing Plans are not in place at the time of development, it is the developer's responsibility to forward fund such services.

G11.3 ENVIRONMENTAL REQUIREMENTS

Applies to Land

This control applies to the subdivision of land within the South Coffs urban release area shown on the South Coffs Masterplan.

Objectives

- To protect and maintain high conservation value land.

Requirements

(1) Subdivision proposals are to comply with the relevant controls of E1 Biodiversity of this Plan.

G11.4 LAND DEDICATION

Applies to Land

This control applies to the subdivision of land within the South Coffs urban release area shown on the South Coffs

Masterplan.

Objectives

- To enable the dedication of suitable land of significant environmental value or public benefit.

Requirements

(1) Land that is unable to be developed due to significant environmental constraints or that is of public benefit may be dedicated to the City of Coffs Harbour via a voluntary planning agreement or other suitable arrangement in accordance with the City of Coffs Harbour's Dedication of Land Policy.

(2) Where land identified in requirement number (1) above is to be retained in private ownership, development applications are to be accompanied by sufficient information to demonstrate that the subdivision will not compromise the continued protection and long term maintenance of high conservation value land under Coffs Harbour LEP 2013.

Notes:

Additional mechanisms exist for the in-perpetuity management of high conservation value land, such as the Biodiversity Offsets Scheme administered by the NSW Department of Planning and Environment under the Biodiversity Conservation Act 2016.

G12 WEST COFFS

G12.1 MASTERPLAN

Applies to Land

This control applies to land within the West Coffs urban release area shown on the West Coffs Masterplan.

Objectives

- To enable the coordination of public and private development within the release area.
- To provide for development on land that is free from environmental constraints.

Requirements

(1) Development and subdivision proposals are to comply with the principles of the West Coffs Masterplan.

G12.2 INFRASTRUCTURE REQUIREMENTS

Applies to Land

This control applies to the subdivision of land within the West Coffs urban release area shown on the West Coffs Masterplan.

Objectives

- To ensure that appropriate infrastructure and utility services are provided to land within the urban

release area.

- To ensure that development within the urban release area is responsive to the environmental context of the land.

Requirements

(1) Subdivision proposals are to accord with the requirements of relevant controls within Chapter C1 Subdivision of this Plan.

(2) Cycleways are to be provided at no cost to the City of Coffs Harbour in accordance with the City of Coffs Harbour's Development Specifications (unless otherwise specified in the West Coffs Developer Contributions Plan).

(3) Neighbourhood open space areas (including playgrounds) are to be provided at no cost to the City of Coffs Harbour in accordance with the City of Coffs Harbour's Development Specifications (unless otherwise specified in the West Coffs Developer Contributions Plan).

(4) Bus bays (including bus shelters and bus stops) are to be provided within the urban release areas at no cost to the City of Coffs Harbour in accordance with the City of Coffs Harbour's Development Specifications and Chapter C1 Subdivision of this Plan (unless otherwise specified in the West Coffs Developer Contributions Plan).

(5) Reticulated water and sewerage services are to be provided within the release area by the developer in accordance with the City of Coffs Harbour's Development Servicing Plans and Development Specifications.

(6) Where services identified in the City of Coffs Harbour's Development Servicing Plans are not in place at the time of development, it is the developer's responsibility to forward fund such services.

G12.3 ENVIRONMENTAL REQUIREMENTS

Applies to Land

This control applies to the subdivision of land within the West Coffs urban release area shown on the West Coffs Masterplan.

Objectives

- To protect and maintain high conservation value land.

Requirements

(1) Subdivision proposals are to comply with the relevant controls of E1 Biodiversity of this Plan.

G12.4 LAND DEDICATION

Applies to Land

This control applies to the subdivision of land within the West Coffs urban release area shown on the West Coffs Masterplan.

Objectives

- To enable the dedication of suitable land of significant environmental value or public benefit.

Requirements

(1) Land that is unable to be developed due to significant environmental constraints or that is of public benefit may be dedicated to the City of Coffs Harbour via a voluntary planning agreement or other suitable arrangement in accordance with the City of Coffs Harbour's Dedication of Land Policy (unless otherwise specified in the West Coffs Developer Contributions Plan).

(2) Where land identified in requirement number (1) above is to be retained in private ownership, development applications are to be accompanied by sufficient information to demonstrate that the subdivision will not compromise the continued protection and long term maintenance of high conservation value land under Coffs Harbour LEP 2013.

Notes:

Additional mechanisms exist for the in-perpetuity management of high conservation value land, such as the Biodiversity Offsets Scheme administered by the NSW Department of Planning and Environment under the Biodiversity Conservation Act 2016.

G13 WEST MOONEE

G13.1 MASTERPLAN

Applies to Land

This control applies to development and subdivision proposals on land within the West Moonee Urban Release Area shown on the West Moonee Masterplan.

Objectives

- To enable the coordination of public and private development within the release area.
- To provide for development on land that is free from environmental constraints.
- To protect high conservation value land through recognition of its ecological value and scarcity in the landscape.

Requirements

(1) Development and subdivision proposals are to comply with the principles of the West Moonee Masterplan.

G13.2 INFRASTRUCTURE REQUIREMENTS

Applies to Land

This control applies to development and subdivision proposals on land within the West Moonee Urban Release Area shown on the West Moonee Masterplan.

Objectives

- To ensure that appropriate infrastructure and utility services are provided to land within the urban release area.
- To ensure that development within the urban release area is responsive to the environmental context of the land.

Requirements

(1) Subdivision proposals are to accord with the requirements of relevant controls within Chapter C1 Subdivision of Land.

(2) Reticulated water and sewerage services are to be provided within the release area by the developer at no cost to the City of Coffs Harbour in accordance with the City of Coffs Harbour's Development Servicing Plans and Development Specifications.

(3) Bus bays (including bus shelters and bus stops) are to be provided within the urban release area at no cost to the City of Coffs Harbour in accordance with the City of Coffs Harbour's Development Specifications and Chapter C1 Subdivision of this Plan (unless otherwise specified in the Moonee Area Developer Contributions Plan).

(4) Sewer pump stations (where required) are to be provided at no cost to the City of Coffs Harbour at the most cost-effective, functionally efficient locations within the West Moonee area as shown indicatively on the West Moonee Masterplan.

(5) Stormwater drainage within the West Moonee area is to be provided in accordance with C1.9 Water Management Requirements of this Plan, and the City of Coffs Harbour's Development Specifications.

(6) Intersection points off Old Bucca Road shall be limited to four (4) as indicatively shown on the West Moonee Masterplan.

(7) Existing rights of carriageway are to become a public road where it is intended to service more than three resulting lots.

(8) Development Application(s) must be accompanied by sufficient traffic analysis taking into consideration the capacity of Old Bucca Road to service the proposed development.

(9) Development Applications for development and subdivision proposals are to accord with the Subdivision Layout and Staging Plan for the timely and efficient release of urban land, making provision for necessary infrastructure and sequencing.

(10) Pedestrian, Shared Paths and Cycleways are to be provided at no cost to the City of Coffs Harbour in accordance with West Moonee Masterplan (unless otherwise specified in the Moonee Area Developer Contributions Plans).

Notes:
Development on bush fire prone land is subject to the provisions of the Rural Fires Act 1997. In this regard, Sections 4.14 and 4.46 of the Environmental Planning and Assessment Act 1979 may be relevant considerations for development and/or subdivision proposals.

G13.3 ENVIRONMENTAL REQUIREMENTS

Applies to the Land

This control applies to development and subdivision proposals on land within the West Moonee Urban Release Area shown on the West Moonee Masterplan.

Objectives

- To protect and maintain high conservation value land within the urban release areas.
- To conserve archaeological sites, Aboriginal objects and Aboriginal places of heritage significance

within the urban release areas.

Requirements

(1) Development applications for development and subdivision proposals are to comply with the relevant controls of E1 Biodiversity of this Plan.

(2) Development applications for development and subdivision proposals are to include an assessment of the ecological attributes of the land such as Endangered Ecological Communities, Over Cleared Vegetation Types, Koala Habitat, Potential *Moonee quassia* Habitat; High Value Arboreal Habitat taking into consideration the City of Coffs Harbour's Fine Scale Vegetation Mapping.

(3) Development applications for development and subdivision proposals are to take in consideration Coffs Harbour City Koala Plan of Management 1999.

(4) Development applications for development and subdivision proposals are to have regard to Flood Hazard as provided within Chapter E4 Flooding of this Plan.

(5) Development applications for development and subdivision proposals are to have regard to Water Quality as provided within Chapter C1 Subdivision of Land and Chapter D3 Residential Development.

(6) Development applications for development and subdivision proposals are to have regard to Aboriginal Heritage as provided within Chapter F2 Heritage Conservation.

(7) Development applications for development and subdivision proposals which are likely to comprise significant rural land use conflicts are to be accompanied by a land use risk assessment prepared in accordance with the Land Use Conflict Risk Assessment Guide (NSW Department of Primary Industries 2011).

(8) Development applications for development and subdivision proposals are to minimise impacts on land adjoining State Forest.

G13.4 LAND DEDICATION

Applies to Land

This control applies to development and subdivision proposals on land within the West Moonee urban release area shown on the West Moonee Masterplan.

Objectives

- To enable the dedication of suitable land of significant environmental value or public benefit.

Requirements

(1) Land that is unable to be developed due to significant environmental constraints or that is of public benefit may be dedicated to the City of Coffs Harbour via a voluntary planning agreement or other suitable arrangement in accordance with the City of Coffs Harbour's Dedication of Land Policy (unless otherwise specified in the Moonee Area Developer Contributions Plan).

(2) Where land identified in requirement number (1) above is to be retained in private ownership, development applications are to be accompanied by sufficient information to demonstrate that the subdivision will not compromise the continued protection and long term maintenance of high conservation value land under Coffs Harbour LEP 2013.

Notes:

Additional mechanisms exist for the in-perpetuity management of high conservation value land, such as the Biodiversity Offsets Scheme administered by the NSW Department of Planning and Environment under the Biodiversity Conservation Act 2016.

G13.5 LAND USE CONFLICT

Applies to Land

This control applies to development and subdivision proposals on land within the West Moonee Urban Release Area shown on the West Moonee Masterplan.

Objectives

- To minimise land use interface issues and risks between rural land uses;

Requirements

(1) Development applications for development and subdivision proposals likely to comprise significant land use conflicts are to be accompanied by a land use risk assessment prepared in accordance with the Land Use Conflict Risk Assessment Guide (NSW Department of Primary Industries 2011).

Notes:
Land uses such as Intensive plant agriculture and intensive livestock agriculture have the potential to result in significant land use conflicts and/or environmental impacts if not managed appropriately. A number of guidelines on various agricultural land use topics have been prepared by the Department of Primary Industries (Agriculture) that may assist in the design of development to minimise impacts associated with these development types.

G14 WEST WOOLGOOLGA

G14.1 MASTERPLAN

Applies to Land

This control applies to land within the West Woolgoolga urban release area shown on the West Woolgoolga Masterplan.

Objectives

- To enable the coordination of public and private development within the release area.
- To provide for development on land that is free from environmental constraints.

Requirements

(1) Development and subdivision proposals are to comply with the principles of the West Woolgoolga Masterplan.

G14.2 INFRASTRUCTURE REQUIREMENTS

Applies to Land

This control applies to the subdivision of land within the West Woolgoolga urban release area shown on the West Woolgoolga Masterplan.

Objectives

- To ensure that appropriate infrastructure and utility services are provided to land within the urban release area.
- To ensure that development within the urban release area is responsive to the environmental context of the land.

Requirements

(1) Subdivision proposals are to accord with the requirements of relevant controls within Chapter C1 Subdivision of this Plan.

(2) The roads and intersections shown on the West Woolgoolga Masterplan shall be constructed at no cost to the City of Coffs Harbour (unless otherwise specified in the West Woolgoolga Developer Contributions Plan).

(3) Cycleways are to be provided at no cost to the City of Coffs Harbour in accordance with the West Woolgoolga Masterplan (unless otherwise specified in the West Woolgoolga Developer Contributions Plan).

(4) Neighbourhood open space areas (including playgrounds) are to be provided at no cost to the City of Coffs Harbour in accordance with the West Woolgoolga Masterplan (unless otherwise specified in the West Woolgoolga Developer Contributions Plan).

(5) Reticulated water and sewerage services are to be provided within the release area by the developer in accordance with the City of Coffs Harbour's Development Servicing Plans and Development Specifications.

(6) Where services identified in the City of Coffs Harbour's Development Servicing Plans are not in place, it is the developer's responsibility to forward fund such services.

(7) The sewer rising main from Pump Station 14 shall be upgraded and diverted along the Pacific Highway to Pullen Street.

(8) Smaller pump stations shall be provided as necessary.

G14.3 ENVIRONMENTAL REQUIREMENTS

Applies to Land

This control applies to the subdivision of land within the West Woolgoolga urban release area shown on the West Woolgoolga Masterplan.

Objectives

- To protect and maintain high conservation value land.

Requirements

(1) Subdivision proposals are to comply with the relevant controls of E1 Biodiversity of this Plan.

G14.4 LAND DEDICATION

Applies to Land

This control applies to the subdivision of land within the West Woolgoolga urban release area shown on the West Woolgoolga Masterplan.

Objectives

- To enable the dedication of suitable land of significant environmental value or public benefit.

Requirements

(1) Land that is unable to be developed due to significant environmental constraints or that is of public benefit may be dedicated to the City of Coffs Harbour via a voluntary planning agreement or other suitable arrangement in accordance with the City of Coffs Harbour's Dedication of Land Policy.

(2) Where land identified in requirement number (1) above is to be retained in private ownership, development applications are to be accompanied by sufficient information to demonstrate that the subdivision will not compromise the continued protection and long term maintenance of high conservation value land under Coffs Harbour LEP 2013.

Notes:

Additional mechanisms exist for the in-perpetuity management of high conservation value land, such as the Biodiversity Offsets Scheme administered by the NSW Department of Planning and Environment under the Biodiversity Conservation Act 2016.

Part H Appendices

Appendix 1 COASTAL HAZARD DEVELOPMENT SCENARIOS AND REPORT GUIDELINES (DEFERRED)

Appendix 2 GUIDELINE FOR PREPARING VEGETATION MANAGEMENT PLANS

Vegetation Management Plans

Vegetation management plans are to be incorporate the requirements provided in the following table:

Vegetation Management Plan Requirements	
Executive Summary	• Author of plan • Qualifications and / or experience.
Description of site and project	• Legal description of land • Site history (i.e. current management practices, fire, logging, contaminants etc.) • Physical attributes of the site (e.g. landform barriers drainage, topography, aspect, lithology, etc.) • Details of existing development on the land • Brief description of proposed development
Aim & Objectives	• Statement of intent (e.g. retention, protection, restoration, relocation or revegetation processes) • Aims and objectives • Relevant legislative requirements and measures required to satisfy such requirements
Maps	• Maps to a suitable scale comprising the following: • Location of subject site within the Coffs Harbour LGA; • Land use zones; • Locally significant environments i.e. regional park, reserves, state forest, national park, SIMP and wildlife corridor linkages • High conservation value vegetation • Spatial arrangement of vegetation to be removed, protected, restored and replanted. • Any natural drainage lines; • Bush fire asset protection zones (if required); and • Any areas proposed to be dedicated to Council
Assessment and description of existing vegetation	• Description of vegetation communities present on the site including floristic composition, structural characteristics, spatial distribution and condition in accordance with volumes 1 & 2 of the Coffs Harbour Fine Scale Vegetation Mapping; • Relevant information from existing studies (i.e. flora and fauna and/ or environmental assessments reports) • Conservation significance of plant communities at a local, regional, state and federal level.

Details of Methodology	• Identification of management zones • Viability of management zone to support restoration, relocation or revegetation processes in the long-term • Restoration techniques to be used in each management zone • Description of seed collection techniques used (if applicable) • Weed extent and specific techniques to be used in weed control • Natural revegetation (if applicable) • Spacing requirements • Planting techniques (e.g. water crystals, fertilising and tree guards) • Planting schedule (including relationship between the planting schedule and weed control) • How the Compensatory Requirements of Chapter E1.2 of this Plan have been achieved.
Measures to protect retained vegetation	• Location of services relative to protection /exclusion zones • Location and design of all short-term and long-term protective fencing (if required) • Specific tree protection measures (if required)
Details of relocation requirements	• Description and justification of any relocation requirements (Refer to Australian Network for Plant Conservation: Guidelines for the Translocation of Threatened Plants in Australia). • Any licensing requirements.
Artificial Hollow resources	• Design (unless otherwise agreed by Council) • Artificial nest boxes will be constructed from local hardwoods. Where local hardwoods are unavailable marine/external grade ply wood with a minimum thickness of 18mm can be substituted. • The inside face of the artificial nest boxes will have measures to assist with internal access to the exit hole e.g. slots cut. • Boxes will be screwed using stainless steel or galvanised screws (not nails) and the base will have a minimum of three drainage holes of not more than 10mm diameter. • Toxic substances will not be used in the construction. • A 40 mm to 50 mm thick layer of sawdust will be provided in the base of the artificial nest box to replicate the inside of decaying hollows. • Installation • Nest boxes are to be installed within areas of intact native vegetation under supervision of a suitably qualified ecologist. • Nest boxes will be installed prior to commencement of works, and may be undertaken in a staged approach if the subdivision is staged. • Nest boxes should be placed to avoid hot afternoon sun. • All nest boxes should be attached to the tree using the 'Habisure' system (Franks and Franks 2011) or similar durable external grade fixing system that does not damage the tree. • Details of each nest box installed should be recorded for future monitoring and should include GPS location, tree species and nest box type.

Maintenance, monitoring and reporting processes	• Weed control, planting and reporting schedules: • timeframes • ongoing target areas and priority species • practical maintenance issues • allocation of responsibility • number of reports required. Note: for areas to be dedicated to Council a report must be submitted following initial works, and then 12 monthly progress reports until the management of the land is passed to Council. • responsibility
Costing	• Initial works (weed control/revegetation or restoration) • Follow up weed/ planting requirements, i.e.: • five year plan budget including first two years (four to eight visits/year depending on condition) and the last three years (two to four visits/year depending on condition); or • ten year plan budget including first four years (four to eight visits/year depending on condition) and the last six years (two to four visits/year depending on condition). • For areas to be dedicated to Council costing must be allocated for the reporting of initial works and 12 monthly progress reports until the management of the land is passed to Council.

- *For further information regarding maintenance timeframes refer to the Dedication of Land Policy.*

Appendix 3 LANDSCAPING SPECIES AND UNDESIRABLE WEED SPECIES

RECOMMENDED PLANTS

The following lists specify a range of plants preferred for use in landscaping and general garden applications in Coffs Harbour. The lists are not exhaustive and a variety of other suitable species and cultivars are also available.
Species marked (LN) indicates locally occurring native species which may be available from nurseries and suited to landscaping or natural area restoration. Information on where local native species can be obtained is available via Coffs Harbour Regional Landcare.
Species marked (K) indicates a Koala feed tree.
Stehn C 2015, 'A guide to species selection for revegetation projects in the Coffs Harbour Local Government Area', Coffs Harbour City Council, Coffs Harbour, New South Wales, Australia, available on the City of Coffs Harbour website site is also a good resource.

LARGE TREES >10m(Generally not suited for residential lots)	Height (m)	FEATURES
Acacia melanoxylon (Black Wattle) (LN)	30	Erect or spreading tree; bark deeply fissured, pale yellow flowers and strongly curved or twisted seed pods
Ackama paniculata (Soft Corkwood)	40	Medium-sized tree with corky fawn-coloured bark
Alphitonia excelsa (red Ash) (LN)	25	Spreading shade producing habit when a larger tree with an overall greyish green appearance
Allocasuarina littoralis (Black Oak) (LN)	15	An erect conical shaped tree which has dark fissured bark
Aphananthe philippinensis (Rough Leaved Elm) (LN)	35	Fruit eaten by a variety of birds

Araucaria cunninghamii (Hoop Pine) (LN)	60	Symmetrical, cone-shaped tree
Araucaria heterophylla (Norfolk Island Pine)	20+	Striking pyramidal form and dark green leaves. Coast tolerant
Backhousia anisata (Aniseed Tree) (LN)	45	Dense crown with soft and corky bark and white and sweetly scented flowers
Brachychiton acerifolius (Illawarra Flame Tree)	20+	Scarlet flowers in late spring. Prefers ample water
Brachychiton discolour (Lace Bark)	20+	Pink flowers in late spring/summer
Brachychiton populneus (Kurrajong) (LN)	20	Attractive tree featuring flowers that are creamy-white and speckled dark red in throat
Calodendron capense (Cape Chestnut)	15+	Pink perfumed flowers in autumn and spring. Broad spreading tree. Prefers ample water
Casuarina glauca (Swamp Oak) (LN)	10+	Single trunked upright tree with an open conical habit and thick needle like foliage
Cinnamomum oliveri (Oliver Sassifras) (LN)	30	Fragrant cream flowers and black olive like fruit
Cryptocarya glaucescens (Jackwood) (LN)	35	Eaten by rainforest birds
Cryptocarya microneura (Murragun) (LN)	25	Eaten by rainforest birds
Cryptocarya obovata (Pepperberry) (LN)	40	Eaten by rainforest birds
Cryptocarya triplinervis (Three Vein Laurel) (LN)	20	Distinctive veins on leaves with a large black seed
Diploglottis australis (Native Tamarind) (LN)	10+	Slender, palm-like gully tree that bears sweet, tart fruits prolifically each season
Dysoxylum mollissimum (Red Bean) (LN)	35	Large and impressive tree with a buttressed or flanged base and bird attracting fruit.
Ehretia acuminata (Koda) (LN)	30	Deciduous in winter
Elaeocarpus grandis (Quandong) (LN)	35	Large buttressed trunk with vertically flat visible roots and a bright blue fruit
Elaeocarpus obovatus (Hard Quandong) (LN)	45	Large and impressive tree
Endiandra discolor (Rose Walnut) (LN)	40	Buttressed rainforest tree
Endiandra sieberi (Corkwood) (LN)	30	Black and shiny egg shaped fruit
Eucalyptus microcorys (Tallowood) (LN) (K)	40+	Distinctive red-brown bark, which is soft and fibrous
Eucalyptus robusta (Swamp Mahogany) (LN) (K)	25	Red-brown bark, stringy (shortly fibrous), thick and spongy.
Eucalyptus punctata (Grey Gum) (LN) (K)	25	Bark of various shades of grey, white and orange hues, which sheds in large sheets, giving the trunk a patchy appearance.
Eucalyptus propinqua (Small-fruited Grey Gum) (LN) (K)	40	Bark smooth, patchy, matte, grey or grey-brown, shedding in large plates or flakes
Eucalyptus tereticornis (Forest Red Gum) (LN) (K)	50	Bark smooth, white or grey, shedding in large plates or flakes
Eucalyptus pilularis (Blackbutt) (LN) (K)	70	Bark persistent on full trunk, grey-brown, shortly fibrous to stringy, smooth above, white to grey, shedding in long ribbons
Eucalyptus grandis (Flooded Gum) (LN) (K)	50	Bark persistent on lower trunk (a few metres only), grey, fibrous-flaky, smooth above, powdery, white or grey, shedding in short ribbons or flakes
Eucalyptus saligna (Blue Gum) (LN) (K)	55	Trunk has smooth pale grey or white bark with a long (1 to 4 m high) 'skirt' of rough brownish bark at the base.

Eucalyptus signata (Scribbly Gum) (LN) (K)	25	Bark is blotchy white with scribbles. White flowers form between July and September
Eucalyptus maculata (Spotted gum) (LN) (K)	45	Bark smooth throughout, powdery, white, grey or pink, often spotted, shedding in small polygonal flakes
Euroschinus falcatus (Ribbonwood)	30	Small, pink flowers followed by fleshy, black fruits up to 1cm long
Flindersia australis (Australian Teak)	20+	White flowers in summer. Large star shaped woody fruit
Flindersia schottiana (Bumpy Ash, Cudgeri)	20+	Masses scented white flowers in summer. Large dark green leaves. Shade tolerant
Gmelina leichhardtii (White beech)	10	A handsome shade or specimen tree for large gardens. Masses of white and purple flowers cover the tree every three to four years
Grevillea baileyana and *G. hilliana*	15+	White flowers in spring. Leaves bronze or silver underside. Prefers composted soils
Grevillea robusta (Silky Oak)	20+	Orange tooth brush flowers in spring
Guioa semiglauca (Guioa) (LN)	20	Outer bark is smooth, often coloured and patterned by various lichens
Jagera pseudorhus (Foambark) (LN)	30	Attractive form, base flanged in larger trees
Jacaranda mimosaefolia (Jacaranda)	15	Blue flowers in late spring, light green ferny foliage. Deciduous during flowering
Litsea australis (Brown Bollygum) (LN)	20	Butterfly larvae and birds use this plant as a food source
Lophostemon confertus (Brush Box)	40	Rough brown bark on lower trunk and smooth pinkish brown bark on upper trunk and branches
Melaleuca quinquenervia (Broad Leaf Paper Bark) (LN) (K)	15+	Cream flowers late summer to winter. Red flowering form available. Tolerates wet and dry soils
Melicope hayesii (small leaved Euodia)	18	Slender tree. White flowers, glossy dark green leaves
Melicope micrococca (White Euodia)	25	Shrub or slender tree. White flower clusters and bird attracting fruit
Orites excelsus (Prickly Ash) (LN)	30	New growth is covered in rusty hairs, but the leaves become smooth
Pittosporum rhombifolium (Holly Leaf Pittosporum) (LN)	25	Appealing white flowers and orange fruit
Planchonella australis (Black Apple) (LN)	30	Edible fruit resembling plums
Podocarpus elatus (Plum Pine) (LN)	30	Attractive ornamental tree with edible fruits
Polyscias elegans (Celerywood) (LN)	30	Fast-growing medium-sized tree with an attractive palm-like or umbrella-shaped crown
Polyscias murrayi (Pencil Cedar) (LN)	20	Unbranched at the end of the main trunk, then breaks out into a many branched crown
Sloanea australis (Maidens Blush) (LN)	30	Common name refers to the colour of the heartwood and the colour of the new leaves
Sloanea woollsii (Yellow Carabeen) (LN)	15	Large tree with plank-buttresses sometimes extending 2–5 m up the trunk
Stenocarpus sinuatus (Firewheel Tree)	10-15	Orange / red whorl flowers in summers. Glossy green leaves. Dense columnar shape
Syncarpia glomulifera (Turpentine) (LN)	60	Cream flowers appear in spring

Syzygium crebrinerve (Purple Cherry) (LN)	45	Fruit matures from January to April, being a flattened berry
Syzygium francisii (Giant Water Gum) (LN)	30	Fruit matures from January to April, being a flattened berry
Toona australis (Red Cedar)	20	Fragrant cream flowers in late spring

SMALL - MEDIUM TREES TO 10m	Height (m)	FEATURES
Acmena smithii (Lilly Pilly) (LN)	10	White flowers in summer followed by attractive pink fruit
Acronychia imperforata (Beach Acronychia) (LN)	10	Small bushy tree featuring clusters of yellow flowers through summer and autumn
Acronycia littoralis (Scented Acronychia) (LN)	6	Small tree with lemon coloured fleshy fruit that is citrus scented
Alectryon coriaceus (Beach Birds Eye) (LN)	3	Bushy & hardy shrub tolerating exposure to salt-laden winds. Highly decorative bird-attracting fruit.
Alectryon subcinereus (Wild Quince) (LN)	8	Bird attracting, bear's clusters of small pale pink flowers in January to February.
Allocasuarina torulosa (Forest oak) (LN)	10	Corky light brown bark with deep fissures, pale green needle like leaves.
Alloxylon flammeum (Tree Waratah)	10+	Red waratah like flowers in late spring. Prefers good soil and protected site
Archidendron grandiflorum (Fairys Paintbrush) (LN)	15	Showy pink and cream colored flowers
Arytera divaricata (Coogera) (LN)	10	Usually less than 10m but could reach 35m
Backhousia citriodora (Lemon Scented Myrtle)	8	Profuse white flowers in summer. Lemon scented foliage with coppery new growth
Backhousia myrtifolia (Carol, Cinnamon Myrtle)	7	Masses of cream flowers in spring. Cinnamon scented foliage with coppery new growth
Banksia integrifolia (Coastal banksia) (LN)	15	Hardy and versatile garden plant with pale yellow flowers
Buckinghamia celsissima (Ivory Curl Tree)	10	Cream grevillea like flowers in autumn/spring
Callicoma serratifolia (Black Wood) (LN)	10+	Pale yellow flowers similar to Acacia
Callistemon viminalis (Weeping Bottle Brush)	8	Red bottle bush flowers spring/summer and often at other times of the year. Tolerates wet or dry soils. Weeping habit
Callistemon salignus (Pink Tips Bottle Brush) (LN)	10	Cream bottle brush flowers late spring/autumn. Bright pink new growth especially in spring. Tolerates wet or dry soils. Moderately frost tolerant
Cassine australis (Red Olive Plum) (LN)	8	Fruit are a bright orange or red
Celtis paniculata (Native Celtis) (LN)	8	Fruit are a bright orange or red
Claoxylon austale (Brittlewood) (LN)	9	Greenish flowers in the months of October to November
Clerodendrum tomentosum (Hair Lollybush) (LN)	15	Upper leaf surface sometimes hairy. Hairy under the leaf, soft and downy to touch
Commersonia bartramia (Brown Kurrajong) (LN)	10	Small tree or shrub
Commersonia fraseri (Brush Kurrajong) (LN)	8	Found in rainforest and wet eucalypt forest
Cryptocarya rigida (Rose Maple) (LN)	10	Common around rainforest or eucalyptus ecotone areas

Cupaniopsis anarcardioides (Tuckeroo)	10	White flowers followed by orange fruit in summer. Dark green leathery leaves. Coast tolerant.
Delonix regia (Poinciana)	10	Scarlet flowers in summer, bright green ferny foliage. Wide spreading tree with drooping horizontal branches
Elaeocarpus reticulatus (Blueberry Ash) (LN)	10	White or pink fringed bell flowers in spring followed by bright blue fruit.
Endiandra virens (White Apple) (LN)	10	Small tree with bright green leaves and large fruit
Ficus coronata (Creek Sandpaper Fig) (LN)	10	Bird attracting fruit and rough leaves
Ficus fraseri (Sandpaper Fig) (LN)	10+	Fast-growing, ornamental species
Glochidion ferdinandi (Cheese Tree) (LN)	10+	Attractive shape and pumpkin-shaped fruit, which are green at first before turning shades of white and pink.
Gordonia axillaris (Gordonia)	4	Large white camellia like flowers in autumn. Prefers humus rich soil and ample moisture
Hicksbeachia pinnatifolia (Bobblenut) (LN)	10	Fleshy, red, fruits during spring and summer
Homalanthus populifolius (Bleeding Heart) (LN)	4	Heart-shaped or triangular leaves
Hymenosporum flavum (Native Frangipani) (LN)	10+	Clusters of fragrant flowers in spring
Lagerstroemia indica (Crepe Myrtle)	7	Red, pink, purple or white flowers in spring. Attractive trunk. Deciduous
Melaleuca linariifolia (Snow in Summer) (LN)	10	Distinctive and attractive white or creamy white flowers, papery bark and a dense canopy
Melaleuca sieberi (Siebers Paperbark) (LN)	10	Small tree with white, grey or brown papery bark and small heads of fluffy flowers in spring
Neolitsea dealbata (White Bolly Gum) (LN)	12	Glossy leaves which have whitish undersides
Pandanus tectorius var. australianus (Screw Pine) (LN)	10+	Attractive shaped tree supported by prop roots that firmly anchors the tree to the ground
Pittosporum undulatum (Sweet Pittosporum) (LN)	15	Orange woody fruits
Rapanea variabilis (Muttonwood) (LN)	15	Cream flowers form in clusters along the ends of branches
Sarcopteryx stipata (Steelwood) (LN)	10	White or cream flowers appear from August to October
Synoum glandulosum (Scentless Rosewood) (LN)	7	A bushy often multi trunked tree whose fruits are relished by King Parrots
Syzigium australe (Weigulga Bush Cherry) (LN)	10	White flowers followed by rose purple fruit in autumn. Coffs Harbour floral emblem
Syzygium luehmannii (Riberry) (LN)	10	White flowers followed by abundant pink/red fruit in summer. Attractive new growth in shades of pink. Pointed columnar form
Syzygium oleosum (Blue Lilly Pilly) (LN)	15	Small and white-cream colored flowers and a purplish red fruit
Syzygium paniculatum (Magenta Lily Pilly)	10	White flowers followed by rose/purple fruit in autumn
Tristaniopsis laurina (Water Gum)	5	Yellow flowers in summer, attractive bark. Tolerates wet and dry soils

PALMS AND TREE FERNS	Height (m)	FEATURES
Archontophoenix cunninghamiana (Bangalow Palm)	20	Tall slender trunks topped with a crown of fronds

Chrysalidocarpus lutescens (Golden Cane Palm)	10	Gold green leaves and stems. Clumping habit
Cyathea australis (Rough Tree Fern) (LN)	12	Large fronds to 4m long.
Cyathea cooperi (Rough Tree Fern)	6	Large fronds to 3m long. Scaly trunk. Fast growing
Dicksonia Antarctica (Soft Tree Fern)	6	Large light green fronds to 3m long. Soft furry trunk. Some frost tolerance
Howea fosteriana (Kentia Palm)	9	Attractive green trunk and pendulous leaves
Livistona australis (Cabbage Tree Palm)	30	Moist areas, flower spikes with sprigs of cream-white flowers
Roystonia regia (Royal Palm)	15+	Large stately palm with contoured trunk
Wodyetia bifurcata (Foxtail Palm)	7-15	Light green arching fronds with plumes of foliage

SMALL PALMS AND PALM LILLIES	Height (m)	FEATURES
Chamedorea elegans (Cane Palm)	3	Needs shade
Cordyline stricta (LN) and *petiolaris* (Palm Lily)	3	Mauve flowers in spring, black berries in summer. Local native species. Tolerates shade, wet or dry soils
Cordyline – coloured leaf forms	3	Red, pink, striped leaf forms. Prefer some shade
Crinum pedunculatum Swamp Lily (LN)	1.5	Large white spider flowers in spring/summer. Large green leaves . Local native species. Tolerates wet or dry soils and salt winds
Doryanthes excelsa (Gymea Lily)	1.5	Red flower on tall flowering spike (to 3-4m) in spring
Dracaena coloured leaf and variegated forms (Dragon Plant, Happy Plant)	4	Green, green/yellow or green/red striped foliage
Lomandra longifolia and *hystrix* (Mat Rush) (LN)	1.5	Green strappy foliage. Local native speciesTolerates wet or dry soils and salt winds
Macrozamia communis (Burrawang)	3	Large leathery dark green fern leaves. Local native species
Philodendron selloum	2	Large dark green indented leaves

TALL SHRUBS	Height (m)	FEATURES
Acacia floribunda (Sally Wattle) (LN)	6	Fast-growing with beautiful flowers. Some individuals are allergic to *A. floribunda* pollen
Acacia suaveolens (Sweet Wattle) (LN)	3.5	Pale yellow to near white globular flowers
Acacia terminalis (Sunshine Wattle) (LN)	6	Pale yellow to near white globular flowers
Acacia myrtifolia (Myrtle Wattle) (LN)	3	Creamy white or pale yellow globular flowers
Acacia ulicifolia (Prickly Moses) (LN)	3	Cream-coloured globular flowers
Archirhodomyrtus beckleri (Rose myrtle) (LN)	6	Small white, mauve or pink flowers and a yellow to red berry
Atractocarpus bethamianus (Native Gardenia) (LN)	8	Scented flowers and large glossy dark green leaves.
Banksia sp. & cultivars eg *ericifolia* & Giant Candles (Banksia)	5	Orange cone flowers in autumn / winter
Banksia oblongifolia (Dwarf Banksia) (LN)	3	Many-stemmed shrub with leathery serrated leaves and yellow flower spikes
Banksia spinulosa (LN)	6	Long narrow leaves with flowers which can vary in colour, commonly yellowish with black or purple spines

Breynia oblongifolia (Dwarf's Apple) (LN)	3	Small green flowers followed by orange or pink berries
Callicarpa penunculata (Velvet Leaf) (LN)	4	Dark-purple berries in drupes
Callistemon upright cultivars eg. Endeavour, Pink Surprise, Mauve Mist, Eureka (Bottle Brush)	3-4	Red or pink bottlebrushes in spring. Upright habit. Tolerates wet or dry soils
Callistemon viminalis weeping cultivars eg. Dawson River Weeper, Kings Park Special, Hannah Rae, Harkness (Weeping Bottlebrush)	4	Red bottlebrushes in spring and autumn. Weeping habit. Tolerate wet or dry soils
Camelia sasanqua	3	Large camelia flowers in various pink and white forms in autumn
Eupomatia laurina (Bolwarra) (LN)	5	Glossy leaves with urn shaped fruit forming on the branches.
Grevillea – tropical forms eg Honey Gem, Pink Surprise, Robyn Gordon, Sandra Gordon and Orange Marmalade (Tropical Grevillea)	3-4	Large flowers in various colours Spring and autumn
Hibiscus diversifolius (Swamp Hibiscus) (LN)	3	Yellow flowers with a maroon basal spot
Hibiscus heterophyllus (Native Rosella) (LN)	6	Flowers vary from white to yellow
Hibiscus splendens (Pink Hibiscus) (LN)	6	Spectacular pink coloured flowers are around 7cm long
Hibiscus tiliaceus (Cottonwood) (LN)	8	Rich maroon-green foliage and bright yellow flowers
Hovea longipes (Brush Hovea) (LN)	3	Small purple flowers followed by berries
Indigofera australis (Native Indigo) (LN)	3	flower color ranges from soft purple hues to pink
Jacksonia scoparia (Dogwood) (LN)	6	Yellow 'pea' type flowers
Leptospermum cultivars eg Cardwell	3	White flowers in spring
Leptospermum flavescens (LN)	4	Vigorous growing shrub with attractive weeping habit and masses of small white flowers
Lophostemon 'Billy Bunter' (Dwarf Brush Box)	3	Large green foliage with bronze new growth. Rounded form
Melaleuca cultivars eg Purpurea	3	Blue/green foliage, purple new growth. Tolerates wet soils
Melaleuka thymifolia (Thyme Honey Myrtle) (LN)	3	Small clusters of rich mauve flowers
Melastoma malabathricum (Blue Tounge/Native Lasiandra) (LN)	3	Pink/purple flowers and distinctive fruit
Michelia figo (Port Wine Magnolia)	3	Shiny green foliage, fragrant cream/burgundy flowers
Myoporum boninense (Coastal Boobialla) (LN)	3	Thick, fleshy, glossy leaves, white flowers in small groups
Pilidiostigma glabrum (Plum Myrtle) (LN)	5	New leaf and stem growth has a rich plum colour.
Pittosporum multiflorum (Orange Thorn) (LN)	5	Dense foliage provides a habitat for small birds and animals, attractive globular orange fruit
Polyscias sambucifolia (Elderberry Penax) (LN)	8	Yellow/green flowers
Psychotria daphnoides (Smooth Psychotria) (LN)	4	Dense clumping bushy shrub
Psychotria loniceroides (Hairy Psychotria) (LN)	5	Clusters of white flowers
Pittosporum revolutum (Yellow Pittosporum) (LN)	3	Clusters of orange fruit
Soanum aviculare (Kangaroo Apple) (LN)	4	Flowers are white, mauve to blue-violet, and followed by berries
Syzygium paniculatum Dwarf and Bronze Leaf Forms (Lilly Pilly or Brush Cherry)	3	Magenta berries in summer. Colourful new growth in some forms

Tabernaemontana pandacaqui (Banana Bush) (LN)	14	White or pale yellow flowers with fruit that is orange, red or yellow
Wilkiea huegeliana (Veiny Wilkiea) (LN)	8	Shiny black fruit
Xanthostemon chrysanthus (Golden Pender)	3	Yellow flower balls in summer. Sheltered position

SMALL-MED SHRUBS	Height (m)	FEATURES
Abelia grandiflora (bronze, gold and dwarf forms)	1-2	Coloured foliage, pink bell flowers in spring
Acalypha various forms (Fiji Fire Plant)	1.5-2	Coloured foliage – bronze, crimson and green/gold forms
Allamanda neriifolia	1.5	Large yellow flowers spring and summer
Aucuba japonica (Gold Dust Plant)	2	Dark green leaves with gold markings. Requires part shade
Banksia spinulosa (Hair pin Banksia)	2	Orange yellow flower cones in winter/spring. Local native
Banksia robur (Swamp Banksia)	2	Yellow banskia cones in winter, attractive cones. Tolerates wet soils
Callistemon Captain Cook	2	Masses of red bottle brush in spring and other seasons
Callistemon var (Dwarf Bottlebrush eg 'Little John', 'Anzac')	1	Bottlebrush flowers, various colours
Croton	2	Brightly colour foliage and interesting leaf forms
Ixora chinense various forms eg. Prince of Orange (Jungle Flame)	1.5	Orange flower balls in spring and summer
Melalueca linariifolia dwarf forms eg. Snowstorm	1.5	White flowers in spring. Soft light green foliage. Tolerates wet soils
Plumbago auriculata	1	Blue or white flowers – autumn/spring
Prostanthera incisa (Mint Bush) (LN)	2	Highly aromatic foliage with a purple flower
Solanum densevestitum (Felty Solanum) (LN)	1	Pale white to violet flowers occur throughout the year
Syzygium wilsonii (Powder Puff Lilly Pilly)	2	Large red flower balls in summer. Pink and red new growth in spring
Westringea fruticosa (Coast Rosemary)	2	White flowers in spring. Blue/green foliage
Wikstroemia indica (Bootlace Plant) (LN)	1.5	Small shrub with glossy leaves, small greenish-yellow flowers and toxic red fruits
Zieria smithii (Sandfly Zieria) (LN)	2	Small flowers are usually white and are arranged in groups

GROUND COVERS	Height (m)	FEATURES
Ajuga reptans (bugle flower)	0.2	Dark green/bronze leaves, blue flower
Alocasia brisbanensis (Cunjevoi) (LN)	2	Large fleshy leaves
Alpinia caerulea (Native Ginger) (LN)	3	Leaves are up to 40 cm long and 3–10 cm wide
Austromyrtus dulcis (Midyim Berry)	1 x 1	White flowers, white speckled edible berries. Copper new growth
Banksia – dwarf cultivars	to 1m	Prostrate growth, cone flowers
Billardiera scandens (Apple Berry) (LN)	0.5	Oblong berries
Brachyscome spp. (Native Daisy) (LN)	0.4 x 0.6	range of colours such as yellow, pink, mauve and blue
Canavalia rosea (Beach Bean) (LN)	0.2 x 5	Trailing or climbing stem

Cissus antarctica (Kangaroo Vine) (LN)	0.5 x 4	Dark green leaves with rusty new growth. Vigorous species for large areas only
Cissus opaca (Native Grape) (LN)	0.2 x 5	Trailing or climbing stem
Cissus rhombifolia (Grape Ivy)	0.5 x 3	Glossy green leaves. Scrambling habit – can be invasive
Commelina cyanea (Blue Wandering Jew) (LN)	0.2 x 2	Spreading habit with blue flowers
Crinum pedunculatum (Swamp Lily) (LN)	1 x 1	Delicate white flowers
Cymbopogon refractus (Barbed Wire Grass) (LN)	1	Perennial tussock grass
Derris involua (Native Derris) (LN)	0.5 x 10	Vigorous woody climber and showy white to pinkish mauve pea flowers
Dianella caerulea (Flax Lily) (LN)	1	Purple flowers
Erigeron karvinskianus (Seaside Daisy)	0.3 x 1	White and pink flowers in spring and summer
Eustrephus latifolius (Wombat Berry) (LN)	0.5 x 6	Orange berries
Evolvulus eg Sapphire Blue, Blue Eyes	0.5 x 1	Blue flowers in autumn and spring/summer
Ficinia nodosa (Nobby Rush) (LN)	0.5	Gently weeping sedge
Gahnia clarkei (LN)	2 x 2	Tall tussock-forming perennial
Gahnia sieberiana and *aspera* (Saw Sedge) (LN)	1-2	Tall tussock-forming perennial
Gardenia radicans (Prostrate Gardenia)	0.3 x 1	Scented white flowers in spring, glossy green leaves. Subject to scale when stressed
Grevillea various spreading or compact forms eg. Royal Mantle, Bronze Rambler, Forest Rambler, obtusifolia	0.3 x 1-4	Red or pink toothbrush or spider flowers in spring/summer. Require good drainage
Hardenbergia violacea (Native Sarsparilla) (LN)	0.5 x 2	Vigorous climber with violet flowers
Helichrysum spp. (Native Daisies) (LN)	1	Varied flower colours
Hibbertia scandens (Snake Vine) (LN)	0.5-1 x 3	Large yellow flowers in spring. Tolerates salt spray and drought
Hibbertia dentata (Guinea Flower) (LN)	0.5 x 2	Non-vigorous climbing or trailing plant with yellow flowers
Hoya australis and *H. oligotricha* (Waxflower) (LN)	0.5 x 10	White flowers have a strong sweet scent and produce abundant nectar
Ipomea pes-caprae (Goats Foot) (LN)	0.5	Salt tolerant plant
Kennedia rubicunda (Red Coral Pea) (LN)	0.5 x 4	Vigorous climber with red pea flowers
Lomandra longifolia (Mat Rush) (LN)	0.5	Strappy leaf plant
Morinda jasminoides (Jasmine Morinda) (LN)	0.5 x 5	Common climber in forests
Pennisetum allopecuroides (Swamp Foxtail) (LN)	1	Species of perennial grass with cream flower heads
Plectranthus cremnus (Coastal Mint Bush) (LN)	0.5 x 1.5	Dwarf aromatic perennial herb
Pultenaea villosa and *retusa* (yellow pea) (LN)	0.5	Prostrate to erect shrub
Smilax glyciphylla (Native Sarsparilla) (LN)	0.5	Black fruit
Themeda australis (Kangaroo Grass) (LN)	0.5-1	Perennial tussock-forming grass
Rhodanthe spp. (Native Daisy) (LN)	0.5	Attractive flowers and foliage
Scaevola calendulacea (Beach Fan Flower) (LN)	0.5	Prostrate shrub
Stephania aculeata, *S. japonica* (Snake Vine) (LN)	0.5	Weak twiner s with prickles 1–2 mm long
Smilax australis (Barbed Wire Vine) (LN)	0.5 x 8	prickly climbing stems
Trachelospermum 'Tricolour'	0.3 x 1	Variegated green/pink/white foliage
Viola hederacea (Native Violet) (LN)	0.2	White and purple violet like flowers most of year. Local native species. Suckering habit can be invasive. Tolerates shade and wet conditions
Zieria prostrata (Headland Zieria) (LN)	0.3 x 1	Flowers are pink in the bud stage but turn white as they open

FERNS AND LOW FOLIAGE PLANTS	Height (m)	FEATURES
Acanthus mollis (Olyster Plant)	1	Large dissected leaves. Spikes of purple white flowers. Shade tolerant
Adiantum hispidulum (Rough Maiden Hair Fern) (LN)	0.5	Fronds 5-70cm
Agapanthus – blue and white forms	0.5	Blue or white flowers in summer
Anigozanthos – various forms (Kangaroo Paw)	0.5-1	Kangaroo paw flowers in spring/summer
Asplenium australasicum (Birdsnest Fern)	1	Large leaves. Requires shade
Blechnum cartilagineum (Gristle Fern) (LN)	0.5	Leathery fern leaves. Local native fern. Sun and drought tolerant
Blechnum nudum (Water Fern) (LN)	1	Fronds are mid green and fresh looking
Clivea nobilis (Kaffir Lily)	0.3	Orange flowers in winter/spring. Requires shade
Dietes bicolor and *iridoides* (Wild Iris)	1	Attractive flowers and strappy leaves
Dianella cearulea (Flax Lily)	0.6	Blue flowers in spring and bright blue berries in summer. Local native species
Doodia aspera (Rasp Fern) (LN)	0.5	Fronds usually 20 to 45cm
Hymenocallis littoralis (Spider Lily)	0.5	White spider flowers in summer. Glossy green leaves. Tolerates drought and salt winds
Philodendron Xanadu (Dwarf Phillodendron)	1	Dark green indented leaves. Toleratees sun, shade, drought and wet conditions
Strelizea reginae (Bird of Paradise)	1	Distinctive orange and blue flowers in summer. Drought tolerant

WEEDS

The following plants are not acceptable for use within landscape plans submitted for approval from the City of Coffs Harbour. Plants occurring on a site are to be removed as part of landscape proposals.

Aardisia crenata (Coral Berry)
Abrus precatorius (Crabs-eye Creeper)
Acacia saligna (Golden Willow Wattle)
Ageratum houstonianum (Blue Billygoat Weed)
Ailanthus altissima (Tree of Heaven)
Anredera cordifolia (Madeira Vine)
Araujia sericiflora (Moth Vine)
Aristolochia littoralis & *elegans* (Dutchmans Pipe)
Asparagus aethiopicus, *africanus*, *asparagoides* & *plumosus* (Asparagus Ferns)
Bambusa sp (Bamboo – running varieties)
Bryophyllum spp. (Mother of Millions/Resurrection Plant)
Buddleja davidii & *madagascarensis* (Butterfly Bush)
Caesalpinia decapetala (Mysore Thorn)
Cinnamomum camphora (Camphor Laurel)
Canna indica (Canna Lily)
Cariospermum grandiforum (Balloon Vine)
Coffea Arabica (Coffee)
Commelina benghalensis (Hairy Commelina)
Cotoneaster spp. (Cotoneaster)
Cuphea carthagenensis (Cuphea)
Datura suaveolens (Angels Trumpet)

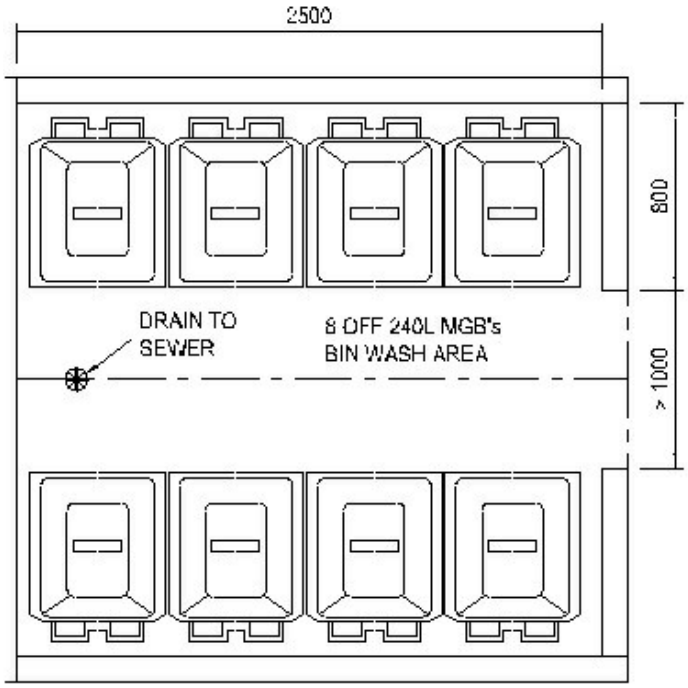
Delairea odorata (Cape Ivy)
Dioscorea bulbiferum (Aerial Yam)
Duranta repens (Duranta)
Eriobotrya japonica (Laquat)
Erythrina x sykesii (Coral Tree)
Eucalyptus torelliana (Cadaghi)
Eugenia uniflora (Brazilian Cherry)
Ficus sp (non-native species) NB. All Figs are not to be planted within 12m of services.
Gleditsia triacanthos (Honey Locust)
Gloriosa superba (Glory Lily)
Hedychium gardnerianum & *coronarium* (Kahili Ginger)
Hygrophila costata (Glush Weed)
Inga paterna (Ice Cream Bean)
Ipomoea alba, *cairica*, *indica* & *purpurea* (Morning Glory's)
Koelreuteria paniculate (Chinese Golden Rain Tree)
Lantana camera (except red) & *montevidensis* (Lantana & Creeping/Mauve Lantana)
Leucaena leucocephala (Leucaena)
Liquidamber acerifolius (Liquidamber)
Ligustrum sinense & *lucindum* (Narrow Leaf and Large Leaf Privet)
Lonicera japonica (Japanese Honeysuckle)
Macfadyena unguis-cati (Cat's Claw Creeper)
Murraya paniculate (Orange Jessamine)
Myriophyllum aquaticum (Parrot's Feather)
Nephrolepis corifolia (Fishbone Fern)
Nerium oleander (Oleander)
Ochna serrulate (Mickey Mouse Plant)
Olea africana (Wild Olive)
Olea africanus (African Olive)
Passiflora edulis, *suberosa* & *subpeltata* (Passionfruit)
Paulownia tomentose & *fortunei* (Palownia)
Pennisetum setaceum (Fountain Grass)
Pinus elliotti & *radiata* (Slash & Radiata Pine)
Populus species (All Poplars)
Psidium cattleianum & *guaiava* (Cherry Guava & Guava)
Pueraria lobata (Kudzu)
Pyracantha fortuneana (Orange Firethorn)
Rhaphiolepis indica (Indian Hawthorn)
Robinia pseudoacacia (Black Locust)
Salix species (Weeping willow)
Schefflera actinophylla (Umbrella Tree)
Senna pendula var. glabrate & *Senna X floribunda* (Cassia)
Setaria palmifolia (Palm Grass)
Solanum mauritianum (Wild Tobacco Tree)
Solanum seaforthianum (Climbing Nightshade)
Syagrus romanzoffianum (Cocos Is. Palm)
Tabebuia chrysantha (Golden Trumpet Tree)
Tecoma stans (Yellow Bells)
Thunbergia alata & *grandiflora* (Black-eyed Susan & Blue Trumpet Vine)

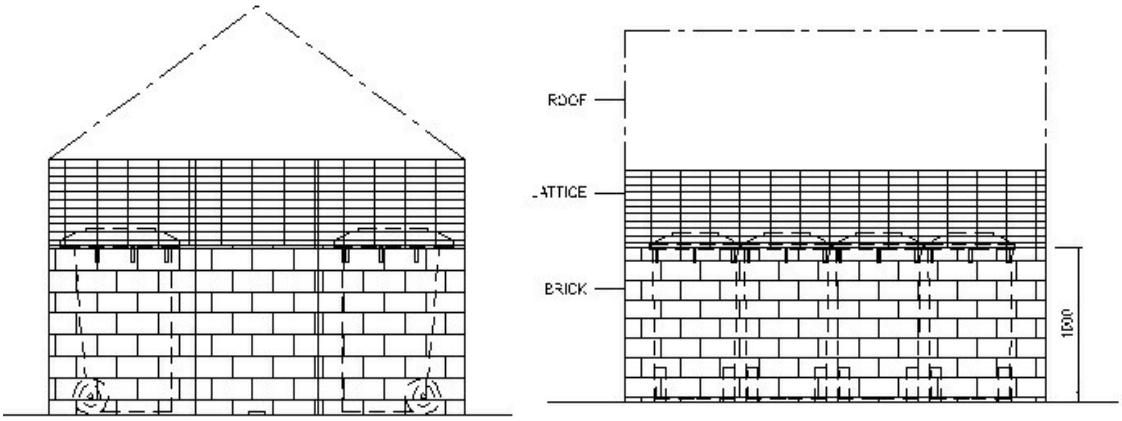
Tradescantia fluminensis (Trad)
Triadica sebera (*Sapium sebiferum*) (Chinese Tallow)
Watsonia meriana (Bulbil Watsonia)
Wedelia trilobata (Singapore Daisy)
Plus all weeds listed in Appendix 1, 2 and 2.2 of the North Coast Regional Strategic Weed Management Plan 2017-2022.

Appendix 4 WASTE MANAGEMENT EXAMPLES

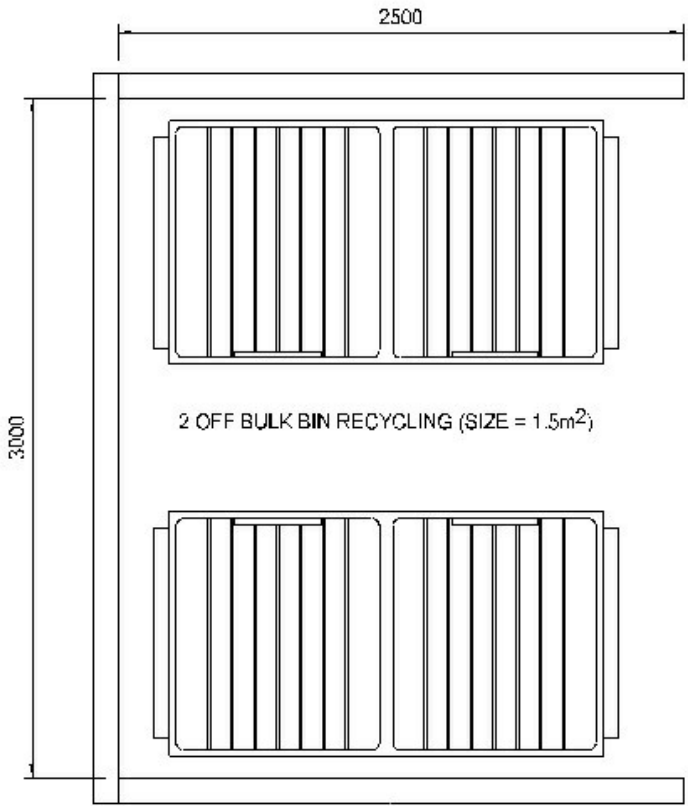
Design Guidelines for Bin Wash/Storage Areas

Example Storage Area for Mobile Garbage Bins (8 Bins)

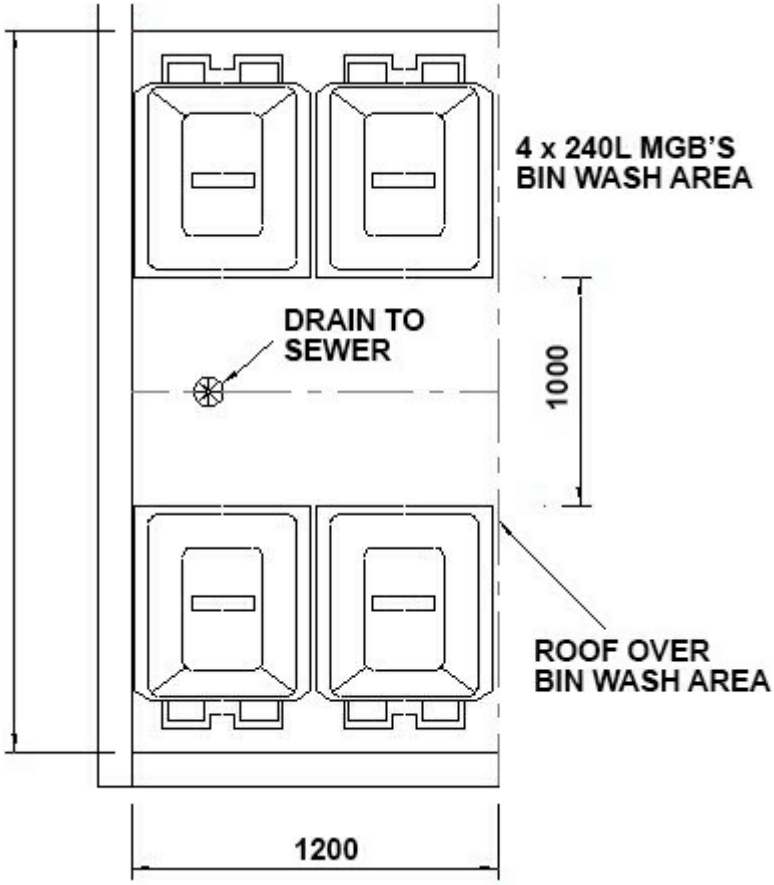




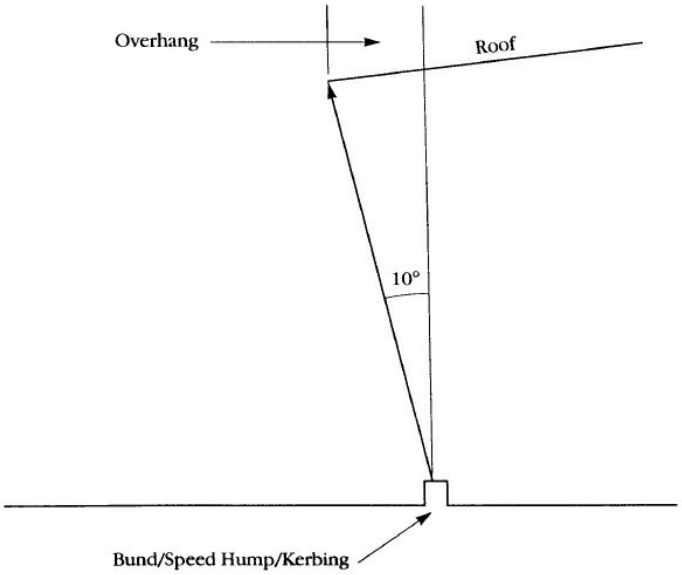
Example Bulk Bin Storage Area (2 x 1.5m³)



Example Bulk Bin Storage Area (4 Mobile Garbage Bins)

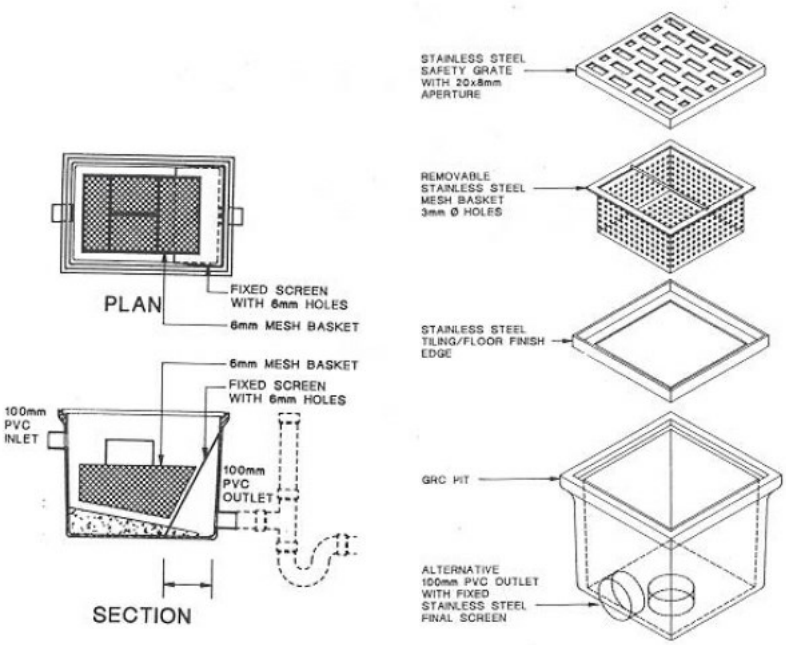


Roofing Requirements for Bin Storage Areas



Source: DEUS Liquid Trade Waste Management Guidelines 2005

Dry Basket Arrestor Requirements



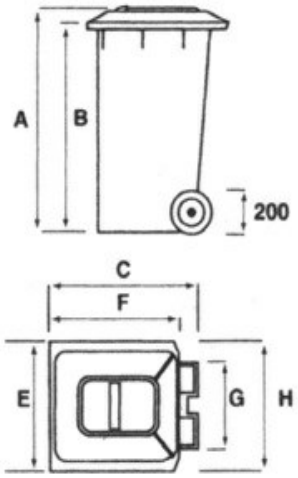
Source: DEUS Liquid Trade Waste Management Guidelines 2005

Available Bin Sizes

Bin Dimensions – Mobile Garbage Bins

Kitchen Organics Bin **240L Wheelie Bin**

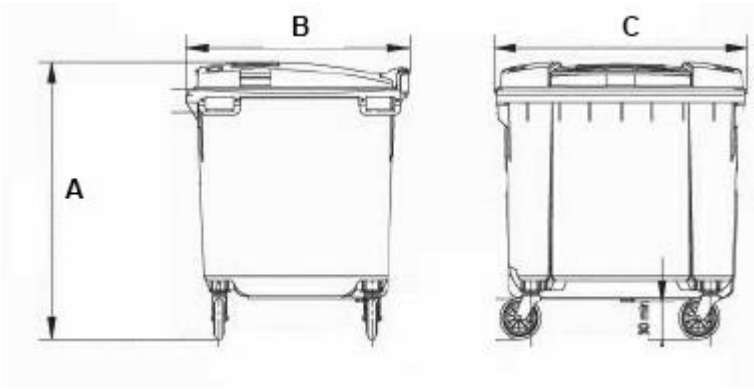




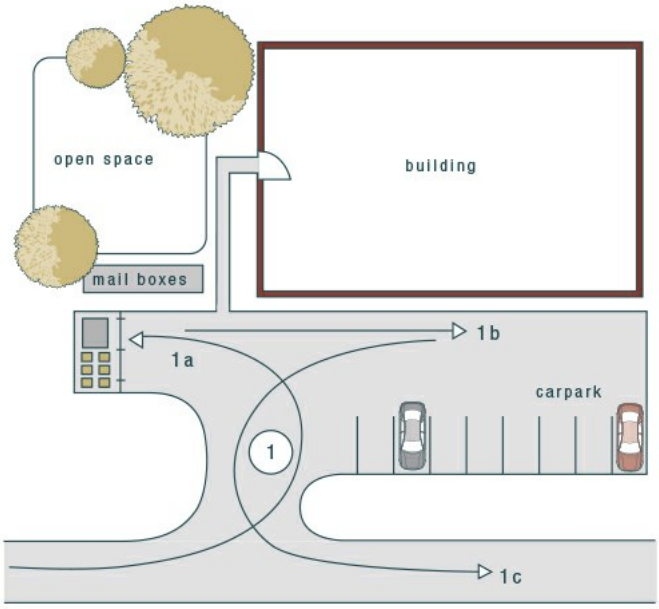
Bin Dimensions – Bulk Bins

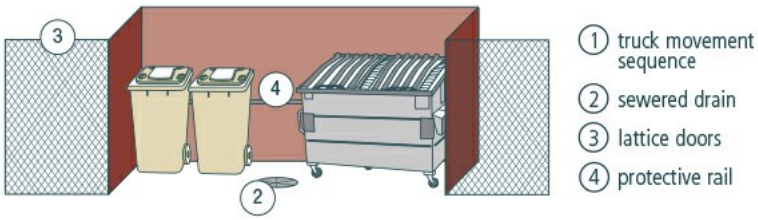
Bin Dimension	240L	660L	1100L
Height (A)	1060mm	1230mm	1260mm
Depth (B)	740mm	800mm	1080mm
Width (C)	580mm	1220mm	1210mm

Bulk Bin

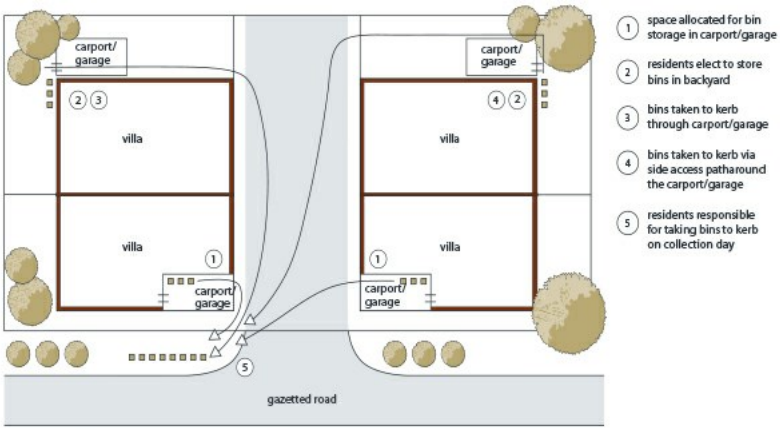


Access Design Examples





Note: roof not shown on diagram



Example of bins stored within each individual yard

This example demonstrates different bin storage locations that are possible for villas and townhouses where bins are stored within each individual property. Bins would be collected from the kerbside, with residents responsible for the movement of bins to and from the collection point on the collection day.

NOTES ON EASEMENTS

Developments proposing internal collection points, waste storage and recycling facilities and garbage and recycling rooms should provide convenient access and a truck turning area to enable the collection of the receptacles from within the property.

EASEMENT REQUIREMENTS:

An easement entitling the Council, its servants and agents and persons authorised by it, to enter upon the subject land and to operate thereon vehicles and other equipment for the purpose of garbage and recycling collection, shall be granted to the Council by the owner of the subject land at the cost of the applicant, prior to occupation of the development and prior to registration of any plan of subdivision or strata subdivision of the subject land.

Such easement shall be in a form acceptable to the Council and shall include covenants to the effect that in the absence of negligence on the part of the Council, its servants, agents and those authorised by the Council to enter the subject property, they will not be liable for any damage caused to the subject land or any part thereof, or to any property located therein or thereon by reason of the operation thereon of any vehicle or other equipment used in connection with the collection of the garbage and recycling and to the effect that the owner for the time being of the subject land shall indemnify the Council, its servants, agents and persons authorised by it, to collect garbage and recycling against liability in respect of such claims made by any person whomsoever.

Documentation for the provision of the easement is to be submitted with the Subdivision or Strata Application.

NOTE: An 88(b) instrument is an acceptable form of easement subject to the area effected by the easement not requiring renewal upon sale or transfer at any time.

Example Clauses for Management Statement/Strata Bylaws

(1) The City of Coffs Harbour, its servants and agents have the full and free right at all times to enter upon Neighbourhood Property and to operate vehicles and other equipment for the purpose of garbage and recycling collection, and to repair and maintain the statutory services and statutory service lines.

(2) The City of Coffs Harbour, its servants or agents shall not be liable for any damage caused to the Neighbourhood Property arising from the operation of any vehicle or other equipment as envisaged by the above subclause except where such damage is caused by the negligence or recklessness of the City of Coffs Harbour, its servants or agents.

(3) The terms of this Clause may not be varied except with the prior written agreement from the City of

Coffs Harbour from time to time, or the successor of the City of Coffs Harbour.

Construction Waste Management Plan

A Construction Waste Management Plan is required to address the following information and is to include the design and location of any bin storage / wash areas.

Description of Development				
	Residential ❑	Multi-unit ❑	No. of units	Bedrooms per ur
		Villa / townhouse ❑	No. of dwellings	Bedrooms per ur
	Commercial ❑ *(including public building / tourist accommodation)*	Detail		
	Construction / demolition ❑			

Option selected	Tick	Yes	No
	Option A. Individual MGBs (3 x each premise)		
	Option B. Shared MGBs		
	Option C. Shared Bulk bins		
	Option D. Individual Bulk Bins (commercial)		

The following information is required for each element of the waste management system design.

Storage – space and location (Option A only)			
Location of bin storage / wash area is to be provided in accordance with the following and any relevant controls with F6 – Waste Management of this Plan.	Tick	Yes	N
	Requirements		
	Bins are not visible from the street.		
	Area available at each dwelling for storage of bins = 1.8 x 0.8m		

Storage – space and location (Options B, C and D)			
Service requirements (bin type and access) have been discussed with the collection service provider.	Name of Contact:		
	Tick	Size	Fre
Total number and size of bins and frequency of collection ***(See recommended bin options within F6 – Waste Management of this Plan).***	**Recycling** - *e.g. 1,100L weekly*		
	Organics – *e.g. 2 x 240L weekly*		
	Garbage – *e.g. 1,100L weekly*		

Space			
Appropriate bin storage/wash area design and cross-section in accordance with the following requirements	**Tick**	**Yes**	**N**
	Requirements - Bin storage and wash area		
	Roofed to prevent ingress of stormwater into sewer		
	Concrete floor graded and drained to sewer		
	Drain to dry basket arrestor (as per Liquid Trade Waste Policy)		
	Anti-vandal tap with hose fitting for washing bins		
	Made with materials to match principle development		
	Concrete graded floor with speed hump type ramp between area and outside path / driveway – no steps		
	Disabled access requirements fulfilled		

Location			
Location of bin storage area is shown on plans and satisfies the following requirements:	**Tick**	**Yes**	**N**
	Requirements		
	Bins are conveniently located for access by all users e.g. near car park.		
	If located within front setback area, adequate screening is provided.		
	Bins are not visible from the street.		
	Noise and security has been considered in relation to neighbouring properties.		

Internal Storage (residential and commercial only)			
	Tick	**Yes**	**N**
Option C – For development t comprising >3 storeys or >18 units, waste storage facilities may be provided on each floor or an internal collection service may be operated at the expense of the owners. Such option is to be describe in detail and shown on plans. i.e. waste cupboard space provided in each unit.			

Access – for Caretaker/ Residents			
	Tick	**Yes**	**N**
Distance – MGBs do not need to be wheeled more that 75m (50m maximum for aged persons or persons with a disability.)			
Slope – bin-carting grade is at a maximum of 1:14 – disabled access requirements have been met (where they differ from this requirement).			
MGBs do not have to be wheeled over steps to get them from where they are stored, to the kerbside.			

Access – for Waste Collectors			
	Tick	Yes	N
MGBs – Sufficient space is available for collection at kerbside (i.e. space provided = number of bins to be placed at kerb for collection x 0.9m). ***No encroachment outside property boundary is permitted***	Maximum Number of bins to be collected on any day = Space at Kerb = metres		
MGBs – The location will not pose a traffic hazard (i.e. wheeled bins are not placed near intersections, roundabouts, slow points, and along busy arterial roads.) On one-way streets bins are placed on the side of the road in the direction of traffic.			
Access roads – If access is via a private road the collection service provider has been consulted regarding access conditions (NB. An 88B instrument or similar may apply – see example above).	Contact:		
88B Instrument applies (or equivalent community management statement inclusion)			
Option C Bulk Bins – Driveway access is suitable for the collection vehicle in terms of its strength and geometric design as per technical specifications **(See *Access requirements within F6 – Waste Management of this Plan*)**			
Option C Bulk Bins – Bulk bins must be able to be moved across a flat surface at a reasonable distance for collection and the point of collection must be a flat, even surface.			
Option C Bulk Bins – The need for reversing of collection vehicles is eliminated or limited.			

Construction and Demolition Schedule

Demolition Schedule – complete all items that apply below			
		Tick	**Yes**	**N**
Waste streams to be collected have been identified			
Name of Licenced Asbestos removalist Licence No.			
Identify which waste streams will be collected (tick yes or no in column on right)	**Name of Facility / company collecting for disposal** (if yes marked in column on right)		
Recyclables (glass, plastics 1-5, paper / cardboard, aluminium cans, steel cans)			
Organics / greenwaste			
Concrete / surplus pour			
Cement / bricks / masonry			
Contaminated fill			
Clean fill			
Paper / cardboard (if not with mixed recyclables)			
Wood / timber			
Metals - aluminium, zinc, copper, steel, lead (pipes, roofing, guttering strapping)			
Plastics (pipes and gutters)			
Insulation materials			
Plasterboard (clean)			
Tiles / roof tiles			
Windows / doors			
Glass unbroken			
Fixtures / fittings			
Carpet / underlay			
Vinyl floor covering / lino			
Sundry waste (paint tins, glue cartridges, plastic drums)			
Hazardous waste (more than 10 fire alarms, chemicals)			
Asbestos			
General waste			
Plan attached with location of temporary on-site waste storage			

Part I Schedule of Amendments

Schedule of Amendments to Coffs Harbour DCP 2015					
Amendment	**Area**	**Name**	**Councils Decision**	**Date of Councils Resolution**	**Effective From**
-	Coffs Harbour LGA	Coffs Harbour DCP 2015	Approved	24 September 2015	29 September 2015
No.1	Coffs Harbour LGA	Coffs Harbour DCP 2015 - Amendment No. 1 (Housekeeping 1)	Approved	9 November 2017	22 November 2017
No.2	Coffs Harbour LGA	Coffs Harbour DCP 2015 - Amendment No. 2 (Housekeeping 2)	Approved	8 March 2018	14 March 2018
No. 7	Coffs Harbour LGA	Coffs Harbour DCP 2015 - Amendment No. 7 (West Woolgoolga)	Approved	10 May 2018	26 May 2018
No. 5	Coffs Harbour LGA	Coffs Harbour DCP 2015 - Amendment No. 5 (Deferred Areas)	Approved	9 March 2017	27 July 2018
No. 4	Coffs Harbour LGA	Coffs Harbour DCP 2015 - Amendment No. 4 (Detached Dual Occupancies)	Approved	26 July 2018	12 September 2018
No. 10	Coffs Harbour LGA	Coffs Harbour DCP 2015 - Amendment No. 10 (Korora)	Approved	28 September 2017	21 September 2018
No. 9	Coffs Harbour LGA	Coffs Harbour DCP 2015 - Amendment No. 9 (Braford Drive and Irvines Road, Bonville)	Approved	13 September 2018	21 November 2018
No. 3	Coffs Harbour LGA	Coffs Harbour DCP 2015 - Amendment No. 3 (North Boambee Valley West)	Approved	28 March 2018	18 May 2019
No. 8	Coffs Harbour LGA	Coffs Harbour DCP 2015 - Amendment No. 8 (Housekeeping 3)	Approved	27 June 2019	3 July 2019
No. 13	Coffs Harbour LGA	Coffs Harbour DCP 2015 - Amendment No. 13 (Housekeeping 4)	Approved	28 November 2019	11 December 2019
No. 16	Coffs Harbour LGA	Coffs Harbour DCP 2015 - Amendment No. 16 (Community Participation and Engagement Plan)	Approved	12 December 2019	18 December 2019
No. 11	Coffs Harbour LGA	Coffs Harbour DCP 2015 - Amendment No. 11 (CBD Heights and Built Form Controls)	Approved	26 September 2019	15 January 2020

No. 6	Coffs Harbour LGA	Coffs Harbour DCP 2015 - Amendment No. 6 (Corindi Beach)	Approved	28 November 2019	15 April 2020
No. 12	Coffs Harbour LGA	Coffs Harbour DCP 2015 - Amendment No. 12 (7 Tasman Street Corindi Beach)	Approved	28 May 2020	22 July 2020
No. 18	Coffs Harbour LGA	Coffs Harbour DCP 2015 - Amendment No. 18 (Housekeeping 5 - Engineering)	Approved	10 December 2020	17 December 2020
No. 14	Coffs Harbour LGA	Coffs Harbour DCP 2015 - Amendment No. 14 (Newmans Road, Woolgoolga)	Approved	22 October 2020	7 January 2021
No. 17	Coffs Harbour LGA	Coffs Harbour DCP 2015 - Amendment No. 17 (Butlers Road, Bonville)	Approved	22 April 2021	7 May 2021
No. 22	Coffs Harbour LGA	Coffs Harbour DCP 2015 - Amendment No. 22 (288-294 Coramba Road, Coffs Harbour)	Approved	23 September 2021	26 November 2021
No. 20	Coffs Harbour LGA	Coffs Harbour DCP 2015 - Amendment No. 20 (Bark Hut Road, Woolgoolga)	Approved	28 April 2022	6 July 2022
No. 23	Coffs Harbour LGA	Coffs Harbour DCP 2015 - Amendment No. 23 (Telecommunications Facilities)	Approved	23 March 2023	17 April 2023
No. 35	Coffs Harbour LGA	Coffs Harbour DCP 2015 - Amendment No. 35 (Employment Zone Changes, Title Changes for Conservation Zones & General Housekeeping)	Approved	27 April 2023	28 April 2023